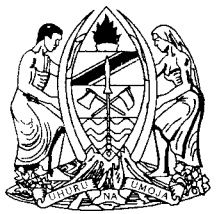

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COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM
(Makame, Mfalila and Samatta, JJ.A.)

CIVIL APPEAL No. 55 OF 1996

Civil Practice and Procedure – Appeal – Appeal to the Court of Appeal – Appeal lodged out of time – Whether the Court of Appeal may invoke the provision of rule 3 and proceed to entertain an appeal lodged out of time – Rules 3 and 83(1) and (2) of the Court of Appeal Rules 1979.

This appeal was lodged beyond the 60 days limit prescribed under rule 83(1) for lodging an appeal and the appellant could not rely on the exception provided under that provision in the computation of time because no copy of the letter addressed to the Registrar of the High Court asking for the record of proceedings was sent to the respondent. The appellant urged the court to invoke the provisions of rule 3 and proceed to hear the appeal because the respondent did not take any steps to strike out the Notice of Appeal under rule 82 and was therefore not prejudiced by the appellant's failure to lodge the appeal in time.

Held: (i) The provisions of rule 3 of the Court of Appeal Rules 1979 cannot be used to save an appeal that has been lodged out of time; those provisions cannot be used to circumvent mandatory provision of the rules laying down time limits within which legal steps should be taken;

(ii) The fact that the respondent did not apply under rule 82 of the rules to have the Notice of Appeal struck out did not give the appellant the right to file its appeal after the prescribed period of 60 days.

Preliminary objection upheld; appeal struck out

Cases referred to:

(1) *DP Valambhia v. Transport Equipment Ltd.* [1992] T.L.R. 246

(2) *Nimrod Elireheman Mkono v. State Travel Ltd. and Mass Saktay* [1992] T.L.R 24

(3) *Jacobson v. Lee* [1949] 2 All ER 517

Statutory provisions referred to:

(i) Court of Appeal Rules 1979, rules 3, 8, 83(1), (2), 100 and 122

(ii) Rules of the Supreme Court of Justice in England Order 2(1)

Dr Kapinga, for the Appellant

Mr Ngalo, for the Respondent

RULING

(Dated 17 December 1998)

SAMATTA, J.A.: This is an appeal from a ruling of the High Court (Munuo, J.) dated 21 June 1996, striking out with costs a suit filed by the appellant against the respondent on the ground that the plaint disclosed no cause of action. When the appeal came on for hearing, Mr Ngalo, counsel for the respondent, raised, pursuant to a notice he had given under rule 100 of the Tanzania Court of Appeal Rules 1979 (hereinafter referred to simply as "the rules"), a preliminary objection that the appeal is time-barred.

It is not disputed that the appeal was lodged about four weeks out of time. It is also not in dispute that no copy of the letter addressed to the Registrar of the High Court applying for a copy of the proceedings, ruling and decree was sent to the respondent. The appellant was not therefore entitled to rely, with regard to computation of time within which to lodge the appeal, on the exception to sub-rule (1) of rule 83 of the rules. Mr Ngalo submitted that, having been lodged beyond the prescribed period of sixty days, the appeal is incompetent in law and ought to be struck out with costs. The learned advocate reminded us of the following passage from the judgment of this court in *DP Valambhia v Transport Equipment Ltd.* (1) at page 259:

> ... Rules of court were created to act as vehicles to enable this court to dispense justice between parties, and the court's task in this direction is made easier if the rules are complied with. The general rule therefore is that this court will lean towards strict compliance with the rules, only to be depart from this general rule in cases where it is clear that strict application would not be in the interests of justice.

While conceding that there is no record showing that a copy of proceedings, ruling and decree was sent to the respondent or its advocates, Mr Kapinga urged us to dismiss the preliminary objection. He contended that the omission to send the copy of the letter to the respondent occasioned no miscarriage of justice and, therefore, this court should invoke the provisions of rule 3 and depart from the provisions of rule 83(2) of the rules. The learned advocate submitted that as the respondent did not take any step geared at having the Notice of Appeal in the case struck out under rule 82 of the rules it cannot be said that the respondent was prejudiced by the appellant's failure to lodge its appeal within the prescribed period of sixty days. Contending that being out of time is a technicality which falls under rule 3 of the rules, Mr Kapinga cited, in support of his submission, *Nimrod Elireheman Mkono v State Travel Service Ltd. and Masoo Saktay* (2) *in* which this court said *inter alia*:

> ... justice should always be done without undue regard to technicalities.

In his valiant effort to persuade us to hold that his client's appeal has legal feet, so to speak, on which to stand, the learned advocate drew our attention to Order 2(1) of the rules of the Supreme Court of Justice in England, which reads:

> 1(1) Where, in beginning or purporting to begin any proceedings or at any stage in the course of or in connection with any proceedings, there has, by reason of any thing done or left undone, been a failure to comply with the requirements of these rules, whether in respect of time, place, manner, form or content or in any other respect, the failure shall be treated as an irregularity and shall not nullify the

proceedings, any step taken in the proceedings, or any document, judgment or order therein.

(2) Subject to paragraph (3) the court may, on the ground that there has been such a failure as is mentioned in paragraph (1) and on such terms as to costs or otherwise as it thinks just, set aside either wholly or in part the proceedings in which the failure occurred, any step taken in those proceedings or any document, judgment or order therein or exercise its powers under these rules to allow such amendments (if any) to be made and to make such order (if any) dealing with the proceedings generally as it thinks fit.

(3) The court shall not wholly set aside any proceedings or the writ or other originating process by which they were begun on the ground that the proceedings were required by any of these rules to be begun by an originating process other than the one employed.

To do justice to the above competing arguments we think it is necessary to cite *in extenso* rules 3 and 83(1) and (2) of the rules. The former rule reads:

3(1) The practice and procedure of court in connection with appeals and intended appeals from the High Court, and the practice and procedure of the High Court in connection with appeals to the court shall be as prescribed in these rules, but the court may at any time, direct a departure from these rules in any case in which this is required in the interests of justice.

(2) Where it is necessary to make an order for the purposes of:

(a) dealing with any matter for which no provision is made by these rules or any other written law;

(b) better meeting the ends of justice; or

(c) preventing an abuse of the process of the court, the court may, on application or on its own motion, give directions as to the procedure to be adopted or make any other order which it considers necessary.

rule 83(1) and (2) reads as follows:

83(1) Subject to the provisions of rule 122, an appeal shall be instituted by lodging in the appropriate registry, within sixty days of the date when the Notice of Appeal was lodged:

(a) a Memorandum of Appeal, in quintuplicate;

(b) the Record of Appeal, in quintuplicate;

(c) the prescribed fee; and

(d) security for the costs of the appeal

save that where an application for a copy of the proceedings in the High Court has been made within thirty days of the date of the decision against which it is desired to appeal, there shall, in computing the time within which the appeal is to be instituted be excluded such time as may be certified by the Registrar of the High Court as having been required for the preparation and delivery of that copy to the appellant.

(2) An appellant shall not be entitled to rely on the exception to sub-rule (1) unless his application for the copy was in writing and a copy of its was sent to the respondent".

Sub-rule (3) of this rule is irrelevant to the issue before us, and rule 122 deals with relief from fees and security, and is, therefore, not of any relevance to the determination or the preliminary objection. The question which falls for determination here is a short one, namely, whether this court can invoke the provisions of rule 3 of the rules in favour of a party who has lodged an appeal out of time, and entertain the appeal. In his interesting submission Mr Kapinga sought to distinguish *Valambhia's* case (1) and similar cases on the ground that in those cases this court was not invited by the appellants to invoke its powers under rule 3 of the rules. We have give the question before us anxious and careful consideration and in the upshot we are satisfied, in spite of the ingenuity displayed by Mr Kapinga in presenting his argument, that the provisions of rule 3 cannot be prayed in aid to save an appeal, like the instant one, which has been lodged out of time. Those provisions, in our opinion, cannot be used to circumvent the mandatory provisions

of the rules laying down time limits within which legal steps should be taken. The framers of the rules no doubt realized that sometimes litigants may, for sufficient reasons, fail to comply with those provisions, and accordingly they enacted rule 8 of the rules to protect the interests of justice of such litigants. That rule reads:

> 8. The court may for sufficient reason extend the time limited by these rules or by any decision of the court or of the High Court for the doing of any act authorized or required by these rules, whether before or after the expiration of that time and whether before or after the doing of the act, and any reference in these rules to any such time shall be construed as a reference to that time as so extended.

In our opinion, it is not correct, as was contended by Mr Kapinga, that the respondent has not been prejudiced by the appellant purporting to file an appeal against Munuo J.'s ruling out of time. When the period within which the appellant could in law lodge the appeal expired, the respondent became entitled to enjoy the fruits of that ruling. In this connection we wish to draw attention to the following words of Harman, J, in his judgment in *Jacobson v Lee* (3) at page 519:

> ... It is important that litigants should not be shut out from their rights but it is equally important that a litigant who has obtained a judgment in his favour should not have it taken away from him except in ... special circumstances. It is in the public interest that there should be an end of litigation.

The appellant, for reasons unknown to us, did not find in it necessary to ask this court to bring the provisions of rule 8 of the rules into play. It has no one to blame but itself if that provision proves, as it does, to be fatal to its (the appellant's) appeal. The respondent, it is true, did not apply under rule 82 of the rules to have the Notice of Appeal struck out, but it was not obliged to do so. No amount of inaction on the part of the respondent would give the appellant the right to file its appeal after the prescribed period of sixty days. With regard to the provisions of Order 2, rule 1 of the rules applied in England by the Supreme Court of Justice, we think it sufficient to observe, as we do, that there are no provisions in the rules which are even remotely similar to those provisions. We do not find those provisions of assistance to us in the determination of Mr Ngalo's preliminary objection. With all the goodwill in the world, we are unable to find any merit in Mr Kapinga's argument.

For the foregoing reasons, we uphold the preliminary objection and strike out the purported appeal with costs.

SALEHE IBRAHIM *v.* DADIRAHIM MOHAMED

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM

(Makame, Mfalila and Samatta, JJ.A.)

CIVIL APPEAL No. 60 OF 1996

(From the decision of the High Court of Tanzania at Dar es Salaam, Chua J., dated 7 January 1997, in Probate and Administration Cause No. 72 of 1985)

Court of Appeal Rules – Rules 83(1)(a), 89(1)(e) and 90(1) – Effect of non-compliance with.

The appellant's *caveat* to the respondent's petition for grant of probate was dismissed by the High Court. He appealed to the Court of Appeal, but the Record of Appeal did not incorporate a Memorandum of Appeal, and counsel for the respondent informed the court that the respondent had not been served with a copy thereof. Counsel for the appellant virtually admitted there were such omissions. He contended, however, that the omission was not fatal to the appeal. The court noted that the record did not include the pleadings in the probate proceedings.

Held: The document entitled "GROUNDS OF APPEAL" was not a Memorandum of Appeal; thus there has been a non-compliance with the provisions of rule 83(1)(a) of the Court of Appeal Rules. Preliminary objection is upheld.

Appeal struck out

Cases referred to:

(1) *Mohantal Karamshi Shah v Mohanlal Kala Thacker* (1955) 22 E.A.C.A. 305

(2) *Dr. Fortunatus Lwanyantika Masha v Dr. William Shija and the Hon. Attorney General*, CA, Civil Appeal Number 43 of 1986 (unreported)

Statutory provision referred to:

(i) Tanzania Court of Appeal Rules 1979, rules 6(a),10(4) and (5), 79, 83(1)(a), 86(3), 89(1)(a), (c) and (h), 90(1), 100 and 122

Mr. Mwengela, for the Appellant

Mr. Kinguji, for the Respondent

RULING

(Dated 18 December 1998)

SAMATTA, J.A.: This is an appeal from a judgment of the High Court (Chua, J.), dated 15 June 1995, dismissing the caveat which was lodged by the appellant, Saleh Ibrahim, to the respondent's petition for grant of probate of the will of one Hawa Mohamed, who died on 5 November 1985, allowing the petition and appointing the respondent as the executor of the said will of the deceased.

When the appeal was called on for hearing, Mr Kinguji, counsel for the respondent, raised, pursuant to the notice he had lodged under rule 100 of the Tanzania Court of Appeal Rules 1979 (hereinafter referred to as "the rules"), a preliminary objection. In the Notice of Preliminary Objection two principal grounds were indicated: (1) the appeal is time-barred; and (2) the appellant did not comply with rules 10(4) and (5), 83(1)(a) as read together with rules 86(3), 89(1)(a), (c) and (h), and rule 90(1), of the rules. At the commencement of the hearing of the preliminary objection, however, the learned advocate abandoned the first ground. He informed the court that he had decided to do so because, having studied the provisions of rule 6(a) of the rules more closely, he was satisfied that no question of the appeal being time-barred arises. We are therefore left with the second ground, which we proceed to deal with.

It is not in dispute that the record of the appeal does not contain any document entitled Memorandum of Appeal. The document which forms part of the record and which purports to relate to grounds of appeal partly reads as follows:

> **Grounds of Appeal**
>
> The appellant above named appeals to the Court of Appeal of Tanzania against the above mentioned decision on the following additional grounds, namely:
>
> (1) That the learned trial Judge failed to appreciate legal requirements as to proof of a will in law.
>
> (2) That the learned trial Judge failed to hold that inheritance under Islamic Law is based on consanguinity.
>
> (3) That the learned trial Judge misdirected himself when he granted probate to the respondent against the totality of the evidence which showed that he was not entitled to such grant.
>
> *It is proposed to ask the court for Orders sought for in the memorandum of appeal.* [emphasis supplied]

This document is signed by an advocate from the legal firm of Mchora and Company. Originally the words Grounds of Appeal in the document were immediately preceded by the word additional, but this word was later deleted. It is not known when the deletion was effected, but, as will, we hope, be clear later in this ruling, as far as the determination of the preliminary objection is concerned the point is irrelevant. Mr Mwengela, counsel for the respondent, very fairly conceded that the record of the appeal does not include a Memorandum of Appeal. He asserted from the Bar, however, that that document was lodged, but he does not know why it was not incorporated into the record. Mr Kinguji submitted that a Memorandum of Appeal having not been made part of the record, the appeal is incompetent in law. The learned

advocate cited rule 83(1)(a) of the rules and *Mohanlal Karamshi Shah v Mohanlal Kala Thacker* (1) in support of that submission. The sub-rule reads:

> 83(1) Subject to the provisions of rule 122, an appeal shall be instituted by lodging in the appropriate registry within sixty days of the date when the Notice of Appeal was lodged:
>
> (a) a Memorandum of Appeal, in quintuplicate;
>
> (b) the record of the appeal, in quintuplicate;
>
> (c) the prescribed fee; and
>
> (d) security for the costs of the appeal,
>
> Save that where an application for a copy of the proceedings in the High Court has been made within thirty days of the date of the decision against which it is desired to appeal, there shall, in computing the time within which the appeal is to be instituted be excluded such time as may be certified by the Registrar of the High Court as having been required for the preparation and delivery of that copy to the appellant.

In *Shah's case* (1) the Court of Appeal for Eastern Africa, in a very short judgment, dismissed Shah's appeal from a decision of the Supreme Court of Kenya, on the ground, among others, that the appellant had "failed to observe many of the rules of [the] court governing the presentation appeals." Mr Mwengela sought to meet the point raised by Mr Kinguji by contending that the principle laid down in *Dr. Fortunatus Lwanyantika Masha v Dr William Shija and the Hon. Attorney General* (2) that failure to extract the order appealed from is fatal to the appeal is inapplicable to the present case because, as the learned advocate put it, what is missing here is a Memorandum of Appeal, and not an extracted order. The learned advocate further contended that *Shah's case* is distinguishable from the case now before us because the judgment delivered therein does not disclose that the rules of the court which the appellant (Shah) failed to comply with

are similar to the rules which are said not to have been complied with in the instant case.

We have given careful consideration to the learned advocates' arguments, and in the end we are of the settled opinion that Mr Kinguji's submission has merit. The provisions of rule 83(1)(a) are, in our view, pre-emptory. A Memorandum of Appeal is a very important document in a Record of Appeal, the absence of which has the effect of making the purported appeal incompetent in law. The document which forms part of the record of the appeal in the present case and which, after the deletion of the word additional is entitled Grounds of Appeal, is not, as Mr Mwengela very properly conceded, a Memorandum of Appeal. We hold that opinion mainly for two reasons: (1) the first sentence of the document makes it abundantly clear that the grounds stated in the document are additional grounds; and (2) the last sentence in the document, as will be recalled, states: "It is proposed to ask the court for Orders sought in the Memorandum of Appeal." That sentence leaves no doubt that the advocate who drafted it did not intend it to be a Memorandum of Appeal. But since the Memorandum of Appeal referred to in the sentence does not form part of the record of the appeal, the conclusion that the purported appeal is incompetent in law is in our opinion, inescapable. The appellant's advocates had the duty to ensure that the record was complete for the purposes of challenging the High Court's decision in this court. They are not entitled to lay the blame for the irregularity which Mr Kinguji has complained against on the Registrar. The Record of Appeal is theirs and not the Registrar's.

Mr Kinguji told the court from the Bar that neither he nor his client has been served with a copy of the Memorandum of Appeal allegedly lodged with the Registrar. Mr Mwengela was unable to contradict this assertion; all he was able to do was to blame his firm's clerks for the irregularity. In our opinion, the omission is a serious irregularity as it constitutes a failure to comply with the mandatory provisions of rule 90(1) of the rules, which reads:

90(1) The appellant shall, before or within seven days after logging the Memorandum of Appeal and the record of the appeal in the appropriate registry, serve copies of them on each respondent who has complied with the requirements of rule 79.

The respondent in this case complied with the requirements of rule 79. We hope we shall be forgiven for stating the obvious: In this country a party to a proceeding in a court of justice is entitled in law to know the case he is to meet. His opponent cannot be allowed to hold his cards close to his chest.

In our settled view, the two irregularities we have considered constitute a sufficient warrant for sustaining Mr Kinguji's preliminary objection. We think, however, that it might serve some practical purpose if we say a word or two on the appellant's failure to comply with the provisions of rule 89(1)(c) of the rules. The record of the appeal lodged in the registry does not include the pleadings in the probate proceedings. Plainly, this was a serious omission. The need for advocates to take great pains to ensure that their records of appeal are in order cannot be over-emphasized. As far as possible appeals should be determined on their merits rather than on preliminary technical points.

For the foregoing reasons, we uphold Mr Kinguji's preliminary objection and strike out the appeal. The respondent shall have his costs.

PILI SABUNI *v.* REPUBLIC

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Kalegeya, J.)

CRIMINAL CASE No. 27 OF 1996

Criminal Practice and Procedure –Bail -- Bail for an accused person charged with murder - Applicant/accused person a young person – Whether bail may be granted – Section 148(5) of the Criminal Procedure Act 1985 and section 4 of the Children and Young Persons Ordinance Chapter 13.

The applicant, charged with murder contrary to section 196 of the Penal Code Chapter 16 of the Laws, applied for bail unsuccessfully before the Kilosa District Court. On application to the High Court, Counsel for the applicant argued that the applicant, being a child should not be mixed with adults as per the provisions of the Children and Young Persons Ordinance Chapter 13, and should for that reason be released on bail.

Held: (i) As the accused was charged with murder the provisions of section 148(5)(a) of the Criminal Procedure Act 1985 do not allow grant of bail;

(ii) Section 4 of the Children and Young Persons Ordinance Chapter 13 which provides for bail for children and young persons under 16 years by police officers still bars releasing on bail those charged with homicide.

Application dismissed

Statutory provisions referred to:

(i) Criminal Procedure at 1985, section 148(5)(a)

(ii) Penal Code Chapter 16, section 196

(iii) Children and Young Persons Ordinance,Chapter 13, section 4

Mr. Maftah, for the Applicant

Mrs. Kabisa, for the Republic

RULING

(Delivered 15 January 1999)

KALEGEYA J: This is a ruling in respect of an application for bail by an accused charged with murder contrary to section 196 of the Penal Code. The accused, a female, is a class six pupil, aged 13 years. The particulars of the charge alleged that on 27 March 1998, at about 1800 hrs at Mwenye Primary School, Kimamba Village, within Kilosa District, Morogoro Region, the accused did murder one Karim s/o Abdallah. Maftah, advocate represented the applicant while Kabisa (Mrs), State Attorney, appeared for the respondent Republic.

Mr Maftah vigorously argued that the accused being a child, she should not be mixed with adults as per the provisions of the Children and Young Persons Ordinance Chapter 13 and that therefore should be released on bail and put under the custody of her parents pending the hearing of her case. In an equally strong counter, Mrs. Kibisa argued that under section 148(5)(a) of the Criminal Procedure Act murder is one of the offences which are not bailable, and that this applies equally to adults as well as children.

Section 148(50)(a) Civil Procedure Act provides:

> A police officer in charge of a police station, or a court before whom an accused is brought or appears, shall not admit that person to bail, if:
>
> (a) that person is accused of murder or ...

From the clear wording of the said provision of the law, I am afraid, and with respect, there is no room where Mr Maftah's contentions can be accommodated. The provision gives no discretion whatsoever. I do appreciate that the accused is a young girl, and that the society should strive to shield her type from the otherwise destructive environment of a remand prison but once charged with murder she cannot be released on bail under the Civil Procedure Act. Neither can the Children and Young Persons Ordinance, whose assistance was sought by Mr Maftah, provide a leeway under that law. Section 4 which provides for bail for children and young persons under 16 years by police officers bars releasing those charged with homicide. There is no equivalent section concerning a situation once such suspect (charged with homicide) is brought before the court, but reading that law together with the Civil Procedure Act makes it clear that once charged with murder, notwithstanding the fact that accused is a young person or child, he or she, cannot be released on bail. In the premises the application cannot stand.

I should make further observation. In the affidavit in support of the application and during the oral submissions it was established that there was a quarrel between deceased and accused emanating from children jokes which prompted accused to hit deceased with a stone leading to his death. I would advise that investigations be expedited so that the full record be availed to the Director of Public Prosecutions as soon as practicable for his decision as to whether the preferable charge should be murder or manslaughter as circumstances suggestively cover any of the charges. If by any chance the DPP decides on the later charge that would qualify the accused for bail consideration.

Save for the observations made the application is dismissed.

TANZANIA DISTILLERIES LTD. *v.* VITAMIN FOODS (1989) LTD

HIGH COURT OF TANZANIA
AT DAR ES SALAAM

(Mackanja, J)

MISC. CIVIL APPEAL No. 15 ON 1995

Trade Marks – Registration – Procedure in opposing registration of trademark – rules 46 to 58 of the Trade Mark rules, Government Notice Number 256 of 1958.

Civil Practice and Procedure – Appeal – Appeal from decision of the Registrar to the High Court – Whether Order XXXIX, rule 1(i) of the Civil Procedure Code 1966, applies.

Civil Practice and Procedure – Appeal – Appeal to the High Court from proceedings before the Registrar on trademark proceedings – Law applicable – Section 116 of the Trade Mark Ordinance and rule 116 of the Trade Mark Rules 1958.

Trade Mark – Oral evidence heard by the Registrar after final submissions by counsel – Whether proper – Section 54 of the Trade Mark Ordinance.

Trade Mark – Proceedings – Counter statement – Contents of a counterstatement – Section 21(4) of the Trade Mark Ordinance and Form TM7 rule and 48 of the Trade Mark Rules 1958.

Trade Mark – Registration – Evidence as to registrability of a trade mark – Restrictions – Sections 12(1)(e) and 12(2) of the Trade Mark Ordinance.

The respondent had applied to the Registrar for the registration of a trademark in respect of an alcoholic drink, Giyangi and device. The appellant opposed the application on the ground that it was the registered owner in respect of gin which was Konyagi and device. It was also the contention of the appellant that the application covered same goods or goods of the same description as those of the appellant and the mark sought to be registered was similar to that of the appellant that would be deceptive or confusing to consumers. After the filing of he opposition the respondent filed a counter-statement. Thereafter the appellant filed statutory declaration containing evidence in support of the opposition. The respondent also complied by filing statutory declaration in support of the application. On behalf of the respondent three businessmen who owned restaurants stated that their customers had never been deceived or confused by the two trademarks. These were countered by statutory declarations filed by the appellant which showed the appellant had received numerous complaints from dealers and customers of Konyagi that Giyangi was causing considerable confusion among consumers who confused or mistook Giyangi for Konyagi until they tasted the product and found it smelt like cheap perfume. This was confirmed by affidavits of three consumers. It was argued by the advocate of the appellant before the Registrar that the counter-statement of the respondent failed to give positive factors in its favour to show that the mark was registrable.

The counter-statement contained mere denials of the grounds of opposition which was not enough. He further argued that the respondent had failed to show how he came to adopt the trademark Giyangi and that failure to show whether he invented the word Giyangi was fatal to the application. He therefore urged the Registrar to rule that the counter-statement was incompetent and irrelevant. The advocate further urged the Registrar to reject the statutory declarations as the declarants were mere dealers and not consumers like the declarants of the appellant. The advocate of the respondent replied that the packaging and abeling of the two products were dissimilar; the advocate further argued that the respondent had registered a business name which the respondent wholly owned known as McIntosh International which would blend and market Giyangi. The public would not be deceived as this was not a limited liability company but a mere business name. It would be responsible for the blending, bottling and trading of Giyangi.

It was further submitted that the product was consumed by a large number of people and no one had complained. After counsel had made their submissions the Registrar heard oral evidence for the respondent. In the end the Registrar dismissed the opposition. The appellant appealed to the High Court. The first ground was that the decision was delivered in the absence of the appellant. The second and third grounds related to the wrongful admission of oral evidence after both counsel had made their final submissions. In the fourth ground the appellant complained that the counter – statements did not contain grounds while the fifth ground was that the statutory declarations contained no evidence. The sixth ground was that the counter – statement and statutory declarations did not comply with minimum statutory requirements for the registration of a trade mark thus rendering the opposed mark not registerable.

On his part the advocate of the respondent raised a preliminary objection contending the appeal was incompetent because the decree appealed from was not attached to the Memorandum of Appeal as required by Order XXXIX, rule 1(i) of the Civil Procedure Code 1966. It was argued in reply that section 116 of the Trade Mark Ordinance and rule 116 of the rules made there under provide for the making of appeals to the High Court.

Held: (i) Appeal from the decision of the Registrar is made under the provisions of section 116 of the Trade Marks Ordinance and rule 116 made thereunder wherein

there is no requirement that a Memorandum of Appeal need to be accompanied by a copy of the decree;

(ii) A counter - statement must take the form of a Written Statement of Defence in a civil suit and if it contains denials and is merely evasive, such counter – statement should meet the same fate as an evasive Written Statement of Defence;

(iii) In the event the Registrar decides to use his discretion to allow a party to adduce oral evidence after final submissions he must do so only if he is satisfied that the evidence sought to be adduced was not available at the time when it ought to have been presented along with the statutory declarations or in addition to it, or *in lieu* and the reasons for taking such a step must appear on the record of proceedings;

(iv) The persons to be considered in deciding whether the resemblance between the competing marks is likely to deceive are consumers or those who are likely to become purchasers of goods upon which the marks are used and not retail dealers or businessmen owning restaurants;

(v) Since Konyagi and Giyangi are alcoholic drinks of the type of gin, an ordinary consumer who is not sufficiently literate, is likely to be deceived.

Appeal allowed.

Cases referred to:

(1) *Kaisha* 1958 SRCP 112

(2) *Rolex Chemical Industries* 1976 PLR 37

(3) *Eastman Photographic Materials Ltd* (1898) 15 RCP 476

(4) *Solanki Tailors v. Nagji Harji* Civil Appeal Number 4 of 1995 (unreported)

(5) *Kotak Limited v. Kooverji* [1967] EA 348

(6) *Farrab Incorporated v. The Official Receiver and Provisional Liquidator* [1959] EA 5

(7) *Yusuf Mntambo and others v. Kassim Abdallah Farsi* [1991] T.L.R 196

(8) *Mariam Abdallah Fundi v. Kassim Abdallah Farsi* [1991] T.L.R 196

(9) *East African Tobacco Co. Ltd v. De Erven de Wed J. Van Nelle, NV* (1930) 1 T.L.R 575

(10) *Chesebrough - Ponds Inco. v. Gupyaka (1973) Agencises* [1982] T.L.R 111

(11) *Wella AG. v. Halais Rochemie Industries* Miscellaneous Civil Appeal Number 8 of 1992 (unreported)

(12) *Tanzania Distilleries Ltd v. The Attorney General* Miscellaneous Civil Cause Number 47 of 1996

(13) *Eastman Photographic Materials Company v. Controller General of Patents Designs and Trade Marks* [1898] AC 571

(14) *In re Joseph Crossfield and Sons Limited* [1910] 1. Ch 130

(15) *Wood v. Butler and Lambert* (1886) 32 Ch 247

(16) *Revenhead Brick Co. Ltd v. Buabon Brick Co. Ltd* (1937) 54 RPC 341

(17) *Parker – Knoll 1962* RPC 265

(18) *In the matter of an Ld. for Registration of a Trade Mark (The Pianist Case)* 1906 23 RPC 776

Statutory provisions referred to:

(i) Civil Procedure Code 1966, Order XXXIX, Order XXI, Order XXXIX , rule 1(i), section 70

(ii) Trade Marks Rules, rule 155, rule 122, rule 47, rule 48 and Form TM 7, rules 49, 50, 51, 52, 54, 46 and 58, section 12(1)(e), section 116, section 12, section 14, section 2, section 21(4)

(iii) Trade Marks Act 1905-1919 and 1938

Mr Uzanda, for the Appellant

Mr Majithia, for the Respondent

JUDGMENT

(Delivered 18 February 1999)

MACKANJA, J.: This appeal originates from the decision of the Registrar of trademarks in respect of an application by Messrs. Vitamin Foods (1989) Ltd., for the registration of a trademark of an alcoholic drink to be known as Giyangi That application was opposed by Messrs. Tanzania Distilleries Ltd who are the registered proprietors of the trademark number B 12919 Konyagi, also in respect of gin. Twelve grounds for opposing the application were given, namely:

1. that the opponents are the registered proprietors of Trade Mark Konyagi and Device registered in Part B of the Register in Tanganyika on the 1 June,1970 under Registration number B 12919 in class 33 in respect of gin, advertised in the Official Gazette Volume 4, number 34, General Notice Number 1704 dated the 14 August 1970;
2. that the applicant's mark is not registerable under section 12 of the Trade Marks Ordinance;
3. that the applicant's mark is not distinctive;
4. that the applicant's mark so nearly resembles the mark of the opponents as to be likely to deceive or cause confusion;
5. that the applicant's application covers the same goods or goods of the same description as those of the opponent's and are likely to be sold through the same outlets thereby inevitably causing confusion and/or deception;
6. that by reason of the reputation acquired by the mark of the opponents the mark sought to be registered would be deceptive or confusing and so is disentitled to protection in a court of justice in terms of section 14 of the Trade Marks Ordinance;
7. that the applicant's mark is being used by a party other than the applicant which is an act of deception or will inevitably lead to deception and/or confusion;

8. the learned Registrar erred in law and in fact in failing to hold that trademark Giyangi so nearly resembled trademark Konyagi as to be likely to deceive or cause confusion and that the appellant had adduced overwhelming evidence that trademark Giyangi had actually caused deception and confusion;
9. the learned Registrar erred in law and in fact in failing to hold that trademark Ginyagi was not being used by the respondent and that this was in itself an act of deception which would inevitably lead to further deception and confusion;
10. the learned Registrar erred in law and in fact in deciding the opposition (*sic*) against the weight of the evidence before him and against established principles of law relating to registration of trade marks;
11. conducting the proceedings in an arbitrary and chaotic manner in disregard of fundamental rules of procedure; and
12. in the alternative, that the decision was not made by or under the direction of the Registrar as required by law.

Before I delve into the evidence and arguments that were adduced and raised, as the case may be, during the hearing of the opposition it has occurred to me that the case will be brought in the right perspective if procedures under which opposition to an application for a trade mark is handled. The procedure is laid down under rules 46 and 58 of the Trade Mark rules, which were published under Government Notice Number 256 of 1958. Rule 46 provides that any person may within sixty days from the date of any advertisement in the *Gazette* of an application for registration of a trade mark give notice on the appropriate form to the Registrar of his opposition to the registration. Requirements which must be complied with at the time of issuing the notice are provided for in rule 47, namely, that the notice shall include a statement of the grounds upon which the opponent objects to the registration. The notice shall be accompanied by a duplicate which the registrar will serve on the applicant.

Then, according to rule 48, the applicant shall within sixty days from receipt of such duplicate, send to the Registrar a counter-statement

on the appropriate form setting out the grounds on which he relies as supporting his application. He will also set out what facts, if any, alleged in the notice of opposition he admits. As is the case with the notice, a counter-statement will also be accompanied by a duplicate which the Registrar will serve on the opponent. Rule 49 requires the opponent within sixty days from receipt of the duplicate counter-statement to leave with the Registrar such evidence by way of statutory declaration as he may desire to adduce in support of his opposition and he shall deliver copies of such statutory declaration to the applicant. If the opponent leaves no evidence, unless the Registrar directs otherwise, he will be deemed to have abandoned his opposition in terms of rule 50.

However, if he does leave evidence, then, within sixty days from the receipt of the declarations, the applicant shall leave with the Registrar such evidence by way of statutory declaration as he desires to adduce in support of his application, copies of which he shall deliver to the opponent. Rule 51 gives the applicant the right to reply by statutory declaration to the opponent's statutory declaration. The reply shall be confined to matters strictly in reply. Rule 52 prohibits the adduction additional evidence by either party; additional evidence can be called only with leave of the Registrar upon application by either party and if the Registrar thinks fit so to do. What follows will be the hearing of the opposition. The hearing is provided for under rule 54 as follows:

> 54. Upon completion of the evidence the Registrar shall give notice to the parties of a date when he will hear the arguments in the case... Within seven days from the receipt of the notice any party who intends to appear shall so notify the Registrar on Form TM8. A party who receives notice as aforesaid and who does not, within seven days from the receipt thereof, so notify the Registrar on Form TM 8, may be treated as not desiring to be heard and the Registrar may act accordingly.

In the matter before me the applicant and the opponent complied fully with the above procedure. And as it turned out both were represented by counsel at the hearing. Mr Uzanda of Donaldson and Wood, advocates, acted for the opponent, while Mr Majithia advocated for the Applicant.

The applicant vide a counter-statement dated 14 September 1997 denied all the above grounds of opposition while emphasizing that the opponent's mark Konyagi and device does not resemble the applicant's trade mark Giyangi and device.

A statutory declaration made by Mr CA Kayuni, General Manager of Tanzania Distilleries Ltd stated that Konyagi was registered as far back as 1 June 1970 and that since its registration it has been extensively used and that the sales have grown from 122, 445 cartons in 1989 worth TZS. 1 037 225 310-00 to 186 231-00 cartons worth TZS. 3 066 197 670-00 in 1993. It was in the evidence that these sales have been realized after extensive advertisements which, over the last five years only, have cost the appellant from TZS. 5 526 498-00 to TZS. 29 021 000-00 to date and that due to the high quality, the appellant's gin has acquired a high reputation throughout Tanzania which the applicant is trying to appropriate by using a deceptively similar or resembling trade mark Giyangi.

In a statutory declaration in reply, Khuzena Rajabali Mussaji, General Manager for Messrs. Vitamin Foods (1989 Ltd, the applicant contended that the trade mark Giyangi and device is visually and phonetically different from the opponent's trade mark Konyagi and device and that the flavour, colour and packaging have no resemblance to the Konyagi mark. Mr Mussaji also submitted declarations by Ambrose Mushi, Salim Karim and Vallabh Suchak, businessmen who own restaurants. These three people alleged that they and their customers have never been deceived or confused by the two trade marks. These four statutory declaration in reply were countered by Mr CA Kayuni who in his reply stated that he has received numerous complaints from dealers and consumers of Konyagi to the effect that Giyangi is causing considerable confusion amongst consumers who, on first contact with Giyangi invariably mistake it for Konyagi until they taste the product which, they allege, "smell like a cheap perfume" and in other respects is markedly inferior to Konyagi. To prove his

point Mr CA Kayuni submitted affidavits of AP Mwatonoka, Beatrice Makenge and JD Njau which stated that at first contact with Giyangi they invariably mistook it for Konyagi or thought it was a variation of Konyagi until they tasted the product and realized that it was a different product altogether and that it smelt like perfume.

Mr Uzanda submitted before the Registrar that his client's trade mark Konyagi and device has acquired a great reputation after intensive and extensive publicity. He attacked the applicant's counter statements saying that they were incompetent because they did not comply with section 21(4) of the ordinance and rule 48 of the Trade Marks Rules 1958 nor with Trade Mark Form TM7. This means that the applicant failed to give positive factors in his own favour, for instance that the mark is registerable. A counter-statement, in his opinion, should not consist of mere denials of the grounds of opposition. He requested the Registrar to rule that the counter-statements were incompetent and irrelevant. It was the further contention of Mr Uzanda that all along the applicant had failed to show how he came to adopt the trade mark Giyangi i.e. whether the word Giyangi was invented as required under section 12(1)(e) on registerability of trade marks. Failure to do so, he submitted, is fatal and the Registrar should have concluded that the mark was copied from another reputable trade mark. He cited the cases of *Kaisha (1)* and *Rolex Chemical Industries (2).*

In both cases the applicants were not able to satisfy the tribunal as to how they adopted the trade marks. Their applications were rejected. Mr Uzanda later submitted that the statutory declarations of the applicant are worthless because they do not comply with rule 50 of the Trade Marks Rules 1958 because, as stated before in the statutory declaration in reply, it does not give grounds (positive factors) relied upon in the applicant's case. It allegedly consists only of denials. In the same vein he prayed that the Registrar reject the statutory declarations by A. Mushi. Section Karin and V Suchak should also be rejected because they are mere dealers of alcohol and other beverages and not the ultimate consumers as stated by *Kerly, Law of Trade Marks* page 451 paragraph 836.

> the evidence should be from the ultimate purchaser of the product because dealers often collude with the manufacturers in deceiving the public.

Mr Uzanda argued in detail the grounds of opposition numbers 1 to 7. On the first ground of opposition, that the trade mark is not registerable under section 12(a)-(e) of the ordinance on the ground that is not an invented word, he cited the cases of *Eastman PhotograPhic Materials Ltd* (3) page 476 also quoted by *Kerly* at page 105 where Lord Shand stated:

> There must be an invention and not a mere appearance of an invention.

In his introductory remarks Mr Majithia submitted that the advocate for the opponent was deliberately misleading the Registrar by quoting 18th , 19th and early 20th century English cases which have very little relevance to the law, practice and the people of Tanzania. In his opinion the law must take into account the characteristics and behavior of the people it concerns. In his opinion whatever is the position of the law under these old cases the position of the law is clear in Tanzania where section 54 of the Trade Marks Ordinance provides that the Registrar may accept evidence *"viva voce" in lieu* of or in addition to the declarations submitted under rules 49 of the Trade Marks Rules 1958. He then asked the Registrar to consider the oral evidence of Mr Y.M. Maneck, the Managing Director of Vitamin Foods (1989) Ltd. This witness stated that when they decided to produce a gin-based product the question of a trade mark arose. The applicant decided to get public opinion on the trade mark. The company published a notice in the newspaper about a competition on suggesting a suitable trade mark for its gin.

A number of suggestions were made but the company narrowed down the suggestions to Ginyagi and the device of a thumb. The other items added were a flaming torch and the words "Kiburudisho chako" in a black belt. Prize money totaling TZS. 25 000 was given to the successful winners. It was categorically denied that there was copying from Konyagi. Indeed if there was any copying it was done by Tanzanian Distilleries Ltd who merely altered the French word

Cognac to Konyagi. It was contended that their product is a high quality gin which has been approved by Tanzania Bureau of Standards which inevitably and by law sets standards of various products manufactured in the country and tests the products before they are issued with certificates of approval.

It was in the evidence of the applicant that the packages of the two products are different and the background colour in the Ginyagi trade mark is cream while that of Konyagi is yellow. It was claimed that the word Ginyagi is in white letters while Konyagi is in black. Regarding the licencee MacIntosh International rather than Vitamin Foods (1989) Ltd on 18 December 1992 the applicant formed and registered a business name number 95584 Mackintosh International which it owns 100%. Thus the public would not be deceived because Mclntosh International is not a limited liability company but a mere business name for the blending, bottling and trading of the gin product. The Company has further advertised the product Giyangi extensively and the product is consumed by large numbers who have not to date complained on the opinion or smell. Hence the contention that this opposition is base-less, it arose out of sheer business jealousy of a business competitor.

In the end, and after evaluating the evidence the registrar dismissed the opposition. Hence this appeal. Seven grounds have been advanced, namely that:

1. that the learned Registrar erred in law in failing to pronounce or deliver the ruling (hereinafter called (the decision) in the presence of the appellant;
2. that the learned Registrar erred in law in admitting oral evidence over the objections of the appellant and in clear breach of the express provisions of the Trade Mark rules;
3. that the learned Registrar erred in law in admitting oral evidence after the appellant had made its final submissions;

4. that the learned Registrar erred in law in failing to hold that the counter statement filed by the respondent was defective in substance and did not contain the grounds stipulated by the law;
5. that the learned Registrar erred in law in failing to hold that the statutory declarations filed by the respondent were defective in substance and contained no evidence in support of the respondent's application;
6. that the learned Registrar erred in law in failing to hold that the counter statement and statutory declarations of the respondent disclosed that the respondent had failed to comply with the minimum statutory requirements for registration of a trade mark and that therefore the opposed mark was not registerable;
7. that the learned Registrar misdirected himself and failed to perceive that the appellant had opposed the proposed registration of the word Giyangi and not both the word and the device;
8. that the learned Registrar erred in law and in fact in failing to hold that trade mark Giyangi so nearly resembled trade mark KONYAGI as to be likely to deceive or cause confusion and that the appellant had adduced overwhelming evidence that trade mark Giyangi had actually caused deception and confusion;
9. that the learned Registrar erred in law and in fact in failing to hold that trade mark Giyangi was not being used by the respondent and that this was in itself an act of deception which would inevitably lead to further deception and confusion;
10. that the learned Registrar erred in law and in fact in deciding the opposition against the weight of the evidence before him and against established principles of law relating to registration of trade marks;
11. conducting the proceedings in an arbitrary and chaotic manner in disregard of fundamental rules of procedure; and
12. that in the alternative, the decision was not made by or under the direction of the Registrar as required by law.

Mr Majithia has raised preliminary objection in the matter. He contends that the appeal is incompetent because the Memorandum of Appeal is not accompanied by a copy of the decree (or order) appealed from as required by Order XXXIX of the Civil Procedure Code, 1966. He, therefore, prays that this appeal be dismissed for incompetence.

He relies on decision in the following cases:

1. *Solanki Tailors v. Nagji Harji Kara* (4)
2. *Kotak Limited v. Kooverji* (5)
3. *Farrab Incorporated v. The Official Receiver and Provisional Liquidator* (6)
4. *Yusufu Mntambo and others v. Moez Alidina* (7)
5. *Mariam Abdallah Fundi v. Kassim Abdallah Farsi* (8)

In addition he has referred me to excerpts from the decision of the Registrar which relate to the alleged conduct of Mr Uzanda and comments thereon as follows:

> It must be noted at this juncture that while the witness was giving his oral evidence the advocate for the opponent, Mr F.H. Uzanda unceremoniously and, without leave of the hearing officers, walked out of the chambers. So at the end of the testimony the witness was not cross-examined by the advocate for the opponent.

In Mr Majithia's view that was a gesture of the highest disrespect to the Registrar. It also amounted to Mr Uzanda abandoning or withdrawing from the hearing. By his said behavior he had forfeited/abandoned all his rights. Consequently, he has no right to challenge the decision in the way he has done. In any case, he contends, that decision is unimpeachable.

Mr Uzanda has invited me to dismiss the objections because they are misconceived. He contends that the making of an appeal from the Registrar of Trade Marks to the High Court is not a proceeding before the court and, therefore, it is not governed by the Civil Procedure Code. For this proposition he relies on: *East African Tobacco Co. Ltd. v. De Erven de Wed J. Van Nelle, NV* (9). It is learned counsel's contention that nowhere in the Trade Marks Ordinance, Chapter 394, is there any provision requiring an order or decree to be extracted, and that the Registrar has no power to issue a decree nor to draw up an order. He has cited *Chesebrough – Ponds Inco. v. Gupyaka* (10) and *Wella AG v. Halais Rochemie Industries* (11).

Now according to Mr Majithia appeals from decisions of the Registrar ought to be governed by Order XXXIX, rule 1(i) of the Civil Procedure Code. For ease of reference the relevant part provides thus:

> 1(i) Every appeal shall be preferred in the form of memorandum ... The memorandum shall be accompanied by a copy of the decree appealed from the (unless the court dispenses therewith of the judgment on which it is founded.

The heading of Order XXXIX clearly shows that the provisions in that part of the Civil Procedure Code (the code) relate to appeals from original decrees from courts that are subordinate to the High Court. Section 70 of the code makes it even clearer. It provides:

> 70(i) Save where it is expressly provided in the body of this code or by any other written law for the time being in force, an appeal shall lie to the High Court from every decree passed by a court of a Resident Magistrate or a District Court exercising original jurisdiction.

By exclusion Order XXXIX does not even apply to appeals originating from primary courts. The cases that have been cited by Mr Majithia are therefore distinguishable from the instant appeal.

There is, however, a procedure by which appeals from the decision of the Registrar of trademarks may be preferred. Section 116 of the Trade Marks Ordinance is clear on the subject. It states:

> 116. When any person intends to appeal to the court, such appeal shall be made by memorandum in the usual way, and no such appeal shall be entertained unless a Memorandum of Appeal delivered within sixty days from the date of the decision appealed against or within such further time as the Registrar shall allow.

rule 116 of the Trade Marks Rules repeats word for word the provisions of section 116 which must be applied *in tandem* with the word "prescribed" as defined by section 2 of the ordinance to mean:

> ... in relation to proceedings before the court, prescribed rules of court, and in other cases, prescribed by this Ordinance or the rules.

In my interpretation this part of the ordinance does not apply to an abstract. It applies to proceedings before the court. The proceedings must first be instituted, and then thereafter rules of court will apply. Proceedings once instituted, will not move forward unless certain steps are taken. First the respondent must be served. A date for hearing the appeal will then be fixed. If any of the parties fails to appear then the consequential action under the Civil Procedure Code will follow.

The execution of the decree in appeal of the court will have to follow what Order XXI makes provision for. Otherwise no law of procedure other then section 116 of the ordinance and rule 116 of the Trade Mark rules, governs the lodgment of an appeal against the decision of the Registrar. It seems to me that it is by reason of identical legislation that Dalton, C.J., as then was, said this, in *East African Tobacco Co. Ltd. v. De Erven de Wed J. Van Nelle, NV* (9) at page 577:

> It has been urged before me, however, for the Appellants that having regard to the definition of the word "prescribed" in section 2 of the ordinance one must look to rules of court, and not to rules made under the ordinance to ascertain the correct method of making the appeal. If one looks to rules of court for this purpose one must follow the procedure for making appeals laid down in the Civil Procedure Code in an ordinary action, since there are no other rules of court governing the matter.
>
> The answer to this argument, it seems to me, is that whereas appeals when before the court are governed by rules of court, the making of an appeal is not a proceeding before the court. If that is so an appeal must be made in the manner prescribed by the ordinance or the rules under it. This seems to follow from notes in "**Kerly on Trade Marks**", (4 ed), page 102 (foot-note 2) and page 685 (note to section 60). It has never been even suggested so far as I can ascertain in any English case that rule 122, a rule made by the Board of Trade and not a rule of court, is *ultra vires* of the act in that it relates to a proceeding before the court when it provides how an appeal shall be made. I can find no suggestion anywhere that the procedure followed in respect of making appeals under section 12 of the Act, i.e. by motion, is incorrect or irregular. In the circumstances set out above Mr Houry's argument must go as far as that, but the unquestioned practice is all against him.

Mr Uzanda has also referred to *Chesebrough Pond's Inc. v. Gupyaka (1973) Agencies* (10) *and Wella AG Hais Prochemie Industries* (11) as supporting the proposition that there is no requirement that a Memorandum of Appeal against the decision of the Registrar need not be accompanied by a copy of the decree. None of these two latter cases decided that point. Nevertheless, and upon the reasons and the observations I have made I hold that the respondent's objections are misconceived. They would fail.

I now turn to consider the appeal on the merits. Let me say right from the outset that only Mr Uzanda has offered in respect introspect of the appeal. Mr Majithia did not. So my approach will be deliberation of the matter as if it were an *ex parte* proceeding.

My examination of the Memorandum of Appeal leads me to the view that the appeal falls under three major parts. Grounds 1, 2, 3, 4, 5, 6, 11 and 12 relate to procedure; grounds 7, 8 and 9 relate to deception and confusion and ground 10 arises from the way the Registrar appreciated the evidence. The appeal will therefore be considered on those lines. And, although Mr Uzanda chose to argue the seventh ground ahead of the rest, I will consider them seriatim.

The conduct of the Registrar has come under sharp criticism. For while this cause was pending the respondents got their trade mark Giyangi registered. In clear condemnation this court, Mapigano, J., called the Registrar's conduct constructive fraud. He later quashed that registration and ordered the certificate of registration be withdrawn

and called. That decision was made in *Tanzania Distilleries Ltd v. The Attorney General,* (12). The Registrar was exercising quasi-judicial powers, so what is complained of here is judicial bias. What, then would be the effect of the judicial bias, if established?

Judicial bias is a state of mind; it is a predisposition to decide a cause or matter in a way which does not leave the mind open to reason and logic. And, as the learned authors of **Black's Law Dictionary,** Abridge (6 ed), say, judicial bias is:

> ... Condition of mind which sways judgment and renders judge unable to exercise his functions impartially in particular case. As used in law regarding disqualification of judge, refers to mental attitude or disposition of the judge toward a party to the litigation, and not to any views that he may entertain regarding the subject matter.

My reading of the ruling in Miscellaneous Civil Cause Number 47 of 1996 shows that the Registrar's mental inclination went beyond mere irrational preference or prejudice against the appellant. What happened was this. Upon dismissal of their opposition to the application to registrar the trade mark Giyangi and Device, the appellants took steps to appeal. In those circumstances section 21 subsections (6) and (7) of the Trade Marks Ordinance has the effect of staying any decision on the application until the High Court has finally determined the appeal. The Registrar proceeded to make the registration while this appeal was still pending. It is in those circumstances that Mapigano, J, said at page 5 of his ruling that:

> It is curious and relevant, I think, that the Registrar acted as he did. He had been duly put on notice that the applicant intended to take his decision to this court on appeal. It is not controverted that his action was unprecedented and I therefore take it to be true. Mr Uzanda has termed the action as one verging on absurdity... But I will content myself calling it curious, overhasty, inordinate an injudicious.

On such a record of performance on the part of the Registrar no one will doubt the force in Mr Uzanda's argument in the first ground. It would succeed.

Grounds two and three have been consolidated. They relate to the adduction of evidence. The law relating to the production of evidence has already been discussed. What is at issue here then is whether oral evidence may be adduced in addition to the statutory declarations. It appears to be common ground that section 54 of the Trade Marks Ordinance makes provision for the production of oral evidence. What is at issue is the stage in the proceedings at which such evidence may be adduced. Mr Uzanda contents that such evidence has to be tendered in the same manner as applied to statutory declarations and this must be done before submissions from learned counsel are recorded. In the instant case oral evidence was taken after Mr Uzanda and Mr Majithia had made their submissions.

I take the view, as submitted by Mr Uzanda, that section 54 of the ordinance does not entitle any party to adduce evidence after learned counsel have made their final submissions. For it provides, for ease of reference:

> In any proceedings under this ordinance before the Registrar, the evidence shall be given by statutory declaration in the absence of directions to the contrary, but, in any case in which the Registrar thinks it right so to do, he may take evidence *viva voce* in *lieu* of or in addition to evidence by declaration. Any such statutory declaration may in the case of appeal be used before the court *in lieu* of evidence by affidavit, but if so used shall have all the incidents and consequences of evidence by affidavit.
>
> In case any part of the evidence is taken *viva voce,* the Registrar shall, in respect of requiring the attendance of witnesses and taking evidence on oath, be in the same position in all respects as a magistrate.

Since the purpose and scope of section 54 is to allow parties to produce evidence before final submissions by counsel, the Registrar was required to give reasons, especially after Mr Uzanda had raised objections to that course of action, why he had decided to take additional evidence from the applicant. In particular, he had to be satisfied, and the record had to show the reasons, that the evidence was not available at the time when it ought to have been presented along

with the statutory declaration or in addition to it, or *in lieu* of. As always is the case admission of additional evidence involves an exercise of discretion. It is now so trite that I need not cite any authority in saying that discretion must be exercised judicially on reasonable grounds which are capable of being clearly stated. I therefore uphold Mr Uzanda in his argument that the admission of evidence after both learned counsel had made their final addresses to the Registrar was not a proper exercise of discretion. It is in that circumstance that I now hold that the second and third grounds of appeal would succeed.

The fourth, fifth and the sixth grounds are inter-related. They will be considered together. It is contended by Mr Uzanda that the respondent filed a counter statement which was so gravely defective in substance that the Registrar should have rejected it.

The requirements that must be met in a counter statement are provided for in section 21(4), rule 48 and Form TM7 of the Trade Mark Ordinance. Subsection (4) of section 21 makes it a requirement that the applicant shall send to the Registrar, in the prescribed manner, a counter statement of the grounds on which he relies for his application. The counter statement has to be prepared in the form of Form TM7. The applicant must show how, and on what grounds, he lays proprietary rights over the trade mark he seeks to register. I have examined the counter statement. All it contains, as Mr Uzanda argues, are denials over the contents of the notice of opposition. In some paragraphs denial followed by amplifications, not grounds upon which the applicant would rely. I will reproduce the contents of the counter statement in respect of paragraphs 2, 3, 4, 5, 6, 7 and 8 to underscore this point.

They read thus:

1. That proper reasons/grounds are not advanced as to why the applicant's mark is not registerable.

2. That the allegations contained in this paragraph are denied. That the applicant's mark is clearly distinctive.

3. That the allegations contained in this paragraph are denied. That the applicant's mark does not resemble the mark of the opponent and was not likely to deceive or cause confusion.

4. That the allegations contained in this paragraph are denied. That all allegations in this paragraph are speculative and based on prejudiced assumption. That the application does not cover goods or goods of the same description as those of the opponents. Again they would not be sold through the same outlets. And the matter of causing confusion and/or deception does not arise.

5. That the allegations contained in this paragraph are denied. That the applicant's mark is clearly distinctive. That it would not deceive or confuse.

6. That the allegations contained in this paragraph are denied. Again they, like others above, are merely speculative and not based on evidence. That the applicant's mark is not being used as an act of deception. Again it will costs."

It is my considered view that in order to meet the requirements of the law a counter statement must take the form of a Written Statement of Defence in a civil suit. If it contains denials and if it is merely evasive a counter statement should meet the same fate as an evasive Written Statement of Defence. In these circumstances I am not persuaded that the counter statement advances grounds on which a defence to the opposition could be founded.

It is contended in ground five that the statutory declarations that were filed by the applicant were worthless; they should have been rejected by the Registrar because they do not conform to rule 50 of the Trade Mark rules. According to learned counsel this ought to have been so because those statutory declarations are limited to denying infringement and passing off. I must say that this argument is not tenable. It is one thing to contend that testimony is irrelevant, which Musaji's statutory declaration is, and it is another thing to say that such testimony should be rejected. Evidence will not be rejected on the sole ground that it is not probative of any fact. True

in the instant case the statutory declaration of the said Musaji does not have any probative value. It is evidence of a person who is not the final consumer of Giyangi. The evidence required in this kind of proceeding is as the learned authors of **Kely's Law of Trade Marks and Trade Names,** (12 ed), say at page 367, that:

> the persons to be considered in estimating whether the resemblance between the marks in question is likely to deceive are all of those who are likely to become purchasers of goods upon which the marks are used.

And at page 347 the learned author states:

> It is clearly not enough to show that retail dealers buying goods for resale would not be deceived, since they might themselves fraudulently or carelessly make use of the ambiguous character of the trade mark to deceive their customers, the ultimate purchase or more likely, in these days of self-service, allow customers to deceive themselves. Dealers who buy from the manufacturers in order to sell by retail may be aware of attempt infringement and parties to the fraud.

I am therefore satisfied that the statutory declarations that were filed by the applicant did not meet statutory requirements.

As to ground six it is learned counsel's submissions that the provisions of section 21(4), rule 48 and Form TM 7 of the Trade Marks Ordinance were not complied with in some other respects. The alleged shortcoming arises from the contention that the applicant did not state the grounds on which he relies as supporting his application. What the applicant did, it is submitted, was to put up a defence when the law did not require him to do so. In other words, he should have demonstrated that his application complied with section 12(1) of the Trade Marks Ordinance. It provides thus:

> (1) In order for a trade mark (other than a certification trade mark) to be registerable in Part A of the register, it must contain or consist of at least one of the following essential particulars:
>
> (a) the name of company, individual, or firm, represented in a special or particular manner;

> (b) the signature of the applicant for registration or some predecessor in his business;
>
> (c) an invented word or invented words;
>
> (d) a word or words having no direct reference to the character or quality of the goods, and not being according to its ordinary signification a geographical name or a surname;
>
> (e) any other distinctive mark, but a name, signature, or word or words, other than such as fall within the descriptions in the foregoing paragraphs (a), (b), (c) and (d), shall not be registerable under the provisions of this paragraph except upon evidence of its distinctiveness.
>
> (2) For the purposes of this section "distinctive" means adapted, in relation to the goods in respect of which a trade mark is registered or proposed to be registered, to distinguish goods with which the proprietor of the trade mark is or may be connected in the course of trade from goods in the case of which no such connection subsists, either generally or, whether the trade mark is registered or proposed to be registered subject to limitations, in relation to use within the extent of the registration.
>
> (3) In determining whether a trade mark is adapted to distinguish as aforesaid the court or the Registrar may have regard to the extent to which:
>
> (a) the trade mark is inherently adapted to distinguish as aforesaid; and
>
> (b) by reason of the use of the trade mark of any other circumstances, the trade mark is in fact adapted to distinguish as aforesaid:
>
> Provided always that any mark which has been registered as a distinctive mark in Part A of the Register kept in the United Kingdom under the Trade Marks Act, 1905 - 1919 and the Trade Mark Act, 1938, shall be deemed to be a distinctive mark for the purposes of this Ordinance.

Learned counsel views the provisions of section 12(1) as being absolutely mandatory provisions which lay down in no uncertain terms that no application can be accepted and registered unless its provisions have been complied with. He may be right. For surely, as it seems to me, the word Giyangi does not appear to be invented. It is a coinage from two words from which Gin and yagi have been derived. Mr Uzanda submits that the word yangi is derived from Konyagi. The prefix, Gin is an alcoholic drink. I am persuaded that he is right. And, according to English case law which is relevant to this subject, the mere combination of two English words, or Kiswahili words for that matter, does not constitute an invention of a trade mark. This is what was held in *Eastman Photographic Materials Company v. Controller General of Patents Designs and Trade Marks,*(1898) AC 5781 and 581 where Lord Herschell said:

> I do not think that combination of two English words is an invented word, even although the combination may not have been in use before; nor do I think that a mere variation of the orthography or termination of a word would be sufficient to constitute an invented word.

And Lord Shand was of the same opinion when he said at page 585 that:

> There must be invention, and not the appearance of invention only. It is not possible to define the extent of invention required, but the words, I think, should be clearly and substantially different from any word in ordinary and common use. The employment of a word in such use, with a diminutive or a short and meaningless syllable added to it, or a mere, combination of two known words, would not be an "invented" word.

Another restriction that has been created by section 12 is that the trade mark must be distinctive. It must not admit of any deception. Section 12(i)(e) of the ordinance requires also that in order a trade mark to be registerable, it must contain or consist, in addition of the other statutory requirements, of the following:

> (e) any other distinctive mark, but a name, signature, or word as words, other than such as fall within the descriptions in the foregoing paragraphs (a), (b), (c) and (d) shall not be registerable under the provisions of this paragraph except upon evidence of its distinctiveness.

Subsection (2) provides further that for the purposes of section 12:

> ... "distinctive" means adapted, in relation to the goods in respect of which a trade mark is registered, to distinguish goods with which the proprietor of the trade mark is or may be connected in the course of trade from goods in the case of which no such connection subsists, either generally or, where the trade mark is registered subject to limitations, in relation to use within the extent of the registration.

Section 12(i)(e) traces its origin from section 9(5) of the English Trade Marks Act 1905. These provisions came under scrutiny in the cases of *In Re Joseph Crossfield and Sons Limited (14),* where it was held, *per* Fletcher Moulton, L.J. that:

> ... It is for the applicant to prove that words *prima facie* unsuitable for registration have acquired distinctiveness, and the extent to which the court will require the proof this acquired distinctiveness to go will depend upon the character of the word. In determining whether a word *prima facie* descriptive ought to be admitted to registration as a trade mark the court ought to consider whether the registration will cause substantial difficulty or confusion in view of the provision of section 44 that no registration shall interfere with the use by any person of any *bona fide* description of the character or quality of his goods ...

I propose to apply the above observations in the determination of this appeal. I may here add that the word "distinctive" when used in the law of trade marks is synonymous with the word "descriptive". So a word used as a trade mark must not only be distinctive, it must also be descriptive of the goods or manufacture in respect of which that word is registered. Thus where a word has not completely come to be identified with the goods of some person the use of it by any other trader as a trade mark for an apparently identical product must be deceptive. It will be in the public interest if an application for registration of a such a trade mark by the latter trader be rejected.

Now what is a distinctive trade mark? Mr Uzanda has referred me to the English case of *Wood v. Buttler* and *Lambert* (15). In that case Lindley, L.J. Said:

> A distinctive Trade Mark must mean some mark which distinguishes the goods to which it is attached as those made or sold by the person who used the mark.

And Lopses, L.J. in the same case said:

> It ought to be a special and distinctive mark, not only recognizable by the trade, but also recognisable by the consumer as connecting the article with the manufacturer.

I will adapt and apply the observations of Lords Lindsey and Lopses on this matter. The issue which flows from the foregoing observations is whether the word Giyangi meets the conditions in *Wood v. Buttler and Lambert?* Of course the onus of proof lies on the applicant to prove that there will be no reasonable probability of deception if his trade mark is registered. In this connection Mr Uzanda has submitted that the trade marks Konyagi and Giyangi have a strong phonetic similarity and resemblance which was not brought about by coincidence. To him what the respondent did was to remove "KO" from Konyagi and substituted it with "Gi". And that phonetic resemblance is accentuated by the fact that "Konyagi" is Swahili word and therefore the emphasis is on the second and third syllables. The second and third syllables are therefore the essential features of the trade mark 'Konyagi". He contends that in trade mark law close resemblance is established when the essential features of any two marks are the same. For instance, this principle was applied in *"Revenhead Brick Co. Ltd v. Buabon Brick Co. Ltd"* (16) "**KERLY**" (9 ed), page 454 where it was held that SANRUS closely resembled RUS.

Another is the *Parker-knoll* case (17) where it was held that the essential feature of *"Parker-knoll was Knoll* and that therefore there was a close resemblance between *Parker-Knoll* and *Knoll International*.. That since there is a close resemblance in the present opposition

between Konyagi and Giyangi, the application ought to have been refused registration.

I am satisfied, after taking due account of Mr Uzanda's arguments, that he may be right, particularly after considering what was said regarding a similar issue in the English case of In the matter of an Ld for the Registration of a Trade Mark (*The Pianist* Case), (18) at page 775 where Parker, K, observed, in a case such as the one before me, that:

> You must take the two words. You must judge them, both by their look and by their sound. You must consider the nature and kind of customer who would be likely to buy those goods. In fact you must consider all the surrounding circumstances; any you must further consider what is likely to happen if each of those trade marks is used in a normal way as a mark for the goods of the respective owners of the marks.

Since Konyagi and Giyangi are alcoholic drinks of the type of gin, an ordinary consumer who is not sufficiently literate, is likely to be deceived. I would therefore allow the sixth and the eight grounds.

Ground ten is very cognate to ground eight. It is submitted by Mr Uzanda that the Registrar misdirected himself in holding that the first syllable is a word mark is in all circumstances the most important in determining whether there is resemblance in any two marks. I agree. For as the learned authors of **Kerly,** (12 ed) say at page 445 say:

> It has been accepted in several reported cases that the first syllable of a word mark is generally the most important. It has been observed in many cases that there is a 'tendency of persons using the English language to slur the termination's of words.

Accordingly, the tenth ground would also succeed.

The basis of the appeal in the nineth ground is this. On the label of the product Giyangi there are these words: Blended and Distilled by *McIntosh International.* It thus seems that some other firm distils and blends the gin other than the applicant. It is in that context I

understand Mr Uzanda to argue that the respondent does not use the trade mark Giyangi. He cites **Kerly** at page 171 as authority for his arguments. The learned authors of that book observe:

> A mark may be disentitled to protection on the ground that it is confusing or deceptive as to the trade origin of the goods.

The learned authors cited *Wood v. Lambert and Buttler,* (15). In *Wood v. Lambert and Buttler* Messrs Wood were makers of a variety of cigarette. Evidence established that in the late 1880's customers lost taste with English Cigarattes. In order to compete with popular brands from Russia and other parts of Europe Messrs Wood made cigarettes for Messrs Lambert and Buttler: *Constantinople, Jancal Tachta Cigarettes.* There was nothing on those cigarettes about Wood or Lambert and Buttler. As Lord Lindsey said at page 260:

> For the purpose of enabling Lambert and Butler to sell these goods, Messrs. Wood's goods, as something which is distinctly not Messrs Wood's. Persons in the trade, persons knowing the secrets of the trade, may not be deceived, but any buyer would be deceived by this. It would be perfectly impossible for any purchasers of cigarettes not in the secrets of the trade to understand these words to mean Messrs. Wood's cigarettes.

There was also evidence that Messrs Wood, who were manufacturers of a blend of cigarettes known as Eton undertook to sell those cigarettes under the brand Mavrogordato as having been a product of St. Petersburg, presumably a city in Russia. The word Eton also appeared on the cigarette. After considering the evidence Fry, LJ, made the following observations at page 263:

> How is it possible for the plaintiffs to say that the label with the word "Eton" upon it is distinctive of their manufacture when they themselves have represented that the "Eton" cigarettes are made by people in St. Petersburg? Precisely similar observations apply to the other case, namely, the "Jancal Tachta": label. There the plaintiffs themselves designed for the defendants a label which represents the cigarettes contained in the box as being the product of a Constantinople firm; and I repeat the question, how is it possible for the plaintiffs to say that the word "Eton" is distinctive of their manufacture when they for a second time have represented it as being the manufacture of another person? In my judgment where a person uses a name and represents that name to be applicable to the product of a manufacturer or manufacturers other than himself, so as to produce the belief that the goods are the manufacture of that third person or persons, he cannot say that the word is distinctive of his own manufacture. Nor do I think that principle applies the less because the plaintiffs may be false in the assertion that there is any such firm or firms as the manufacturer represents. He who has made the goods has taken upon himself to represent two things: in the first place, that they are not his manufacture but somebody else's in the second place, that a firm exists which does not exist at all. It appears to me that the plaintiffs have by that conduct entirely precluded themselves from contending in this case that the word is a distinctive word or words.

English case law that I have quoted clearly shows that a manufacturer will be guilty of deception if he undertakes to market his products under a trade mark to which he does not have an apparent connection. He will deceive the consumers that the products on sale are manufactured by a third party. I would add that such conduct amounts to fraud as well. Indeed, such conduct would be sufficient ground upon which to refuse an application for registration of a trade mark which does not have an apparent relationship with the applicant. It is in that context that I can see no relationship between the respondent and Messrs. McIntosh International under which Giyangi is intended to be marketed. So not only is the respondent guilty of deception in this case, the trade mark he seeks to have registered has not passed the required test of distinctiveness.

When considering this issue the Registrar observed that according to the Certificate of Registration of the business name McIntosh International the sole proprietor of this business name is Vitamin Food (1989) Ltd who owns 100% of the business. McIntosh International is not, therefore, a legal entity so there is no deception or confusion of the identity of the owner of the business Vitamin Foods (1989) Ltd. That the name may appear to be connected with Scotland but

this is beside the point and to date there has been no complaint on appellation of origin. The position of Messrs. McIntosh International may as well be so, but how would one expect an ordinary person, an ordinary buyer of Giyangi to know that Messrs. McIntosh International is a wholly owned subsidiary of the respondent? A person interested in that drink would not go beyond what the label on the bottle says. By that name buyers would be mislead to believe that Giyangi is distilled and blended by a foreign company or by a company other than the respondent. So the label carries a lie about itself. Upon these observations, therefore, the ninth ground would succeed.

The eleventh and twelfth grounds have been abandoned. Upon the reasons and grounds contained in this judgment, the appeal succeeds. Appeal allowed with costs.

GEORGE LUGGA MALIYAMKONO *v.* PRINCIPAL SECRETARY OF THE MINISTRY OF SCIENCE, TECHNOLOGY AND HIGHER EDUCATION AND TWO OTHERS

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Chipeta, J.)

MISC. CIVIL CAUSE No. 29 OF 1998

Judicial Review – Grounds for Judicial Review of an administrative decision – Power to terminate an employee vested in the Permanent Secretary – Decision to terminate made on the basis of a report submitted by a committee set up to enquire into the allegations made against the applicant – Whether the decision was intra vires.

Natural justice – Right to be heard – Applicant given 7 days to give his explanations about allegations against him – Applicant gives explanations and is subsequently questioned about the same by a committee of inquiry before submitting its report – Whether the applicant's right to be heard was breached.

This was an application for *certiorari* to quash the first respondent's decision of terminating the applicant's employment, and *mandamus* to command the first respondent to reinstate the applicant in his teaching job at the Dar es Salaam Technical College. Prior to termination the applicant was served with a letter proposing disciplinary measures against him for insubordination and refusal to carry out duties, and requiring him to give his explanations about the allegations. Subsequently the first respondent formed a committee to enquire into the allegations against the applicant. The committee questioned the applicant, his Head of Department, the College Principal and three other persons and submitted its report to the first respondent who used the committee's finding to reach his decision. In court the applicant submitted that because the first respondent did not make the inquiry himself but used a committee whose finding were then used, the decision was *ultra vires* and void. He also claimed that his right to be heard was breached.

Held: (i) As the applicant was not a civil servant employed on permanent and pensionable terms, he could not rely on the Civil Service Regulations 1970 to challenge his termination;

(ii) All that the committee of enquiry did was to enquire into the allegations against the applicant and submit its report to the first respondent who then made the decision to terminate. The decision was therefore, made by the appropriate authority;

(iii) The applicant was fully heard at every stage in the process leading to his termination and he defended himself accordingly although his defense did not carry the day; therefore, there was no breach of the natural justice.

Application dismissed

Statutory provisions referred to:

(i) Civil Service Regulations 1970

(ii) Education Act, 1978

RULING

(Dated 26 February 1999)

CHIPETA, J: The applicant in these proceedings, George Lugga Maliyamkono, has applied for an order of *certiorari* to remove into this court and quash the decision of the first respondent, the Permanent Secretary (cited by the applicant as the Principal Secretary) of the Ministry of Science, Technology and High Education terminating the applicant's employment as a teacher. The applicant has also applied for an order of *mandamus* to compel the first respondent to reinstate the applicant in his job as a teacher and pay the applicant's salaries and allowances from the date of his termination and regularize his appointment. The respondents resisted both applications.

With the leave of the court, the parties' learned advocates filed written submissions.

In brief, the facts are that by a letter of the first respondent dated 2 April 1985, the applicant was appointed as a teacher grade IIB on temporary terms, and was attached to Dar es Salaam Technical College. By the first respondent's letter dated 14 December 1993, the applicant was dismissed from his employment on grounds of insubordination, misconduct, and inefficiency. By the first respondent's letter of 19 January 1995, the applicant's dismissal was changed to termination. It is that termination which the applicant is challenging in these proceedings.

After that termination, the applicant made representations to the Civil Service and Teacher's Service Commissions to no avail because the applicant was not a public servant on pensionable terms nor was he a teacher under the provisions of the Education Act 1978.

The learned counsel for the applicant submitted that the applicant's dismissal was made contrary to Civil Service Regulations 1970. This submission is defective in that what is being challenged here is terminating. Besides, since the applicant was not a civil servant on permanent and pensionable terms, he cannot seek cover under those regulations.

It has also been submitted that the first respondent should have made the inquiry himself, and that since he based his decision on the findings of a committee, the decision was *ultra vires* and null and void. With respect, I can see no merit in this submission. All that the committee did was to inquire into the allegations or charges against the applicant. Thereafter, the committee submitted its report to the first respondent. The committee, therefore, made no decision. The decision was made by the appropriate authority, that is, the first respondent, after ascertaining the facts on the allegations against the applicant. I should, perhaps, add that the procedure used by the first respondent was the standard and accepted procedure. The complaint on this ground, therefore, is without merit. The termination, in my view, was in line with terms of the applicant's letter of appointment. That letter reads, in part, as follows:

> Your appointment is subject to termination without notice in the event of insubordination, misconduct or inefficiency.

The next substantive complaint is that the applicant's termination was illegal in that rules of natural justice were not followed because, it is said, the applicant was condemned without being heard. In order to determine this point, it is necessary to closely examine the sequence of events which later culminated in the applicant's termination. There is evidence, some of which supplied by the applicant himself, that the applicant's Head of Department gave the applicant both verbal and written warnings about the applicant's failure to set examinations and/or to submit reports. When the applicant paid no heed, the Principal of the College (the second respondent) wrote Annexure 'B' by which he informed the applicant that he (the second respondent) was initiating appropriate disciplinary measures against the applicant for insubordination and refusal to carry out duties. By that letter, the applicant was required to give his explanation within seven days, and by the same letter, the applicant was suspended from being a member of the teaching staff of the College. The applicant gave his explanation. Thereafter the first respondent appointed a committee to investigate the allegations. The committee questioned the Principal of the College, Head of

Department, the Registrar of the College, the applicant himself, and two other people. The applicant made a lengthy explanation in his own defence.

Subsequently, the committee submitted its report to the first respondent. That report was supplied to the applicant. In short the committee found that the applicant was guilty of insubordination, misconduct, and inefficiency. It was then that the first respondent dismissed the applicant from his temporary employment and later changed the dismissal to termination.

That being the factual position, can it reasonably be said that the applicant was condemned unheard. The answer to that question, in my considered view, is an emphatic NO. The applicant was heard, and fully heard, at every stage in the saga, and he defended himself accordingly although in the end his defence did not carry the day. All these steps were taken in favour of the applicant who, by terms of his letter of appointment, was liable to termination without notice. There was, therefore, no breach of rules of natural justice.

Let me reiterate here that as I understand the law, orders of *certiorari* and *mandamus* will only be issued where it has been shown that the authority in question has acted without, or in excess of its jurisdiction; or where such authority is shown to have acted with bias; or where there is an error on the face of the record; or where, on the totality of the facts and circumstances disclosed, the authority in question did not act legally or judicially.

In the instant matter, none of those requirements has been established. For the foregoing reasons, I see no merit in this application. The same is accordingly hereby dismissed with costs.

SHAKU HAJI OSMAN JUMA *v.* ATTORNEY GENERAL AND TWO OTHERS

HIGH COURT OF TANZANIA AT TABORA

(Mchome, J)

MISC. CIVIL APPLICATION No. 1 OF 1997

Civil Practice and Procedure – Res Judicata – Application for certiorari and mandamus dismissed because of availability of alternative remedy by way of temporary injunction – Application for temporary injunction is subsequently made – Whether the subject matter of the application is res judicata .

Civil Practice and Procedure – Inherent jurisdiction of the court – Situations in which the inherent powers of the court may be invoked – section 95 of the Civil Procedure Code.

The applicant filed a suit in the High Court at Tabora. Subsequently he filed an application for a temporary injunction under section 95 and Order XXXVII of the Civil Procedure Code. Earlier, in Civil Application Number 12 of 1998, the applicant had applied for an order of *mandamus* and *certiorari* but that application was rejected. The court declined to grant these orders but specifically ordered that the matter be dealt with by way of an application for temporary injunction. In a preliminary objection learned counsel for the first and third respondents, submitted that the matter was *res-judicata* and secondly, that the case was one in which section 95 of the Civil Procedure Code was not applicable.

Held: (i) The matter was not *res judicata* because the application for prerogative orders was dismissed on the ground that redress was available through other means and the court specifically cited application for a temporary injunction as one of the alternative remedies;

(ii) The inherent powers of the court provided under section 95 of the Civil Procedure Code are invoked in situations where the court has authority or jurisdiction to deal with the matter and there is no specific law in place.

(iii) A temporary injunction can be issued not only under Order XXVII, but also under section 95 of the Civil Procedure Code.

Preliminary objections overruled

Mr. Mtaki for the applicants

Mr. Mujunangoma for the first and third respondents

Case referred to:

(1) *Attorney General v. Maalim Kadau and others* [1997] T.L.R. 69

(2) *Manohar Lal v. Seth Hira Lal* (1962) Supp (1) SCR 450 (1962) RSC 527

Statutory provisions referred to:

(i) Government Proceedings Act 1967

(ii) Civil Procedure Code, Order XXVII, rule 1, Order XXVIX, rule 1 and 2, section 151

(iii) Civil Procedure Code, section 95 and Order XXXVII, rule 1

RULING

(Dated 26 February 1998)

MCHOME, J: Mr Rogonzibwa Thiophil Sephurin Mujunangoma, learned counsel for the first and third respondents, has filed two preliminary objections to this application by Mr Mtaki, learned counsel for the applicants, in the application for a temporary injunction.

First, Mr Mujunangoma submits that as the Attorney General and the Administrator General are not parties to the original suit, a temporary injunction, cannot be issued against them. He cited Order XXXVII, rule 1 of the Civil Procedure Code and the case of *Attorney General v. Maalim Kadau and others* (1).

The second objection is that this matter is *res judicata* at it was dealt with in Application Number 12 of 1998.

In reply Mr Mtaki submits that this application is filed under Order XXXVII read together with section 95 of the Civil Procedure Code. As for *res judicata* Mr Mtaki submits that in Civil Application Number 12 of 1998 they had applied for Orders of *mandamus* and *certiorari* and the court ordered specifically that the matter be dealt with by way of an application for temporary injunction.

Let me first deal with the second objection. That is that the matter is *res judicata*. This matter is not *res judicata*.

The application for orders of *certiorari* and *mandamus* was dismissed as there are other means of seeking redress available to the applicant. The court in Civil Application Number 12 of 1998 cited application for a temporary injunction as one of the alternative remedies. So the second objection is overruled.

As for the first objection, I agree with the learned counsel for the first and third respondents that under Order XXXVII, rule 1 of the Civil Procedure Code 1966 a temporary injunction cannot be issued against someone who is not a party to the main suit. But Mr Mtaki, learned counsel for the applicant however, submits that his application is also brought under section 95 of the Civil Procedure Code. Both learned counsel cited the Court of Appeal case of the *Attorney General v. Maalim Kadau and others*, (1) whose relevant part is:

> In the ruling, the learned judge sets quite correctly the legal position regarding the issuance of a temporary injunction against the Government. He states that the application could not be granted under Order XXXVII of the Civil Procedure Code 1966 because the Government was not a party yet to Civil "Case Number 12 of 1995. The learned Judge also considered the Government Proceedings Act 1967 as amended by Act Number 30 of 1995 which provides for a period of three months' notice before the Government can be made a party to proceedings. So, he took the view that irreparable damage would be caused to the respondents (then applicants) if the court were to wait for three months before issuing the injunction order. The application was thus granted by invoking section 95 of the Civil Procedure

> Code. We must at once point out that this was a misapplication of this section. ... It is trite knowledge that the inherent powers of the court provided under this section of the Civil Procedure Code are invoked in situations where the court has authority or jurisdiction to deal with the matter and there is no specific provision of the law in place. Where as in this case the court has no jurisdiction or authority and there are express provisions of the law as was the case here, which provisions were elaborately set out by the learned judge, it was an error on the part of the learned judge to invoke such powers ....

Learned counsel had different interpretations of the above quoted passage of the Court of Appeal. Mr Mujunangoma, for the respondents, argues that section 95 is only applicable where there are no specific provisions of the law to deal with the matter. He states that Order XXVII, rule 1 of the Civil Procedure Code provides the specific provisions. Mr Mtaki, for the applicant, on the other hand, submits that the court of appeal quashed the trial judge's injunction because he had no jurisdiction over the whole application.

I tend to agree with Mr Mtaki's interpretation. Contrary to Mr Mujunangoma's contention, Order XXVII, rule 1 does not provide specifically for a case like this one where someone who is not a party to a suit tampers with or tries to alienate property which is the subject-matter of a pending suit.

Section 95 of the Civil Procedure Code 1966 provides:

> Nothing in this Code shall be deemed to limit or otherwise affect the inherent powers of the court to make such orders as may be necessary for the ends of justice or to prevent the abuse of the process of the court.

In **Mulla, the Code of Civil Procedure,** (12 ed), page 1007, is cited the case of *Manothar Lal v. Seth Hira Lal* where it was held that the court has powers under section 151 (equivalent to our section 95) to issue injunction in cases not falling within Order XXVIX, rules 1 and 2 (equivalent to our Order XXVII, rules 1 and 2) of the Civil Procedure Code.

A temporary injunction can be issued not only under Order XXVII, but also under section 95 of the Civil Procedure Code. So these objections are overruled with costs.

ARUSHA INTERNATIONAL CONFERENCE CENTRE *v.* EDWIN WILLIAM SHETTO

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Lugakingira, J.A.)

CIVIL APPLICATION No. 69 OF 1998

Court of Appeal Rules – Applications – Duty to serve Notice of Motion and accompanying affidavits – Whether the duty to serve is on the Court Registry or on the applicant – Rules 52(1) and 53(1) of the Tanzania Court of Appeal Rules 1979.

Court of Appeal Rules – Notice of Motion-Failure to serve Notice of Motion on the respondent two clear days before the hearing – Effect thereof.

The respondent in this matter raised a preliminary objection and prayed for the application to be struck out because the applicant had not served him with the Notice of Motion and accompanying affidavits two clear days before the hearing as required by rule 52(1) of the Court of Appeal Rules 1979. The applicant argued that because rule 52 does not specify whose duty it was to effect service, the duty was not on the applicant.

Held: (i) The duty to serve a Notice of Motion and its accompanying affidavit(s) is placed on the applicant;

(ii) The purpose of the rule requiring service of notice on the respondent is to ensure a reasonable opportunity to the respondent to consider the application and, if

desired, to lodge a reply; otherwise, failure to serve notice in the prescribed time only provides a ground to adjourn the hearing and does not invalidate an application.

Objection overruled.

Case referred to:

(1) *Hasmat Ali Baig v. Baig and Butt Construction Ltd,* CAT (AR) Civil Application Number 9 of 1994 (unreported)

Statutory provisions referred to:

(i) Tanzania Court of Appeal Rules 1979, rules 52, 52(1), 53(1), 77, 94, 95(2), 97 and 100

Mr Makange, for the Applicant

Mr Ojare, for the Respondent

RULING

(Dated 01 March 1999)

LUGAKINGIRA, J.A. : When this application for stay of execution came on for hearing on 18 February 1999 learned counsel for the respondent, Mr Loomu-Ojare, raised a preliminary objection to the effect that the application was incompetent and prayed that it be struck out with costs for non-compliance by the applicant with rule 52(1) of the Court of Appeal Rules. The rule requires Notice of Motion and copies of affidavits accompanying same to be served on all necessary parties not less than two clear days before the hearing.,

Elaborating on the objection, Mr Ojare stated that he was given a copy of the Notice of Motion by the Court Registry but it was not accompanied by any affidavit. He submitted that the duty to effect service was cast upon the applicant and this the applicant herein had failed to discharge. In reply learned counsel for the Applicant, Mr Makange, observed that rule 52 does not specify who should effect service. He submitted that if the Legislature had intended to place that duty on the applicant it could have said so in clear terms and

instanced the position in rules 77, 94, 95(2), 97 and 100. He contended, in the circumstances, that the duty to effect service was upon the court.

I am not in the least persuaded that the duty to effect service under the rule is placed on the court. Admittedly, the rule is silent as observed by Mr Makange but reading the rules as a whole I think a necessary implication arises that this duty is placed on the applicant. For instance rule 53(1) requires any person served with a Notice of Motion under rule 52 to serve a copy or copies of his affidavit or affidavits in reply on the applicant. The rules cannot possibly be more onerous on the respondent and require him to serve his reply on the applicant without, in the first place, requiring the applicant to serve the notice on the respondent. It is therefore irresistible to infer that the duty lies on the applicant to effect service of the notice under the rule.

Even if the duty to effect service were placed upon the court, which I say it is not, that would not affect substance of rule 52 which is that service should be effected not less than two clear days before the hearing. That brings me to Mr Ojare's contention that the application was incompetent and his prayer to strike it out. I think, with due respect, this misapprehends the purpose of the rule which is to ensure that the opposite party has reasonable opportunity to consider the application and, if so desired, to lodge a reply. What is of essence in the requirement for service is the time available to the other side between the service and the hearing, and the rule fixes this at not less than two clear days. As this court had occasion to say in *Hasmat Ali Baig v. Baig and Butt Construction Ltd.* (1), "If the Notice of Motion is not served on the other side, it only means that it cannot proceed to hearing, but the validity of the motion remains unaffected". And so it is in the instant case; the omission to serve the respondent was only a bar to the hearing of the application on 18 February 1999, providing thereby a ground for an adjournment, but did not take away from the validity of the application.

I therefore over rule the objection and direct that the application will proceed to hearing on a date to be appointed after due compliance with rule 52(1).

AMINA TARATIBU MBONDE *v.* SELEMANI AHMEDI MTALIKA

HIGH COURT OF TANZANIA AT MTWARA

(Kaji, J)

MISC. CIVIL APPEAL No. 3 OF 1997

(From the decision of the District Court of Mtwara in Probate and Administration Cause No. 2 of 1996)

Islamic Law – Administration of Estates – Deceased professed Islam until he died intestate – Law applicable in distributing his estate.

Islamic Law – Inheritance – Children born out of wedlock – Whether a child born out of wedlock can inherit deceased father's estate.

Islamic Law – Administration of Estates – Assessment of the widow's "thumni" – Whether the court should take into consideration the extent of the widow's active participation in running the deceased's shop.

On 27 December 1992 Amina Said and Kaisi Saidi Kaisi, got married under Islamic rites. Prior to that marriage they had lived together as "lovers" and on 8 March 1988, they got their only child named Said Kaisi. On 4 May 1996, Kaisi Saidi Kaisi passed away intestate at Mtwara. The respondent Selemani Ahmedi Mtalika was appointed administrator of the deceased's estate. With the assistance of the Mtwara District Court together with the advice of the Sheikh wa Mkoa, BAKWATA, Mtwara, the respondent proceeded to distribute the deceased's estate in accordance with the said advice whereby the son was excluded from inheritance. The appellant the widow, was dissatisfied with the distribution. She, consequently, lodged this appeal.

Held: (i) Since the deceased was a Moslem who professed his religion until his death, the distribution of his estate was governed by Islamic law;

(ii) His son Saidi Kaisi Saidi who was born outside wedlock was not entitled to inherit anything from his father's estate.

(iii) There is nothing indicating that under Islamic law, in assessing the widow's "thumni" the court must also take into consideration the activeness of the widow in running the deceased's shop where they had a shop.

(iv) *Obiter:* Under Customary Law marriage of the son's mother by the deceased was sufficient to legitimate him and make him a rightful heir, depending on the particular tribe.

Appeal dismissed

JUDGMENT

(Delivered 02 March 1999)

KAJI, J.: This appeal has been lodged by the appellant Amina Taratibu Mbonde, against Selemani Ahmed Mtalika challenging the distribution of the deceased's property by Mtwara District Court in Probate Cause Number 2 of 1996.

It is common ground that the appellant and the late Kaisi Said Kaisi were both Moslems. On 27 December 1992 they got married under Islamic rite whereby they were issued with Marriage Certificate Number 02123 of 27 December 1992. Prior to that marriage they had lived together as "lovers" whereby on 8 March 1988 they got a child whom they named Saidi Kaisi. Thus when they got married on 27 December 1992, they already had a child who was by then about 4 years old.

On 4 May 1996 the deceased Kaisi Saidi Kaisi passed away intestate at Mtwara. From 27 December 1992 when they got married till 4 May 1996 when the deceased died they had no child of the marriage.

On 29 September 1996 a Clan Baraza was convened whereby the respondent Seleman Ahmed Mtalika was proposed as the Administrator. He was officially appointed by Mtwara District Court on 30 January 1997. Around March 1997 the respondent presented to court an inventory showing the total value of the Estate and the persons who had survived the deceased. The value of the Estate was as follows:

(i)	Cash in hand	TZS.	520 000
(ii)	Value of the property in shops	TZS.	4 968 910
(iii)	Value of the Chikongola house	TZS.	2 382 355
(iv)	House holds:		
	(a) Video valued at	TZS.	350 000
	(b) Air Conditioner valued at	TZS.	120 000
	(c) 2 deep freezers valued at	TZS.	450 000
	(d) Music System valued at	TZS.	300 000
	(e) A container valued at	TZS.	300 000
	(f) A generator valued at	TZS.	300 000
	Total value	**TZS.**	**9 691 265**

Those who had survived the deceased were as follows:

1.	Saidi Kaisi	-	Father
2.	Amina Taratibu Mbonde	-	Wife/Widow
3.	Mshamu Saidi Kaisi	-	Brother
4.	Zubeda Saidi Kaisi	-	Sister
5.	Mwanahamisi Saidi Kaisi	-	Sister
6.	Saidi Kaisi	-	Son (born before marriage)

The respondent sought the assistance of the court as to how he should distribute that Estate. The court requested the Sheikh wa Mkoa BAKWATA Mtwara to sort out as to who, according to Islamic Law, were the rightful heirs and which percentage each of them served.

On 31 March 1997 the Sheikh wa Mkoa BAKWATA clarified as follows:

(a) The rightful heirs were only the deceased's father Saidi Kaisi and the deceased's wife Amina Taratibu Mbonde; and that the father deserved ¾ and the widow deserved ¼ of the value of the estate.

(b) The deceased's brother Mshamu Saidi Kaisi and his sisters Zubeda Saidi Kaisi and Mwanahamisi Saidi Kaisi were not entitled to inherit anything as the deceased's father was still alive.

(c) The deceased's son Saidi Kaisi was not entitled to inherit anything because he was born outside wedlock.

Upon that advice the deceased's estate was distributed as follows:

(i) Saidi Kaisi (Father) TZS. 7 263 448-75 being ¾ of the total estate value of TZS. 9 691-265

(ii) Amina Taratibu Mbonde (widow) TZS. 2 422 816-25 being ¼ of the total estate value of TZS. 9 691 265.

It is against this distribution that the appellant has lodged this appeal. In her Memorandum of Appeal she raised seven grounds of appeal which can conveniently be summarized into 6 grounds of appeal as follows:

(i) That the trial court had grossly erred in its order which excluded the only son of the deceased from being an heir of his father's estate, and instead gave deceased's father the right to inherit the lion's share purportedly basing on the Sheikh's view.

(ii) That the trial magistrate misdirected and contradicted himself in finding that the son was born outside wedlock while the court was told that although the son was born before marriage, he was legalized under customary norms and traditions, it was therefore not fair and proper not to consider him as one of the heirs.

(iii) That the amount which the appellant got in the distribution was too small taking into account that she was not just sitting idle at home but took part effectively in running the shop from the time the appellant and the deceased got married until when the deceased died.

(iv) That some properties listed by the respondent were not supposed to be included because they were the appellant's personal property; and others were given as gifts to the son personally by the deceased; that is, (a) the container which is her personal property (b) the house at Chikongola whose Title Deed is in the name of the son, including the video and air condition.

(v) That TZS. 2 600 000 was not included in the total value of the deceased's state.

(vi) That the trial magistrate erred in directing that part of the appellant's inheritance would have to be realized from the debts which the deceased was owed and that she would have to collect the said debts by herself.

She therefore prayed for the following:

(a) That the container should be handed over to her as her personal property.

(b) That the house at Chikongola, video and air condition should be handed over to the son who is the legal owner.

(c) That the respondent be ordered to present before the court TZS. 2 600 000 which should be distributed fairly.

(d) That the money given to the deceased's father Saidi Kaisi TZS. 7 268 448-25 which is too much should be reduced and the appellant be paid additional amount from it taking into account that she is staying with the son.

In reply the administrator who is the respondent replied as follows:

(i) That the trial magistrate was right in excluding the deceased's son from inheriting his property because under Islamic Law a child born outside wedlock cannot inherit any property from his father. The share given to the deceased's father was proper according to Islamic Law, in that it was ¾ of the total value of the deceased's estate.

(ii) That under Islamic Law a child born outside wedlock cannot be legalized by marrying its mother to the extent of entitling it to inheriting any property of its father.

(iii) That under Islamic Law a widow is entitled to inherit ¼ of the value of her deceased husband estate. Since the total value of the estate was TZS. 9 691 265 the amount of TZS. 2 422 816-25 she was granted is proper.

(i)(a) That although the receipt for the purchase of the container showed the name of the appellant, yet she purchased it from the money she dished out from the deceased's shop before his death. But after his death she demanded to be paid back her 300 000 and surrender the container to the estate. She was paid back her 300 000 and the container surrendered to the estate to form part of the estate as shown in the inventory.

(b) That the 2 600 000 was realized from the sale of the goods from the shop after the goods had been valued at TZS. 4 968 910. Therefore it was not separate money but part of the 4 968 910.

(ii) That the house at Chikongola belonged to the deceased and the Title Deed showed his name and not that of his son. The video and the air conditioner belonged to the deceased too and that there was no document showing that he had passed them over to his son.

(iii) That the appellant was simply advised to assist him in identifying the debtors as she knew them and that the duty of collecting debts remained his.

He concluded by calling upon this court to dismiss the appeal. In short that is the gist of the matter.

There is no dispute that the deceased Kaisi Saidi Kaisi was a Moslem, and that until his death he was professing Islamic religion. There is also no dispute that the appellant Amina was, and probably is still a moslem. There is equally no dispute that the marriage between the deceased and the appellant was solemnized under Islamic religion.

Since the deceased was a Moslem who professed his religion until his death, the distribution of his estate was governed by Islamic Law. Under Islamic Law it is clearly stated as to who are rightful

heirs where a man dies intestate and is survived by his father and his wife/widow and how much (percentage) each is entitled to, that is, ¾ for the father and ¼ for the widow.

There is no dispute that the deceased's son was born outside wedlock, and that later the deceased married the mother of that son. Under Customary Law that was sufficient to legitimate him and make him a rightful heir, depending on any particular tribe. This can be found under the Local Customary Law (Declaration) G.N. 279 of 1963 and G.N. 436 of 1963.

But under Islamic law a child born outside the wedlock has no right to inherit anything from his father's estate even if his father later married his (child's) mother. This was made clear by the *Sheikh wa Mkoa* and I have no reason to doubt its authenticity. It may sound very strange and unfair to the appellant. But it must be borne in mind that joining a particular religion is a matter of free will. Nobody is forced to join any particular religion. By joining a particular religion you bid yourself to be governed by the rules and norms that apply there. Once a Moslem you die a Moslem and your estate must be distributed according to Islamic law unless you opted out before your death.

Since the deceased was a Moslem who professed Islamic until his death, and since his son Saidi Kaisi Saidi was born outside wedlock, the said son is not entitled to inherit anything from his father's (deceased's) estate. The appellant's plea would only bear fruits if the deceased would have ceased to be a Moslem before his death or would have changed his way of life to that of customary norms whereby his estate would be distributed according to Customary Law.

Another complaint of the appellant is that the amount she was given was too small and that it was small because in assessing that amount there were some important factors which were not taken into consideration by the court. These are:

(a) That she was not just sitting idle at home but she took part effectively in running the shop from the time she got married to the deceased until when the deceased died.

(b) That in assessing her "Thumni" 2 600 000 was not included which if included her "thumni" would have been higher than the present one.

(c) That she is living and taking care of their son.

I have carefully considered these grounds. The answers to her complaints are as follows:

(a) There is nothing indicating that under Islamic Law, in assisting the widow's "thumni" the court must also take into consideration the activeness of the widow in running the deceased's shop where they had a shop. Had it been a partnership venture, each with his separate share, that would be another thing. Also had it been a problem of division of property in a matrimonial cause after divorce, the contribution in a form of running that shop and probably doing some other domestic chores would be considered. But not in a case of inheritance such as this one.

(b) The respondent had replied that the 2 600 000 was ralized by sale of the goods which were in the shop after the said goods had been assessed to be valued at TZS. 4 968 910. But the appellant said the 2 600 000 was realized from the sale of other goods after the assessment. This does not sound convincing because she could not say as to from where these goods came from if not from the shop as stated by the respondent. I accept what the respondent has said.

(c) It is true she is living and taking care of their son. But since under Islamic Law the said son has no right of inheriting anything from the deceased's estate, my hands are tied up. According to the advice of the Sheikh wa Mkoa, under such circumstances there are only two possible solutions/remedies, that is:

(i) To persuade the decased's father to take care of his grandson as he is from the blood of his own son.

(ii) To persuade the deceased's father to give his grandson anything voluntarily from the deceased's property before the said property has been distributed to the rightful hiers.

But the Sheikh warned that whether (i) or (ii) the deceased's father must do so voluntarily and should not be forced or ordered by anybody. Under these circumstances what the appellant can do is perhaps to sue for maintenance of the child and not as his rightful part/share of inheritance.

The appellant complained also that some of the properties listed by the respondent were not supposed to form part of the deceased's estate in that they were hers and some were given to their son as gifts. She mentioned a container to be hers, and a house at Chikongola, a video and an air-condition to be of their son. She complained that she was forced to sell the said container and was paid back her money. According to the respondent's reply the appellant had purchased that container with the money she took from the shop. After the deceased's death she demanded to be paid back and she was paid 300 000 from the shop before the value of the shop had been evaluated.

Now, since the appellant is complaining that she was forced to sell it, if she has got sufficient evidence, she is free to sue the one who forced her to sell it.

As far as the house at Chikongola is concerned, there is ample evidence supported by the annexture Ref. Number RLDO/MT/01840/ 4 of 21 December 1992 (Letter of Offer) that the said house which is on Plot Number 45 Block K Chikongola is the property of the deceased Kaisi Saidi of PO Box 624 Mtwara. The appellant asserted that she managed to see a *Hati ya Kiwanja* with the name of their son Saidi Kaisi on it but she could not produce any on allegation that it was taken by the respondent. The respondent produced the above Hati to be the only Hati ya Kiwanja in respect of that house.

In the absence of any other *Hati ya Kiwanja* bearing a different name, I am satisfied that the house was the property of the one whose

name is there is, the deceased Kaisi Saidi. It was therefore properly included in his estate. As far as the video and air conditioner are concerned, there is no evidence showing that they belonged to their son as his gifts (gifts given *inter vivos*). They were therefore properly included in the deceased's estate.

Lastly, the appellant complained also that the trial court had directed that part of her thumni of TZS. 2 422 816-25 should have to be realized from the debts which the deceased was owed, and that she must collect those debts herself. This was denied by the respondent who said the appellant was simply requested to assist him in identifying the debtors because she was the one who knew them. The record is silent on this.

Since the record is very clear that the appellant is to be paid her thumni of TZS. 2 422 816-25, if she has not been paid some of it, she can lodge her complaint before the trial court and preferably before the very trial Magistrae if he is still there. This court cannot jump on it at this stage because the record of the trial court does not show anywhere that the appellant was ordered to get part of her 'thumni" by collecting the debts which the deceased was owed. That is the duty of the administrator (respondent).

It is upon the above reasons that I dismiss this appeal. Due to the nature of the case and the relationship between the appellant and the respondent I direct that each party to bear his or her own costs.

CRDB (1996) LTD *v.* MINISTER FOR LABOUR AND YOUTH DEVELOPMENT

HIGH COURT OF TANZANIA AT DAR ES SALAAM

(Kalegeya, J.)

MISC. CIVIL APPLICATION No. 13 OF 1997

Natural Justice – rule against bias – Labour Conciliation Board chaired by a labour officer who had deliberated on the same matter before its reference to the board – Whether the board was not biased.

One Martin Rutahakana was an employee of the applicant bank and, at the same time, branch Chairman of the Trade Union, OTTU. He was promoted and transferred from Dar es Salaam to Tabora. He refused the transfer. The applicant bank instituted disciplinary proceedings against him which ended in his summary dismissal for insubordination. He referred the matter to the Labour Conciliation Board which ordered his reinstatement. The applicant referred the matter to the respondent Minister who upheld the board's decision. The applicant bank came to the High Court seeking orders of *certiorari* and *mandamus*. The decision of the board, and that of the Minister sought to be quashed by *certiorari*, were that the decision to transfer the employee was improper because it was made contrary, to the applicant's own Staff Regulations which required the applicant to get clearance from the District office of OTTU before transferring an employee who is a Branch Chairman or Secretary of OTTU. In court the applicant argued, *inter alia* that the board was biased on account of its' chair, one Mrs Masisingo who, in her capacity as Deputy Labour Officer, had supported and encouraged the employee not to go on transfer before the matter was ultimately referred to the board.

Held: (i) In reaching their respective decisions both the board and the Minister omitted to consider a relevant issue which was whether the employee was lawfully entitled to refuse to be transferred, and whether such refusal was an act of insubordination justifying his dismissal;

(ii) With Mrs Masisingo having been a labour officer who deliberated on the matter before it went to the board and having been the one encouraging the employee not to go on transfer, the same Mrs. Masisingo sitting as Chairperson of the board which had to deliberate on that very issue, a normal mind cannot believe that she acted without bias, even if she did; the board, therefore, breached the rule against bias;

(iii) Decisions of both the Minister and the board quashed; hearing *de novo* to be made before a properly constituted Board.

Orders accordingly.

Cases referred to:

(1) *R v. Gough* (1993) AC 646

(2) *Dr. Kallage v. Esso Tanzania Ltd.* CAT-DSM-Civil Appeal Number 10 of 1982 (unreported)

(3) *Mahona v. University of Dar es Salaam,* [1981] T.L.R 55

Mr. Mwakipesile, for the Applicant

Mr. Songoro, for the Respondent

JUDGMENT

(Delivered 4 March 1999)

KALEGEYA, J.: The applicant, CRDB (1996) Ltd, prays to this court for orders of *Certiorari* and *Mandamus* – that the respondent's decision delivered on 3 March 1997 in respect of Martin Rutahakana be removed into court and quashed.

Facts which stand out undisputed are that one Martin Rutahakana who worked with the applicant and who was at the same time an OTTU Branch Chairman and stationed at the head office Dar es Salaam, was, on 9 January 1995 promoted and transferred to Tabora Zonal Office as a Zonal Human Resources Officer. On 27 January 1995 the said Rutahakana, in writing refused the transfer. The applicant

proceeded to institute disciplinary proceedings against him. On 28 September 1995 he was summarily dismissed for insurbordination. Rutahakana challenged the dismissal before the Conciliation Board. On 13 November 1996 the board cleared him and ordered for his reinstatement. On 28 November 1996 the applicant challenged that decision by filing reference to the respondent. On 3 March 1997 the respondent upheld the board's decision and ordered for Martin's reinstatement. The applicant still aggrieved tried this avenue by applying for prerogative orders.

Mr Mwakipesile advocated for the applicant while Mr Songoro, State Attorney, appeared for the respondent. Parties made their submissions in writing. The respondent were late in filing their submissions but the court did grant the required leave.

Mr Mwakipesile vigorously argued that in upholding the board's decision the respondent did not act reasonably and in the interest of justice but rather arbitrarily; that he did not correctly perceive the relevant laws, rules and regulations hence an apparent error of law. He insisted that their argument that the board was not properly constituted, in that one Mrs. Mpasisingo who in her capacity as a Deputy Labour Officer and who had persistently supported and encouraged Rutahakana not to go on transfer was the one who was the Chairperson to the Board, was ignored. The applicant further submitted:

> The applicant bank had never ever had any regulation under which an employee of the bank could refuse a transfer just like that.

Clarifying on the alleged breach, the applicant referred to "Kanuni za Utumishi za Benki" (Kanuni 2.2.4) which state,

> 1. Any employee while in the bank's service shall serve the bank at such places as the bank may from time to time direct. The bank reserves the right to transfer any employee from one station to another if the exigencies of service so demand.
>
> 2. Any employee who refuses to comply with an order regarding transfer will be liable to disciplinary action which may include summary dismissal.

In response, Mr Songoro, submitted that the applicant acts as if it is not aware of the Bank's Personnel Service Manual (Staff Regulations) where in clause 2.2.4.3. it was (then) provided,

> Employees who are OTTU Branch Chairman and Secretary shall not be transferred without the approval of the Appointing Authority, who will in turn effect it after clearance with the nearest District OTTU Organ.

He insisted that the applicant misinterpreted the respondent's decision. He explained that the Minister (respondent) did not reach the decision on assumption that Rutahakana could refuse a transfer but that he decided on the basis that:

> 1. The said Martin Rutahakana was OTTU Branch Chairman in the Applicant Company.
>
> 2. That is the applicant Company there was internal mandatory procedures to be followed in order to effect the transfer of Martin Rutahakana.
>
> 3. That the applicant Company did not follow this internal procedure which was laid down by the company itself.
>
> 4. Therefore the transfer of the employee was not properly made and punishment imposed by the applicant was based on wrong assumption that the transfer was properly effected.

The decision of the Minister intended to be assailed runs as under,

> 2. Baada ya kufikiria rufani iliyotoletwa kwangu kuhusu uamuzi wa baraza la usuluhishi D' Salaam katika shauri la mfanyakazi aliyetajwa hapo juu nimeamua kama ifuatavyo KWA MUJIBU WA KIFUNGU CHA 26(2) CHA SHERIA YA USALAMA KAZINI 1964 NAUTHIBITISHA UAMUZI WA BARAZA LA USULUHISHI KUWA MFANYAKAZI ARUDISHWE KAZINI KWA SABABU UONGOZI WA CRDB ULIKIUKA UTARATIBU ULIOJIWEKEA WENYEWE KWA KUMHAMISHA MFANYAKAZI AMBAYE NI KIONGOZI WA TAWI LA CHAMA CHA WAFANYAKAZI BILA KUPATA IDHINI YA OFISI YA CHAMA CHA WAFANYAKAZI WILAYA.

From the records availed to this court and whose correctness was conceded to by parties; it is undisputed that the applicant's staff regulations (then) prescribed that an employee of the applicant, holding the position of OTTU chairman or Secretary, could not be transferred without, first, the approval of applicants "Appointing Authority", and secondly, without clearance with the nearest District OTTU Organ. Martin Rutahakana was the OTTU Branch Chairman at the applicant's head office. He was transferred from Dar es Salaam to Tabora. No clearance was sought and secured from the District OTTU organ. It is clear therefore that the transfer was not proper and this is the gist of the boards' and respondents' decision. That said however, after due analysis I have found that both the board and Minister (respondent) dealt and concluded on only the issue of whether the transfer of Rutahakana was properly made, But, there was yet another issue of whether Rutahakana was lawfully entitled to refuse the transfer; and whether this was an act of insubordination which could lawfully earn him a dismissal.

Here, we should be careful. We should carefully put a dermacation between what the applicant could do in order to have its act categorized as a proper transfer of Rutahakana, and, Rutahakana's acts which could be termed insubordination. Treading on respondent's submissions and the decision quoted above one is left with no doubt that both the board and the Minister fully dealt with issue one but did not deliberate on the second issue save concluding that the dismissal was unlawful. Deliberating on this issue also was very necessary because clause 2.2.473 of the staff regulations on which the respondent seems to peg his decision deals only with transfers and does not deal with insubordination. It does not say that any employee who is transferred without the two conditions prescribed in the said clause being met is entitled to refuse the transfer.

It is clear therefore that both the board and the Minister erred in not deliberating on one of the issues before them, and arriving at a conclusion by relying on an irrelevant clause. Here I should not be misunderstood – I am not saying that they should not have arrived

at the decision they did but what I am saying is that in arriving at that conclusion they should have properly deliberated on the issue before them but they did not.

The above apart, the applicant submitted unchallengedly that the Chairperson of the Conciliation Board was the very Deputy Labour Officer who deliberated on the matter before it was sent to the board and that she was the one encouraging Rutahakana not to go on transfer and that therefore she was biased. The learned State Attorney did not submit on this.

The rule against bias cannot go with this kind of situation. Having been a labour officer who deliberated on the matter before it went to the board, and more specifically, having been the one encouraging Rutahakana not go to on transfer (we should take it to be true for it was not challenged) sitting as a chairperson of a Board which has to deliberate that very issue on appeal cannot fail to attract suspicion if not direct presumption of bias. When considering the existence of such breach the court has to look for real likelihood of bias. As was persuasively observed in *R v. Gough* (1) at page 670:

> Having ascertained the relevant circumstances, the court should ask itself whether, having regard to those circumstances, there was a real danger of bias on the part of the relevant member of the tribunal in question, in the sense that he might unfairly regard (or have unfairly regarded) with favour, or disfavour, the case of a party to the issue under consideration by him.

In the circumstances of this case there is no way Mrs Mpasisingo could escape from bias – in any case, justice should not only be done but it must be shown to be done. Normal mind cannot believe that she acted without bias even if she did.

Mr Songoro for the respondent submitted that the court cannot inquire how the Minister arrived at a conclusion in making the decision but that it can consider whether or not the procedure in the statute has been followed or whether the decision is valid, and cited (CA) *Dr. Kallage v. Esso Tanzania Ltd*, (2) and *Mahona v. University of*

Dar es Salaam (3), and urged this court to conclude that the decision is not tainted in anyway. While conceding to the principles of law stated. I think, I have sufficiently demonstrated, contrary to what the learned State Attorney would wish us to believe, that the board breached the rule against bias, and that both the board and the Minister failed to deliberate on the relevant issue before them. These defects cannot allow the decision to stand.

The applicant urged this court to quash the respondent's decision and to order him to hear and determine the reference before him *de novo*. In the circumstances of this case, as I have shown, the defects commenced at the Conciliation Board level so that's where rectification should start.

In conclusion therefore the decisions, both of the Minister/respondent and of the Conciliation Board, are quashed and set aside. Hearing *de novo* to be made before a properly Constituted Board.

SADIK ABDALLAH ALAWI *v.* ZULEKHA SULEMAN ALAWI AND NATIONAL BANK OF COMMERCE

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM

(Makame, Kisanga and Samatta, JJ.A.)

CIVIL REFERENCE No. 29 OF 1997

(From the Ruling of a single judge of the Court of Appeal of Tanzania at Dar es Salaam, Ramadhani, J.A., dated 18 December 1997, in Civil Application No. 56 of 1997)

Court of Appeal Rules – Appeals – Decisions and decrees of the High Court resulting from proceedings under the Probate and Administration Ordinance – Application for stay of execution – Whether Leave to Appeal is a pre-requisite.

Court of Appeal Rules – References – Procedure for filing – Whether a written application must be supported by affidavit.

Probate and Administration Ordinance Chapter 352 – Probate and Administration Proceedings – Where section 53(b) applied – Whether nature of proceedings changes into suit.

The appellant intended to appeal from the decision and decree of the High Court in a Probate and Administration Cause. Before Leave to Appeal was granted, he filed an application for stay of execution of the decree. A single judge of the Court of Appeal sustained a preliminary objection raised by the respondent that the application was incompetent as it was filed before Leave to Appeal was granted. Accordingly, the application for stay of execution was dismissed. On reference, the Court of Appeal considered the matter, including the question whether an application for a reference may be made by simply writing a letter to the Registrar.

Held: (i) A decision or decree of the High Court resulting from Probate and Administration proceedings is appealable only with leave because it is not a decision or decree made in a suit under the Civil Procedure Code;

(ii) Once there is a valid Notice of Appeal, an intending appellant can lodge an application for stay of execution even before seeking Leave to Appeal;

(iii) When an application for a reference is by writing, a notification to the Registrar was alone sufficient and it was not necessary to file an affidavit.

Reference allowed

Cases referred to:

(1) *Tanganyika Motors Ltd v. Transcontinental Forwarders Ltd.*, Civil case Number 44 of 1999 (unreported)

(2) *Willow Investment v. Mrs Mbombo Ntumba and Two others*, [1997] T.L.R. 213

(3) *The Bank of Tanzania v. Minister of Labour and Eight others*, Civil Applications Numbers 11 and 12 (consolidated) of 1997 (unreported)

Statutory provisions referred to:

(i) Probate and Administration Ordidnance Chapter 352

(ii) Court of Apeeal rules, rules 45(1), 46(1), 57(1) and 9(2)(b), section 22

(iii) Probate and Administration Ordinance Chapter 445, sections 52 and 56

Mr. Mwengela, for the Applicant

Mr. Masatu, for the Respondent

RULING

(Dated 09 March 1999)

KISANGA, J.A.: This reference arises from the decision of a single judge of this court dismissing an application for a stay of execution pending appeal to this court. Mr Magafu, learned advocate, had filed a preliminary objection to the reference, and after hearing him for the respondent and Mr Mwengela, learned counsel for the applicant, we overruled the objection and reserved our reasons therefor to be given in the final ruling. We now give our reasons.

Mr Magafu alleged that the application is incompetent because it is supported by a defective affidavit. The application for reference although citing rule 57(1) of the Court of Appeal Rules, was in fact brought by way of a Notice of Motion, and the operative part of the affidavit in support thereof states:

1. That the Honourable Court misdirected itself in law and on the facts when it failed to grant an order for stay of execution.

2. That there was good and sufficient cause to grant the application.

Mr Magafu said that the applicant's Notice of Motion is necessarily brought under rule 45(1) of the Court of Appeal Rules which provides for formal applications. As such, counsel went on, the application was subject to rule 46(1) of the rules which requires such application to be supported by affidavit or affidavits consisting of statement of

facts. In the instant case, however, counsel further contended, the affidavit does not contain a statement of facts but mere propositions or submissions. He concedes that rule 57(1) which governs references to this court and which was rightly cited by the applicant as being the basis for his application, does not prescribe any procedure for filing such references, but contends that once the applicant had decided to move the court by way of a Notice of Motion then he must adhere strictly to the requirements of that procedure, which he did not. Rule 57(1), which governs reference to this court, says:

> 57(1) Where any person is dissatisfied with the decision of a single judge exercising the powers conferred by section 68G of the Constitution he may apply informally to the Judge at the time when the decision is given or by writing, to the Registrar within seven days after the decision of the Judge:
>
> (a) ...
>
> (b) in any civil matter, to have any order, direction or decision of a single judge varied, discharged or reversed by the court.

One thing is clear. When the application is made informally, the applicant simply applies orally to the judge, at the time of giving his decision, to have that decision reviewed or reconsidered by the court. However, where the application is in writing to the Registrar, no particular form is prescribed for the purpose under the rules and, to our knowledge, the court has not formulated any. The practice so far has been that many of the applications under this provision have taken the form of a letter to the Registrar.

The applicant in the instant case appears to have preceded partly under rule 57(1) and partly under rules 45(1) and 46(1) of the rules. He not only cited rule 57(1), but he also got the Registrar to notify the respondent that he was moving the court, by way of a reference, to vary or reverse the decision of the single judge. In other words the Registrar was clearly made aware of the steps which the applicant had set out to take in the matter. In those circumstances one may say that in the absence of any statutory or judge – made rule as to

the procedure for filing a reference, and having regard to the current practice on the matter, the applicant in fact did more than was required to him. The written notification to the Registrar was alone sufficient and it was not necessary to file the affidavit. That is to say the court can ignore the affidavit and proceed to consider the reference on the sole basis of the written notification to the Registrar and that is what we did. It is for these reasons then that we overruled the preliminary objection with an order that costs abide the results of the main application.

As intimated earlier, this reference arises from the decision of a single judge of this court refusing to grant a stay of execution of a decree/order of the High Court in a Probate and Administration matter, on the ground that no Leave to Appeal against such decision of the High Court had been obtained or sought yet. At the hearing before us the question was raised whether or not this decision of the High Court in a Probate and Administration matter was appealable with or without leave. The same question had been raised before the single judge who, citing the decision of this court in *Tanganyika Motors Ltd. v. Transcontinental Forwarders Ltd.* (1), held that the High Court decision in that instant case was appealable only with leave. In that case the court held that for a decree to be appealable as of right, it must be one which was made in a suit under the Civil Procedure Code, 1966 (hereinafter to be referred to simply as Civil Procedure Code) in the exercise of the original jurisdiction of the High Court.

Arguing the matter before us, Mr Mwengela for the applicant, strenuously contended that having regard to sections 52 and 56 of the Probate and Administration Ordinance Chapter 445 (hereinafter referred to as the ordinance), the said decision of the High Court was one which was appealable without leave. Section 56 of the ordinance in so far as is relevant to the facts of this case simply provides that the application for letters of administration shall be made by petition. Then section 52 provides that:

> 52. Except as hereinafter provided, and subject to any Probate rules made in that behalf:
>
> (a) the proceedings of the court relating to the grant of probate and letters of administration shall be regulated, so far the circumstances of the case admit, by the (Indian) Code of Civil Procedure 1908, or any enactment replacing the same; and
>
> (b) in any case in which there is contention, the proceedings shall take, as nearly as may be the form of a suit in which the petitioner for the grant shall be plaintiff and any person who appears to oppose the proceedings shall be defendant.

Our understanding of paragraph (a) is that basically Probate and Administration proceedings are regulated by the provisions of the ordinance and the rules made there under, but that the provisions of the Civil Procedure Code may be resorted to in certain circumstances, e.g. where it becomes necessary for the court to order discovery or to fix a date for the doing of anything by a party and there is no corresponding provision in the ordinance or the rules regulating the same. In our opinion this paragraph cannot, by any stretch of imagination, be construed to mean that Probate and Administration proceedings are a suit. For one thing, where the provisions of the Civil Procedure Code have not been resorted to, the proceedings remain wholly regulated by the provisions of the ordinance and the rules. In which case on the authority of *Tanganyika Motors Ltd.* case cited above, the resulting decision or decree is obviously not one which was made under the Civil Procedure Code. The same is true even where the provisions of the Civil Procedure Code have been resorted to, because in that case the Civil Procedure Code is resorted to or prayed in aid merely to supplement a procedure which is basically regulated by the provisions of the ordinance and the rules. As such the resulting decision or decree cannot, in any meaningful sense, be said to be made under the Civil Procedure Code.

Likewise we construe paragraph (b) of section 52 to mean that where a petition has been opposed, then the proceedings, which are basically regulated by the provisions of the ordinance and the rules, shall, as nearly as can be, take the form of a suit, in which case the petitioner becomes the plaintiff and anyone appearing to oppose

the petition becomes defendant. The point to stress here is that the nature of the proceedings does not change. The proceedings should as nearly as ca be, take the form of a suit while retaining their essential character of proceedings brought under and regulated by the Ordinance and the rules thereto. Once again, as was said earlier, the decision or decree resulting from such proceedings is not one that was made under the Civil Procedure Code.

In yet another attempt to press his view point, Mr Mwengela referred us to section 22 of the Civil Procedure Code which provides that:

> 22. Every suit shall be instituted by the presentation of a plaint or in such other manner as may be prescribed.

Learned counsel took the view that a petition brought under section 56 of the ordinance amounts to a "suit instituted... in such other manner as may be prescribed", within the meaning of section 22 of the Civil Procedure Code. With due respect to the learned counsel, however, we cannot agree. We think that section 22 of the Civil Procedure Code applies only when the law in question provides for the institution of a suit, in the first place, and then proceeds to stipulate for the manner in which such suit may be instituted. Mr Mwengela could not refer us to any provision of the ordinance which provides or which can be construed to provide for the institution of a suit, and we have not been able to discover any. It is therefore futile to rely on the said section 22 and contend that a suit was brought in a manner prescribed by the Ordinance i.e. by a petition under section 56 thereof, when the Ordinance itself has not provided for the institution of a suit in the first place. Like the learned single judge, therefore, we are satisfied that the decision or decree of the High Court resulting from Probate and Administration proceedings is appealable only with leave because it was not a decision or decree made in a suit under the Civil Procedure Code.

Having held that the decision in question was appealable with leave, the learned single judge proceeded to inquire into whether

such leave had been obtained or sought and having answered that question in the negative he accordingly dismissed the application for a stay of execution, without considering the merits thereof, basing himself on the two decisions in *Willow Investment v. Mrs. Mbondo Ntumba and two others* (2), and *The Bank of Tanzania v. Minister of Labour and Eight others* (3).

In arguing this reference Mr Mwengela's main pre-occupation was to demonstrate that the decision or decree of the High Court which it was intended to appeal against was appealable, without leave so that, in his view, the question of obtaining leave or seeking Leave to Appeal as a pre-requisite for his application for a stay of execution pending appeal did not arise. However, when the court expressed anxiety over the view held in the two cases of *Willow Investment and The Bank of Tanz*ania cited above, learned counsel argued, as an alternative, that after all Leave to Appeal was not a pre-requisite for an application for a stay of execution, and for this view he relied on rule 9(2)(b) of the Court of Appeal Rules. Accordingly, we shall now proceed to consider the application on the basis of this submission alone after rejecting Mr Mwengela's other submission that the decision of the High Court being appealed against was appealable without leave.

rule 9(2)(b) of the Court of Appeal Rules which Mr Mwengela relied on for his view provides that:

> 9(1) ...
>
> (2) Subject to the provisions of sub-rule (a), the institution of an appeal shall not operate to suspend any sentence or to stay execution, but the court may:
>
> (a) ...
>
> (b) in any civil proceedings, where a Notice of Appeal has been lodged in accordance with rule 76, order a stay of execution, on such terms as the court may think just.

Sub-rule (1) has no application here because it concerns the sentence of death and corporal punishment. Mr Mwengela submitted that according

to the sub-rule reproduced above the only pre-requisite for an application for a stay of execution is the lodging of a Notice of Appeal and therefore counsel concluded, the learned single judge wrongly dismissed the application for failure by the applicant to obtain prior Leave to Appeal. In response to this, Mr Magafu maintained that Leave to Appeal was a pre-requisite for an application for a stay of execution, and that since no such leave had been obtained or sought in the instant case, the application was rightly dismissed.

In *Willow Investment* case cited above, the same question was raised before Nyalali, C.J., sitting as a single judge of this court and, ruling on the matter, he said *inter alia*:

> Obviously the power of the court to grant a stay under rule 9 is exercisable only in proceedings which are properly before the court. It is apparent from the record that this application was filed in this court on 21 February 1997, that is, a day after the time for seeking Leave to Appeal, expired. As already mentioned, no move has been made up to now to seek such leave. In the light of this state of affairs, I am fully satisfied that as matters stand at present, this application is incompetent and cannot be heard. That is why I ordered it to be struck off.

In short the application for a stay of execution was struck out for being incompetent because the applicant had not obtained or sought Leave to Appeal, and the prescribed time for doing so had already expired. In *The Bank of Tanzania,* the other case cited above also involving an application for a stay of execution, the applicant's Notice of Appeal was lodged only after time for doing so had been extended, and his application for Leave to Appeal was pending in the High Court. In refusing the application for a stay of execution Ramadhani, J.A. also exercising the powers of a single judge of the court said:

> However, in my humble opinion, parties who want to benefit from these provisions which seek to delay the realization of the fruits of judgment won by their adversaries, should be vigilant and take timely steps to do so. As I have already pointed out, BOT was late to file Notice of Appeal and had time enlarged to do so. This has also contributed to his delay to ask for Leave to Appeal. So, the applicant should not be allowed to inconvenience the respondents unduly. I, therefore, find that as there is no leave then the application is not properly before me. However, I must quickly add that I am not setting a general rule but in this case the applicant was dilatory. Otherwise I am aware that rule 76(4) allow Leave to Appeal to be sought after a Notice of Appeal has been filed. So, there can be instance where there is an application for stay while there is no Leave to Appeal ... so I dismiss the application with costs.

Thus a stay of execution was dismissed because the Notice of Appeal, though valid, had beenlodged only after extending the time to do so, and also because no Leave to Appeal had been obtained even though the application for such leave was then pending in the High Court.

It seems desirable to point out that the learned single judge having found that the application was not properly before him, then he should have struck it out rather than dismiss it. Because such application, which was not properly before him, was necessarily incompetent, and one which did not exist in law and consequently one which rendered the single judge without jurisdiction to hear it. The proper order to make in those circumstances, therefore, was one of striking it out rather than one of dismissed which implies or connotes prior hearing. This would be in conformity with the other case of *Willow Investment* cited earlier in which a similar application was struck out for being not properly before the court, and hence incompetent.

But the basic question that falls for consideration is: What are the grounds for saying that Leave to Appeal is a pre-requisite for granting a stay of execution pending appeal? rule 9(2)(b) which was reproduced earlier and which sanction a stay of execution does not make such leave a pre-requisite, and the question is whether there is justification for reading that requirement into the provision. Can the framers of the rule have intended that Leave to Appeal should be a pre-requisite for granting a stay of execution? We think not. Under the rule, only the Notice of Appeal is made a pre-requisite for granting a stay of execution. We think that if it was intended that Leave to Appeal also be made a pre-requisite, then it was only too easy for

the framers of the rule to say so but they did not. Nor is there room for saying that the omission by the framers to say so was through inadvertence. For, under rule 76(4) Leave to Appeal is not a pre-requisite for lodging a Notice of Appeal. An intending appellant may lodge his notice of intention to appeal even before seeking Leave to Appeal. That is to say Leave to Appeal is not used to block or restrict the right of an intending appellant to lodge a Notice of Appeal by requiring him to seek Leave to Appeal before lodging the Notice of Appeal. Then the question is: If Leave to Appeal is not used to block or restrict the appellant's right to lodge a Notice of Appeal why should such Leave to Appeal be used to block or restrict his right of a stay of execution which is equally of importance in the whole appeal process?

But what is more is this: It seems that if the view prevails that Leave to Appeal is a pre-requisite for granting a stay of execution pending appeal, this may in some cases lead to unfortunate and disastrous consequences which could never have been intended. Take for instance a situation where the High Court gave judgment against a party in a case involving a ship and the said party has lodged a Notice of Appeal. Lateral interpretation of rule 9(2)(b) means that immediately after the judgment is given and the Notice of Appeal has been lodged, the party can lodge his application for a stay of execution, thus affording the court the earliest opportunity to consider and decide on the matter. But if the other interpretation is adopted that prior Leave to Appeal is necessary, then considering the delay involved before the matter can be heard, this allows an unscrupulous respondent to sail and take away the ship, thereby preventing the court from finally pronouncing on the rights of the parties in the suit.

And lastly, the view that an intending appellant must seek Leave to Appeal before applying for a stay of execution would involve inconvenience and extra cost. For, where an intending appellant has had his application for a stay of execution refused for failure to obtain prior Leave to Appeal, then provided that there is a valid Notice of Appeal, he can always apply for such leave if he is within time, or

apply for such leave out of time if the prescribed time has elapsed. If Leave to Appeal or to appeal out of time is refused, then that is the end of the matter and there is no harm done. But in the event it is granted, then the intending appellant is forced to knock on the door of the court for the second time to apply for a stay of execution. Such repetition of the application is not only inconvenient but also involves double expense. This could have been avoided had the application for a stay of execution been determined when it was brought to court for the first time.

It is for these reasons that we increasingly think that there can be no room for reading into rule 9(2)(b) the requirement to seek Leave to Appeal before applying for a stay of execution. In the light of the reasons we have given, the omission by the framers of the rule to make application for Leave to Appeal a pre-requisite for granting a stay of execution, would appear to be deliberate rather than through inadvertence. The view we take is that once there is a valid Notice of Appeal, even if it was given after extending the time to do so, the intending appellant can lodge his application for a stay of execution even before seeking Leave to Appeal. Even where the period prescribed for seeking Leave to Appeal has expired, the intending appellant can still exercise that right, by applying for extension of time to seek Leave to Appeal and for Leave to Appeal, provided that the respondent has not applied to have the Notice of Appeal struck out for failure by the intending appellant to obtain leave or seek Leave to Appeal within the prescribed period.

In the result, and for the reasons we have endeaboured to give, we allow the reference. As we stated earlier, the learned single judge in dismissing the applicant's application for a stay of execution did not consider that application on the merits. As such it is not open to us to go into the merits of the application. That has to be done by a single judge. Accordingly we direct that the matter be placed before a single judge of the court for the hearing of the application on the merits. Costs of this reference shall be in the cause.

TWALIB OMAR AND ALI HASSAN *v.* SMZ

HIGH COURT OF ZANZIBAR
AT VUGA
(Lawan Wada, J)

CRIMINAL APPEAL No. 7 OF 1998

(From the judgment and original decree of Regional Magistrate Court in Criminal Case No. 255 of 1997)

Criminal Practice and Procedure – Substituted charge – Charge read over the accused then substituted and re-read – Whether conviction on substituted charge was proper.

Criminal Law – Sentencing – Court imposed sentence – Sentence as provided by the Minimum Sentence Decree.

Criminal Law – Minimum Sentence – First offender sentenced under Minimum Sentence Decree – Whether the sentence was severe.

The appellants were charged and convicted for the offence of robbing contrary to section 258 and 258(2) of the Penal Code Decree Chapter 13 of the Laws of Zanzibar. They were sentenced to four years and seven years imprisonment respectively. The record shows that on 11 October 1997 at about 1:00pm the complainants were attacked by the appellants who were masked, at Jozani Forest, and were robbed off their property and money. The complainants reported the incident to the *Shekha* and later on to the police. The police and the villagers then surrounded the forest and the appellants were arrested, charged, tried and finally convicted and sentenced accordingly. Based on the conviction and sentence the accused appealed to this court on the ground that the trial Regional Magistrate erred in continuing with the proceeding after substituting the charge and that the trial contrary to section 175(1)(c). The Regional Magistrate erred in law in convicting the appellant without any proof.

Held: (i) The issue that the second appellant pleaded on 23 October 1997 while the first appellant on 30 November 1997 that alone is not an irregularity that can render the proceeding of the trial court a nullity.

(ii) The punishment of the two appellants to four years and seven years imprisonment respectively is too severe, considering the fact that they are all first offenders and young persons.

Appeal against conviction dismissed but sentences reduced

Case referred to:

(1) *Thuway Akonaay v. Republic* (1987) T.L.R 92

(2) *Yassin Maulid Kipantu and Two others v. Republic* [1987] T.L.R 183

(3) *Tabu Fikwa v. Republic* [1988] T.L.R 48

Statutory provisions referred to:

(i) Criminal Procedure Decree Chapter 14, section 175(1)

(ii) Penal Code Decree Chapter 13 of the Laws of Zanzibar, sections 258 and 258(2)

JUDGMENT

(Dated 9 March 1999)

LAWAN WADA, J: The appellants namely Talib Omari Hamid and Ali Hassan Mohammed were charged and convicted for the offence of Robbery Contrary to section 258 and 258(2), of the Penal Code Decree Chapter 13 Laws of Zanzibar and they were sentenced to four years and seven years imprisonment respectively. The appellants were dissatisfied with the judgment and sentence of the learned Regional Magistrate and so they appeal to this court.

From the record of the trial court the brief fact of the case was that on 11 October 1997 at about 1:00pm complainants were attacked by some group of six people who were masked at Jazani Forest and they robbed PW2 and PW.3 of their properties and money. Based on that PW5 ran and reported the incident to his superior i.e. PW4 and they reported to the police and PW7 who is the Sheha of the area who then immediately summoned his people for an immediate search in the forest and during the search they saw six people hiding

in the forest and when they saw the villagers they took to their heels but they were chased by the villagers. PW9 and PW10 managed to apprehend the first appellant while PW6, PW9 and PW10 all identified the second appellant as among those that escaped.

In their defence the first appellant said he was in the forest because he had an appointment with his colleague a charcoal business man but when cross-examined he said he did not even know the name of his colleague. The second appellant defence was that he had misunderstanding with the villagers that was why they all testified against him. Based on this facts that the trial court convicted the two appellants and they appeal to this court on four grounds of appeal.

The first ground of appeal that the learned Regional Magistrate erred in continuing with the proceeding after substituting the charge. On this the appellant's counsel argued that is contrary to the Provision of section 175(1) of Criminal Procedure Decree Chapter 14 Laws of Zanzibar and also cited the case of *Thuway Akonaay v. Republic* (1).

In her reply the learned state counsel referred us to pages 7 and 8 of the record of trial court where the plea of the two appellants were recorded so she submitted that section 175(1) Criminal Procedure Decree Chapter 14 was fully complied with.

The appellants' counsel also argued that the charge was read to the second appellant on 23 October 1997 while on 30 November 1997 it was read to the first appellant and they submitted that a joint charge must be read to the accused persons at the sametime and failure to do that can render the trial a nullity and cited the case of *Thluway Akonnay v. Republic (1).*

Section 175(1):

> The substance of the charge or complaint shall be stated to the accused person by the court and he shall be asked whether he admits or denies the truth of the charge.

On this point I agree with the submission of the learned State Attorney that section 175(1) Civil Procedure Decree was fully complied with

and this can be seen at pages 7 and 8 of typed record of the trial court.

The case of *Thuway Akonnay v. Republic* cited above must be distinguished from the case before us. In *Thuway* case the appellant was not called at all to plead to the new charge, but in this case the first appellant was called to plea and plea to the new charge and this was done on 30 November 1997 as per page 8 of the typed record of the trial court. The issue that the second appellant pleaded on 23 October 1997 while the rirst appellant on 30 November 1997 that alone is not an irregularity that can render the proceeding of the trial court a nullity, because to my view it did not occasion any miscarriage of justice.

The second, third and fourth grounds of this appeal can be treated jointly, that the learned Regional Magistrate erred in law in convicting the appellant without any proof, on hearsay evidence that the judgement has no legal support. Going by the record of the trial court eleven witnesses testified for the prosecution and the defence also gave their evidence. There was no doubt that an offence of Robbery was committed against PW2 and PW3 at Jozani Forest and they were robbed of their properties. It was a result of the immediate search ordered by PW7 to his people that some of the robbed properties were recovered i.e. Exhibit P1, Exhibit P2, Exhibit P3 and Exhibit P4 and they were recovered at the place where the six people were hiding in the forest. When they were chased by the villagers, the first appellant was apprehended by PW9 and PW10. Similarly PW6, PW9 and PW10 all in their evidence at the trial court testified that the second appellant was among those chased and he escaped with other four suspect and they all knew him even before this incident as they all reside in Pete. They all testified that the second appellant was holding a camera when he escaped. It was on their identification which the trial court believed to be true since it was not weakened by the defence evidence. All in all I find PW6, PW9 and PW10 all in their evidence at the trial court testified that the second appellant was among those chased and he escaped with other four suspects

and they all knew him even before this incident as they all reside in Pete. They all testified that the second appellant was holding a camera when he escaped. It was on their identification which the trial court believed to be true since it was not weekend by the defence evidence. The only reason given by the second appellant was that he was disliked by his co-villagers that was why they gave evidence against him and this alone does not raise any doubt to the prosecution case. The learned RM said. "I have observed the demeanour of the said witnesses and found nothing to doubt their testimony's credibility. After all the second accused did not raise the question of his misunderstanding with the villagers (PW6, PW9 and PW10) in his cross examination only to raise in his defence and when cross examined by the prosecution. All in all I find PW.6, PW.9 and PW.10 identification evidence absolutely watertight to the stand explained by Chipeta J. in *Yassini Maulid Kipantu and Two others v. Republic* (2) for me to find that the second accused Ali Hassan Muhammed committed the offence in question against the complaints PW2 and PW3".

Therefore on this there was no dispute that the second appellant is well known to the three witnesses (PW6, PW9 and PW10) as they are all from the same village, and it is on record of the court that this incident occurred around 1:30pm the issue of mistake in their identification is not there. I entirely agree with the learned RM that the evidence established by the prosecution witnesses left no doubt as to the correct identity of the second appellant. It is a trial practice in our legal system that any evidence which is not contracted under cross examination and also not rebutted in examination-in-chief remain unchallenged and so must be accepted by the trial court.

On the sentence passed, I agree with the view of the learned R.M that the offence committed by the appellant is a serious offence and punishment is required in order to serve as a deterrent to others but this should not be the sole or predominant factor in the assessment of sentence. In my view the punishment of the two appellants to 4 years and 7 years respectively is too severe considering the fact that they are all first offenders and young persons of not up to the

age of 30 years. Regard must be given on reformative aspect of punishment as the deterrent effect of a sentence does not solely depend on the length of imprisonment. On this point I concur with the views expressed by Samatta J. in the case of *Tabu Fikwa v. Republic* (3) at page 52:

> In determining or assessing sentence the court is perfectly entitled to take into account the necessity of deterring other persons from perpetrating similar offence, but that factor is not the sole or predominant basis for assessment of sentence. Generally speaking imprisonment is only justified if it is necessary that the criminal be removed from society. Save where the nature of the offence and the circumstances of its commission call for a custodial sentence or where the court has no discretion in the matter because the offence attracts a mandatory sentence of imprisonment under the Minimum Sentence Act 1972 or under any other legislation, the court should seriously consider alternative punishment before sending the offender to prison, *especially if he is a first offender. The deterrent effect of a sentence of imprisonment is not always proportionate to its length.* [emphasis supplied]

The prosecutors both at the trial court and here at appeal asked for maximum sentence against the appellant and I do not consider this to be a desirable course to take because issue of sentence should always be left to the discretion of the court, and in this case I hope the learned RM was not influenced by the demand of the prosecution in arriving at his decision to impose a term of four years for the first appellant and seven years for the second appellant. After carefully examining the record of the trial court I think that in the circumstances of the case the sentence of 7 years imposed on the second appellant shold not exceed that of the First appellant and therefore the sentence imposed on the appellant is to my view too excessive so it is hereby reduced.

A sentence of two years each is to my opinion can meet the justice of the case and is hereby ordered accordingly.

RICHARD MEBOLOKINI *v.* REPUBLIC

HIGH COURT OF TANZANIA
AT ARUSHA
(Rutakangwa, J)

CRIMINAL APPEAL No. 58 OF 1998

(From the decision of the District Court of Monduli at Monduli in Criminal Case No. 23 of 1998)

Criminal Practice and Procedure – Recording of evidence – Trial Magistrate failed to sign the evidence of every witness contrary to section 210(1) of the Criminal Procedure Act 1985 – Whether the failure is curable – Section 388 of the Criminal Procedure Act 1985.

Criminal Practice and Procedure – Trial Magistrate failed to inform the appellant of his rights to call witnesses in his defence and also to request the court to assist him to compel their attendance by a court order – Section 231(4) of the Criminal Procedure Act 1985 – Whether the failure was fatal.

The appellant was convicted of the offence of causing grievous harm contrary to section 225 of the Penal Code by the District Court of Monduli in Criminal Case Number 23 of 1998. He was sentenced to imprisonment for a term of 12 months. He was aggrieved by the conviction and sentence, hence, the appeal to this court. In the Memorandum of Appeal the appellant's Counsel raised, among others, grounds of irregularity in that the trial magistrate failed to comply with the mandatory provisions of, *inter alia,* sections 210(1) and 231(4) of the Criminal Procedure Act 1985 in that the trial magistrate failed to sign the evidence of every witness who testified before him and that the trial magistrate never informed the aAppellant of his right not only to call witnesses in his defence but also to secure the presence of his witnesses by court order.

Held: (i) The trial court fatally erred in law in not informing the appellant of his right to call his witnesses and how to secure their attendance in court; this was in contravention of section 231 of the Criminal Procedure Act and also a violation of the appellant's constitutional right under article 13 of our Constitution.

(ii) ***Obiter:*** It is highly dangerous to act on unsigned evidence (at least on appeal) because there is no guarantee that it was the very evidence which was recorded by the trial magistrate in the presence of the parties concerned.

Appeal allowed.

Cases referred to:

(1) *Joint Ant-Facist Committee v. MC Grathi* 341 US 123, 179 (1959)

(2) *S. v. Beatan* (1989) 2 ZLR 20 (SC)

(3) *Tuhey v. Ohio* 273 US 510 (1927)

(4) *Fatehal Manji v. R* [1966] EA 343

Statutory provisions referred to:

(i) Constitution of the United Republic of Tanzania 1977 Articles 13(1) and 6(a)

(ii) Criminal Procedure Act 1985, sections 210(1), 210(1)(a), 312(1), 210(3), 213, 388, 196, 198, 210, 212 and 231(4)

(iii) Penal Code, section 255

Mr. D'Souza, for the Appellant

Mrs. Ntilatwa, for the Respondent

JUDGMENT

(Delivered 10 March 1999)

RUTAKANGWA, J.: The appellant, Richard Mebolokini, was the accused in Criminal Case Number 23 of 1998 of the Monduli District Court. He was being arraigned for the offence of causing grievous harm, contrary to section 225 of the Penal Code. It was alleged in the particulars of the charge that:

Richard s/o Mebolokini charged on the 10 March 1998 at about 20:15 hours at TNA area within Monduli District did unlawfully cause grievous harm to one Edward s/o Lenga, to wit, he hit him by using

stone knife on his frontal head, second finger on the left arm, right thumb, and other parts of his body and caused him to suffer injuries.

He did deny the charge. After a full trial, he was found guilty as charged, convicted and sentenced to a prison term of 12 months. He was aggrieved by the conviction and sentence and is appealing to this court against both. The appellant employed Mr D'Souza, learned advocate, to prosecute the appeal.

Mr D'Souza has filed ten (10) grounds of complaint against conviction and one ground against the sentence imposed. Some further grounds of appeal are late to the failure of the learned trial Resident Magistrate to comply with the mandatory provisions of sections 210(3) and 23 of the Criminal Procedure Act 1985 (hereinafter to be referred to as the Act). In determining this appeal I will start with the complaints concerning procedural irregularities which if upheld may dispose of the appeal without having recourse to determining whether or not the conviction wash proper basing on the evidence.

The alleged procedural irregularities are framed as follows:

(a) That the trial court erred in law in not complying with section 210(3) of the Criminal Procedure Act 1985.

(b) That the trial court erred in law in not complying with the mandatory provisions of section 231 of the Criminal Procedure Act 1985.

(c) That the trial court erred in proceedings to judgement *suo moto* before the defence had closed its case.

While I will deal with the first complaint separately, I propose to combine the other two complaints and deal with them together.

Section 210(3) of the Act provides as follows:

> The magistrate shall inform each witness that he is entitled to have his evidence read over to him. If a witness asks that his evidence be read over to him the magistrate shall record any comment which the witness may make concerning his evidence.

It is clear, then, that the law casts upon each trial magistrate a positive (mandatory) duty to inform each witness, after he/she has testified, of the right to have his/her evidence read over to him/her. The law however is silent on the legal consequences to the trial if the magistrate either in advertently or deliberately fails to comply with this mandatory requirement. Neither Mr D'Souza nor Mrs. Ntilatwa learned State Attorney who represented the respondent Republic in this appeal, has been of much assistance to me on this. In a terse one sentence (in his written submission) Mr D'Souza has contended that "the clear breach of section 210(3) "is good ground for saying that the trial had serious irregularities that could make the errors a nullity." For her part, Mrs. Ntilatwa in her written submission better contends that "the alleged irregularities have not occasioned any failure of justice and are curable under section 388 of the Criminal Procedure Act."

Of course, there is no clear proof that the trial magistrate did not comply with the provisions of section 210(3) of the Act. No single witness has either by affidavit or otherwise shown this court that he/she was not informed of the right envisaged by section 210(3) of Act. I am aware that the law itself does not spell out how the trial magistrate should signify in the record of proceedings his compliance with this provision of the law. I understand, of course, that more diligent trial magistrates indicate this by these words "section 210(3) of the Criminal Procedure Act complied with." I mean no disrespect to the learned trial Resident Magistrate by the remark "more diligent trial magistrates." I have said so advisedly. This is because as I was perusing the court record to satisfy myself on whether or not this particular complaint is well taken I did discover more serious irregularities. These were total non-compliance by the good trial magistrate with the mandatory provisions of section 210(1)(a) and section 312(1) of the Act. The trial magistrate not only defaulted informing the witnesses of their entitlement to have their evidence read over to them (or recording that he did so), he also never signed the judgment and the evidence of every witness.

Section 210(1) of the Act reads:

> 210(1) in trials, other than trials under section 213, by or before a magistrate, the evidence of the witnesses shall be recorded in the following manner:
>
> (a) the evidence of each witness shall be taken down in writing in the language of the court by the magistrate or in his presence and hearing and under his person direction and superintendence, and shall be signed by him and shall form part of the record, [emphasis supplied].
>
> (b) ... (not relevant).

The signing is not a mere formality which can be dispensed with impunity. It signifies not only that the said evidence was written by the magistrate himself/herself or in his presence, hearing and under his personal impeccable assurance to its authenticity.

Such evidence, in my considered opinion, can form part of the record of proceedings if so recorded and signed. It is therefore highly dangerous to act on unsigned evidence (at least on appeal) because there is no guarantee that it was the very evidence which was recorded by the trial magistrate in the presence of the parties concerned. When the authenticity of the record is in issue, non-compliance with section 210 may prove fatal.

Section 231 of the Act, which is the basis of the second ground of complaint on procedural irregularities specifically provides in subsection (1) that once that court has held that the accused has a case to answer, it shall again explain to him/her the substance of the charge and inform him of his right to give evidence on his own behalf and to call witnesses in his defence. Sub-section (4) provides as follows:

> If the accused person states that he has witnesses to call but that they are to be present in court, and the court is satisfied that the absence of such witnesses is not due to any fault or neglect of the accused person, and there is likelihood that they could if present, give material evidence on behalf of the accused person the court may adjourn the trial and issue process, or take other steps, to compel attendance of such witnesses.

There is no dispute here on the facts that the learned trial Resident Magistrate never bothered to remind the appellant of the substance of each charge he was facing and had to defend himself in relation to it or to any other lesser related offence. There is no dispute to the fact that the Magistrate never informed the appellant of his rights not only to call witnesses in his defence but also to request the court to assist him to compel their attendance if he was not certain of their willingness to attend without a formal court order. Although the first omission can arguably be treated as an innocuous irregularity since he or the same defendant himself the latter irregularity/omission cannot be so held. I find support for this view in articles 13(1) and 6(a) of the Constitution of the United Republic of Tanzania 1977. The same provides as follows:

> 13(1) All persons are equal before the law and are entitled, without any discrimination, to equal opportunity before and protection of the law.
>
> [(2) to (5): not relevant here]
>
> (6) For the purpose of ensuring equality before the law, the State shall make provision:
>
> (a) that every person, shall, when his rights and obligations are being determined be entitled to a fair hearing by the court of law or other body concerned and be guaranteed the rights of appeal or to another legal remedy against the decisions of courts of law and other bodies which decide on his rights or interests founded on statutory provisions."

Inherent in the basic right to a full or fair hearing is the right of an accused person to call his own witnesses, to have a compulsory court process for obtaining witnesses in his favour and affording him reasonable opportunity to call such witnesses. If this be not carried out scrupulously the basic right of equality before the law contained in the above quoted article 13(1) would be perfectly described as illusory. This

is particularly so because every criminal case, as it is constantly said, is a contest between an individual accused and the Government. Any modern government, as is convincingly argued, is very powerful and is chief repository of the enormous power. On this reasoning it is evident that a criminal case is inherently an unequal contest and the disparity between them is of such magnitude that without safeguards injustice is the inevitable off spring for "inequality begets injustice." The prime end of defending procedural safeguards is not to embrace what was once referred to a "puerile sentimentality about the criminal." It is only to lay a proper and impermeable foundation for the discovery of truth so that justice may eventually be done; for it is justice based on truth which is lasting, satisfying, unifying and healing.

In his publication titled "If we are to act as free men" in the Saturday Review Literature of 13 February 1954 at page 9 Mr Justice Douglas (of the US Supreme Court) had this to say on procedural safeguards:

> It is not without significance that most of the provisions of the Bill of Rights are procedural. It is procedure that spells much of the difference between rule by law and rule by whim or caprice. Steadfast adherence to strict procedure is our main assurance that there will be equal justice under the law.

He could not have been more correct. To dispel any fears to the effect that placing much insistence on procedural safeguards only works in the favour of the accused Mr Justice Jacleson left us this legacy.

> ... Let it not be overlooked that due process of law is not for the sole benefit of the accused. It is the best insurance for the Government itself against those blunders which leave lasting stains on a system of justice but which are bound to occur: *Joint Anti-Facist Committee v. McGrath* (1).

From the above two examples (and there are myriads more) it is plain that courts of law will not treat lightly any infringements of procedural safeguards which are meant to promote the full realization

of an accused person's basic right to a fair trial. With this is mind it is fair to return to the facts of this case.

As already pointed out above the appellant when called upon to defend himself was not informed of his right to call defence witnesses and how to secure their attendance as demanded by the Constitution and the Act. After the appellant had testified on 20 July 1998 his counsel, Mr Lundu informed the trial court that the defence intended to call one witness. He named him as one, Mr Toure, who was not in attendance on that day. It appears from the record of the trial court that the trial magistrate never recorded all the essential words that the learned counsel told him in seeking for an adjournment. Whether it was by design or through inadvertence is anybody's guess. This is evident from page 12 of the typed proceedings. It goes as follows:

> **Mr. Lundu:** I expect to call Mr Toure who is not here today, he was mislead (*sic*) for he thought 20 July 1998 is Tuesday
>
> **Court:** I will not be able to allow adjournment merely for the reason given and while talking the advocate Lundu about the importance of calling Mr Toure he said he wanted (*sic*) to prove that he is the one who lifted accused person to Monduli after being left behind by District Commissioner. Therefore this point is so small and therefore let Mr Toure file an affidavit to prove his small point and avoid wastage of time and costs.
>
> Sgd: SH Shaidi - Resident Magistrate 20 July 1998
>
> Order:(1) Affidavit to be filed on or before 22 July 1998 at Resident Magistrate Court Arusha.
>
> (2) Judgment on 1 September 1998 accused bail extended. Sgd. SH Shaidi, RM 20 July1998 [emphasis supplied]

From the above extract it is obvious that the learned trial magistrate was conducting the trial on the basis of expediency and convenience to himself (and the Government) to save time and money. Whether his adopted unorthodox procedure would have inconvenienced the appellant (and his counsel) or put them to extra costs or prejudiced the interests of justice was none of his concern. It is instructive to

remind the trial magistrate here that speed in disposal of cases is not an end in itself, since justice both to the accused and to the public is the prime and overriding consideration in the administration of justice where the rule of law is held supreme, as in our country. That the order to receive the evidence of Mr Toure by way of affidavit contrary to the specific mandatory requirements of sections 196, 198, 210 and 212 of the Act, would have worked injustice to both parties to the case need not be overemphasized here. It is obvious, the order does not provide the appellant with an alternative remedy in case the said Mr Toure's affidavit was not filed by 22 July 1998 (as apparently was the case), for it is not in the court record nor is it referred to, even in passing, in the perfectly written three-page judgment). Secondly, the order did not accord the prosecution its inalienable right of cross-examining the said Mr Toure. It is rightly believed that cross-examination is the only crucible through which the truth can be extracted from a witness. How then could the good trial magistrate have assessed the credibility of Mr Toure as a witness since his evidence was meant to discredit the key three prosecution witnesses (i.e. PW1 Edward Lenga, PW2, Abdallah Kihatu, the Monduli District Commissioner, and PW.3 Hussein Musha)? Or should we safely assume that the learned trial magistrate and already decided to believe these three prosecution witnesses even before the trial was over? That this was the case is evident from his untimely and unjudicial conduct of deriding the yet to be given evidence of Mr Toure. From whatever angle one views the conduct of the trial of the appellant it is crystal clear that he was not fairly treated by being denied, unjustifiably, an opportunity to call a witness in his defence, whose identity was disclosed and the substance of his evidence made known to the trial magistrate.

It is now a universally accepted rule that where an accused claims that his fundamental right to a fair trial has been violated in that he has not been afforded facilities to obtain the attendance of his witnesses, he must make some plausible showing of how their testimony would have been both material and favourable to his defence: See, for example

S v Beatan (2). Has the appellant met this test? My objective answer to the question is in the positive. It has been incontrovertibly shown by him that Mr Toure's evidence would have shown that PW1, PW2, and PW3 abandoned the appellant in the bush after being assaulted and injured (as per appellant's evidence by them) and that PW2's story that they arranged for the appellant to be transported to Monduli township by a "mikopo" vehicle was a fabrication. It is further contended that Mr Toure's evidence would have exposed them as liars and revealed their "underlying bias against the accused." If indeed Mr Toure had testified along these lines and was believed then the credibility of these three prosecution witnesses would have been totally shattered, leaving no cogent evidence incriminating the appellant with any offence. The act of the trial magistrate of dismissing the application of the appellant for the adjournment of the trial to enable him to call his important witness out of hand to me smacks of bias on his part against the appellant. This is reflected by the words he used in dismissing the application which I have underlined in the above quotation.

As was long ago stated by Taft, C.J. in *Tumey v. Ohio* (3), the right to a fair hearing requires the judge or magistrate "to hold the balance nice, clear and even between the State and the accused." A judge or magistrate cannot be said to have held such a balance or acted impartially when he has exhibited prejudicial conduct which injures the accused's case as for example, disparaging a defence witness's evidence even before it is presented to him (as the trial magistrate did in this case). His expected detachment in the conduct of the trial was compromised by his deeds.

In the light of the above I uphold the grievances of the appellant to the effect that the trial court fatally erred in law in not informing him of his right to call his witnesses and how to secure their attendance and denying him the opportunity to call his very important witness, Mr Toure. This was not only in contravention of section 231 of the Act but a flagrant violation of his constitutional right under article 13 of our Constitution. He was greatly prejudiced and a failure of justice was occasioned to him. I accordingly declare the entire trial

a nullity as urged by Mr D'Souza. I accordingly quash and set aside the entire proceedings, the judgment and conviction resulting there from and the sentence of one year imprisonment imposed on the appellant. As the appellant has been out on bail pending the hearing and determination of this appeal, it will not be necessary to order his release from prison.

In situations of this nature, the court finds itself with two options, either to order a retrial or not. There are not hard and fast rules that are to be applied in deciding either way. Section 388(1) of the Act gives this court a wide discretion on the issue. Speaking of the identical section 319(1) of our then Criminal Procedure Code (Chapter 20) the East African Court of Appeal in the case of *Fatehal Manji v. R* (4) said that it gave "the High Court on appeal on unlimited discretion as to ordering a retrial." After referring to its earlier decisions, it concluded that:

> ... in general a retrial will be ordered only when the criminal trial was illegal or defective; it will not be ordered where the conviction is set aside because of insufficiency of evidence or for the purpose of enabling the prosecution to fill up gaps in its evidence at the first trial; even where a conviction is vitiated by a mistake of the trial court for which the prosecution is not to blame, each case must depend on its particular facts and circumstances and an order for retrial should only be made where the interests of justice require it and should not be ordered where it is likely to case an injustice to an accused person ... at page 344.

Is a retrial necessary in the interests of justice in this case? After pending over this question with an open mind, I have found it essential to answer it in the negative. Having carefully gone through the entire evidence on record and the grounds of appeal, I am of a firm view that a retrial will be more beneficial to the prosecution as it will be able to fill up the gaps in its evidence and eliminate the discrepancies highlighted upon by the appellant's counsel in this appeal, which made the prosecution case look shaky. A retrial will therefore, cause an injustice to the appellant.

As already shown the appellant was sentenced to 12 months jail upon his own conviction. By the time he was released on bail he had already served two months of that sentence. If one reads the evidence of PW1 dispassionately, he will come to conclusion that if his evidence, as it is, believed at all the prosecution can only at best prove the offence of assault causing actual bodily harm c/o 241 of the Penal Code which in the circumstances of this case might attract a lighter sentence than a custodial one. A retrial therefore in view of this fact will not be in the interests of justice.

Lastly, I find no guarantee here that if I order a retrial the appellant's key witness, Mr Toure, will be readily available to testify on his behalf. As already shown if the learned trial magistrate had allowed Mr Toure to testify and if the said witness could have been successfully used to impeach the credibility of PW1, PW2 and PW3 the acquittal of the appellant could have been assured. Things might work differently if I order a retrial and then Mr Toure is not available to testify. An obvious injustice will be occasioned to the appellant. The golden opportunity to do real justice in the case (to both sides) was irretrievably wasted by the trial magistrate's haste. Indeed the English people who have long held that "more has to less speed" could not have been more correct.

All in all then a re-trial will not be in the interests of justice and I will not order one. In reaching this conclusion I am also conscious of the fact that (per their evidence) both PW1 and the appellant are leaders in the Monduli District Council government.

The evidence of both sides reveals that the cause of the quarrel which led to the undisputed fight between them was their differences on development of a school project in their area. If these differences are allowed to grow into full animosity they will be doing a great disservice to the people of Monduli District. I accordingly implore them to bury the hatchet and work together for the sake of promoting solidarity for the purpose of spearheading meaningful social and economic development in their District. Being leaders they should not be ashamed of this. The Swahili people have a wise saying which

when freely translated means "those who quarrel, are the ones who make it." In his evidence the appellant told the trial court that the two had once quarreled and their Member of Parliament timely intervened and advised them to refrain from such behaviour. I lend the full weight of this court in support of the M.P's advice. They should give heed to it, for a united leadership is essential for people's sustained development. Very recently Israel's best known contemporary author, Amos OZ had the following apposite advice to his country in its approach to the entire peace process with the Palestinian people. He said:

(A) conflict begins and ends in the hearts and minds of people, not in the hill tops, Newsweek Magazine of 1 March 1999 at page 52.

Let them, the conflict between Lenga and Mebolokini end in like manner. All said and done, I allow this appeal for the reason given herein.

FAHARI BOTTLERS LIMITED AND ANOTHER *v.* REGISTRAR OF COMPANIES AND ANOTHER

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM

(Nyalali, C.J., Ramadhani and Lubuva, JJ.A.)

CIVIL REVISION No. 1 OF 1999

(From Rulings of the High Court of Tanzania at Dar es Salaam in Miscellaneous Civil Applications Nos. 146 to 155 of 1998)

Constitutional Law – Court of Appeal and the legislative powers of Parliament – Constitution vests in the Court of Appeal appellate powers only – Parliament subsequently adds thereto the powers of revision – Whether the addition is not ultra vires – section 4(2) and (3) of the Appellate Jurisdiction Act 1979 and article 117 of the Constitution.

Court of Appeal – Revision – Powers of the Court of Appeal to revise proceedings in the High Court – When those powers may be invoked.

Court of Appeal – Constitutional Issues – Whether the Court of Appeal is precluded from dealing with a constitutional issue not first decided by the High Court – Article 30(3) and (4) of the Constitution.

Company Law – Winding Up – Law applicable in winding up proceedings – Sections 285 and 348 of the Companies Ordinance and the [Imperial] Winding Up Rules 1929.

Company Law – Winding Up Proceedings – Appointment of Provisional Liquidator – No application is made for appointment of provisional liquidator but winding up petition includes prayer for such appointment – Whether proper – Rule 8(2) of the Winding Up Rules 1929.

Company Law – Provisional Liquidator – Ten companies simultaneously file winding up.

Petitions and ask for appointment of provisional liquidators – One of the three provisional liquidators appointed has a law firm acting for one of the ten petitioners – Whether the appointment is proper.

In Miscellaneous Civil Applications Numbers 146 to 155 of 1998 in the High Court at Dar es Salaam, ten companies simultaneously filed winding up petitions so that they could restructure and obtain outlays of capital to be able to compete. There was also involved a suit by one of the petitioners against its creditor, the National Bank of Commerce (1997) Ltd., (the bank) in which the plaintiff wanted to restrain the Bank from exercising its debenture rights against it in Civil Case Number 98 of 1998. In the petitions was also a prayer for the appointment of provisional liquidators. After an *exparte* hearing, the presiding judge made an *exparte* order appointing three persons as provisional liquidators, and one of the provisional liquidators appointed was a man called NE Mkono whose law firm was representing one of the petitioners. The court also ordered a stay of any suit, application, case, petition or matter pending in the High Court or any other court or tribunal. Two secured creditors, namely, the Bank

and the National Social Security Fund instituted objection proceedings against the appointment of the provisional liquidators.

Following the order of stay, Civil Case Number 98 of 1998, which was before a different judge, was stayed on 15 September 1998. The the same judge handling the petitions made an order, *suo motu*, suspending the order of appointment of provisional liquidators pending hearing inter parties of an objection by NSSF in respect of one of the petitioners, Southern Highlands Bottlers Ltd. The order of suspension was made applicable to all the parties. On 23 September 1998, before a different judge, NSSF applied to withdraw its objection as it had assigned its rights to a third party, Fahari Bottlers. The judge allowed the application and also stayed the execution of the order appointing the provisional liquidators made by a fellow judge earlier pending final determination of all objections 'in order to maintain the *status quo.*'

Meanwhile the provisional liquidators, on 7 October 1998 filed in the High Court a report of their activities from the time of their appointment to the date of their suspension as earlier ordered by the court.

Subsequently advocates for the first and second respondents appeared before the court and sought leave to file counter affidavits. The court granted leave and, *suo motu,* made an order that a *status quo* prevailing on 7 October 1998 "be restored" until the objections were finally determined.

On 30 October 1998, before yet another judge, two advocates appearing for receiver and managers told the court that there was apparent confusion in the interpretation of the previous orders. The court then ordered stay of execution of the order made "on 30 October 1998" pending hearing of an application for execution and hearing of the case inter parties".

It was then that revisional proceedings in the court commenced *suo motu* on information given by a firm of advocates.

During the hearing of the revisonal proceedings, it was argued that's Acts Number 17 of 1993 and 32 of 1994 were *ultra vires* the provisions of articles 117(1) and (3) of the Constitution of the United Republic of Tanzania.

Held: (i) Subsections (2) and (3) of the Appellate Jurisdiction Act 1979 as amended by Act Numbers 17 of 1993 and 32 of 1994 are not *ultra vires* the provisions of sub-articles (1) and (3) of article 117 of the Constitution. The provisions of article 11(3) of

the Constitution which deal with the appellate function of the court cannot be construed as derogating from the power conferred upon the Parliament under article 117(1) of the Constitution.

(ii) The provisions of article 30(3) of the Constitution apply only to enforcement of the provisions of human rights and freedoms contained in the Constitution. There is no provision either under the Constitution or any other law which requires any other constitutional issue to be decided first by the High Court before being decided by the Court of Appeal.

(iii) The Court of Appeal may, on its own motion and at any time, invoke its Revisional Jurisdiction in respect of proceedings in the High Court.

(iv) Section 348 of the Companies Ordinance [Act] makes the Winding up rules 1929 made under the Companies Act 1928 (Imperial) of the United Kingdom applicable in this country until such time when the High Court of this country makes rules for this country under section 285 of the ordinance [Act].

(v) rule 8(2) requires an application for the appointment of provisional liquidators to be made by Chamber Summons and to be served upon any persons against whom the order is sought. No application of any kind was made for appointment of provisional liquidators. Instead the winding up petitions included a prayer for such appointment. This was clearly in contravention of the clear provisions of rule 8(2).

(vi) Failure to notify the creditors was fatal to the appointment of provisional liquidators.

(vii) ***Obiter:*** It was improper to extend the order of suspension to the petitioners in respect of whom no objection had been raised by NSSF.

(viii) The proceedings in the High Court were affected by confusion which was deepened by changes of judges who presided over the proceedings contrary to the individual calendar system. The individual calendar system requires that once a case is assigned to a judge or magistrate, it has to continue before that judge or magistrate unless there are good reasons for doing otherwise. The system is meant not only to facilitate case management by trial judges and magistrates, but also to promote accountability on their part. Failure to follow this procedure was certainly irregular and was amenable to the revisional process.

(ix) The appointment of Mr Mkono as provisional liquidator placed him in a position of conflict of interest. His appointment was, therefore, improper.

(x) The mediation process was applicable to Civil Case Number 98 of 1998 in which the plaintiff sought an injunction. The rules pertaining to mediation were not observed.

(xi) The order restraining the judge from proceeding with Civil Case Number 98 of 1998 was made without authority as the case did not concern the ten companies which petitioned for liquidation.

It was finally ordered that the Miscellaneous Civil Causes be placed before a judge in the High Court for various directions as to the future course of those matters. The order staying Civil Case Number 98 of 1998 was set aside; so too were orders made in that case after closure of pleadings which were inconsistent with Order VIII A and Order VIII B of the Civil Procedure Code.

Cases referred to:

(1) *Moses Mwakibete v. The Editor, UHURU and others* [1995] T.L.R 134

(2) *Halais Pro-Chemie v. Wella AG* [1996] T.L.R 269

Statutory provisions referred to:

(i) Appellate Jurisdiction (Amendment) Act Number 17 of 1993, subsections (2) and (3)

(ii) Appellate Jurisdiction Act 1979 section 4

(iii) Companies Act 1928

(iv) Companies Ordinance Chapter 212, sections 285, 167(a), 183(1) and 348

(v) Constitution of the Republic of Tanzania, articles 117(1) and (3), 117(1) and 30(3)

(vi) Ordinance Chapter 212 and rule 31(1) of the Winding Up Rules

(vii) Winding Up Rules 1929

Mr. Mkono and *Mr. Ng'maryo,* for the Petitioners

Mr. Kapinga and *Mr. Kameja,* for the Respondents

ORDER

(Dated 12 March 1999)

NYALALI, C.J.: These are revision proceedings by the court acting *suo motu* on the basis of information originating from Sinare and Shiyo, advocates. The information relates to proceedings currently pending in the High Court. They are proceedings for the winding up of ten companies and a suit by one of the companies against one of the creditors. The winding up proceedings are Miscellaneous Civil Case Numbers 146 to 155 of 1998 and the suit is Civil Case Number 98 of 1998 all of the High Court at Dar es Salaam. The parties to the suit are Fahari Botters Ltd. as Plaintiff and The National Bank of Commerce (1997) Ltd., as defendant, hereinafter called The Bank. Essentially, Fahari Bottlers Ltd. seeks to restrain The Bank from exercising its debenture rights against it. As to the winding up proceedings, simultaneously instituted in court on 24 August 1998, the ten companies essentially seek the assistance of the court in a move to restructure the ten companies, which are admittedly insolvent. These companies are Ziggi Bottlers Ltd, Kilima Bottlers Ltd, Mwanza Bottling Company Ltd, Ruaha Bottling Company Ltd, Shinyanga Bottlers Ltd, Serengeti Beverages Company Ltd, Westlake Bottlers Ltd, Fahari Fruit Products Ltd, Southern Highlands Bottlers Ltd and Fahari Bottlers Ltd, hereinafter called, the ten companies. All winding up petitions in respect of the ten companies are couched in similar terms. Among the prayers contained in the petitions, is a prayer for the appointment of provisional liquidators, with powers to spearhead the restructuring exercise. Following the institution of the petitions, an order was made by the High Court on the 25 August 1998 consolidating all winding up proceedings into Miscellaneous civil case number 154 of 1998. Soon after the order was made that day, Mr Ng'maryo, learned advocate for the ten companies addressed the High Court at length, and stated, *inter alia:*

> This application is brought before the court pursuant to section 167(a) of the Companies Ordinance Chapter 212; as well as the Companies (Winding Up) Rules 1929 (Imperial) as applied to Tanganyika. The purpose of this

> application – i.e. winding up by the court is to enable the companies to restructure in order to qualify for equity investment from a foreign investor in the name of International Pepsi Cola Bottler Investment Ltd (IPCBILL). The need for equity investment came because of very rapid growth by the applicants' companies which by 1995 necessitated vast outlays of capital to sustain the growth. Simultaneous with this need, the major competitor in the business of the applicant company, namely COCA-COLA, through a foreign company called SABCO had by 1995 invested over 60 million US dollars on the acquisition of new plants, machinery and equipment. The applicant companies are vying for restructuring in order to get the equity investment and to cope up with the competition. The applicant companies also recognize the presence of creditors of varying magnitude who must also be protected in the process of restructuring and re-organization of the petitioner companies. The protection will be in the form of a court supervised process, through court appointment provisional liquidators whose appointment is prayed for in the petitions by virtue of section 183(1) of the Ordinance Chapter 212 and rule 31(1) of the winding Up Rule ...

After an *exparte* hearing of the submission of Mr Ng'maryo, the High Court, Kileo, J. made an order appointing three persons as provisional liquidators as prayed, including various consequential directions, including such as, "that any suit, application, case, petition or matter pending in this court or in any Subordinate Court or tribunal be stayed pending the order for winding up the companies or further order". and "... that notice of this order be given to all the creditors thus appointed in respect of the ten companies were Nimrod Elirehemah Mkono of Mkono and Company, Advocates, Pual H. and Kelvin A. Murphy of Finne Associates, London.

Consequent upon this court order, objection proceedings against the appointment of the provisional liquidators were at various times instituted in the High Court by two secured creditors, namely, the National Social Security Fund (NSSF) and the bank. Furthermore, of the objection by NSSF in respect of one of the companies, namely, Southern Highlands Bottlers Ltd. The order of suspension was made applicable to all other companies.

Subsequently on the 23 September 1998, when the proceedings came up before the court, Mr Ng'maryo, advocate, for the petitioners informed the court, Mackanja, J. to the effect that NSSF had assigned its rights to a third party, namely, Fahari Bottlers Ltd upon the said third party paying in full the claims by NSSF against Southern Highlands Bottlers Ltd, and that NSSF was consequently withdrawing its objection. Mackanja, J. reserved his ruling initially until 25 and subsequently until 29 September 1998. On the 25 September Mr Sinare, learned advocate for NSSF appeared and confirmed the position of NSSF. In his reserved ruling of the 29 September, Mackanja, J. allowed NSSF to withdraw its objection and stayed the execution of the order appointing the provisional liquidators, "... pending the final determination of all the objections in order to maintain the *status quo.*"

After delivery of the reserved ruling, counsel for the petitioners indicated an intention to appeal but that move did not materialize. Meanwhile, on the 7 October 1998 the provisional liquidators filed in the High Court, a report detailing their activities from the time of their appointment, to the date of their suspension as earlier ordered by the court on 17 September 1998. Mr Ng'maryo for the petitioners and Mr Mponda for the provisional liquidators asked the court to give directions concerning the report. In a ruling given on the same day, Mackanja, J. declined to give the directions and instead made an order as to the schedule of the hearing inter parties of the pending objections and fixed the 15 November 1998 as the date when he will give his ruling on the objections.

While this scheduling order was still in operation, an application was filed in court and it came up for consideration by the court on 23 October 1998. Mr Ng'maryo Advocate appeared for the applicant, whereas Mr Kapinga, advocate and Captain Kameja, advocate appeared for the first and second respondents respectively. Counsel for the respondents sought leave to file counter affidavits. The court made two orders. The first order granted leave to file counter affidavits, the second one, which was *suo motu*, was made without hearing the parties, and it stated:

Before me there is an application which has information to the effect that another set of liquidators has been appointed to wind up the petitioner in these proceedings. This means that there will be those whose appointment is stayed by order of this court and those appointed thereafter. The instant application is in respect of the second set of liquidators. I have decided that I hear none of the learned counsel on this matter and, instead I have decided to make an order at the court's own motion to bring credence to these proceedings.

Now I have already made an order that the *status quo* be maintained pending the determination of the objections that were raised by NBC (1997) Ltd. It will be rather unusual for NBC (1997) Ltd, who are bound by that order to appoint liquidators when its own objections are still pending determination.

The only way to maintain sanity is, therefore, to order that pending the determination of all objections, the *status quo* prevailing on 7 October 1998 is hereby restored, that is when I delivered my last, but this, ruling. This means that the operations of the petitioner shall remain under the management of whoever was in charge on that date and who shall remain in charge until the objections are finally determined.

Subsequent to this order and when the previous order scheduling the *inter parte* hearing of the objections was not yet fulfilled, an application was filed in the High Court, by Thomas Bashite Mihayo, advocate apparently for the petitioners, for execution of the court order which maintained the *status quo*. The application for execution was granted as prayed.

Thereafter on the 30 October 1998, the proceedings came up before a different judge, that is, Chipeta, J. Mrs. Maajar, appearing for receiver and managers and holding the brief of Kapinga for NBC, addressed the court concerning apparent confusion in the interpretation of previous court orders. Upon hearing this address, Chipeta, J. made the following order:

It seems to me that there has been a large cloud on the interpretation of this court's order of 23 October 1998 which is sought to be executed.

Until that cloud is lifted, it will never be clear as to what the parties were told to do. In the circumstances, the execution of the order made this 30 October 1998 is hereby stayed pending a hearing inter parties of that application for execution and hearing of the case inter parties as ordered by the court on 23 October 1998.

The proceedings thereafter came to a halt, when the records of the proceedings were called to the Court of Appeal for purposes of steps under the provisions of sub-section (3) of section 4 of the Appellate Jurisdiction Act, 1979 as amended by Act Number 1 of 1993. A number of persons, with an apparent interest in the proceedings pending in the High Court, were notified to appear to assist us in this exercise. We appreciate the good response to that notification and the research consequently made to assist us, especially by Mr Ng'maryo.

Since this is the first time this court is acting under the provisions of sub-section (3) of section 4 of the Appellate Jurisdiction Act 1979, the first point that arises from the material before us, is whether the Court of Appeal has jurisdiction and competence to inquire into the proceedings pending in the High Court. Mr Mkono, learned advocate, supported by Mr Ng'maryo, learned advocate, submitted to the effect that this court has no Revisional Jurisdiction of any kind, since the law granting such jurisdiction, that is sub-section (2) and (3) of the Appellant Jurisdiction Act 1979, as amended by Act Number 17 of 1993 and 32 of 1994 are *utra vires* the provisions of sub-articles (1) and (3) of article 117 of the Constitution of the United Republic of Tanzania, which reads in the Kiswahili language as:

177(1) Kutakuwa na Mahakama ya Rufani ya Jamhuri ya Muungano (itakayojulikana kwa kifupi kama "Mahakama ya Rufani" ambayo mamlaka yake yatakuwa kama ilivyoelezwa katika Katiba hii au katika sheria nyingine yoyote.

(2) ... (not applicable)

(3) Kazi ya Mahakama ya Rufani itakuwa kusikiliza na kutoa uamuzi juu ya kila rufaa inayoletwa mbele ya Mahakama ya Rufani kutokana

na hukumu au uamuzi wa namna nyingine yoyote wa Mahakama Kuu au Mahakama ya Hakimu.

According to Messrs Mkono and Ng'maryo, these provisions, particularly sub-article (3) show that this court is vested with only appellate jurisdiction by the Constitution. On the other hand, M. Kapinga, learned advocate, supported by Capt. Kameja, learned advocate, have submitted to the effect that the provisions of section 4 of the Appellate Jurisdiction Act, 1979 were amended by the Parliament to confer Revisional Jurisdiction upon the court in addition to its appellate jurisdiction, and that the Parliament is so empowered under sub-article (1) of Article 117 of the Constitution.

After considering carefully the opposing arguments, we are satisfied that Mr Kapinga and Captain Kameja are correct. By reading the two provisions together, that is sub-article (1) and (3), it is clear to us that there are two sources of jurisdiction of the Court of Appeal as stated under sub-article (1). These are, firstly, the Constitution itself, and secondly, any other law enacted by the Parliament. The first source, that is, the Constitution, gives rise to the appellant jurisdiction of the court. The second source is open ended. Apparently, the parliament is empowered by Constitution to confer additional jurisdiction of any kind. This is what it did in the amendments contained under Acts Numbers 17 of 1993 and 32 of 1994. The provisions of sub-article (3) of Article 117 which deal with the appellate function of the court cannot be construed as derogating from the power conferred upon the Parliament under sub-article. (1) They have to be construed as an elaboration of the appellate jurisdiction of the court. The Constitution itself does not contain any elaboration of such other function. We think this omission is deliberate. The Parliament is expected to elaborate on any functions arising out of any Act conferring additional jurisdiction on the court. This has been done under the said amending Acts. It would of course have been clearer if the provisions of sub-article (3), had been included in sub-article (1) empowering the Parliament to designate the functions that may be exercised by the court. We are satisfied, however, that the present arrangements of the provisions

of Article 117 does not in any way derogate from the power of the Parliament to designate functions which may be exercised by the Court of Appeal.

For purposes of clarity, we need to respond to one other aspect of Mr Ng'maryo's submission. It is to the effect that this court has no jurisdiction or power to decide on the constitutionality of the amending Acts before such an issue is decided by the High Court as provided under article 30(3) of the Constitution. With due respect, we are satisfied that this is a misinterpretation of the relevant provisions. The provisions of article 30(3) apply only to enforcement of the provisions of human rights and freedoms contained under the Constitution. There is no provision either under the Constitution or any other law which expressly or implicitly requires any other constitutional issue to be decided first by the High Court before being decided by this court.

As to competency, Mr Ng'maryo has submitted to the effect that the matter is not properly before the court, on the ground that Sinare and Shio, advocates, whose information apparently moved the court to intervene in the proceedings pending in the High Court, are excluded from moving the court other than by way of appeal. This is so, it is argued, because the National Social Security Fund, (elsewhere referred to as NSSF) was a party to the proceedings pending in the High Court. Two decisions of this court were cited in support of the submission, that is the case of *Moses J Mwakibete v. The Editor – Uhuru and others* (1) and the case of *Halais Pro-Chemie Industries v. Wella, AG* (2). The legal position in these cases was summarized in the case of *Halais Pro-Chemie Industries Ltd.* as follows:

(i) The court may, on its own motion and at anytime, invoke its Revisional Jurisdiction in respect of proceedings in the High Court;

(ii) Except under exceptional circumstances, a party to proceedings in the High Court cannot invoke the Revisional Jurisdiction of the court as an alternative to the appellate jurisdiction of the court;

(iii) A party to proceedings in the High Court may invoke the Revisional Jurisdictional of the court in matters which are not appellable with or without leave;

(iv) A party to proceedings in the High Court may invoke the Revisional Jurisdiction of the court where the appellate process has been blocked by judicial process.

For reasons which will be apparent presently, we are satisfied that Sinare and Shiyo did not move this court to act, but merely drew our attention to a serious problem concerning the proceedings pending in the High Court.

The first point that we have to examine on the record is whether the *ex parte* application for appointment of provisional liquidators is proper. There is common ground among all advocates, who submitted on this point, that the relevant law is to be found in the Companies Ordinance Chapter 212 and the winding Up Rules 1929 made under the Companies Act, 1928 (Imperial) of the United Kingdom. This is so because section 348 of the Companies Ordinance makes those rules applicable in this country until such time when the High Court of this country makes rules for this country under section 285 of the ordinance. Apparently, the High Court has not yet made the rules up to now. We hope this will be rectified soon.

The rule applicable for chamber applications made under the Ordinance, including any application for the appointment of provisional liquidators is rule 8(2). That rule requires the application to be made Chamber Summons and to be served upon any persons against whom the order is sought. It is common ground among all advocates, who made submissions to us on the record, that no application of any kind was made for appointment of provisional liquidators. Instead the Winding Up Petitions included a prayer for such appointment. This was clearly in contravention of the clear provisions of rule 8(2). There was a further and more serious error. The petition was *exparte* and was not publicized in any way. This means that no person

affected by the move had prior notice of the decision made by the High Court to appoint the provisional liquidators.

Mr Ng'maryo has submitted to the effect that under the circumstances of this case, where a large number of creditors is involved, it was more convenient to have the provisional liquidators appointed first and let the objectors appear later. On the other hand, Captain Kameja submitted in effect that the *exparte* proceedings were intrinsically inappropriate, since in order to decide whether to grant the order sought, the court could not but partially hear the petition before it was advertised contrary to the provisions of rule 27, which require the petition to be advertised at least seven clear days before being heard.

It is our considered opinion that the requirement for service of Chamber Summons upon persons affected by the order is important not only to ensure that justice is done but that it is seen to be done. After all, the provisional liquidators were expected to protect the interests of creditors, and it is only fair that such creditors be given the opportunity to play a part in the proceedings for appointment of liquidators. The large number of creditors is not an obstacle to notification of creditors, since an appropriate manner of notification can always be ordered by the court. We have no doubt in our minds that the irregularies in the proceedings for appointment of provisional liquidators, especially the failure to notify the creditors, was fatal to the appointment. This irregularity of course could not be challenged by NSSF by way of appeal, since NSSF was not a party to the proceedings which resulted in the appointment of the provisional liquidators. It became a party later, after filing the objection against the appointment.

This finding is sufficient to conclude our examination of the winding up proceedings in Miscellaneous Civil Cause Numbers146 to 155 of 1989, but bearing in mind that this is the first case of its kind to come before us, we feel that there is need to examine briefly other relevant points.

We begin with the point concerning the propriety of the order made by Kileo, J, on the 15 September 1998 suspending the appointment of the provisional liquidators in respect of all ten companies upon an objection made in respect of one of them – that is, the objection made by NSSF in respect of Southern Highlands Bottler Ltd. None of the learned advocates who made submissions before us supported the scope of the suspension order. We are satisfied that it was improper to extend the order of suspension to the companies in respect of which no objection had been raised by NSSF. We would have curtailed that extension if the appointment itself was not flawed in the manner already indicated.

The other point for examination concerns the order made *suo motu* by Kileo, J. on 17 September 1998 directing the suspended provisional liquidators to submit to the court a report detailing their activities from the time of their appointment to the date of their suspension. We are satisfied that this *suo motu* order was proper, since it was a follow up to the order of suspension, which directed, *inter alia*, that the case comes up for further directions.

The other *suo motu* order was made on 23 October 1998 by Mackanja, J. On that day, there was an application before the court but both Mr Kapinga and Capt. Kameja, who appeared for their clients, sought leave to file counter affidavits. Their requests were granted. Thereafter but soon after granting the requests, the court made the following order:

> **ORDER:**
>
> Before me there is an application which has information to the effect that another set of liquidators has been appointed to wind up the petitioner in these proceedings. This means that there will be those whose appointment is stayed by order of this court and those appointed thereafter. The instant application is in respect of the second set of liquidators. I have decided that I hear none of the learned counsel on this matter and, instead I have decided to make an order at the court's own motion to bring credence to these proceedings.

> Now I have already made an order that the *status quo* be maintained pending the determination of the objections that were raised by NBC (1997) Ltd. It will be rather unusual for NBC (1997) Ltd, who are bound by that order to appoint liquidators when its own objections are still pending determination.
>
> The only way to maintain sanity is, therefore, to order that pending the determination of all objections, the *status quo* prevailing on 7 October 98 is hereby restored, that is when I delivered my last, but this, ruling. This means that the operations of the petitioner shall remain under the management of whoever was in charge on that date and who shall remain in charge until the objections are finally determined.

This order was incomprehensible to the learned advocates representing the parties. We sympathize with the advocates concerned. The reason is not far to seek. The learned Judge had confused two different entities – that is – the Receivers appointed by NBC (1997) Ltd. and the provisional liquidators appointed by the court.

Furthermore, the learned judge was ambiguous about the identity of the management who were to remain in charge of the operations. We think that had the learned judge heard submissions from counsel, instead of going it alone, so to speak, he would most likely have made a sensible order and there would have been no need to use emotive words on his part. Counsel informed us that an attempt to get the judge to clarify his order was made by way of a subsequent application for execution of the order made on the 23 October. Unfortunately, the attempt misfired when on the 28 October 1998 it was ordered as follows:

> Upon reading application for execution of order dated 23 October 1998 and filed in this court on 28 October 1998, by Thomas Bashite Mihayo, Advocate for the decree holder applying for:
>
> To compel the receivers and manager of Southern Highlands Bottlers or their servants or agents to immediately hand over to the Directors of Southern Highlands Bottlers or their Agents or Nominees, all the assets tangible or intangible of Southern Highlands Bottlers, Ltd.

Order: Let the application be granted accordingly.

Obviously this order did not advance the matter any further, since the court had never at any time decided exactly who was in charge of the management of the ten companies at the material time.

The other problematic order or decision was made by the High Court on the 29 September 1998 in which the court allowed NSSF to withdraw its objection to the appointment of provisional liquidators, in respect of Southern Highlands Bottlers Ltd. This order was bound to confuse the parties as indeed it did. The petitioners logically expected the suspension of appointment of provisional liquidators to be lifted, at least in respect of Southern Highlands Bottlers Ltd. Moreover there was an order still in force requiring the suspended provisional liquidators to report on their activities prior to their suspension. It is not clear in what capacity they were to report to the court when the order appointing them as such had been suspended and later stayed by the court. Predictably, the confusion asserted itself, when the report was eventually submitted to the court. In his order dated 7 October 1998, Mackanja, J., correctly stated, *inter alia*, that:

> Of course the stay of execution of the order appointing provisional liquidators has created *an impasse*. The orders being as they are, one making an appointment of provisional liquidators, another staying that order and yet another giving directions to the provisional liquidators are likely to cause confusion....

It is obvious to us that the proceedings in the High Court were affected by confusion and that the confusion was deepened by changes of judges who presided over the proceedings. Three judges were involved at various stages of the proceedings. When such a situation occurs, there is likely to be confusion, unless the succeeding judges thoroughly study the record of previous proceedings. This does not seem to have been done in this case. Moreover, no reasons are given on the record to explain the change of judges, especially when the individual calendar system requires that once a case is assigned to an individual judge or magistrate, it has to continue before that particular judge

or magistrate to its final conclusion, unless there are good reasons for doing otherwise. The system is meant not only to facilitate case management by trial judges or magistrates, but also to promote accountability on their part. The unexplained failure to observe this procedure in this case is certainly irregular, to say the least. Such irregularities and the accompanying confusion in our view are not amenable to the appellate process for remedy. They are amenable to the revisional process.

The other point for examination on the record is the propriety of Mr Ng'maryo, representing not only the petitioners, on the 23 September 1998, but also the assignee of a debt, that is, M/S Fahari Beverages Ltd, who were not a party to the proceedings. Mr Ng'maryo informed the High Court, Mackanja, J. that NSSF had assigned the debt to that other person, and that the person was not interested in pursuing the objection by NSSF. On this basis, the High Court allowed the objection to be withdrawn.

Mr Ng'maryo informed us that NSSF had written to the Registrar of the High Court indicating its intention to withdraw. The information was not contradicted by anyone before us. It is our considered opinion that it was wrong on the part of Mr Ng'maryo to move the High Court on behalf of a person who was not a party to the proceedings. It was proper to move the court to act on the basis of the indication contained in the letter of NSSF was communicated to the High Court.

The final point for examination on the record concerns the propriety of Mr Mkono, learned advocate, to be appointed a provisional liquidator when his firm, that is, Mkono and Company, Advocates, was representing one of the ten companies, that is Fahari Bottlers Ltd, in a suit against one of the major creditors, that is NBC (1997) Ltd. Mr Mwaikusa, learned advocate, who appeared before us for Mr Mkono, when this point was being examined, could not assist us. We have no doubt whatsoever that Mr Mkono's appointment as provisional liquidator placed him in a position of conflict of interest between Fahari Bottlers Ltd. as a debtor and NBC (1997) Ltd. as a creditor. It follows therefore that his appointment as provisional liquidator was improper.

There is not much to say about the appointment of the two other provisional liquidators. At first we had the impression that both resided outside the jurisdiction of the High Court, that is, in London, but on closer examination of the record, it appears that they have an address within the jurisdiction of the court. Normally no person resident outside the jurisdiction of the court is qualified for appointment as a liquidator. It is our understanding that the same position prevails in England. See page 752 of **Charlesworth and Morse's Company Law,** (15 ed).

Our last examination concerns two points relating to the proceedings in Civil Case Number 98 of 1998. The first point is whether the provisions of Order VIIIA and VIIIB which mandate a court annexed mediation process, do apply to the suit. There was unanimity of counsel appearing before us that the mediation process is applicable to Civil Case Number 98 of 1998, in which Fahari Bottlers sought an injunction to prevent NBC (1997) Ltd. from enforcing its debenture rights. We are unable to understand why the rules relating to mediation were not observed in that case. We need to remind all concerned, that is, trial judges, magistrates and advocates, that mediation not only facilitates the expeditious disposal of cases, but is less costly. Moreover, and this is important, mediation has no room for corrupt practices. Under mediation the parties themselves decide their dispute under guidance of the court. The transparent and participatory nature of the process makes it a very portent tool for the judiciary and the legal profession in combating corruption both at the Bar and the Bench. This court expects to see better compliance with the relevant rules in the future.

The other point concerns the order made by Mapigano, J. on 17 September 1998 staying the proceedings in the suit consequent upon an order made by Kileo, J, on the 25 August 1998 while appointing the provisional liquidators. Kileo, J:

> ... ordered that any suit, application, case, petition or matter pending in this court or in any Subordinate Court or tribunal be stayed pending the order for winding up the companies or further order.

Although Kileo, J. did not state the law upon which that order was made, Mr Ng'maryo, learned advocate submitted to the effect that the learned judge must have acted under section 171 of the Companies Ordinance Chapter 212. That seems to us to be the case, since we are not aware of any other relevant law. Section 171 of the ordinance however relates only to proceedings against the companies subject to winding up proceedings. The section states:

> The court may, at any time after presentation of the petition for winding up a company under this ordinance, and before making an order for winding up the company, upon the application of the company or any creditor or contributory, restrain further proceedings in any suit or proceeding against the company upon such terms as the court thinks fit.

We are satisfied that Kileo, J. had no powers to restrain Mapigano, J. or any other fellow judge of the High Court from proceeding with matters which were not against the ten companies.

In conclusion, we have found at the end of our examination of the proceedings pending in the High Court, that not only was the order appointing the provisional liquidators invalid in law, but the proceedings were afflicted by confusion caused by several irregular orders and decisions. Under the circumstances and bearing in mind that this is a commercial case deserving to be treated with sensitivity for the needs of the commercial community both within the outside Tanzania, we hereby order that:

(i) the proceedings for appointment of provisional liquidators be and are quashed; and

(ii) the petitions filed in Miscellaneous Civil Cause Numbers 146 to 155 be amended by the petitioners within 14 days from today to expunge references to appointment of provisional liquidators; and

(iii) the order by Mapigano, J. in Civil Case Number 9 of 1998, staying the proceedings therein be and is set aside;

(iv) Any orders or decisions made in Civil Case Number 98 of 1998 after closure of the pleadings and which are inconsistent with the

provisions of Order VIIIA and VIIIB of the Civil Procedure Code mandating the use of Mediation are set aside;

(v) The Bank is at liberty to act on its debenture according to law unless and until The Bank and its debtor companies agree otherwise or the High Court directs otherwise according to law;

(vi) The records of Miscellaneous Civil Cause Numbers 146 to 155 of 1998 and Civil Case Number 98 of 1998 be placed before a judge in the High Court within 14 days from today for directions as to the future course of these cases, including the fate of the report submitted by the provisional liquidators;

(vii) No order for costs in this court is made;

(viii) Any expenses incurred *bona fide* by the provisional liquidators before their suspension are to be met out of assets of the ten companies.

ELIBARIKI MBOYA *v.* AMINA ABEID

COURT OF APPEAL OF TANZANIA AT ARUSHA

(Mfalila, Samatta and Lugakingira, JJ.A.)

CIVIL APPEAL No. 54 OF 1996

(Appeal from the Judgment and Decree of the High Court of Tanzania at Arusha, Munuo, J., dated 28 January 1994.

Evidence – Documentary evidence – Admissibility of document required to be stamped but not stamped – Contract of sale of a house not stamped – Whether the contract may be admitted in evidence – Sections 5 and 46(1) of the Stamp Duty Act 1972 and section 73 of the Civil Procedure Code.

Stamp Duty – Failure to affix stamp duty on an instrument – Effect thereof – Sections 5 and 46(1) of the Stamp Duty Act 1972.

The appellant successfully sued the respondent in the court of the Resident Magistrate for vacant possession of a wooden house in Arusha Municipality. The appellant testified that he entered into a written contract with the respondent whereby the respondent sold to him the said house for 130,000. The written contract tendered in evidence as exhibit was not stamped in accordance with the Stamp Duty Act 1972. The trial court decided in favour of the appellant. The High Court, on appeal, found in favour of the respondent on the ground that the contract of sale was not stamped and thus could not be admitted as evidence under section 46(1) of the Stamp Duty Act 1972 as to do so would offend section 5 of the said Act. The appellant was aggrieved and appealed to this court.

Held: (i) Failure to stamp the contract of sale was an irregularity not affecting jurisdiction of the court and was cured by section 73 of the Civil Procedure Code, 1966. The respondent is ordered to pay the duty with which the instrument is chargeable.

Appeal allowed.

Cases referred to:

(1) *Transport Equipment Ltd. v. DP Valambia*, [1993] T.L.R 91

(2) *Mohammed Hussein Khan v. Kishua Nandan* [1937] All ER 655

(3) *Kiran Singh v. Chaman Paswan* (1954) SC 340

Statutory provisions referred to:

(i) Magistrates Courts Act 1984, section 37 Order 3 , rule 2, Order 13 of rule 2, rule 4

(ii) Civil Procedure Code, 1966, section 73

(iii) Stamp Duty Act 1972, sections (5) and 46(1)

(iv) Indian Civil Procedure Code, section 99

Mr. Mwale, for the Appellant

Respondent, in person

JUDGMENT

(Dated 15 March 1999)

SAMATTA, J.A.: This is a short appeal. It arises from an appellate judgment of the High Court given on an appeal against a judgment of the court of the Resident of Arusha. At stake is a wooden house known as House Number 521 situated at Unga Ltd. area in Arusha Municipality. Without intending any disrespect to the parties, we shall hereinafter refer to the house as 'the wooden house".

We shall state the facts of the case briefly, for their details do not contribute anything that may be regarded as being material. The appellant successfully sued the respondent in the Resident Magistrate's Court for, among other reliefs, vacant possession of the wooden house. The appellant and his five witnesses satisfied the trial court that on 11 February 1988, he entered into a written contract with the respondent whereby the latter sold to him the wooden house for the sum of TZS. 130 000. The contract was produced before the court and admitted in evidence as Exhibit "A". The document was not stamped in accordance with the Stamp Duty Act 1972, hereinafter referred to as "the Act". According to the appellant's testimony, the contract was signed by all concerned and the purchase price paid to the respondent in the presence of the following persons, Nyerere Omari, Hamisi Nino and Thomas Massawe. Following the respondent's refusal to give him vacant possession of the house, the appellant instituted the civil suit before the Resident Magistrate's Court, the decision on which has eventually given rise to the appeal now before us. The respondent, At the hearing of the appeal the appellant was represented by Mr Mwale, learned advocate, while the respondent appeared in person. In his short but interesting submission Mr Mwale contended, in essence, citing *Transport Equipment Ltd v. D.P Valambhia* (1), that, having held that, contrary to the provisions of the Act, Exhibit "A" was not duly stamped, the learned Judge should, instead of allowing the appeal, have invoked proviso (a) to section 46(1) of the Act, dismissed the appeal and proceeded to direct that Exhibit "A" be

duly stamped. In *Transport Equipment Ltd's* case (1) there was the question, among others, what order this court could make in relation to an instrument to which the provisions of the Act applied but which, notwithstanding that it was not duly stamped, the High Court acted upon. This court said it could do what the High Court ought to have done under proviso (a) to section 46(1) of the Act. The proviso reads:

> Provided that:
>
> (a) any such instrument not being a receipt, an acknowledgement of debt, a bill of exchange (other than a cheque or a bill of exchange presented for acceptance, accepted or payable elsewhere than in Tanganyika) or a promissory note shall, subject to all just exceptions, be admitted in evidence on payment of the duty with which the same is chargeable, or, in the case of an instrument insufficiently stamped, of the amount required to make up such duty, together, with a penalty of a sum of money equal to ten times the amount of the proper duty or deficient portion thereof or four hundred shillings, whichever be the lesser sum of money.

The pivotal point in this appeal is whether the learned Judge of the High Court was right in law to have allowed the appeal on the ground that, Exhibit "A" having not been duly stamped, the instrument was not valid and should, therefore, have not been admitted in evidence by the trial court. Having given careful consideration of this question, we are of the opinion that the learned Judge reached a wrong decision. In our opinion, she should have held, in conformity with section 73 of the Civil Procedure Code, 1966 (the Code) that the non-stamping of the instrument did not in law constitute a basis for faulting the decision of the court of the Resident Magistrate. Section 73 of the Code provides:

> 73. No decree shall be reversed or substantially varied, nor shall any case be remanded, in appeal, on account of any misjoinder of parties or causes of action or any error, defect or irregularity in any proceedings in the suit, not affecting the merits of the case or the jurisdiction of the court.

This section is in *pari material* with section 99 of the Indian Civil Procedure Code. In *Muhammad Hussain Khan v. Kishva Nandan* (2), cited in **Mulla on Code of Civil Procedure** (13 ed), Volume I, at page 430, the Privy Council, commenting on that section, said:

> ... there can be no doubt that the rule embodied in section 99 proceeds
>
> Upon a sound principle, and is calculated to promote justice ...

Commenting on the same section, in *Kiran Singh v. Chaman Paswan* (3) (also cited in the book referred to above), the Supreme Court of India said:

> When a case has been tried by a court on the merits and judgment rendered, it should not be liable to be reversed purely on technical grounds, unless it had resulted in failure of justice.

In his book cited above, at page 431, **Mulla** makes the following useful comments on section 99:

> A decree will not be reversed or substantially varied in appeal for admitting a document not properly stamped, or for non-compliance with Order 13, rule 4, in admitting a document in evidence, or for admitting a document declared invalid where the judgment is not based on that document, or because the wrong side was allowed to begin, or because the suit was decided on a Sunday, or because the suit was instituted by an agent under a defective power of attorney [Order 3, rule 2], or failure to obtain leave under Order 2, rule 4, or because the plaint was signed on behalf of the plaintiff by his wife, and no power of attorney was on record, or because an order allowing execution against the legal representative of a deceased judgment-debtor was made by the transferee court insead of by the court which passed the decree. All these are irregularities not affecting jurisdiction of the court and they are cured by this section.
>
> It cannot be doubted that section 73 of the code is in accord with common sense. It enables the High Court or a Subordinate Court to do substantial justice, as opposed to justice based purely on technical grounds, when determining an appeal. It would be lamentable to the law if it were competent for such court to reverse or substantially vary a decree of a trial court on the ground not affecting the merits of the case or the jurisdiction of the court. Subject to the law, justice ought to be administered in a manner that commands the respect of the ordinary man. Section 73 of the code was, in our opinion, enacted to enable relevant courts to achieve that noble goal. It should also be pointed out, for what it is worth, that that goal is also the spirit underlying section 37 of the Magistrates' Courts Act 1984.

What does justice demand in this case? We would answer that question by saying that it demands that the appeal be allowed but an order be made, in terms of proviso (a) to s.46 (1) of the Act, that the duty with which is chargeable to Exhibit "A" be paid. Accordingly, we allow the appeal, set aside the High Court's decision and restore the decision of the court of the Resident Magistrate. The respondent is hereby ordered to pay the duty with which Exhibit "A" is chargeable. We make no order as to costs.

CHARLES MUSSA MSOFFE *v.* NBC HOLDING CORPORATION

COURT OF APPEAL OF TANZANIA
AT ARUSHA

(Mfalila, Samatta and Lugakingira, JJ.A.)

CIVIL APPEAL No. 33 OF 1996

(From the decision of the High Court of Tanzania at Arusha, Munuo, J., dated 11 April 1996, in Civil Case No. 36 of 1995)

Administrative Law – Disciplinary Committee of Parastatal Organ – Decision of, on merits and substance – Whether appellable.

Civil Practice and Procedure – Mediation process - Order for costs may be made against defaulting or unprepared party unless exceptional circumstances exist –Instance of exceptional circumstances. Order 8A, rule 5 – Civil Procedure Code 1966.

Following disciplinary proceedings the appellant services with the respondent were terminated. He filed a suit in the High Court claiming damages against the respondent, on the ground that the termination was unlawful. The case was scheduled for mediation but mediatory proceedings did not take place. The respondent strongly felt that as a matter of principle the matter could not be a subject of mediation. That attitude prompted the mediator to make an order, under rule 5 of Order 8A of the Civil Procedure Code, condemning the respondent in costs of the suit in any event. It was an issue before the High Court whether the wrongs complained of against the appellant were proved prior to termination. The finding of the trial judge was in the affirmative. The suit was dismissed, the judge saying, in relation to costs, that an order had been made by the mediator. The appellant appealed against the decision and the Court of Appeal considered whether the mediator's order was in conformity with Order 8A, rule 5.

Held: (i) A mediator should make an order condemning a defaulting party in costs under Order 8A, rule 5, where the default is caused by exceptional circumstances;

(ii) It is an exceptional circumstance where a party does not appear at a mediatory conference, genuinely and reasonably feeling that submitting to mediation process would compromise his principles.

Appeal dismissed; mediator's order for costs set aside.

Statutory provisions referred to:

(i) Civil Procedure Code 1966, Order 8A, rule 5, rule 3(1)

(ii) Appellate Jurisdiction (Amendment) Act 1994, section 4(2)

Mr. Makange, for the Appellant

Mr Maruma, for the Respondent

JUDGMENT

(Dated 16 March 1999)

MFALILA, J.A.: In the High Court of Tanzania at Arusha, the appellant Charles Mussa Msoffe sued his employer, the former National Bank of Commerce claiming the following:

(a) For a declaratory order that the purported termination of his employment was wrongful and unlawful and amounted to a breach of contract of employment.

(b) That he is entitled under the law, to a payment of special damages as averred and particularized under paragraph 13 of the plaint.

(c) That he is entitled to a payment of the general damages as averred by paragraph 14 hereinabove.

(d) Costs of the suit.

(e) Any other relief(s) this Honourable Court may deem fit to award.

The background to this suit was as follows: In December 1987, the National Bank of Commerce, now represented by the present respondent NBC Holding Corporation, employed the appellant as a bank clerk. He continued in this service until 1994 when his services were terminated for misconduct. Although the appellant's misconduct appears grave, as according to the formal charge laid against him it led to his employer incurring a loss of TZS. 121 462 057-70, the appellant's services were simply terminated and he was paid all his benefits. The appellant was however not satisfied with this punishment because according to him, the termination was wrongful, unlawful and illegal. The appellant asserted that his termination was unlawful because under the Parastatal Service Regulations, it was carried out by an unauthorized body i.e. the bank management. He therefore considered his termination as null and void hence his claim for special and general damages amounting to TZS. 39 077 515-20 and TZS. 6 000 000 respectively.

The respondents denied the allegation that their termination of the appellant's employment was unlawful, wrongful or in any way illegal because it was effected by a competent body.

At the trial in the High Court, the following issues were drawn up:

1. Whether the plaintiff's services were terminated by a competent disciplinary authority.

2. Whether the wrongs complained of against the plaintiff were proved prior to termination.

3. Whether the plaintiff is entitled to the damages he prays for.

4. To what reliefs if any are the parties entitled?

We do not know about the validity of the second issue because this was not an appeal against the substantive correctness of the decision to terminate the appellant's services, rather it was a suit to determine whether the body which the appellant alleges terminated his employment had the legal competence to do so.

At the hearing of the suit, the respondent led evidence showing that the appellant's employment was terminated by a disciplinary body within the bank, a body charged with the function of disciplining employees of the cadre to which the appellant belonged. This body is the Regional Human Reosurces Committee. A member of the Committee, Mr Faustine John Kimbengele (DW2), told the court that the Regional Human Resources Committee deals with disciplinary matters for staff in the salary scales PGS1 – 6. The appellant was a PGS6 so he came within the disciplinary authority of the committee. According to him, the disciplinary proceedings are initiated by the bank management in the person of the Resident Director or Manager. After initiating disciplinary proceedings, the Resident Director can suspend the employee concerned pending the decision of the Human Resources Committee. In the case of the appellant, he said, charges were drawn against him and were served on him. He was given time to answer them, which he did. When finally the matter was put before the Committee, it decided that the appellant's services be terminated and this decision was communicated to the Manager of the appellant's branch for necessary action. The branch manager on behalf of the management of the bank notified the appellant of the decision in his letter of 2 June 1995. According to this witness, therefore all the steps were followed before terminating the appellant's employment by the Human Resources Committee. The trial judge accepted this evidence.

On this evidence, the learned trial judge found and held that the appellant's services were terminated by the competent disciplinary authority and that the wrongs complained of against him were proved prior to termination although, as we have indicated, this last finding was uncalled for as the High Court was not seating on appeal on the merits and substance of the decision of the Regional Human Resources Committee. All the same the court dismissed the suit, without any order for costs. We shall come back to this later. Against this decision the appellant launched this appeal. A three-ground Memorandum of Appeal was filed on his behalf.

In ground one, the appellant complained that on the evidence adduced by both sides at the trial, the honourable judge erred in finding that the appellant's services were terminated by a competent disciplinary authority.

We think, the record indicates quite clearly that from the very beginning, the appellant was groping in the dark. In his plaint, he made a bare assertion that his services were terminated by an incompetent body i.e. the bank management in particular his branch manager. In his evidence he stated as follows:

> The Manager had no authority to terminate my service because the Resident Director of the Regional Office employed me so I expected the termination letter Exhibit P8 to come from him. Exhibit P8 comes from Manager NBC Mount Meru Branch though the letter speaks of the bank management terminating my services....

Later he added:

> The bank management means the bank authority in charge of the bank administration but I do not agree with the termination letter.

It is quite clear from the above that the appellant did not even know his disciplinary body. He appears to think that the disciplinary body applicable to him was the Resident Director because he is the one who employed him. But this view was wrong according to the evidence of Mr Faustine John Kimbengele (DW2) the Chief Operations Manager.

The relevant disciplinary body in relation to the appellant was the Regional Human Resources Committee, and this is the body which took the final decision to terminate his services. The appellant's main quarrel appears to be with the wording of the letter of termination which reads:

> We regret to inform you that the bank management have decided to terminate you from the bank services with effect from 1 July 1995 ...

We do not know where the appellant got the notion that a communication from the bank is invalid unless it emanates from the highest office in this case the Resident Director. At the hearing of this appeal, Mr Makange learned counsel who appeared for the appellant, submitted that he came to realize later that the proper disciplinary authority was the Regional Human Reosurces Committee and that according to the letter of termination Exhibit P8, the decision to terminate the appellant's services was not made by this committee but by the management which had no authority to do so. With respect, this is not in accord with the evidence of DW2. The trial judge accepted this evidence and we see no reason which can entitle us to differ from this finding. Accordingly, we find no merit in the complaint in this ground and we dismiss it.

In ground two, the appellant complained that the admissibility of Exhibit D1 (1 to 8) by the trial court in the course of the proceedings was contrary to the law thereby having the effect of erroneously finding that the fraudulent charges against the appellant were proved prior to this termination.

As we have already stated, this ground as well issue 2 which was framed at the trial are uncalled for because the court was not sitting on appeal against the merits of the charge against the appellant. The issue here was whether the appellant's termination of his services was effected by a competent authority. The merits of the charges could not be a subject of appeal to the High Court from the decision of the Human Resources Committee. We are certain there are appellate remedies within the institution itself. Therefore we dismiss this complaint.

In ground 3 the appellant complained that as the appellant was not called upon to controvert the investigation report which was prejudicial to him and on which the termination was based, the honourable trial judge ought to have made a finding that the appellant was not accorded a fair hearing prior to this termination.

In support of this ground Mr Makange submitted the appellant was not given a fair hearing by the Committee because he was not given an opportunity to controvert the investigator's report which was so prejudicial to him and that the appellant's written defence which was before the committee was not adequate. He added that the evidence by DW2 that the investigator's report contained the appellant's statement was not true.

On the other hand Mr Maruma learned counsel for the respondent, submitted that the appellant introduced this new complaint in his appeal which was not raised in his plaint. He added that the appellant did not raise the question that he was not given a fair bearing. We tend to agree with Mr Maruma's observation. The result is that the trial court did not get the chance to examine and determine the complaint. But even if the question had been raised in the trial court and considered, the outcome would not have been different because in our view the complaint has no merit. The committee had before it not only the investigator's report, but the appellant's statement on it. Mr Makange said DW2 was not telling the truth, but he did not proceed to tell us why. In any case as an Appellate Court we would not interfere with findings of fact without good reasons.

We are therefore satisfied that the complaint in this ground is not only devoid of any merit, but like ground two is misconceived.

In the final analysis therefore the appeal has no merit and we dismiss it in its entirety. Finally we turn now to the question of costs. In her judgment the learned judge made the following order:

> In view of the above the suit is dismissed. The order for costs was made by way of penalty on 5 December 1995 per the order of the mediator owing to the defendant's reluctance to engage in the then scheduled mediation.

The order of 5 December 1995 referred to by the learned judge stated as follows:

> **Date**: 5 December 1995
>
> Appearances as before.
>
> **Mr Nassoro:**
>
> I have instructions from my client not to participate in the mediation exercise because it would be against their principles. All my attempts to explain the advantages of settling the case through the mediation process were in vain.
>
> **mediator:**
>
> Since the defendants have been obstructive to the mediation process.
>
> **Order**
>
> The defendants are condemned in costs in any event in this case as a penalty under Order 8A, rule 5 of the Civil Procedure Code 1966 as amended by G.N. Number 425 of 1994.
>
> The case is returned to the trial judge for further proceedings as per the scheduling order.
>
> J.A. Mroso
>
> Judge
>
> 5 December 1995

This order appeared to us to be very harsh so we decided to give it a look. The provision of the Civil Procedure Code under which this order was made provides as follows:

> This is Order 8A, rule 5 of the Civil Procedure Code (Amendment of Schedules) Rules 1994.
>
> Where a party to a case or the party's recognized agent or advocate fails without good cause to comply with a scheduling order, or to appear at a conference held under sub-rule (1) of rule 3 or is substantially unprepared to participate in such conference, the court shall make such orders against the defaulting or unprepared party, agent or advocate as it deems fit, including an order for costs, unless there are exceptional circumstances for not making such orders.

We note from the proceedings of 5 December 1995 that counsel for the respondents informed the court why he could not participate in the mediation process, namely, that it would not be within the principles of his clients the National Bank of Commerce. The mediator concluded from the above that respondents were being obstructive and penalized them to pay costs in any event. We ask ourselves: In what way were the respondents being obstructive to the mediation process when they gave what we consider a very good reason based on their operating principles? It must be remembered that a bank is an institution which is answerable to its Board of Directors. In the present case, the dispute between the respondent and its employee the appellant was on whether the appellant's employment was lawfully terminated by a competent body within the bank.

The appellant maintained that his services were terminated by a incompetent body hence the termination was unlawful for which he was entitled to special and general damages amounting to millions of shillings. On the other hand, the respondent bank maintained that the termination of the appellant's services was done by a competent body, therefore lawful for which the appellant was not entitled to any damages. Given this scenario, how could the bank hit a middle ground with the appellant and justify before its Board of Directors any payment of damages to him? If the respondent bank had made or reached such a compromise and made some payment under it to the appellant, eyebrows would have been raised within the Board of Directors. This is because the position is clear cut, either the appellant's services were terminated by a competent organ or not. We were therefore surprised to read counsel's comments to the court that his "attempts to explain the advantage of settling the case through mediation process were in vain." Counsel should have protected his clients by stating

very firmly the reasons why his clients could not go through the mediation process. Had he done so, the mediator would not have found his clients obstructive and condemn them to costs in any event. The mediator would have found in these reasons "exceptional circumstances for not making such orders". The respondent bank was certainly in the circumstances of this case not "willfully and without good cause defaulting or unprepared to take part in the mediation process". If the respondent bank had been properly advised, it would have cross-appealed against the order condemning them to costs in any event. However, since we are satisfied that the order of the mediator on the costs is clearly erroneous and not in conformity with Order 8A, rule 3, we are compelled to exercise our Revisional Jurisdiction under section 4(2) of the Appellate Jurisdiction (Amendment) Act 1994. Having done so, we set aside the mediator's order condemning the respondents to pay costs in any event and instead award the respondent bank the costs of this appeal and those in the court below.

NICHOLAUS KANUNGA *v.* MIKA MELIYAR

COURT OF APPEAL OF TANZANIA AT ARUSHA

(Mfalila, Samatta and Lugakingira, JJ.A.)

CIVIL APPEAL No. 8 OF 1998

(Appeal from the judgment/decision and Orders of the court of the Resident Magistrate's Court at Arusha, Rugazia, PRM, Extended Jurisdiction, dated 14 March 1997, in Civil Appeal No. 9 of 1996)

Customary law – Waarusha Customary Law –Dispute over ownership of a piece of land - Directive of clan council – Consequences of failure to comply with directive of clan council.

Land law – Customary land law – Dispute over ownership of a piece of land - Waarusha Customary Law – Directive of clan council – Consequences of failure to comply with directive of clan council.

The respondent sued the appellant in the court of the Resident Magistrate averring that two pieces of land occupied by the appellant belonged to his late father and that he was entitled to them. Before the matter was brought before the court the parties' clan elders held two or three meetings at which it was decided that the respondent gives to the appellant one calf and two tins of the *mbege* brew as appreciation for keeping the lands within the clan, upon which the appellant would hand over one of the lands to the respondent and keep the other. Before complying with the decision of the elders the respondent sued the appellant in the court of the Resident Magistrate where he won the case because the magistrate believed that the respondent had complied with the decision of the clan elders. Aggrieved by the decision the appellant appealed to the High Court in which the appeal was re-registered in the Extended Jurisdiction registry of the court of the Resident Magistrate. Among the points raised in the appeal were that the suit was time-barred and that the trial magistrate erred in declaring the respondent the lawful owner of the suit property. The Appellate Court dismissed the point of limitation because it had not been raised at trial and faulted the trial magistrate for declaring the respondent lawful owner of the disputed lands. However, thinking that the question of ownership could not be resolved on the available evidence, he dismissed the appellant's appeal because he believed the respondent had the right to redeem the lands. Aggrieved by the decision of the appellate Court the appellant further appealed to the Court of Appeal of Tanzania.

The Court of Appeal of Tanzania was of the view that the first Appellate Court was justified in dismissing the issue of limitation. The court considered the issue of ownership of the disputed lands.

Held: (i) There was no evidence of the respondent refunding the redemption price or complying with the clan's directive to pay the appellant a calf and two tins of liquor;

(ii) Since it was not disputed that the appellant had lawfully come by the suit property, whether by purchase, redemption or both, in the absence of any refund or customary payment by the respondent, the appellant was at all times and remains the lawful owner of the suit property;

(iii) If the respondent had a right to the suit property under Waarusha law he forfeited it upon his failure to comply with the directives of the clan council.

Appeal allowed.

JUDGEMENT

(Dated 16 March 1999)

LUGAKINGIRA, J.A. : The appellant and his respondent nephew have been at loggerheads over the ownership and possession of two pieces of land at Lemara Village in the Municipality of Arusha. The matter landed in court when informal mediation bore no fruit.

The proceedings were commenced by the respondent in the court of the Resident Magistrate of Arusha in a plaint averring that the two pieces of land were previously the property of his father who, in 1970, pledged them to one Joel Kalulu for 450. The plaint further stated that the appellant redeemed the lands by refunding Kalulu's money but subsequently refused to hand over the lands back to the respondent's family. The respondent did not personally testify at the trial but he called four witnesses the totality of whose evidence was to the effect that in 1989 the parties' clan elders held two or three meetings at which it was decided that the respondent gives to the appellant one calf and two tins of the mbege brew as appreciation for keeping the lands within the clan, upon which the appellant would hand over one of the lands to the respondent and keep the other. The next thing they heard of was this litigation.

The appellant's story was that he purchased the first piece of land from the respondent's father in 1960 and redeemed the second piece from Joel Kalulu in 1964. He had quiet enjoyment of the lands until 1989 when the respondent started laying claims thereto and complaining to the clan elders. The elders advised the respondent to pay the appellant one cow and two tins of the local brew, and gave him one month to do so, but instead of complying the respondent went to court. The appellant's evidence was corroborated by three

other witnesses and it is significant that it was not materially different from the evidence of the respondent's witnesses.

In the judgment of the trial magistrate, though, the respondent was found to have complied with the clan's decision and he was accordingly held to be the lawful owner of the suit lands. The appellant was aggrieved by the decision and appealed to the High Court but the appeal was re-registered in the Extended Jurisdiction registry of the Resident Magistrate's Court. Among the points raised in the appeal were that the suit was time-barred and that the trial magistrate erred in declaring the respondent the lawful owner of the suit property. The learned appellate magistrate (Rugazia, PRM (Ext. Jur.) dismissed the point of limitation but while faulting the trial magistrate for declaring the respondent lawful owner of the disputed lands, he thought the question of ownership could not be resolved on the available evidence and found himself having to dismiss the appellant's appeal because he believed the respondent had the right to redeem the lands. This prompted the present appeal and the same points were certified for consideration by this court, that is, whether the suit was time-barred and who between the parties has title to the suit lands.

On limitation the appellate magistrate observed, and correctly, that the question was not raised at the trial. In fact no evidence was led to suggest that the respondent had slept on his rights. Although the respondent did not testify to provide the opportunity to be questioned on his age, that did not preclude the appellant, a paternal uncle of the respondent to establish that fact by other evidence. We think in these circumstances the learned appellate magistrate was justified in dismissing the issue of limitation and, similarly, the same cannot be raised before this court.

When he turned to the question of ownership, the appellate magistrate gave careful consideration to the evidence and made observations and findings to which it is useful to refer. He said:

> On the available evidence it is not clear, indeed it is not established that the respondent fulfilled those [clan] conditions.

He again said:

> I do agree with the trial magistrate that the main issue was who was the lawful owner of the suit land. Nevertheless, on the evidence tabled before him, this main issue could not in any way be resolved because evidence did not support the magistrate's finding. I am saying so because there was no evidence that the respondent (then plaintiff) had repaid the appellant as to redeem his father's property.

He returned to the subject towards the end of his judgment and further said:

> The only issue I find fault with the judgment of the trial court is the declaration of the plaintiff (now respondent) as the lawful owner of the disputed land. As already observed, there is no evidence that the respondent refunded the money and the customary requirement of two tins of liquor and a calf. By no means should he be allowed to have the land free of charge. Since he has the right of redemption he has to fulfill those conditions.

We are in agreement with the learned appellate magistrate on the question of repayment. There was indeed no evidence of the respondent refunding the redemption price or complying with the clan's directive to pay the appellant a calf and two tins of liquor, and one wonders where the trial magistrate got the evidence to the contrary from. In fact the preponderance of evidence was to the effect that the respondent refused or ignored to make any payment to the appellant. It is also not without significance that he has not cross-appealed against the pertinent and adverse findings by the appellate magistrate or the implicit order to render payment to the appellant. And given this state of affairs, we think, unlike the learned appellate magistrate, the question of ownership presented no difficulty. It was not disputed that the appellant had lawfully come by the suit property, whether by purchase, redemption or both. In the absence of any refund or customary payment by the respondent, it should have been held, as we hold, that the appellant was at all times and remains the lawful owner of the suit property.

Finally, the appellate magistrate seems to have been constrained to dismiss the appellant's appeal because he believed that the respondent had a right to redeem the lands. We think if ever the respondent had such right under Waarusha law he forfeited it upon his failure to comply with the directives of the clan council. He was given one month to comply but he did not comply and has never given any explanation; that then was the end of the matter. In any case, the right of redemption cannot be enjoyed in perpetuity. Any custom enshrining this right ought now to be construed in the light of existing laws of limitation as well as public policy. Even though it was not established in this case whether the respondent's suit was time-barred, it would be contrary to public policy to supplant a person from land he has occupied and used for more than thirty years.

For all that we have endeavoured to state, this appeal is allowed with costs.

SIODI MINDEU *v.* KOLOMBO SOKOITE AND SOKOITE LOIBORU

COURT OF APPEAL OF TANZANIA
AT ARUSHA

(Mfalila, Samatta and Lugakingira, JJ.A.)

CIVIL APPEAL No. 20 OF 1997

(Appeal from the Ruling and Order of the High Court of Tanzania at Arusha, Nyamasagara, PRM, Extended Jurisdiction, dated 16 February 1996, in Civil Review No. 12 of 1995)

Civil Practice and Procedure – Jurisdiction – Whether a magistrate with Extended Jurisdiction can preside over the High Court – Section 45 of the Magistrates' Courts Act 1984 as amended by Acts Number 2 and 17 of 1996.

Jurisdiction – Whether a magistrate with Extended Jurisdiction can preside over the High Court – Section 45 of the Magistrates' Courts Act 1984 as amended by Acts Numbers 2 and 17 of 1996.

A Principal Resident Magistrate with Extended Jurisdiction presided over the High Court and heard an appeal in a suit originating from a court of the Resident Magistrate. The suit concerned ownership of a piece of land held under customary tenure. The Principal Resident Magistrate, after hearing the appeal, formed the impression that the suit was improperly commenced in the court of the Resident Magistrate in that there was absence of leave of the High Court for such proceedings to commence in a court other than a Primary Court; consequently he nullified the proceedings in the court of the Resident Magistrate.

The appellant who apparently had obtained leave of the High Court before instituting the suit in the court of the Resident Magistrate applied to the court that heard and determined the appeal to review its decision. The application came before the Principal Resident Magistrate who had heard the appeal. He dismissed it summarily without indicating whether leave had in fact not been obtained. Aggrieved by the ruling in that review, the appellant appealed to the Court of Appeal of Tanzania.

Before hearing the merits of the appeal the court considered whether the Principal Resident Magistrate with Extended Jurisdiction could preside over the High Court.

Held: (i) Act Number 2 of 1996 as well as Act Number 17 of 1996 do not empower a Resident Magistrate with Extended Jurisdiction to exercise that jurisdiction in the High Court. The amendment to section 45 of the Magistrates Court Act made under Act Number 2 and Act Number 17 of 1996, in effect empowers a Resident Magistrate duly vested with Extended Jurisdiction under the Act to try in the court of the Resident Magistrate cases which are ordinarily triable by the High Court, and which the High Court may transfer to that court to be tried;

(ii) Since the provisions of sub-section (4) of section 45 introduced by Act Number 17 of 1996 are retrospective their effect is to cure the irregularity that was committed when the Principal Resident Magistrate presided over the High Court. The magistrate is to be deemed to have heard Civil Appeal Number 14 of 1995 in the court of the Resident Magistrate upon transfer thereto by and from the High Court.

Order accordingly.

Cases referred to:

(1) *Bakari Sefu v. Republic*, Criminal Appeal Number 21 of 1993 (unreported)

Statutory provision referred to:

(i) Magistrates Courts Act 1984, sections 45 and 63(1)

Mr. Lundu, for the Appellant

Mr. D'Souza, for the Respondent

RULING

(Dated 16 March 1999)

LUGAKINGIRA, J.A. : When Civil Appeal Number 14 of 1995 came on for hearing before the High Court at Arusha, the court was presided over by the late EJ Nyamasagara, a Principal Resident Magistrate with Extended Jurisdiction. The appeal arose from a suit instituted by the present appellant in the court of the Resident Magistrate and concerned ownership of a piece of land held under customary tenure. After hearing the appeal and while considering judgment, the Principal Resident Magistrate formed the impression that the suit was improperly commenced in the court of the Resident Magistrate in view of the proviso to section 63(1) of the Magistrates' Court Act 1984 which states in part:

> ... no civil proceedings in respect of immovable property, other than proceedings relating to land held under Government lease or a right of occupancy granted under the Land Ordinance ... shall be commenced in any court other than a Primary Court unless the Republic is a party thereto or unless the High Court gives leave for such proceedings to be commenced in some other court.

He did not see that leave and therefore nullified the proceedings in the court of the Resident Magistrate.

The appellant had apparently obtained leave of the High Court before instituting the suit in the court of the Resident Magistrate and therefore applied to the High Court in Miscellaneous Civil Review Number 12 of 1995 for the court to review its decision. The application came before the Principal Resident Magistrate who dismissed it somewhat summarily stating that his judgment would stand. We say the dismissal was somewhat summary because, apart from its brevity, it did not indicate whether leave had in fact not been obtained. The appeal before us was against the ruling in the review.

At the hearing of the appeal the parties were represented by learned counsel, the appellant by Mr Lundu and the respondent by Mr D'Souza. We asked them before going into the merits of the appeal to address us on whether the Principal Resident Magistrate with Extended Jurisdiction had power to preside the High Court. They both thought so. After a brief adjournment to ascertain the position, Mr D'Souza came to say that before the enactment of Act Number 2 of 1996 Resident Magistrates with Extended Jurisdiction exercised the jurisdiction in the High Court but following that Act appeals are transferred by the High Court to Resident Magistrates' courts for disposal by competent magistrates. Since the proceedings in the High Court were disposed of before Act Number 2 of 1996 came into effect, Mr D'Souza suggested that they were properly dealt with.

Although we are mindful of the effect of Act Number 2 of 1996 as well as Act Number 17 of 1996, to which we shall revert, we do not think it correct to say that a Resident Magistrate with Extended Appellate Jurisdiction has at any time been empowered to exercise that jurisdiction in the High Court. The Acts mentioned above introduced a new sub-section (2) and a new sub-section (4) respectively in section 45 of the Magistrates' Court Act but they never amended sub-section (1) which is relevant to the problem at hand. The sub-section empowers the Minister to invest any Resident Magistrate with appellate jurisdiction ordinarily exercisable by the High Court in relation to any case or category of cases, and further states (citing the necessary parts only):

> And such magistrate shall, have power in relation to such category of cases... to hear and determine appeals and exercise in its capacity at a Court of Appeal, in *in the same manner and to the extent as the High Court*... and for the purpose of any appeal from his decision in the exercise of such jurisdiction, *such Resident Magistrate shall be deemed to be a judge of the High Court and the court presid.* [emphasis supplied]

This provision has so stated since its enactment in 1984 and has remained unchanged to date. It will be noted, in the first place, that the magistrate with Extended Jurisdiction exercises that jurisdiction "in the same manner and to the same extent as the High Court". That means he does not become part of the High Court because it would be tautological to say that the High Court exercises jurisdiction in the same manner and to the same extent as the High Court".

Furthermore, the position is probably put beyond uncertainty where appeals are involved. A Resident Magistrate with Extended Jurisdiction is deemed to be a judge, that is, not a judge as such; "and the court presided over by him [is] deemed to be the High Court". In other words, he presides over a court which is not the High Court for, once again, the High Court cannot be deemed to be the High Court. According to sub-section (1), therefore, a Resident Magistrate with Extended Jurisdiction cannot preside over the High Court and the contrary has never been the case.

The enactment of Act Numbers 2 and 17 of 1996 came in the wake of wanton disregard of the provisions of subsection (1) of section 45, or a misunderstanding of it. Act Number 2 introduced a new subsection (2) which empowers the High Court to transfer appeals from the High Court for hearing by Resident Magistrates with Extended Jurisdiction and Act Number17 introduces subsection (4) which states:

> For avoidance of doubt, any proceedings conducted by a Resident Magistrate with Extended Appellate Jurisdiction prior to the coming into effect of the provisions of this sub-section, such proceedings shall be deemed to have been conducted under the provisions of subsection (2) of this section.

What is the effect of this? The matter was raised in the criminal procedure context in the case of *Bakari Sefu v. Republic* (1) and although the appeal was decided on other grounds, the court had opportunity to refer in passing on equivalent amendments on the Criminal Procedure Act, 1985 and said:

> The amendment to these sections in effect empower a Resident Magistrate duly vested with Extended Jurisdiction under the Act to try in the Resident Magistrate's Court cases which are ordinarily triable by the High Court, and which the High Court may transfer to that Court to be tried there. The amendment operates retrospectively ... The position is that Mr Mrema, Principal Resident Magistrate who was duly vested with Extended Jurisdiction, is deemed to have conducted the appellant's trial in the Resident Magistrate's Court, and upon transfer of the case to that court by the High Court ...

We think these remarks represented a correct appreciation of the amendments to the Criminal Procedure Act and, in our view, the same can be adopted in relation to the problem under and amendments to section 45 of the Magistrates' Court Act. From the earlier analysis it is our view that the late Principal Resident Magistrate had no jurisdiction to preside over the High Court as he purported to do. If that were the end of the matter, we would have had no hesitation in declaring the proceedings a nullity. The enactment of Act Numbers 2 and 17 of 1996 has altered all that. The provisions of subsection (4) of section 45 cited earlier are retrospective and their effect is to cure the irregularity which was committed when the late magistrate presided over the High Court. The magistrate is to be deemed to have heard Civil Appeal Number 14 of 1995 in the Resident Magistrate's Court upon transfer thereto by and from the High Court.

In the light of this decision, the appeal before this court will proceed to hearing on a date to be appointed.

C.7874 D/CPL. JUMA MSIWA AND E.3479 D/C MATABA MATIKU *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA AT ARUSHA

(Mfalila, Samatta and Lugakingira, JJ.A.)

CRIMINAL APPEAL No. 8 OF 1999

Criminal Practice and Procedure – Death of Accused – Accused person dies before completion of the case against him – What the court should do.

While the case was being heard by the High Court of Tanzania one of the six accused persons died. Upon confirmation of the death the prosecution entered a *nolle prosequi* under section 91(1) of the Criminal Procedure Act 1985, and the learned judge discharged the accused. Upon appeal by two appellants who had been convicted by the High Court, the Court of Appeal of Tanzania considered the propriety of discharging a dead accused.

Held: (i) since section 91(1) of the Criminal Procedure Act 1985 presupposes that a discharge under it is not a bar to future prosecution for the same offence, it can only apply to accused persons who are living;

(ii) since there is a gap in codified law as in situations where accused persons die before the completion of cases against them resort should be made to Common Law;

(iii) following the Common Law the case against a dead accused abates.

Order accordingly

Statutory provisions referred to:

(i) Appellate Jurisdiction (Amendment) Act 1993, section 2(2)

(ii) Criminal Procedure Act 1985, section 91(1)

Mr Hemba, for the first Appellant

Mr Sandi, for the second Appellant

Miss Munisi, for the Republic

JUDGMENT

(Dated 16 March 1999)

MFALILA, J.A.: The two appellants, both police officers, were charged with the offence of murder before the High Court sitting at Moshi (Chipeta, J.). The particulars of the charge alleged that the two appellants namely number C.7874 D/COPL. Juma Msiwa first appellant, but was third accused at the trial and number E.3479 D/C Mataba Matiku second appellant, he was fifth accused at the trial and four others who were acquitted at the end of the trial, on or about the 30 June 1996 at Maili Sita Village in Hai District Kilimanjaro Region murdered one Lt. General Imrani Hussein Kombe. The four other accused who were acquitted, three of whom are also police officers are number C. 4246 D/Sgt. Thomson Mensah (first accused), number D. 5283 D/Copl. Elisante Daniel Tarimo (second accused), number D 8853 D/C Chediel Elinisafi (fourth accused) and the only civilian Ismail Mohammed Katembo (sixth accused) who died while in custody. We want to comment and correct the record in respect of the sixth accused the late Ismail Mohamed Katembo. Upon it being confirmed that he was dead, the Senior State Attorney purported to enter a *nolle prosequi* under section 91(1) of the Criminal Procedure Act 1985. Thereupon without much ado the presiding judge (Nchalla J.) discharged the late Katembo. Under that section, the Senior State Attorney as well as the court should have realized from the wording the consequences of any act taken thereunder that it can only apply to living accused persons. That section stipulates that a discharge under it is not a bar to future prosecution for the same offence. After his death, the sixth accused was effectively placed beyond the reach of human power. Therefore as a dead person, he cannot be discharged. We note that there is no specific provision in the Criminal Procedure Act dealing with accused persons who die before their cases are completed and that the general practice has been to call in aid section 91 whereby the prosecution enters a *nolle prosequi* and the accused is then discharged by the court. As we have shown, this section is inappropriate to use

in cases of dead accused persons for the reasons we have given. We therefore wish to take this opportunity to indicate a more appropriate method of dealing with dead accused persons both in the subordinate and High Courts. Both the Penal Code and the Criminal Procedure Act are essentially codified law and rules from the Common Law. Where there is a gap in the codified law as in situations where accused persons die before the completion of cases against them, a resort is made to the Common Law. Under the Common Law the case against a dead accused abates. In the circumstances, it is more appropriate in such cases for the prosecution to inform the court that the accused is dead and after production of the written evidence to that effect, the court marks the case against the dead accused as abated.

In the present case, we wish to revise the discharge order entered by the High Court in respect of the sixth accused Ismail Mohamed Katembo. Using our Revisional Jurisdiction under section 2(2) of the Appellate Jurisdiction (Amendment) Act 1993, we set aside the discharge order and in its place record that as the sixth accused Ismail Mohamed Katembo is dead, the case of murder against him abates.

Reverting now to the case in hand, the evidence on the record reveals that the deceased Lt. General Imrani Hussein Kombe was killed because he was mistaken for what was described as a notorious bandit, Ernest Joseph Sambua Mushi *alias* White. The background to the tragic killing of the innocent Lt. General Imrani Hussein Kombe was as follows: This tragic event was triggered by the stealing in Dar es Salaam on 24 June 1996 of a motor vehicle registration number TZG 50 a Nissan Patrol the property of one DW Ladwa. The police authorities in Dar es Salaam region seem to have been activated to full swing for in their zeal, they detained a motor vehicle a Nissan Patrol belonging to the deceased. The deceased and his family were then on a visit to Dar es Salaam. Although the family has a house in Dar es Salaam, they ordinarily lived in Moshi. It was however soon established that the vehicle TZD. 8592 although similar in colour and make to the stolen Ladwa vehicle, was not the one, it was therefore released and returned to the owners. The suspected thief of the Ladwa

vehicle was the notorious Ernest Joseph Sambua Mushi *alias* White who was believed to have taken the vehicle to Kilimanjaro region. Acting on this belief, police authorities in Dar es Salaam decided to dispatch two detectives to Moshi to trace the vehicle. These were D/Sgt. Thomson Mensah (first accused) and D/Copl. Juma Msiwa (third accused). They traveled to Moshi in a vehicle provided by the complainant Ladwa and driven by his own driver the late Ismail Mohamed Katembo who was also to be used to identify the stolen vehicle. The party arrived in Moshi on 27 June 1996 and reported at the regional police headquarters. They were received by the Kilimanjaro Regional Crime Officer who decided to strengthen the search team by adding to it other three detectives. These were D/C Elisante Daniel Tarimo (second accused), D/C Chedieli Elinisafi (fourth accused) and D/C Mataba Matiku (fifth accused). For this purpose, the party was issued with a weapon, a sub-machine gun (SMG) number 1270 with 30 rounds of ammunition. This gun was carried by D/C Mataba Matiku. The other accused members of the investigating team, D/Copl. Juma Msiwa and D/Sgt. Thomson Mensah, had a pistol each with eight bullets. D/C Elisante Daniel Tarimo and D/C Chediel Elinisafi were not armed. The investigating team thus constituted, embarked on the search for the stolen vehicle using the complainant's vehicle TZB 7209. On 30 June 1996 at about 4 pages while on the same mission at Shiri Njoro Village and driving towards Arusha on the Moshi-Arusha highway, they saw ahead of them driving in the opposite direction i.e. towards them, a motor vehicle registration number TZD 8592 Nissan Patrol. Their driver, the late Ismail Katembo, exclaimed that the vehicle in front of them was the stolen vehicle and he signaled the driver by flickering his lights to stop, but the driver did not stop, instead after passing them he turned into a side road and drove on. The police party turned their vehicle and pursued the fleeing vehicle firing as they went. The other vehicle which turned out to have been driven by the deceased, stopped when it hit a stumpage The firing by the third and fifth accused persons some of whose bullets hit the deceased killed him on the spot. After the killing, the report was sent to the Kilimanjaro Regional Crime Officer that the stolen vehicle

had been recovered and the notorious thief killed. But soon thereafter the Regional Crime Officer received information by telephone from one Iwisi Shoo that the stolen vehicle had not been recovered and that the person whom the police officers had killed was not a bandit but Lt. General Kombe. All the accused persons including the driver of the Ladwa vehicle were arrested and charged with this killing.

The deceased's widow Roselene Kombe PW4, gave evidence to the effect that during the relevant period they were in Dar es Salaam. While in Dar es Salaam, a motor vehicle similar to theirs in both make and colour was stolen, it was for this reason that their vehicle was on suspicion seized by police to be the stolen vehicle, but it was later released to them. She went on to narrate that on 30 June 1996 she returned to Moshi and found her husband the deceased at their home in Maili Sita Village. At about 4:00pm, she and the deceased left home and drove towards Moshi Town. They had an appointment at some point on the way to meet their prospective employees. After driving for some time, she added, she saw in front of them a motor vehicle in which there were about four people. Before they reached the vehicle, her husband, who was driving, indicated that he was turning left into a side road which he did. But they had not gone far when she heard blasts of gun fire. The firing was persistent and one of the bullets hit the deceased on the shoulder. She heard him cry "Jiii" and she advised that they should get out and run. She fell down, got up and ran on. She added that she heard her pursuers say "tena wako wawili". All this time, she said, she and her husband were under the impression that they had been ambushed by bandits who were after their vehicle. She ran on until she reached a certain house and hid behind a vehicle. She remained there until she was certain that matters had calmed down. She heard people saying "majambazi mengi sana, upoteze maisha kwa sababu ya gari". It was then, she said, when she realized that her husband was dead.

In their respective defences, all the accused including the two appellants gave evidence. The third accused number C. 7874 D/Copl. Juma Msiwa (first appellant) described the events from the day he

and the first accused left Dar es Salaam for Moshi in search of the stolen Ladwa vehicle, their arrival in Moshi and their encounter with the suspected vehicle on 30 June 1996 at about 4.00pm, and how they pursued the suspect vehicle into a side road leading to a maize field. He added that when their vehicle stopped, the first accused who was their leader ordered them to get out and fire into the air. That he and fifth accused did so and without explaining how the deceased was killed, he added that their shooting into the air did not make the driver of the suspect vehicle to stop, they decided to shoot at the tyres although it was difficult to aim due to the terrain in the maize shamba. But he said that the deceased had a wound on the left shoulder and three other gun shot wounds. This in his view proves that they had no malice when firing at the motor vehicle. The third accused admitted that the deceased was not armed, but that when the suspect vehicle stopped and the left passenger door flew open, he fired to prevent the man's escape and he saw him fall down. He denied firing at the deceased or at the car, but he saw the deceased come out of the car, run a few steps and fall down. He concluded his evidence as follows:

> When the deceased came out he did not surrender. He simply ran away and later fell down.

He was sure however that none of the bullets from his gun touched the deceased because he only aimed at the tyres.

The fifth accused number E.3479 D/C Mataba Matiku (second appellant) also gave his version of the events of that fateful day as they were chasing the suspect vehicle on a side road. We shall let him tell his own story:

> When the motor vehicle (theirs) stopped after hitting a heap of sand I was ordered by the first accused to jump out. We did so. Then he ordered us to fire into the air so that the suspect motor vehicle could stoppage I came out and the third accused followed. Then I fired one shot in the air. When I cocked it, I do not know how many bullets went off. I knew there was some fault with my gun. I corrected the fault. That motor vehicle did not stop we started chasing it and firing at it aiming its tyres. The motor vehicle was going fast and it was bumpy. I did not count how many bullets I fired as I was running. When I was aiming at its tyres, I was about 25 metres away from it. I decided to aim at its tyres to slow that vehicle's motion so that we could arrest the suspect and seize the property. I could not have done so by any other means as I was on foot. By then third accused also fired two shots in the air. I heard the shots from behind me. It was just about 5 paces behind me.
>
> Later it hit a stump and stopped. I did not continue firing after it stopped. Then I saw left door open. Then he came out and fell down. He stood up and ran. Then third accused fired a shot in front of him so as to alert the deceased to stop. Then the deceased fell down. He did not stand up again. I do not know if his shot hit the target or not. He was dead. We examined the deceased's body....

At the trial, the prosecution case was that the accused were guilty of murder because the nature of fatal wounds inflicted on the deceased, shows that they had only one intention, to kill the notorious bandit and rid society of his nefarious activities. There is no other explanation for pumping four bullets into the human body, on the chest and abdomen. The defence case was that they were pursuing a dangerous criminal who was usually armed and that they aimed all their shots in the air and at the tyres of the suspect vehicle and that therefore the killing was accidental.

After a careful analysis of the evidence, the learned trial judge made the following findings:

> It is a fact that at the time the third and fifth accused persons started firing into the air and later at the deceased's motor vehicle, they genuinely believed that the person in that motor vehicle was an armed bandit. But when the deceased came out of the motor vehicle, both accused persons knew that he was not armed. Besides, the deceased did not even attempt to challenge them or charge at them. Instead, he was running away with his left facing the accused persons and running awkwardly. By then the third and fifth accused persons were not more than 30 meters from the

> evidence of PW3 or even less from the additional statement of the fifth accused. The two accused persons, therefore, had every opportunity of arresting him without the use of a lethal weapon. On the evidence and in these circumstances, I am satisfied and find as a fact that the third and fifth accused persons deliberately and for no lawful cause whatever, aimed at and shot the deceased dead, perhaps to get rid of a notorious bandit. That in my view, was killing with malice aforethought.

With these clear findings, the learned trial judge found the two appellants guilty of the offence of murder for which they stood charged and convicted them. In accordance with the law, he sentenced both of them to suffer death by hanging. These two appeals are against the convictions and the sentence of death.

At the hearing of this appeal, the first appellant was represented by Mr Itemba learned advocate who had filed a four point Memorandum of Appeal, while the second appellant was represented by Mr Sandi who had also filed a four point Memorandum of Appeal on his behalf. We note that ground two in the first appellant's Memorandum of Appeal is the same as the ground 3 in the Memorandum of Appeal of the second appellant, so they will be dealt with together. We shall start with the first appellant's Memorandum of Appeal.

In ground 1, the first appellant complained that the trial court erred when it left undecided the question whether or not the appellants in leaving the motor vehicle and follow up the deceased's motor vehicle did so on the instructions of their leader one D/Sgt. Thomson Mensah or acted on their own and contrary to his express order not to leave the motor vehicle or to fire their guns.

In support of this ground. Mr Itemba submitted that it was accepted at the trial that the first accused ordered the other accused persons to get out of the vehicle in pursuit of the suspect motor vehicle, and that therefore his client the first appellant left the vehicle on the instructions of his team leader and that for this reason his action of firing three shots to frighten the occupants was lawful.

In reply Miss Munisi learned Senior State Attorney who appeared for the Republic, said that a specific finding on this question was not necessary in view of the judge's findings of fact that the appellants deliberately fired the fatal shots at the deceased. We agree. If indeed the first accused ordered the other accused persons to get out and fire into the air, he did not order them to shoot and kill the deceased. In fact if he had done so, that would have been an unlawful order which the appellants were not obliged to obey or could obey only at their own peril. The learned trial judge specifically held and found as a fact that the appellants "deliberately and for no lawful cause whatever aimed at and shot the deceased dead...." He held this after his earlier findings that in the circumstances the appellants had every opportunity of arresting the deceased without the use of lethal weapons. These views by the learned judge appear to be in accord with those of the team leader who said in his evidence:

> If a suspect is fleeing, you do not use a gun unless he is armed. You must look for other means to arrest him. If you shoot at him, you might kill him. You can shoot in the air to warn him. You cannot shoot him in the leg if he is not armed. You only use other reasonable force to arrest him. Since they saw him come out unarmed, it was not wise to shoot the deceased. It is not correct to say they used reasonable force in effecting an arrest because they killed him. [When he was unarmed]

And he added:

> After the motor vehicle had stopped the accused persons could easily have chased the deceased and arrested him.

We hasten to add that the chase and arrest of the deceased by the appellants could have been more easily accomplished because the deceased had already, as it were, been crippled by an earlier shot, that is why he was seen running awkwardly. For these reasons we find no merit in the complaint on this ground and we dismiss it.

In ground 2, the first appellant complained that the trial court erred when it held that when the deceased came out of the motor

vehicle the appellants knew that he was not armed. The second appellant raised the same complaint in ground 3 of his Memorandum of Appeal.

In support of this ground, Mr Itemba submitted that there was no way the appellants could have known that the deceased was unarmed. Mr Sandi in support of his ground 3 added that it should be remembered that the appellants were pursuing an armed bandit. But we think that this was only a belief on their part which should have been dispelled when they saw that the man they had been pursuing was not the aggressive type they had thought him to be, but a man virtually crippled by their earlier shots who could only manage an awkward trot. Both appellants contended that the deceased did not in any way threaten them. We are therefore satisfied as was the learned trial judge that the appellants knew or should have known from the surrounding circumstances that the deceased was unarmed when he came out of the vehicle. Accordingly we dismiss the complaints in ground 2 and 3 in the respective Memorandum of Appeal.

In ground 3, the first appellant complained that the trial court erred when it convicted him with the offence as an aider and abettor of the second appellant when there was no proof that the two appellants had a common evil intention at the time. We agree with this complaint that the learned judge was wrong to convict the first appellant as an aider and abettor when he specifically found that the third and fifth accused persons (the present appellants) "deliberately and for no lawful cause whatever aimed at and shot the deceased dead". There is evidence which was accepted that both accused persons fired at the deceased, with their respective weapons and the pathologist could not differentiate which of the nine bullet wounds he found on the deceased was caused by which weapon. There was no room in the circumstances to treat one as an abettor and the other as a principal. Indeed, we think in the end that is what the learned judge did, for he found both of them guilty of the killing of the deceased and that they did so with malice aforethought.

Lastly in ground 4, the first appellant complained that the trial court erred when it held that the killing of the deceased was deliberate

despite the strong evidence on the defence that the deceased was shot accidentally.

At the hearing of the appeal, Mr Itemba submitted in support of this ground that this was without prejudice to the first appellant's denial that he did not shoot the deceased, but that if the court finds that the first appellant shot the deceased, then he invited the court to find that the shooting was accidental.

We can dispose of this complaint by looking at the postmortem examination report and the evidence of the doctor who prepared it to see the nature and position of the fatal wounds. Mr Ndetiyo Pallangyo told the trial court that he examined the body of the deceased postmortem, and made the following findings: Externally, he saw nine wounds four were entry wounds, four exit and one superficial. The entry bullets tore through lungs, heart, intestines, liver and caused extensive bleeding externally and internally, he also traced the track of each bullet and found that the entry and exit wounds matched, and that this explained why no spent bullets were found in the body. He added that the fact all spent bullets came out, means that they were at high speed shot from either an SMG or a pistol and they exited singly with some bullets passing through bones. He explained that the bullets must have passed through the body at high speed because bullets slow down with distance, so the shooters could not have been more than 30 meters from the deceased. From these injuries, Mr Pallangyo concluded that the cause of death was heavy bleeding due to bullet wounds.

From this report, we note that the deceased was shot four times in the chest and abdomen area. These could not have been caused by shots in the air or while aiming at the tyres. The four shots which hit the deceased in the chest and abdomen area were fired from a range of thirty metres, or less. So we asked ourselves; what kind of accident was this? The nature of the bullet wounds inflicted in front of the body and clearly at short range wherein all the bullets existed, prove a clear intention to kill. We find on this analysis that the complaint in this ground has no merit and we dismiss it.

We now turn to the appeal of the second appellant. In ground 1, the second appellant complained that the trial court erred in law in finding that on the agreed facts and the evidence that was adduced in court during trial, the killing of the deceased does not amount in law to justified homicide.

We shall at the same time deal with ground 4 because at the hearing of the appeal, Mr Sandi informed us that he intended to argue these two grounds together. In this ground, the second appellant complained that the trial court failed completely to appreciate all circumstances surrounding the case per the evidence adduced in court and hence ended up in making findings on inferences, speculations and imports thereby neglecting to abide by the law of burden of proof in criminal proceedings.

Elaborating on these two grounds, Mr Sandi submitted that taking all the circumstances prevailing at the time, the second appellant was trying to effect the arrest of an armed robber and recover the motor vehicle. The appellant believed that the suspect was a hardcore criminal who was armed, and that he was the notorious "White" who was at the time being sought by police for murder in Moshi. With all this in mind, he said, the appellants were obliged to use their guns. The complaint in ground 4 is so vague that it was no surprise to us that Mr Sandi made no effort to elaborate it.

To make the killing of the deceased in this case "justified", it had to be established that the appellants shot him in self defence or that the force they employed in effecting his arrest was reasonable. In his evidence in defence, the second appellant painted a picture of himself and his colleague the first appellant of very careful and responsible police officers. He said:

> Later it (deceased's vehicle) hit a stump and stopped. I did not continue firing when it stopped. Then I saw the left door open. Then he came out and fell down. He stood up and run. Then third accused (first appellant) fired a shot in front of him so as to alert the deceased to stoppage then the deceased fell down. He did not stand up again. I do not know if his shot hit the target or not. He was dead. We examined the deceased's body ...

In our view this innocent and responsible picture of themselves does not explain how the deceased fell down if all their bullets missed him as they were aimed either in the air or at the tyres, or how the deceased received the multiple gun shot wounds in the chest and abdomen. The second appellant went on to explain further:

> You can use a gun if it is difficult to arrest a robber, it is written in the PGO (Police General Orders) allowing use of guns. I used a gun because he refused to stoppage I had to use a gun to arrest him. "White" is dangerous.

But considering the fact that the vehicle had stopped and the man was coming out of the vehicle unarmed and was just running away, what justification was there to use the gun in the way he used it even if the PGOs allow it? He himself said that the use of guns is allowed by the PGOs only in circumstances where it is difficult to arrest an armed robber. In this case, the deceased was not armed and in fact as he had been shot in the shoulder he could, as has been observed earlier, only manage an awkward run. In this position, the deceased was neither a threat nor a difficult subject to arrest. We also think that as the police party never identified themselves and were in civilian clothes in a civilian vehicle, the deceased and his wife Roselene (PW4) were entitled to think and believe that their pursuers were bandits who were after their vehicle a Nissan Patrol, apparently very much sought after by motor vehicle thieves. They were therefore entitled to refuse to stop and run for their dear lives. This belief was confirmed by the attitude of neighbours when they saw the deceased's body. They believed the deceased had been killed by bandits who wanted his motor vehicle. Roselene, PW4 heard them say:

> *Majambazi mengi sana. Upoteze maisha kwa sababu ya gari.*

So people thought the deceased should have surrendered his vehicle to the bandits and save his life.

We are therefore satisfied that since the deceased was not in any way a threat to their lives, and it was not difficult to arrest him, we fail to see how his killing could be justified. The team leader PW1 said and we quote him again:

> Since they saw him come out unarmed it was not wise to shoot the deceased. It is not correct to say they used reasonable force in effecting an arrest because they killed him.

We might add, "When he was unarmed." As we did not see anywhere in the record where the learned judge indulged in speculations and imports, we also find the complaints in both grounds 1 and 4 have no merit and we dismiss them. Ground 2 was abandoned and we have already dealt with ground 3. On the whole therefore we find no merit in the appeals of both the first and second appellants and we accordingly dismiss them in their entirety.

LEKENGERE FARU PARUTU KAMUNYU AND 52 OTHERS *v.* MINISTER FOR TOURISM NATURAL RESOURCES AND ENVIRONMENT AND THREE OTHERS

COURT OF APPEAL OF TANZANIA
AT ARUSHA

(Nyalali, C.J., Ramadhani and Lubuva, JJ.A.)

CIVIL APPEAL No. 53 OF 1998

(From the Judgment and Decree of the High Court of Tanzania at Moshi, Munuo, J., dated 19 June 1998, in Consolidated Civil Case No.33 of 1994)

Land Law – Ancestral customary land title – Appellants' occupation of Mkomazi Game Reserve – Appellants' occupation began in 1940s but was preceded by other tribes – Whether appellants have ancestral customary land title over the Reserve in dispute.

Land Law – Locus standi – Judgment in rem – Appellants suing on their own behalf and on behalf of the Maasai community – Whether tenable in law.

Land Law – Title of ownership – Appellants purporting to occupy land under ancentral customary title – Whether occupation constituted deemed right of occupancy.

Land Law – Eviction – Some appellants lawfully occupying land in dispute – Appellants served with notice of eviction – Appellants evicted in contravention of the Land Acquisition Act 1967 – Whether eviction lawful.

Evidence – Some appellants did not testify at the trial – Appellants represented by advocate – Whether Appellants entitled to obtain judgment in their favour.

This is an appeal by Lekengere Faru Parutu Kamunyu and 52 others against the judgment and decree of the High Court of Tanzania at Moshi in a suit against the four respondents. The suit filed in the High Court was based on three claims: (1) forceful eviction of the plaintiffs and their families from their ancentral lands (2) burning down homesteads and Dwellings and destroying livestock and property thereby (3) breaking down of Maasai customary way of life and emigration of their members to Kenya and in towns. Prior to the commencement of the trial Counsel for the respondents raised a preliminary objection on the *locus standi* of the appellants in suing on behalf of the Maasai community as a whole and that only those who gave evidence at the trial in support of their claim were entitled to a remedy if any. Only 39 witnesses testified during the trial.

Held: (i) It was not correct for the 53 appellants to sue on behalf of every member of the Maasai community who was evicted from the Mkomazi Game Reserve; if the appellants intended to benefit every member of the Maasai community they ought to have instituted a class suit or a representative suit.

(ii) The Maasai community in question did not have ancentral customary land title over the whole of the Mkomazi Game Reserve.

(iii) Since the appellants are members of the Tanzania indigenous population, it follows that the appellants were using Mkomazi Game Reserve as beneficiaries of

public land, subject to legal regulations made for proper land use, the Wildlife Conservation Act, 1974 is such a regulation.

(iv) Eviction of appellants was contrary to article 24 of the Constitution and contrary to the provisions of the Land Acquisition Act 1967. It follows, therefore, that the eviction in question was unlawful.

Appeal dismissed.

Case referred to:

(1) *Attorney General v. Lohay Akoonay and Joseph Lohay* [1995] T.L.R 80

Statutory provisions referred to:

(i) Appellate Jurisdiction Act 1979, section 4(2)

(ii) Civil Procedure Code 1966, Order 1, rule 8, Order 17 rule 2(1) and (2)

(iii) Constitution, articles 24 and 26 (2)

(iv) Fauna Conservation Ordinance (Chapter 302), section 6(1)(c)

(v) Game Ordinance, section 5(b)

(vi) Land Acquisition Act 1967

(vii) Land Odinance Chapter 113, section 3

(viii) Wildlife Conservation Act 1974, section 7 and 12

Messrs. Mchome and *Juma,* for the Appellants

Mrs. Sumari, for the Respondents

JUDGMENT

(Dated 29 March 1999)

NYALALI, C.J.: This is an appeal by *Lekengere Faru Parutu Kamunyu and 52 others* against the judgement and decree of the High Court of Tanzania, at Moshi in a suit against The Minister for Tourism, Natural Resources and Environment; The Director, Wildlife Division Ministry of Tourism, Natural Resources and Environment; The Project

Manager, Mkomazi Game Reserve and the Attorney General, hereinafter called the respondents. The said *Lekengere Faru Parutu Kamunyu and 52 others* will hereinafter be referred to as the appellants. The suit filed in the High Court is based on wrongful interference of the appellants' legal rights by the three respondents by:

(i) forceful eviction of the plaintiffs and their families from their ancestral lands;

(ii) burning down homesteads and dwellings and destroying livestock and property thereby;

(iii) breaking down of Maasai customary way of life and emigration of their numbers to Kenya and in towns.

The suit seeks a number of remedies that is:

(a) A declaration that the plaintiffs are still lawful residents of Alaililai Lemwazuni (Mkomazi Game Reserve);

(b) A declaration that customary land rights of customary residents of Mkomazi Game Reserve are not subordinate to the rights of wildlife in the same reserve;

(c) A declaration that forceful evictions or otherwise removal of pastoralists from Mkomazi Game Reserve was not done in accordance with the law;

(d) A declaration that neither Fauna Conservation Ordinance (Chapter 302) nor Wildlife Conservation Act, 1974 expressly or impliedly extinguished the customary pastoral land rights of the Alaililai Lemwazuni (Mkomazi game Reserve) Maasai people.

(e) A declaration that exorbitant fines imposed upon the evicted pastoralists were unlawful and unconstitutional;

(f) Compensation for loss of livestock, homesteads and property to the tune of TZS. 10 billion.

(g) Costs of the suit;

(h) Any other or further relief.

The trial High Court accepted the issues in the case as being:

(1) Whether the plaintiffs, their families and other members of the Maasai pastoralists community had customary land rights in Mkomazi Game Reserve prior to their eviction;

(2) Whether in view of issue one, the eviction of the plaintiffs, their families and other members of the pastoral community from Mkomazi Game Reserve was lawful;

(3) Whether by virtue of the forceful eviction referred to above, the plaintiffs, their families and other members of the pastoral community have suffered damage as enumerated in the plaint;

(4) Whether the plaintiffs, their families, and other members of the pastoral community were and are indeed entitled to alternative land and compensation;

(5) To what reliefs are the parties entitled to.

After a long trial commencing on 13 November 1997 in which thirty nine witnesses for the appellants and eleven witnesses for the respondents testified and numerous documents were produced as evidence or material in the case, the judgement was given by the trial High Court, Munuo, J., on the 19 June 1998. In her concluding paragraph, the learned trial judge stated in her judgment:

> The suit partially succeeds in terms of the prayer for alternative land and compensation. The defendants should relocate the plaintiffs in an area where there is sufficient grazing land so that the pastoral plaintiffs can resettle on self-help basis. The set compensation should be paid to the plaintiffs to enable and facilitate their resettlement. The plaintiffs who may have found alternative settlement are of course not bound to take up any new settlement offer.
>
> The suit is partially allowed in the above terms with costs.

The appellants, apparently expecting to get more, were aggrieved by that judgment of the High Court, hence this appeal to this court.

Mr SE Mchome and Mr IH Juma, learned advocates from the Legal Aid Committee of the Faculty of Law, University of Dar es Salaam, represented the appellants before us whereas Mrs. Sumari, learned Senior State Attorney, represented the respondents. The Record of Appeal field in the court has 1044 pages of foolscap paper. The Memorandum of Appeal has ten grounds as follows:

1. The learned Judge erred in fact and law in holding that customary land rights were confined only at the Umba side of the Mkomazi Game Reserve:

   (a) The learned judge should have held that the appellants, members of their respective households and members of their customary land community were occupying land in accordance with their communal Customary Laws and practices over an entire area of land comprising both the current Umba and Mkomazi Game Reserves known to the appellants as Alaililai Lemwasuni.

   (b) the learned judge should have further held that other members of the appellants' respective families, households and customary community are also entitled to customary occupation and residency in Mkomazi-Umba Game Reserves;

2. The learned Judge erred in law and fact by basing the findings of the High Court solely on one source of documentary evidence Exhibit Y1. The learned Judge should also have taken into account and evaluated credible documentary and oral evidence before the trial court, which evidence confirmed the existence of customary land rights of the appellants over the whole of Mkomazi-Umba Game Reserves, known to the appellants as Alaililai Lemwasuni.

3. The learned Judge erred in law and in fact in according undue weight and accepting the testimony of David Anstey whose performance in Mkomazi Game Reserve as a Game Warden was heavily censured. The learned Judge should have evaluated the evidence of David Anstey in the light of Exhibit Y1 and provisions of the laws declaring the areas and boundaries of Mkomazi-Umba game Reserve.

4. The learned Judge erred in law in holding that only customary land rights of the appellants who deposed in the trial court asserted their customary land title over disputed land.

   (a) the learned Judge should have decided on the basis of preponderance of evidence to establish existence or otherwise of customary lands.

   (b) The learned Judge should have further held that all 53 appellants who pleaded and remained on the record, having appeared before the High Court by their duly instructed advocates, were in law entitled to be covered by the Judgement and decree of the court.

5. Ownership of customary land rights in Mkomazi-Umba Game reserves being not so much individual as it is communal, the learned Judge:

   (a) erred in law in holding that the judgement of the trial court could not canvass the land rights of all the customary residents of the Game reserve not on record by reason that theirs was not a representative suit, and

   (b) should have held that customary land rights occupied communally may be pursued in courts by either representative suit, or by individual litigants like the 53 appellants.

6. In the alternative, and without prejudice to the foregoing ground that the learned Judge, having found and held that 38 appellants were customary legal residents of the Umba Game Reserve, erred in law in failing to order the immediate restitution of the said 38 appellants' legal and communal customary occupation and residence in the Umba Game Reserve.

7. The learned judge erred in law in taking into account extraneous matters in holding that a period of ten years following unlawful eviction is a long period enough to preclude the courts from providing due remedy of restitution of legal residency of the 38 appellants in their customary lands.

8. Without prejudice to the foregoing having ordered the respondents to look for alternative customary lands for the appellants, the learned Judge erred in law in not specifying the time frame within which the alternative customary land will become available to the said 38 appellants.

9. The learned Judge, having accepted that there was evidence of assaults, harassments, displacements, loss of livestock and of domestic articles, and evidence of break up of families, erred in law and in fact by rubricating these obvious injuries and sufferings as Torts for the purposes of limitation period, thus denying the 38 appellants adequate remedy.

10. The learned judge erred in law and fact in holding and decreeing that the 38 appellants are in law responsible to resettle themselves on self-help basis following their unlawful evictions by the respondents from their customary lands.

For purposes of clarity we intend to give first the background or framework of circumstances both recent and past, which gave rise to this case. It is undisputed that the Maasai people are among the 120 or so tribes inhabiting the mainland of Tanzania, and that in a map of tribes published in 1946 and which was produced at the trial in the High Court as Exhibit D17, being a map of tribes printed by the Survey Division, Department of Lands and Mines, Dar es Salaam, the Maasai, including the Kwavi, are shown as being one of the inhabitants of the then Northern Province, to the west of the Pangani/Ruvu River. This position of the Maasai is confirmed in another map – a native population map tendered at the trial as part of Exhibit D17, which describes the Maasai as 'Nomadic Maasai'. The Pare and Shambaa people are shown as inhabitants of an area, which includes the part which was later designated as Mkomazi Game Reserve in the then Tanga Province of the then Tanganyika Territory.

There is also no dispute, on the basis of Exhibit D22, (The Anderson Report), which is a scientific report on the history and land use of Mkomazi Game Reserve compiled in December 1967, that the earliest

game reserve was established in 1904 by the German colonial administration along the Pangani or Ruvu River, and it was known as the Railway Game Reserve, presumably because it was close to the Tanga-Moshi Railway. Under British colonial administration, this area was incorporated into the Pare Game Reserve in Pare District established under the Game Ordinance, 1940. Apparently by 1948, the Maasai pastoralists had reached the area giving rise to difficulties in management of the Game Reserve. A few years later, that is, in 1951, the Mkomazi Game Reserve, covering an area of 2,500 square kms was established under the Fauna Conservation Ordinance, Chapter 302, which repealed and replaced the Game Ordinance. The Mkomazi Game Reserve which lay partly within Lushoto district and partly within Pare or Same District, in the then Tanga Province, was established as an alternative to the earlier Game Reserve, the management of which had become impossible because of influx by pastoralists. According to David Anstey, a game ranger, who was present in the area at the time and who gave evidence at the trial in the High Court as the eleventh witness for the defence (DW11), there were wide ranging consultations with local authorities prior to the establishment of Mkomazi Game Reserve. The consultations involved the Chief of Usangi, Chief of Ugweno, Chief of Same, Chief of Mbaga, Chief of South Pare and Chief of Ndungu. No Maasai leader or leaders were involved in the consultations.

Furthermore, it is undisputed that pastoralists' activities, particularly those of the Maasai, continued to create problems to the management of the Mkomazi Game Reserve, and that in 1952, the colonial administration of what was then Tanganyika, ordered the Maasai to go back to Toloha, near Ruvu. Later in the same year, the administration ordered the Maasai to go back to Maasailand via Buiko.

It is also indisputable that under both the Game Ordinance and the Fauna Conservation Ordinance, human habitation and consequential activity in Mkomazi Game Reserve was confined to a small class of people, including persons whose ordinary residence was within the reserve (section 5(b) of the Game Ordinance) and section 6(1)(c)

of the Fauna Conservation Ordinance). In order to ensure compliance with this restriction, a periodic census of persons ordinarily resident within Mkomazi Game Reserve was undertaken. Such an exercise was thus conducted in 1963, 1968, 1971 and 1983. The documents prepared during these exercises were tendered at the trial in the High Court and they appear at pages 907, 909, 910, 911, 912, 913, 914, 915, 916, 917, 918 to 931 of the Record of Appeal prepared by the appellants for purposes of this appeal. The documents contain lists of persons who were ordinarily resident within the Game Reserve.

After the political independence of Mainland Tanzania, control of new arrivals of Maasai into Mkomazi Game Reserve became much less effective, giving rise to serious problems of management of the Game Reserve. Consequently in 1963, it was proposed by the Tanga Regional authorities that the Maasai should be returned to Maasailand but no action was taken. Similar proposals were made in 1965 and in 1966 but no action was taken.

In 1974, Mkomazi Game Reserve was split into two under the Wildlife Conservation Act 1974 (Act Number 12 of 1974) and Government Notice Number 265 and 275 of 1974. These two were Umba Game Reserve in Lushoto District and Mkomazi Game Reserve in Same District. This measure had no effect on the continued increase of pastoralists in the two game reserves. Towards the end of 1987, a decision was made by the Government ministry responsible for wildlife conservation, to revoke all permits issued between 17 April 1968 and 8 December 1987 and to require all pastoralists to vacate the Game Reserves early in 1988. There is no serious dispute that notice to that effect was communicated to the pastoralists' community. There is also no serious dispute that when the period of notice expired, force was used by the Government to expel those who had not vacated on their own will. As to those who had responded to the notice to vacate, alternative land was offered in places like Handeni District and Morogoro Region.

Naturally, there were many people who were aggrieved by the eviction, hence the suit in the High Court. Fifty three persons instituted

the suit, apparently on their own individual behalf of the whole Maasai community or tribe. Out of these fifty three persons, only thirty eight gave evidence at the trial in the High Court.

It is the appellants' case both at the trial and in this appeal, to the effect that the Maasai people were vested with ancestral customary title to the whole land comprising the Mkomazi Game reserve prior to their eviction therefrom, and that such title constituted a deemed right of occupancy under the Land Ordinance, Chapter 113. It is part of the appellants' case that such title cannot be terminated except under the Land Acquisition Act 1967. Furthermore, it is the appellants' contention to the effect that since their eviction and that of their community mates was done otherwise than in accordance with the Land Acquisition Act, and involved destruction of their movable possessions and personal injuries to some, they are entitled not only to restitution of their ancestral land but also to compensation for loss and injury sustained as a result of the eviction. It is also part of the appellants' case to the effect that the loss in cattle stock and household property as well as the disruption of family and communal life thus suffered, is attributable to the conduct of the respondents.

On the other hand, it is the respondents' case both in this court and at the trial in the High Court to the effect that the appellants had no *locus stand* in suit on behalf of the Maasai community as a whole and that in law they could properly do so only in a representative suit as provided under Order 1, rule 8. Furthermore, it is the respondents' contention to the effect that as to the appellants, only those who gave evidence at the trial in support of their claim were entitled to a remedy, if any, in the trial court.

At the level of substantive law, it is the respondents' case to the effect that the only title which the appellants could lay claim to in Mkomazi Game reserve, was the right to reside and use the Game Reserve for grazing and watering purposes for their cattle in accordance with the provisions of the Wildlife Conservation Act, 1974 and the previous pieces of legislation. It is also part of the respondents' case that they were authorized by law to revoke the permits issued

to the appellants and others by giving reasonable notice, and to use reasonable force to evict those who ignored the notice. The respondents also contend to the effect that no damage or injury is directly attributable to the respondents in carrying out the eviction as the diseases and other afflictions that may have befallen the pastoralists and their cattle are too remote in law. Moreover, the respondents' agents destroyed only huts and other things left behind in the Game reserve and which were of a temporary nature and inappropriate to retain therein for purposes of the Wildlife Conservation Act. Finally the respondents contend that alternative land, suitable for pastoral activities we offered to those who wanted it.

The first point for consideration and decision in this appeal is of a procedural nature, and it is whether it is correct in law for the 53 appellants to sue not only on their own behalf, but also on behalf of every member of the Maasai community affected by the eviction. Mr Mchome, learned advocate for the appellants, has submitted in effect that where the judgment sought, is a judgment *in rem* and not in *personam* it is correct in law for an individual member of a community to sue both on his or her own behalf and on behalf of every other member of the affected community. According to Mr Mchome, the appellants in the present case are asserting not only their individual rights, but a customary communal right, and thus seeking judgment *in rem*. As such, they are correct in suing not only on their own behalf, but on behalf of every member of the Maasai community who was evicted from the Game Reserve.

With due respect to Mr Mchome, we do not think that his argument is tenable. We say so because, in a suit seeking *judgment in rem* – that is – a judgment applicable to the whole world, an individual does not sue on behalf of the whole world, but sues for judgment which is effective against the whole world. In other words, in the present case, the appellants, when successful in the suit, obtain judgment which is effective against the whole world but does not confer benefits upon the whole world. If the appellants intended to benefit every member of the Maasai community, they ought to have instituted either

a class suit or a representative suit under Order I, rule 8 of the Civil Procedure Code 1966. The position is different where there is violation of a public legal right, such as violation of a public right of way. In such a situation, any member of the public may sue to asset it, not only on his behalf but on behalf of the general public. Similarly, where there is non-compliance with either the Constitution or many other laws, any individual may institute legal action to enforce compliance both on his own behalf and on behalf of everyone in the country under the provisions of sub-article (2) of Article 26 of the Constitution, which states in Kiswahili as follows:

> 26(1) ... (inapplicable)
>
> (2) *kila mtu ana haki, kwa kufuata utaratibu uliowekwa na sheria, kuchukua hatua za kisheria kuhakikisha hifadhi ya Katiba na sheria za nchi.*

For all these reasons, we are satisfied and we find that it was not correct for the appellants to sue on behalf of every member of the Maasai community who was evicted from the Mkomazi Game Reserve.

The second point we have to consider and decide is whether those appellants, who did not give evidence at the trial in the High Court, are not entitled to obtain judgment in their favor. The answer in our considered opinion is to be found under the provisions of Order 17, rule 2(1) and (2) of the Civil Procedure Code, which states:

> 2(1) On the day fixed for the hearing of the suit or on any other day to which the hearing is adjourned, the party having the right to begin shall state his case and produce his evidence in support of the issues which he is bound to prove.
>
> (2) The other party shall then state his case and produce his evidence (if any) and may then address the court generally on the whole case.

We have underlined the relevant parts of rule 2, which explain what a party to a case has to do at the hearing of the case. He or she has to state his or her case and then produce the supporting evidence.

Where the party appears by recognized agent, such as an advocate, as provided under Order III of the Civil Procedure Code, the advocate would state the case and then produce the supporting evidence. Such supporting evidence may include testimony from the plaintiff or plaintiffs, but, it is not necessary, if enough supporting evidence is available without the testimony of the plaintiff. It is all a matter of burden and standard of proof of facts in issue. The learned trial Judge stated on this point, that, '... only the customary land rights of the plaintiffs who deposed in the case to assert their customary land title over the suit land will be determined." The learned trial Judge clearly misdirected herself in confining herself to determining the rights of only those plaintiffs who personally gave evidence in the case. She was bound to look at the evidence produced by the plaintiffs/ appellants' advocate to see whether their evidence is supportive of the claims of each plaintiff. Since this is a first appeal, we shall do what the trial judge ought to have done at an appropriate stage in this judgment.

We now come to substantive points, and we begin by considering whether the Maasai community of which the appellants are members, had an ancestral customary land title over the whole of the Mkomazi Game Reserve. We have carefully considered the indisputable surrounding circumstances which gave rise to this case, and it is apparent that the Maasai community or tribe in question was not the first tribe to arrive in the geographical area which is the subject of this case. It is apparent that the Maasai were new arrivals in the area, preceded by other tribes, such as the Pare, Shambaa and even the Kamba. It would seem that the Maasai, as a nomadic tribe, began to reach the area in the second half of the 1940s and their presence was still scanty at the time the Mkomazi Game Reserve was established in 1951. That explains why they were not involved in the consultations which preceded the creation of the Game Reserve. That being the position, we are bound to hold that the Maasai Community in question did not have ancestral customary land title over the whole of the Mkomazi Game Reserve. We are aware that the learned trial Judge

found that such title existed in a portion of the Game Reserve, that is Umba Game Reserve. The respondents have not cross-appealed against that finding, but since that finding of the learned trial judge is inconsistent with our overall finding, we have to invoke our Revisional Jurisdiction provided under section 4(2) of the Appellate Jurisdiction Act 1979 as amended by Act Number 17 of 1993 so as to set aside such finding which is inconsistent with ours. We do so accordingly, and find that no such title existed in the Umba Game Reserve.

The second substantive point for our consideration concerns the nature of the title, if any, which the appellants had before they were evicted. As a matter of land law, it is indisputable that all land on the mainland of Tanzania is Public Land as stated under section 3 of the Land Ordinance Chapter 113. The land is vested in the President in trust for the benefit of the Tanzanian indigenous population as stated under section 4 of the ordinance. Because of this legal position of land under the land ordinance, no individual person or group of persons can have rights in land which are superior to the public title. The nature of title available to persons or groups of persons cannot be anything but a right to use public land. Since the appellants are members of the Tanzanian indigenous population, like many other Tanzanians, it follows that the appellants were using the Mkomazi Game Reserve as beneficiaries of public land, subject to legal regulations made for proper land use. The Wildlife Conservation Act 1974, is such regulation. This means that the rights of the appellants, if any, are to be determined in accordance with the provisions of the Wildlife Conservation Act 1974. The provisions which are relevant to the case before us are sections 7 and 12 of the Wildlife Conservation Act 1974.

These sections state as follows:

> 7(1) No person other than:
>
> (a) a person whose place of ordinary residence is within the reserve,
>
> (b) ...
>
> shall enter a game reserve except by the in accordance with the written authority of the Director previously sought and obtained.
>
> 12(1) No person shall, serve with the written permission of the Director, previously sought and obtained, graze any live-stock in any Game Reserve.
>
> (2) Any person who contravenes any of the provisions of this section shall be guilty of an offence and shall be liable on conviction to imprisonment for a term not exceeding two years.

It seems to us that the combined effects of sections 7 and 12 is to create two kinds of rights to use public land within a game reserve established under the Wildlife Conservation Act. The first one is the right of residence belonging to people who are ordinarily resident in the area at the time of establishment of the game reserve. The existence of that right of residence is recognized by the Act itself. It does not depend on permits given by any authority. The second right is the right to graze cattle within the area. The existence of this right is not recognized by the statute itself but arises from and is dependent upon a permit given by the Director of Games. In other words a person ordinarily resident in a game reserve may so reside without requiring a permit, but if he or she wishes to graze cattle therein, he or she can do so only by permit of the Director Games. This is because the prohibition of grazing cattle therein does not distinguish between the cattle of ordinary residents and the cattle of non-ordinary residents. The constitutionality of the prohibition to graze cattle without consent is beyond doubt before the introduction of human rights provision in the Constitution of the country.

Under the law and the circumstances of this case therefore, the pastoralists who were lawfully within the Mkomazi Game Reserve fall into two categories, that is, those who were ordinarily resident therein in 1951 and their descendants, and those who were subsequently permitted by the director to enter therein. This means that any pastoralist who does not fall within these two categories, is an illegal entrant

and is not only liable to criminal prosecution under the Act, but may be evicted without let or hindrance at any time. As to the second category, that is, those who were permitted to enter the reserve by the Director of Games after 1951, it is our considered opinion that their stay in the Reserve may be terminated by the Director of Games by revocation of their permits after giving reasonable notice. We say so because in principle a permit is by its very nature liable to be withdrawn or revoked by the person who issued it, upon giving reasonable notice of the intention to do so.

As to the persons whose habitation in the Reserve was recognized by the Act on the basis of their ordinary residence therein, we are of the considered opinion that their habitation therein cannot be terminated except under a relevant provision of the Act, if any, or in the absence of such provision, then in accordance with any other law which provides for appropriate compensation as stated under sub-article (2) of Article 24 of the Constitution of the country. This means we are in agreement with the learned trial Judge on this point, although we disagree concerning the nature and scope of the rights which the pastoralists had in the land. She found to the effect that the pastoralists had customary title to the land, specifically in the Umba portion of Mkomazi Game Reserve. We have found that the only title that existed was a statutory title carved out of public land by the Wildlife Conservation Act, 1967. We have also found that the pastoralists who were not ordinary residents had nothing but a revocable permit given by the director of Games.

The third substantive point for our consideration and decision is whether the appellants or any of them was unlawfully evicted from Mkomazi Game Reserve. In order to answer this point, we have first to determine who among the appellants ordinary residents were, and who were permitted by the Director of Games. The only testimony evidence relevant to ascertaining those who were ordinary residents in 1951 or their descendants are PW1, PW2, PW5, PW6, PW7 and PW36, who, according to their age at the time they gave their testimony in Court, must have been born in the game Reserve prior to 1951.

The remaining witnesses for the appellants/plaintiffs are adults of unknown age since there is nothing on the record to show otherwise, although they claim to have been born in the Game reserve. These witnesses could very well have been born in the Game Reserve after 1951, and thus fail to qualify as persons ordinarily resident at the time the Game Reserve was established.

Let us now turn to the documentary evidence listing the people who, in the course of periodic censuses, were considered as having been ordinarily resident in Mkomazi Game Reserve prior to 1951. According to the agreed list prepared by Counsel on both sides at our request, indicating the appellants who were listed in the census documents, it is apparent that of the fifty three appellants, only twenty seven are listed in the census documents as being ordinarily resident in the Game Reserve:

Licensee Faro Partum Kikuyu (PW2)

Karolyn Losina (PW36)

Kilorit Kipapila Yoseki (PW23)

Kone Naham Lorsai (s/o Naham Lorsai) (PW27)

Hayai Laiyan Said (s/o Laiyan Said) (PW21)

Serenduki Mangula Kamunyu (PW18)

Muneria Langwa Said (s/o Langwa Said) (PW29)

Munga Kiroiya Losina (s/o Kiroiya Losina) (number 11 in the plaintiffs list)

Suyan Kafuna Yoseki (s/o Kafuna Yoseki) (PW37)

Saikon Kombeti Saidi (s/o Kombeti Said) (PW31)

Leah Ndatuya Naham (The w/o the s/o Naham Lorsai) (No. 15 in the list of plaintiffs)

Lekei Koyai (PW34)

Kopera Keiya Kamunyu (PW1)

Petro Koyesa (PW12)

Tipaa Maningoi (PW13)

Kafuna Yoseki (Chuu Yoseki) (PW24)

Yongere Kipera (PW11)

Langwa Saidi (PW26)

Tuyato Petro Koyesa (w/o Petro Koyesa) (PW8)

Elizabeth Koti Kinyamwezi (d/o Lekengere Faru) (PW10)

Iyare Keiya Kamunyu (PW5)

Elee Faru (PW6)

Salum Ikaayo (s/o Ikaayo ?) (No. 43 in the list of plaintiffs)

Parket Ikaayo (PW28)

Lakara Saidi Maite (PW15)

Maziwa Kairanga Keiya (s/o Kairanga Keiya) (PW14)

Naham Lorsai Keiya (number 53 in the list of plaintiffs)

There is no evidence either documentary or testamentary to suggest the 1951 status of the remaining twenty six appellants/plaintiffs. They could very well have been among the Maasai who came to the area in subsequent years. In law, the burden of proving otherwise is upon them. They have failed to discharged that burden and the suit should have been dismissed against them. In other words the trial judge should have excluded them from her judgment which was in favor of 38 plaintiffs.

We are now in the position to decide whether the eviction of the twenty seven appellants listed by Counsel on both sides was lawful. As we have already stated earlier, the lawful eviction of these people could only be in accordance with a law providing for appropriate compensation. This is consistent with the decision of this court, cited to us by Counsel for the appellants that is, the case of *Attorney*

General v. Lohay Akoonay and Joseph Lohay (1). The relevant law on the statute book at present is the Land Acquisition Act, 1967.

As it transpired, however, the procedure adopted in evicting these titled appellants was contrary to Article 24 of the Constitution and contrary to the provisions of the Land Acquisition Act, 1967. It follows therefore, like night follows day, that the eviction in question was unlawful.

The last point for our consideration concerns the reliefs to which these twenty seven appellants/plaintiffs are entitled to. In determining the appropriate relief one has to take into account the nature of the appellants' title. As already mentioned, before the eviction, these appellants had a statutory right of ordinary residence coupled with a permission granted by the Director of Games to graze cattle within the area. As we have already stated, the permission by its very nature is revocable by the Director on reasonable notice. The Director has, with reasonable notice, revoked the appellants' permission to graze cattle within the game reserve. The twenty seven successful appellants are pastoralists. It is pointless for them to claim restitution of their residence in Mkomazi Game Reserve without the Director's permit to graze their cattle therein. The Director of Games cannot in law be compelled to restore the permits since he revoked them on reasonable notice. This means that the remedy of restitution is inappropriate under the circumstances of this case. The appellants cannot reside without their cattle. The trial High Court awarded a sum of TZS. 300 000 as compensation per successful appellant. It further directed the respondents to provide alternative grazing land, where the successful appellants may settle on self-help basis. But for the requirement of self-help, we think the remedy provided by the trial court is fair, considering that no credible evidence was given to determine the monetary value of the material loss suffered by the successful appellants in the course of the eviction exercise. As to the tortuous acts committed by agents of the respondents in the course of the eviction process, Mr Mchome, learned advocate conceded that the claim for damages

was not maintainable as such claims were already time-barred. With regard to the order made to the respondents to find alternative grazing land for the successful appellants we concur with Mr Mchome's complaint that the trial High Court ought to have prescribed a period within which such land is to be made available to the successful appellants by the respondents. We shall rectify this defect.

In the final analysis, it seems that the successful appellants are in no better position than they were under the judgment of the trial High Court. The only changes in their favor is that we are going to prescribe a period within which the respondents are to find alternative grazing land for the successful appellants. The monetary award remains the same as in the High Court, except that the successful appellants are not required by law to resettle on self-help basis. They are to be treated in the same way as other pastoral Tanzanians for their needs as equal citizens of this country. But for these modifications of the outcome in the court below, we hereby dismiss the appeal with the following directions:

(i) Each successful appellant is to be paid a sum of TZS. 300 000 by the respondents.

(ii) The respondents are to provide alternative grazing land of comparatively the same standard as that used by other pastoralists in the country within 6 months from today except that any of the successful appellants who may not wish to be so provided with such alternative land is free to do otherwise according to law.

(iii) Each party to bear its costs of this case, which has been conducted for the Appellants on Legal Aid.

LEONARD CLEMENT MUSUSA v. ATTORNEY GENERAL AND ANOTHER

COURT OF APPEAL OF TANZANIA AT ARUSHA

(Nyalali, C.J., Ramadhani and Lubuva, JJ.A.)

CIVIL APPEAL No. 59 OF 1998

(Appeal from the judgment and decree of the High Court of Tanzania at Moshi, Munuo, J., dated 9 April 1998, in Civil Case No. 26 of 1994)

Company law – Appointment of Receiver and Manager – Effect of such appointment on tax liability of the company.

Tax law – Sales tax – Penalty on sales tax – Penalty due after appointment of Receiver – Whether such penalty collectable as preferential debt – Section 26(2) of the Sales Tax Act 1976 and sections 78 and 259(2) of the Companies Ordinance Chapter 212.

The appellant, who was appointed Receiver and Manager of Kibo Match Corporation, Ltd., having paid sales tax totalling TZS. 61 219 762, refused to treat the penalty thereon amounting to TZS. 21 888 397-25 as a preferential debt. Relying on sections 78 and 259 of the Companies Ordinance Chapter 212 he regarded the penalty as any other unsecured debt. The Commissioner of Sales Tax relying on section 26(2) of the Sales Tax Act 1976 argued that a penalty is a tax and therefore collectable as a preferential debt. The trial judge decided that the appointment of a Receiver and Manager does not alter tax liability of a company and that the penalty was collectable as a preferential debt. The Court of Appeal of Tanzania considered the relevant provisions of the Companies Ordinance and the Sales Tax Act in relation to whether or not a penalty on a sales tax was a preferential debt.

Held: (i) While under section 26(2) of the Sales Tax Act 1976 a penalty imposed on the tax, is a tax, under the Companies Ordinance a penalty which becomes due for payment after appointment of the Receiver is a preferential debt;

(ii) The penalty totalling TZS. 21 888 397-25 is not a preferential debt under sections 78 and 259(2) of the Companies Ordinance.

Appeal allowed

Statutory provisions referred to:

(i) Sales Tax Act, section 66, 26(1) and 26(2)

(ii) Companies Ordinance Chapter 212, sections 259(1), 259(6)(b), 78 and 259(2)

Dr. Nguluma, for the Appellant

Mrs. Sumari, for the Respondents

JUDGMENT

(Dated 29 March 1999)

RAMADHANI, J.A.: The appellant, Leonard Clement Mususa, was on 19 March 1994 appointed the Receiver and Manager of Kibo Match Corpage Ltd. Among the debts which he had to pay on behalf of the Corporation, were the sale taxes due for the month of February 1994 up to the 19 March 1994, the day he was appointed Receiver. The appellant paid the taxes totaling TZS. 61 219 762 but he refused to treat the penalty amount of TZS. 21 888 397-25 imposed for failing to pay the taxes in time, as a preferential debt. He regarded the penalty as any other debt which is not secured under sections 78 and 259 of the Companies Ordinance Chapter 212 (hereinafter referred to as the Ordinance). The Commissioner of Sales Tax, the second respondent, is of the view that a penalty is a tax under section 26(2) of the Sales Tax Act 1976 (Number 13 of 1976) (hereinafter referred to as the Act) and is collectable as a preferential debt just like the sales tax itself. Because of that difference of opinion, the appellant unsuccessfully sued the Commissioner of Sales Tax and the Attorney General, the first respondent. Hence this appeal by the Receiver.

In order to appreciate fully the legal point needing the determination of this court, it is absolutely necessary to provide the background factual information and the legal position so as to put the matter in its perspective.

Section 26(1) of the Act imposes a penalty on any amount of tax which "remains unpaid on the due date". The question is what is "the due date".

Section 66 of the Act empowers the Minister for Finance to make regulations. The Minister has done that. The Sales Tax Regulations 1969 G.N. Number 152 of 19 June 1969 as amended by the Sales Tax (Amendment) Regulations 1991 G.N. Number 211 of 13 June 1991. Let us pose there for a second and observe that section 72(1) of the Act repealed the Sales Tax Act 1969 but subsection (2) thereof saved all subsidiary legislation. After saying so for the avoidance of doubt, let us proceed to look at Regulation 10(2) which provides:

> A manufacturer of scheduled articles may, save where it is otherwise provided in any order made under section 6 of the Act, pay tax in respect of scheduled articles sold by him on a day not later than the thirtieth or thirty-first day of the month following the month in which the sale takes place.

So, "the due date" is "a day not later than the thirtieth or thirty first day of the month following the month in which the sale takes place". To come down to concrete terms; for the sales tax of matches sold by the Receiver in the month of February, 1994, the due date was 31 March 1994. Likewise, for the goods sold in March, 1994, the due date was 30 April 1994. Again, for the avoidance of doubt matches are scheduled articles under Tariff number 36.06 of the First Schedule.

Now, since on those two due dates the sales taxes were not paid, a penalty totaling TZS. 21 888 397-25 was imposed under section 26 of the Act.

As already said, the appellant as the Receiver, has already paid the sales tax due but has not paid the penalty. His ground is that

section 259(1) of the ordinance provides for the legal position regarding debts of a company under receivership and/or liquidation into preferential and non-preferential debts. That subsection provides:

> In a winding up there shall be paid in priority to all other debts:
>
> (a) all taxes and rates whether payable to the crown or to the local authority, due from the company at the relevant date and having become due and payable within twelve months next before that date".

The "relevant date" here is the date when the appellant was appointed Receiver, that is on 19 March 1994. That is provided in section 259(6)(b) and also section 78(2) of the ordinance.

The argument of the appellant is that under sections 78 and 259 of the ordinance, all debts which became due for payment within twelve months before the relevant date, that is before 19 March 1994 are preferential. Thus according to the appellant, the sales taxes became due for payment before 19 March 1994, hence preferential. On the other hand, the penalties became due after 19 March 1994, to be precise, they became due on 31 March and 30 April 1994 respectively. These therefore, are not preferential as they did not become due for payment within twelve months before his appointment, that is, 19 March 1994.

The argument of the respondents is that section 26 of the Act, which imposes penalties, does not make the distinction made by the appellant as between a tax and a penalty on a tax. Both are regarded by subsection (2) of that section as taxes. When hearing the appeal Mr Nguluma, learned counsel, advocated for the appellant, and Mrs. Sumari, Senior State Attorney, appeared for the respondents.

Mrs Sumari conceded that the whole issue rests on the proper interpretation of section 26(2) of the Act. That subsection provides as follows:

> Any sum payable by way of penalty under this section shall, *for the purposes of this Act*, be deemed to be tax and shall be collected and received accordingly. [emphasis supplied]

By using the underlined words, that is, "for the purposes of this Act", the Sales Tax Act, 1976 did not impose the inseparable unity of a tax and a penalty provided in that subsection on other legislations, the Ordinance included. For the purposes of the Sales Tax, 1976, there is no distinction between a tax and a penalty imposed on the tax. However, for the purposes of other legislations, there could be a distinction depending on the provisions of those legislation.

Thus, under the Ordinance, a penalty which becomes due for payment before the date of the appointment of the Receiver, that is, the relevant date, is not distinguishable. However, a penalty which becomes due for payment after the appointment of the Receiver is distinguishable.

Another way of looking at it is that the Sales Tax Act, 1976 defines what is a tax in section 26(2) while the Companies Ordinance categorizes which taxes are preferential debts and which are not.

So, as the penalty totaling TZS. 21 888 397-25 became due for payment after the relevant date, even though under section 26(2) of the Act it is a tax, nevertheless, it is not a preferential debt under sections 78 and 259(2) of the ordinance.

The learned trial judge, Munuo, J. was right in saying that "the appointment of a Receiver does not alter the tax liability of the company". However, the appointment of the Receiver does determine which tax liability is preferential and which is not and that is what is in issue here.

Therefore, the appeal is allowed. The penalty totaling TZS. 21 888 397-25 is not a preferential debt.

In view of the nature of litigation itself, each party to bear its own costs. We may as well observe here that though there was a prayer for costs in the plaint, none were given in the Memorandum of Appeal, on the other hand, there is no prayer for costs.

THEOBALD CHARLES KESSY AND VICENT MWAIKAMBO *v.* REPUBLIC

HIGH COURT OF TANZANIA AT DAR ES SALAAM

(Mackanja, J.)

CRIMINAL APPEAL No. 96 OF 1997

(Original Criminal Case No. 4 of 1996 of the District Court of Ilala at Kisutu, Mtotela, Esq., Principal Resident Magistrate)

Criminal practice and procedure – Exhibits – Disposal of exhibits after closing prosecution case – Effect thereof – Section 353(1) of the Criminal Procedure Act 1985.

Evidence – Confessions – Confession made in consequence of a temporal inducement resulting from violence – Whether proper.

Evidence – Confessions – Appellant forced to make admission of guilt in his cautioned statement – trial court must give due consideration to the matter.

Judgment – Judgment does not meet the statutory requirements -Judgment bad in law.

The appellants were convicted of armed robbery by the District Court of Ilala at Kisutu. After their arrest the appellants were taken to a police station, where they allege they made confessions after being subjected to beatings by the police. When they wished to repudiate their statements the court did not allow them. After closure of the prosecution case all exhibits tendered in court were disposed of.

They appealed to the High Court against conviction challenging the decision of the District Court on various grounds namely, that the court erred in law and fact in disposing of key exhibits that were tendered before it just after the closure of the prosecution case in total disregard to the defence case, that the court erred in law and fact by shifting the burden of proof from the prosecution to the accused, that the trial court's recording of the proceeding was bad in law and that the trial court's judgment was bad in law.

Held: (i) The disposal of the exhibits in contravention of section 353(1) of the Criminal Procedure Act 1985 worked an injustice to the defence

(ii) One of the appellants having raised the issue of being forced to make admissions of guilt in their cautioned statement the trial court was required as a matter of law to consider that issue and make a finding on it, giving reasons for reaching any conclusion on the matter;

(iii) In the instant case in which there is evidence of violence before the statements by the accused persons were recorded, untrue confessions may as well have been a result of a temporal inducement relating to a possible recurrence of violence if the accused persons had refused to make an untrue admission of guilt;

(iv) The trial court's judgment does not meet the statutory requirements.

Appeal allowed.

Cases referred to:

(1) *Tuwamoi v. Uganda* [1967] EA 84

(2) *The Queen v. Lushington, ex parte Otto* [1894] 1 QB 420

(3) *R. v. Harz* [1967] AC 776

(4) *Ibrahim v. The King* [1914] AC 599

Statutory provisions referred to:

(i) Penal Code, sections 285 and 286

(ii) Criminal Procedure Act 1985, section 312, section 313, section 353(1) and (5)

Dr. Mwakyembe, for the Appellants

Mr. Mallya, State Attorney, for the Republic

JUDGMENT

(Delivered 21 April 1999)

MACKANJA, J.: The appellants were convicted of armed robbery contrary to sections 285 and 286 of the Penal Code. The offence is

alleged to have been committed on 28 December 1995 at about 8:30pm along Mosque Street in Dar es Salaam. Raza Hussein Fatch (PW1), the victim of the offence, was at the material time driving Toyota Corolla car with registration number TZF 5112 when the thieves pounced on him. He swore that he could not remember any of his assailants. He, however, made a report to the police who mounted a search for the alleged robbers immediately. It seems to be the case that a report of the incident was relayed to police officers who were on patrol, two of whom were PC Avelin (PW2) and PC Ally (PW3). According to the testimony of these two witnesses, they received a radio call of notifying them of the robbery as they were driving a police patrol car with registration number STH 9358 along the Ali Hassan Mwinyi Road. To be precise, they were at Mwenge. Soon thereafter they sighted the Toyota Corolla, TZF 5112, as it was turning to their right. They flashed lights to its occupants which was followed by a warning shot. The suspects are alleged to have fired back. The vehicle did not stop; so they gave chase to it. It, however, stopped after it hit a nearby fence. One of the suspects fled but Copl. Avelin (PW2) caught up with, and arrested, him. The suspect was arrested near a local police post and it is in the testimony of PW2 that people who were near the police post beat up the suspect who later was to be the second accused. It is the prosecution case that the man who was to be the first accused did not flee, he was arrested while he was still on board. And as a result of the search which was mounted the police contingent recovered from the stolen car a pistol loaded with five rounds of ammunition.

At about 10:00pm the same night the two suspects were handed over to D/Copl, Nicholaus (PW4) who was on duty at the time. From his own account the accused persons had bruises on their bodies at the time they were handed to him. In addition, the second accused wore neither shirt nor shoes. In the end PW4 recorded a caution statement from the first accused. On his part D/Sgt. Jumanne (PW5) recorded the caution statement that was made by the second accused. It was alleged that both accused person, separately, admitted to have committed the offence.

The accused persons denied complicity in the crimes facing them. According to his testimony Theobald Charles Kessy (DW1), the first appellant, saw two vehicles, one of which was chasing the other. He had just alighted from a bus which had taken him from Ubungo when he witnessed the car chase. He also saw the front car hit a fence. He heard someone ordering him to stop as he decided to proceed to Mikocheni. Immediately he was brought down by a policeman who, he alleged, beat him. He was subsequently taken to the Oyster Bay Police Station where he alleged to have received more beating.

The second appellant testified that he had just arrived in Dar es Salaam, his first journey to Dar es Salaam, when he was arrested at Makumbusho. Like the first appellant he was also beaten up while he was in police custody at the Oysterbay Police Station.

It is on the strength of the above evidence that the appellants were convicted. They were aggrieved, hence this appeal. They have raised five grounds in their memorandum, namely:

1. that the convicting court erred both in law and in fact in disposing of key exhibits that were tendered before it just after the closure of the prosecution case in total disregard to the defence case;
2. that trial court erred in law and in fact by shifting the burden of proof from the prosecution to the accused persons;
3. that the trial court erred in law and in fact by convicting appellants without sufficient evidence;
4. that the trial court's recording of the trial proceedings was bad in law; and
5. that the trial court's judgment is bad in law.

Let me now say that Mr Mwakyembe, learned advocate, appeared for the appellants, while Mr Mallya, learned State Attorney, appeared for the respondent Republic. The appeal was argued by way of written submissions.

As regards the first ground of appeal it is Mr Mwakyembe's contention that as the trial records show, the defence had on the 23 October 1996 intimated to the trial court that it was going to call a ballistics expert from the Tanzania Peoples Defence Forces (TPDF) to shed new light on the motor vehicle, the pistol and bullets which the prosecution claimed to have been involved in the said armed robbery incident and which had been tendered in court as exhibits. And that it is on record that the court ordered that the items were to be brought in court on the 6 November 1996 when the defence case was scheduled to resume. According to learned counsel the defence wanted the motor vehicle carefully examined by an independent expert because it had a hole in its dashboard which the defence believed to have been caused by a bullet deliberately fired from inside the vehicle or from very close range by the police themselves to dramatise and land credence to their trumped-up story of gun fight between the police and the appellants. The defence wanted the pistol properly checked because it believed that the pistol had not been fired contrary to the testimony by PW3 and PW4 that the appellants had fired at the police. Indeed it is argued that PW3 and PW4 never even bothered to show the court one or two used cartridges fired from the said pistol during the so called gun battle. The defence also wanted the bullets with magazine re-examined because they were of different size and make to fit the pistol which the prosecution exhibited in court. These were, according to learned counsel, very crucial issues to the defence case which were bound to considerably shake the foundation of the prosecution testimony. Contrary to expectations nurtured by the defence, and during a period in which there were 21 appearances in court spanning over a period of 8 months, no exhibits were forthcoming. On the 1 July 1997 the trial magistrate admitted that the exhibits had been disposed of and the defence was left with no alternative but to call its last witness and to close its defence by written final submission.

Mr Mwakyembe made the further point that sections 353(1) and (5) of the Criminal Procedure Act Number 9 of 1985, does not envisage

disposal of non-perishable exhibits before final disposal of a trial and before the period allowed for lodging appeal has elapsed. He also made a reference, to apparent shortcomings in the trial court's proceedings which I do not find to be cognate to the first ground of appeal.

It is the case for the appellants in the second ground that the trial court erroneously shifted the burden of proof onto the accused. This relates to accusations that were made by the appellants that they were tortured while they were under police restraint in a bid to illegally extract confessions and admission from them. This complaint appears at page 18 of the typed copy of proceedings. In fact the second appellant went as far as showing the trial magistrate the injuries he had suffered and asked the magistrate to allow them to repudiate their caution statement by recording new statements. It is now argued by learned counsel that a court being a temple of justice ought to have taken such complaints seriously and with special concern because of one main reason namely, that the appellants were arrested on the 28 December 1995 and taken to court on the second day of January 1996, i.e. 5 days after their arrest. Thus the finding by the trial magistrate that the wounds on the bodies of the appellants were fresh was not a simple matter but a confirmation that the appellants had been beaten while in police custody. Instead of acting responsibly, he argues, the trial magistrate ended up saying in his judgment that the appellants' defence that they were beaten up was mere afterthought. It is consequently submitted that no serious tribunal upholding the rule of law could have relied upon the extra-judicial statements tendered in court by the prosecution as P7 and P8 on account of the doubts which the appellants had raised at the start of the trial. Learned counsel referred for authority on the principle that the onus of proving a confession was voluntary lies on the prosecution, citing *Tuwamoi v. Uganda* (1), where it was held at page 89 Duffus, Ag P, that:

> As a matter of practice or prudence, the trial court should direct itself that it is dangerous to act upon a statement which has been retracted in

the absence of corroboration ..., but the court might do so if it is fully satisfied in the circumstances of the case that the confession is true.

It is contended in the third ground that there was not enough evidence upon which the prosecution could secure a sound conviction. In Mr Mwakyembe's view, and since the appellants consistently denied complicity, only the complainants could tell the trial court with any certainty the people who robbed them. That without direct evidence the prosecution was simply going to engage in conjecture. Learned counsel has urged this court not to lose sight of the fact that the incident had taken place just six days earlier, for a young person like PW1 (28 years old) to forget faces of people who had robbed him at gun point and under bright street lights. Thus in the circumstances of this case, the logical conclusion would have been that the real robbers had not been brought before the court. Learned counsel then questioned why the prosecution failed to call the wife of PW1 who was also the victim of the alleged robbery to shed light on the matter after her husband had failed to recognise the appellants. It is learned counsels' view that an important witness for the prosecution had been deliberately and without sound reasons, excluded from the trial because the prosecution knew that she wouldn't also recognise them because the people in court were not the culprits who had attacked her at Mosque Street on the 28 December 1995.

Mr Mwakyembe has spoken emotively about how he views the record of proceedings of the trial court when arguing the fourth ground. He contends quite correctly, that a proper record of trial proceedings is envisaged under section 210 of the Criminal Procedure Act, 1985 to be an authentic record of what transpired in Court. Unauthentic accounts do not only undermine the parties right to a fair hearing at trial level but also completely and unfairly bring to ruin the aggrieved party's chances of success in an appeal, or an application for review and even revision. What learned counsel says may be right, but there is no proof of his allegations. I would therefore give no more considerations to this ground.

The fifth ground of appeal is devoted to what a judgment in a criminal trial must contain as prescribed under section 312 of the Criminal Procedure Act 1985. The one – and – a – half page of judgment of the trial court is roundly dismissed as being dry, rudimentary, skeletal and devoid of the point or points for determination and the reasons thereon. Mr Mwakyembe is frustrated by the judgment of the convicting court, for he says that although he submitted to the trial court five pages of written final arguments as agreed upon in Court, the trial magistrate did not address his mind to any of the several issues he raised for the defence. This does not surprise learned counsel for at the close of the prosecution's case, he made an hour long submission in court praying for dismissal of the charge and acquittal of the appellants on ground that the prosecution had not been able to sufficiently make out a case against the appellants. The long-awaited ruling of the trial court was only one sentence: "Prosecution having closed its case I have found for the prosecution to have established a *prima facie* case".

There is a further onslaught on the trial court's judgment. Learned counsel argues that under section 313 of the Criminal Procedure Act, 1985, a judgment is a public document which can be demanded free of cost by an accused person or at a prescribed fee by any interested party of person affected by the judgment. A judgment, therefore, should always bear testimony to the public that the court is a temple of justice, that the court had carefully considered all the evidence tendered before it, had heard all the important arguments and had arrived at an independent, objective, fair and reasoned decision. In other words it is through judgments that the public can see justice being done in the courtrooms. As a result he had not only expected the judgment of the trial court to revisit the key arguments and issues raised by both the prosecution and the defence, that also to relate the prosecution's testimony to the requirements of the charge of aggravated theft or armed robbery under sections 285 and 286 of Chapter 16 and to the appellants' proven conduct and state of mind.

It is on the basis of the above grounds that learned counsel prays that conviction be quashed and sentence be set aside and the two youthful appellants be set free.

The Republic in a very brief written submission denies that there are any fatal irregularities in the proceedings and in the judgment of the trial court.

Mr Albert Mallya, learned State Attorney, argues in respect of the first ground the contention that the defence were not accorded an opportunity to call a ballistics expert. It is the case for the Republic that the appellants were given ample opportunity to call witnesses, including a ballistic expert but they chose not to do so. Instead, the defence counsel chose to close, the defence. The third and fifth grounds are equally denied. Both the conviction and sentence.

As to the second ground of appeal it is Mr Mallya's contention that the claim of torture is not made out, even though he concedes that the appellants drew the trial court to allegations that their statements were taken under coercion and that they were beaten, thereby sustaining bruises.

Over all the respondent Republic would have me dismiss the appeal. The foregoing were the arguments by learned counsel. I propose, after according them due consideration, to determine the grounds of appeal *seriatim*. In this connection I will make a quick look at Mr Mwakyembe's submissions. He contends that the appellants were denied an opportunity to use in their defence exhibits which were tendered in evidence by the prosecution because they were disposed of while the trial was still pending. It is alleged that the fact that the exhibits had been disposed of was communicated to them on 1 July 1997. According to learned counsel the disposal of the exhibits contravened the provisions of section 353(2) of the Criminal Procedure Act, 1985. This part of section 353 refers to an exhibit which "... is subject to speedy and natural decay ..."

Where such an item is tendered in court the trial court has discretion at anytime during the proceedings or at any time after the final disposal

of the proceedings to order that it be sold or otherwise disposed of. It is the contention of Mr Mwakyembe that the disposal was unjustified because the exhibits in question, namely, a car, a pistol, rounds of ammunition and spent cartridges are not of a perishable nature.

I entirely agree with this contention. In my view those exhibits could only be disposed of in terms of subsection 1 of section 353 of the Criminal Procedure Act, which provides thus:

> (1) Where anything which has been tendered or put in evidence in any criminal proceedings before any court has not been claimed by any person who appears to the court to be entitled thereto within a period of twelve months after the final disposal of such proceeding or if any appeal entered in respect thereof, such thing may be sold, destroyed or otherwise disposed of ...

So subsection (1) of section 353 makes it a requirement that exhibits which are not covered under the succeeding subsections will be disposed of after the trial, and if there is an appeal, after the appeal. Because the exhibits were not perishable their disposal during the pendency of the trial worked an injustice to the defence. And as Write, J., put it in his judgment in *The Queen v. Lushington ex parte Otto* (2):

> In this country I take it that it is undoubted law that it is within the power of, and is the duty, of, constables to retain for use in court things which may be evidences of crime... I think it is also undoubted law that when articles have been produced in court by witnesses it is right and necessary for the court, or the constable in whose charge they are placed (as is generally the case), to preserve and retain them, so that they be always available for the purpose of justice until the trial is concluded ...

I said earlier that the disposal of the exhibits has worked an injustice to the defence; this may be so because the disposal may be a ground for a presumption that had the exhibits been available the defence could have created doubts in the prosecution case or that what the defence claims may as well be true. In either case reasonable doubts emerge the advantage of which must go to the appellants. I would, in that circumstance, determine the first ground in the affirmative.

The second and third grounds relate to the caution statements the appellants admittedly made, but the contents of which they dispute. It is contended on their behalf that the admissions contained therein were involuntary, and they made it known to the trial court that they made the admissions after police torture. The trial court is on record to say that the appellants bore fresh wounds but it did not allow the appellants to make fresh statements at a time when they were no longer in police custody.

The three prosecution witnesses who testified denied that the appellants were tortured while they were under police restraint. That may be quite possible; it may still be quite improbable. It seems to be improbable because the prosecution was not taken by surprise by the allegations that the appellants were severely beaten up at the time shortly before the caution statements were recorded. This is a matter which was made in an open court. One would have expected the prosecution to adduce evidence quite in advance of the defence that the allegations were untrue. This could easily be done by the prosecution calling witnesses from among members of the public to testify that the appellants sustained injuries after they were beaten up by members of the public who happened to be around the time the appellants were arrested. Civilians who witnessed the alleged mob assault of the appellants should have been called to testify. Failure to call anyone who, beside the police who are alleged to have tortured the appellants, was outside the accusations should have entitled the trial court to make an adverse inference that if any such witness was called he would have testified against the prosecution case. The omission, therefore, was another instance in which reasonable doubts emerge, the benefit of which should have gone to the appellants. From the above considerations I am satisfied that it is more probable than not that the confessions were influenced by a temporal fear of further violence.

Numerous authorities abound regarding the probative value of confessions which are influenced by violence or threats. One is *Tuwamoi's* case (*infra*). I however, would like to emphasize a few aspects. As

it was said in *R. v. Harz* (3), a statement made by an accused person in relation to, or material to, the subject matter or a charge subsequently brought against him must neither be obtained by a promise of advantage of favour or threat of disadvantage relating to the charge, nor by any other inducement of compulsion in relation to such statement otherwise than a voluntary statement of the accused himself. And it is now the law in this country that a confession of a crime must not be made in consequence of a temporal inducement resulting from violence from or by those who arrest the accused person or in whose custody he is placed. Upon identical considerations, and as it was held in the English case of *Ibrahim v. The King* (4), when evidence is tendered against an accused person that consists of a statement that may as well be admissible on the ground that being against his own interest, it is probably true, the trial court should first consider the circumstances in which it was made. If those circumstances were such that the accused might have been tempted to make such a statement when it was untrue although against his ultimate interests, then the court should take the safe course of rejecting it in case it might be untrue. In my view, in a case such as the instant one in which there is evidence of violence before the statements by the accused persons were recorded, untrue relating to a possible recurrence of violence if the accused persons had refused to make an untrue admission of guilt.

So, in conclusion I am satisfied that the appellant has made out his case in respect of the second and third grounds. I would determine them in the affirmative. As I said earlier there is no proof for the fourth ground. I will therefore proceed to consider the fifth ground in which it is contended that the trial court's judgment is bad in law.

The fifth ground is based on the provisions of section 312(1) of the Criminal Procedure Act which provides that:

> Every judgment under the provisions of section 311 shall... contain the point or points for determination the decision thereon and the reasons for the decision....

Mr Mwakymbe argues that the impugned judgment falls far too short of the above statutory requirements. Mr Mallya, though briefly, argues in difference with learned defence counsel.

Now the impugned judgment is, by any description, very brief. The first paragraph covers the statement of offence and the particulars thereof. In addition all the prosecution witnesses are listed. The second paragraph contains a summary of the evidence for the prosecution. The defence case is summed up in one sentence. In the last paragraph of the first page a reference is made to the doctrine of recent possession and how it applied to the appellants. There then follows a brief reference to some aspects of circumstancial evidence. I will quote the relevant part, namely:

> The prosecution case in brief is that the two accused persons were involved in the armed robbery in which the motor vehicle TZF 5112 was robbed. On the time, date, and place above mentioned PW1 was driving his motor vehicle. He saw three people and one of them had a hand gun. The three had ordered PW1 to get out of the M/V He complied and the three took and drove away the M/V. He reported the incidence at the police station. Then the Police relayed the message of the M/V. being stolen. The M/V was retrieved at Mwenge area. The accused persons were caught red handed driving the M/V. One of culprits escaped. The first accused remained in the M/V. He had a pistol and five rounds of ammunition. The hand gun is STAR KF 5645. They were tendered as P2 the hand gun, P5 five rounds of ammunition. The M/V was tendered as P6.
>
> The first accused's statement was tendered as P7 while that of the second accused was tendered as P8.
>
> On defence both accused persons denied to have participated in the robbery.
>
> The accused persons were found driving the m/v within one hour from the time the m/v was robbed. Such short time brushes aside any possibility that the m/v changed hands the moment if was robbed. The inference is that these two accused persons were the very persons who had taken part in the robbery.

> The statements they made were caution statements both of them have conceded to have taken part in the robbery. That is Exhibits P7 and P8.
>
> According to PW1 one of the robbers had a hand gun and had threatened to use it unless otherwise PW1 got out of the MV and they in turn rob it. The hand gun was retrieved in the MV when the Police impounded and arrested the accused persons. The hand gun was tendered as Exhibit P6. This means that the offence committed was armed robbery.
>
> The accused persons defences that they were beaten up, and that *alibi* are mere afterthrought. I can conclude that the prosecution had proved the charge beyond reasonable doubt. I convict both accused persons as charged.

There is no doubt that the trial court's judgment does not meet the statutory requirements. This is so because the defence was not accorded any weight. One of the appellants having raised the issue of being forced to make admissions of guilt in their caution statements the trial court was required as a matter of law to consider that issue and make a finding on it, giving reasons for reaching any conclusion on the matter. Indeed, the defence raised the issue of credibility when it was contended by defence counsel in his final address that the bullet hole in the windscreen was caused by a shot from inside the car. And take the repudiated confessions; the trial court did not address its mind to the danger of a possibility of the admissions having been influenced by the violence to which the appellants were subjected. In fact there is no finding that the alleged confessions were voluntary. It is in these circumstances I hold that indeed the trial court's judgment is bad in law. Accordingly, the fifth issue is determined in the affirmative.

Upon the foregoing considerations the appeal is allowed. Consequently the conviction is quashed and the sentence is set aside.

HASSAN KINGAMA *v.* REPUBLIC

HIGH COURT OF TANZANIA
AT TANGA
(Mkwawa, J.)

CRIMINAL APPEAL No. 6 OF 1998

(From the Judgment of the District Court of Handeni District at Handeni, Msangya, D.M., in Criminal Case No.104 of 1997)

Criminal Practice and Procedure – Legal Representation – Right of accused to legal representation – Accused showed intention to be represented – whether trial court may proceed without giving chance to the accused to get legal representation – Section 310 of the Criminal Procedure Act, 1985.

Criminal Practice and Procedure – Change of magistrate–Magistrate withdrew/ disqualified himself from hearing the case – Whether the same magistrate may continue to hear the same case.

Criminal Practice and Procedure – Retrial – Retrial not to be ordered where it is likely to cause injustice to the accussed.

The appellant was convicted by the District Court, Handeni, of interfering with a child's regular school attendance contrary to section 37(1) of the National Education Act 1978, and abduction contrary to section 133 of the Penal Code Chapter 16. During the trial the trial magistrate withdrew or disqualified himself from hearing the case on 28 June 1997. Then, on 28 November 1997 the same Magistrate proceeded to hear this case and convicted the accused. During the trial the appellant, from the outset, intimated that he wanted to have legal representation but the Magistrate did not avail him the chance.

Held: (i) As the learned trial magistrate disqualified himself or withdrew from conducting this case and made it known to the parties that he would not deal with it, it was wrong for him to continue hearing the case later on.

(ii) The trial magistrate erred in law by not availing an opportunity to the accussed to get legal representation as that was his right under section 310 of the Criminal Procedure Act,1985. Re-trial should not be ordered where it is likely to cause injustice to the accused person.

Appeal allowed

Cases referred to:

(1) *Meto v. Lannoa and others* [1969] 1 QB 577

(2) *Zabron Panga Maiga v. Jakim Kiwaraka and another* [1987] T.L.R 140

(3) *John Mgaya and Another v. Daud Mjenga* App Number 8 of 1997 (unreported)

(4) *Yusuf Citta v. R.* [1959] EA 211

(5) *Sukar v. R.* [1969] EA 483

(6) *Komba v. R.* [1967] HCD n. 60

(7) *Ally v. R.* [1957] HCD n.444

Statutory provisions referred to:

(i) Penal Code, Chapter 16, section 133

(ii) National Education Act ,section 31(1), section 37(1)

(iii) Criminal Procedure Act 1985, section 310

(iv) National Education Act 1978

Mr. Mbezi, for the Appellant

JUDGMENT

(Delivered 30 April 1999)

MKWAWA, J.: The appellant, Hassan Kingama, was charged with and convicted by the District Court of Handeni of the following offences: the first count was in respect of interfering with a child's regular attendance of school contrary to section 31(1) of the National Education Act 1978 as amended by Act Number 10 of 1995 and the second count was in respect of abduction contrary to section 133

of the Penal Code. The trial court sentenced him to six months and five years' imprisonment for each count respectively. There was, however, no direction by the sentencing court as to whether the sentences imposed should run concurrently or consecutively. Being dissatisfied with the decision of the trial/convicting court he has now appealed to this court against both the conviction and sentence.

Having regard to the course I have adopted to take in order to dispose of this appeal, I do not find it necessary to recapitulate the evidence adduced and or go into the merits and demerits of the findings of fact as it will be inviduous to do so. The trial of the appellant in the trial court is, gravely and embarrassingly, flawed both in matter of procedure and evidence so much so, that I find it very hard to say that there was semblance of justice in the trial. All in all, as rightly observed and submitted by Mr Mbezi, the learned counsel for the appellant, the flaws went against all canons of a fair trial. That actually transpired was mockery of justice, to put it at its lowest. To demonstrate what I am saying, I will deal with two out of more than *seven* of them. It is common ground that on the 20 June 1997 the trial magistrate had withdrawn/disqualified himself from the trial of this case and made the following order:

> The Judge-in-charge will be informed to nominate another magistrate to preside over this case.

On the 24 July 1997 the same trial magistrate ordered that the case be heard on the 14 August 1997 apparently before a magistrate to be assigned by the Judge-in charge. But on the 28 November 1997, for reasons beyond my comprehension, the same magistrate proceeded with the trial which led to the appellant's conviction.

As the trial/convicting magistrate had disqualified himself, from the case and had made it known to the parties that he would not deal with the case any further, his further involvement in the case was prejudicial to the trial and increasingly confirmed the appellant's suspicion that he would not get a fair trial as the umpire was biased. This is especially so, because, as aptly stated by the late Lord Penning,

MR (as he then was) in the case of *Meto v. Lannoa and others* (1) that "justice must be rooted in confidence and confidence is destroyed when rightly minded people go away thinking that the judge was biased." (See also judgments of our Court of Appeal (T) *Zabron Panga Maiga v. Joakim Kiwaraka and another* (2) and *John Mgaya and another v. Daud Mjenga* (3).

Another disquieting feature in the appellant's trial before the Lower Court which deserves to be looked into was the denial by the court for the appellant to be represented by an advocate. As it can be cleaned from the record of this court, that was the appellant's fourth ground of appeal. The record of the Lower Court is loud and clear that the appellant had not indicated his need to be defended. This surprising decision by the trial magistrate put the appellant in a very awkward situation whereby he had to defend himself. What then, is the effect, in law of denying a right to be defended? The answer to that, generally speaking, is that the conviction cannot be allowed to stand. It must be quashed on appeal. In the case of *Yusufu Citta v. R* (4) at page 213 it was stated as follows:

> Every accussed has the undoubted right to be defended by Counsel. *Galos Nyred and another v. R* (2), 1944 AC 149 and *Kingston v. R* (3) 32 CR Appr. 183 may be regarded as authority for the proposition that if an accussed is deprived of that right through no fault of his counsel and a conviction follows, the conviction will be quashed on appeal. [emphasis supplied].

That is the sanctity with which our courts of law treat the right of an individual to be defended. This right, in our jurisdiction, is provided by the provisons of section 310 of the Criminal Procedure Act 1985. In the upshot, it cannot at all be said that the appellant had had a fair trial. In the light of the foregoing the conviction that proceeded from the flawed proceedings cannot be allowed to stand. It is hereby, accordingly, quashed and the sentences imposed thereon set aside.

The question that poses now, is whether or not a retrial should be ordered. It is now attrite law that re-trials should be ordered only where the interest of justice require and it should not be ordered

where it is likely to cause injustice to an accussed person (See: *Sukar v. R* (5), *Komba v. R.* (6) and *Ally v. R.* (7) to mention just a few decisions).

In the instant case the irregularities were caused by trial magistrate and not the prosecution or the appellant. A retrial in this case is not only distasteful but if ordered, might lead to the prosecution using the opportunity offered to fill in the gaps. Besides, the appellant had served more than ten months' imprisonment before I granted him bail pending appeal I am unsure if the period served will be taken into account in the event of the conviction ensuing. In the present case, I venture to say that giving an order for re-trial/*de novo* hearing, is likely to cause unjustice to the appellant. The interests of justice in this case demand that I decline to make such an order. I accordingly so do.

As the appellant is already out on bail it is only ordered that the appellant and his sureties be discharged from the bond forthwith.

LOSWAKI VILLAGE COUNCIL AND ANOTHER *v.* SHIBESH ABEBE

COURT OF APPEAL OF TANZANIA
AT ARUSHA
(Samatta, J.A.)

CIVIL APPLICATION No. 23 OF 1997

(From the Judgment and Decree of the High Court of Tanzania at Arusha, Munuo, J., in Civil Case No. 13 of 1990)

Civil Practice and Procedure – Stay of Execution of a decree – Application for stay of execution in Court of Appeal – Time within which to apply for stay of execution.

Civil Practice and Procedure – Limitation – Limitation period in respect of application for stay of execution in Court of Appeal – Reasonable time within which to apply.

Having lost the case in the High Court, the applicants filed a Notice of Appeal and, seventy-six days later, they filed in the Court of Appeal an application for stay of execution. The respondent raised a preliminary objection to the effect that the application was incompetent in law in that it had not been filed within the prescribed period.

Held: (i) Assuming the argument that the Law of Limitation Act does not apply to proceedings instituted before the Court of Appeal and that a party who wishes to have the execution of a decree stayed must do so within a reasonable time, the Tanzania Court of Appeal Rules 1979 prescribing no period within which such a step is to be taken, is well founded in law, it cannot correctly be said that the applicants filed this application within such time; the applicants filed the application seventy-six days after they had lodged their Notice of Appeal and no explanation for the delay.

(ii) What time may be regarded as being reasonable will depend on the circumstances of a given case; in this case, a period of one to two months would be reasonable in a very simple case, which this case was.

Application rejected.

Cases referred to:

(1) *Israel Solomon Kivuyo v. Wayani Langoi and another,* [1989] T.L.R 141

(2) *Jumuiya ya Wafanyakazi Tanzania v. Kiwanda cha Uchapishaji cha Taifa and another,* Civil Appeal Number 29 of 1987 (unreported)

Statutory provisions referred to:

(i) Tanzania Court of Appeal Rules 1979, rule 9(2)(b)

(ii) Appellate Jurisdiction Act 1979, sections 15 and 43(b)

(iii) Law of Limitation Act 1971 Part III of the First Schedule

Mr. Sabaya, for the Applicant

Mr. Lobulu, for the Respondent

RULING

(Dated 18 May 1999)

SAMATTA J.A.: This is an application brought under rule 9(2)(b) of the Tanzania Court of Appeal Rules 1979 (hereinafter referred to simply as "the rules"), for stay of execution of a decree passed in Civil Case Number 13 of 1990 in the High Court at Arusha, pending the determination of an appeal from the said decree the applicants intend to lodge before this court.

The dispute between the parties is over a farm in Kiteto District known as Farm Number 29. On 29 July 1997, the High Court (Munuo, J.) entered judgment for the respondent, declaring him to be the legal owner of the farm and restraining the applicants permanently from entering the said farm. The applicants were aggrieved by that decision and therefore lodged Notice of Appeal in respect thereof. On 21 October 1997, they filed before this court an application for stay of execution. The papers in the application, following leave granted by the court, were later amended so as to comply with the provisions of rule 45(2) of the rules. When the application, as amended, was called on for hearing, Mr Lobulu, counsel for the respondent, raised a point *in limine*.

He contended that the application is incompetent in law in that it was not filed within the period prescribed by law. The learned advocate contended that, because the rules do not prescribe the period within which an application for stay of execution of a decree must be filed, the lodging of such an application must be made in compliance with the First Schedule, item 21, to the Law of Limitation Act 1971 ("the Act"). In support of his argument that the Act prescribes the period within which an application for stay of execution of a decree must be filed, Mr Lobulu cited *Israel Solomon Kivuyo v. Wayani Langoi and Maishooki Wayani* (1). That was an application for stay of execution of a decree of this court. In the course of his ruling the learned single judge, Nyalali, C.J. said:

> In the course of the hearing of this application, Mr Lamwai requested this court to allow him to file the intended application. Mr D'Souza, learned advocate for the respondents countered such move by submitting that the intended application is already time-barred. I agree with this submission since under item 21 of Part III of the First Schedule of the Law of Limitation Act 1971, an application under a written law for which no period of limitation is provided under the Limitation Act, 1971 or any other written law has to be made within a period of sixty days.

Mr Lobulu went on to submit that, notwithstanding the observation made by this court in *Jumuiya ya Wafanyakazi Tanzania v. Kiwanda cha Uchapishaji cha Taifa and another,* (2) to the effect that historically this court is a successor of the Court of Appeal for East Africa, this court is totally distinct from the latter court and therefore section 43(b) of the Act does not govern appeals and applications to this court. The section reads:

> 43. This Act shall not apply to:
>
> (a) n.a.
>
> (b) application and appeals to the Court of Appeal for East Africa.

Mr Lobulu sought to re-inforce his argument by submitting that a close look at section 15 of the Appellate Jurisdiction Act, 1979, demonstrates that this court is regarded by Parliament as being totally distinct from the Court of Appeal for East Africa.

Conceding that the rules prescribe no period within which an application for stay of execution of a decree is to be filed, Mr Sabaya, counsel for the respondent, forcefully submitted that such an application is competent in law if it is filed within a reasonable time. It is not disputed that the applicants filed the instant application seventy six days after they had lodged their Notice of Appeal. No reasons have been advanced why they did not file the application earlier than that. Nevertheless, Mr Sabaya urged me to hold that the filing of the application was done within a reasonable time. The learned advocate concluded his argument by submitting that in *Israel Solomon Kivuyo's* case *supra* the learned Chief Justice's attention was not drawn to the

provisions of section 43 of the Act, and the learned Chief Justice erred in law in regarding the Act as applicable to proceedings brought before this court.

I have given careful consideration to the rival arguments addressed to me in this application. Mr Lobulu's contention that this court is distinct from the Court of Appeal for East Africa and therefore proceedings instituted before this court are, subject to what the rules provide, governed by the provisions of the Act seems to me to be a very attractive one, but I do not find it necessary to determine the question whether that argument is also sound in law. I am disinclined to make that determination because, in my opinion, assuming that Mr Sabaya's contention that the Act does not apply to proceedings instituted before this court and that a party, like the applicant in the instant case, who wishes to have the execution of a decree stayed must therefore do so within a reasonable time, the rules prescribing no period within which such a legal step must be taken, is well-founded in law, it cannot correctly be said that the applicants filed the instant application within such time. As will be recalled, the applicants filed the application seventy six days after they had lodged their Notice of Appeal. No explanation, leave alone reasonable explanation, has been given why they could not lodge the notice earlier than that. Those who seek the aid of the law by instituting proceedings in a court of justice must file such proceedings within the period prescribed by law or, where no such period is prescribed, within a reasonable time. This, I hasten to observe, is an elementary rule of law. But what time may be regarded as being a reasonable one? No general rule can be laid down; each case must depend on its own circumstances. A period which would be considered reasonable in one case, may not be so regarded in another. In the instant case, in the absence of an explanation why the applicants did not lodge their application, a very simple one, within a period of a month or two, it would, in my opinion, constitute over-indulgence for this court to hold, as the applicants have through their counsel ably urged me to do, that a period of seventy six days was a reasonable time. Those who seek the protection of the law in a court of justice must demonstrate

diligence. In my settled opinion, in the instant application applicants have not done so. They should, if they wish, seek extension of time to file an application for stay of execution.

For the reasons I have given, I feel constrained to sustain Mr Lobulu's preliminary objection. Accordingly, the application for stay of execution of the decree passed in Civil Case Number 13 of 1990 is struck out with costs.

NDWATY PHILEMON OLE SAIBULL *v.* SOLOMON OLE SAIBULL

COURT OF APPEAL OF TANZANIA
AT ARUSHA

(Mfalila, Samatta and Lugakingira, JJ.A.)

CIVIL APPEAL No. 68 OF 1998

(From part of the judgment of the High Court of Tanzania, at Arusha, Mapigano, J., dated 5 July 1996, in (PC) Civil Appeal No.32 of 1996)

Civil Practice and Procedure – Appeals – Appeals to the Court of Appeal – Case originating from Primary Court – A certificate on a point of law obtained – Whether Leave to Appeal is necessary.

Civil Practice and Procedure – Appeals – Court of Appeal Rules – Appeals from decisions of High Court in its appellate jurisdiction – Matter originating from Primary Court – Whether a decree of the High Court required – Court of Appeal Rules.

Civil Practice and Procedure – Decrees – High Court exercising appellate jurisdiction – Decree signed by the Registrar – Whether valid – rule 89(a) of the Court of Appeal Rules 1979.

An appeal was lodged to the Court of Appeal against the judgment of the High Court exercising its appellate jurisdiction. The case originated from the Primary Court. The appellant was issued with a certificate on a point of law but he did not obtain Leave to Appeal, and the Record of Appeal contained a decree signed by the Registrar. On a preliminary objection raised by counsel for the respondent, the Court of Appeal had to consider whether leave was required where a certificate on part of law has been issued; whether a decree of the High Court was necessary; and whether there was a valid decree in the record.

Held: (i) Once a certificate on a point of law has been issued, where such certificate is required, Leave to Appeal is not necessary as it is deemed to be included in the certificate;

(ii) Rule 89(2) of the Court of Appeal Rules makes it clear that a decree of the High Court in its appellate jurisdiction should be part of the Record of Appeal;

(iii) Since the decree which is annexed to the Record of Appeal was not signed by the judge who heard the appeal, the decree is invalid.

Appeal struck out, the applicant at liberty to re-institute a proper appeal

Cases referred to:

(1) *Sembeke Notira v. Ngitiri Meng'oru*, Civil Appeal Number 9 of 1989 (unreported)

(2) *Robert John Mugo v. Adam Mollel*, Civil Appeal Number 2 of 1990 (unreported)

(3) *Arusha International Conference Centre v. Damas Augustine Kavishe*, Civil Appeal Number 9 of 1988 (unreported)

(4) *Julius Petro v. Cosmas Raphael* [1983] T.L.R 346

Statutory provisions referred to:

(i) Court of Appeal Rules 1979, rules 89(a), 89(2) and 100, Order 39, rule 35(4), Order 43, rule 82, Order 39, rule 35(4)

(ii) Civil Procedrue Code Order 39, rule 35(4)

(iii) Magistrates Courts Act 1984, section 32(2), 5(2)(c), 32, rule 3, Part III

(iv) Appellate Jurisdiction Act, section 5(2)(c), rule 89(2)

Mr. D'Souza, for the Appellant

Mr. Mwaluko, for the Respondent

RULING

(Dated 18 May 1999)

MFALILA, J.A.: When this appeal was called for hearing, Mr Mwaluko learned counsel for the respondent, rose to argue a preliminary objection against the appeal, an objection he had earlier filed under the provisions of rule 100 of the rules of this court. Mr Mwaluko submitted that this appeal is incompetent on two grounds. First, he said that the appeal is incompetent for failure to extract the decree and annex it to the Record of Appeal as required by rule 89(2). He added that the document at pages 163-164 of the Record of Appeal cannot be regarded as a decree because it was not signed by the judge who decided the appeal as required by Order 39, rule 35(4) of the Civil Procedure Code. The document which was filed purporting to be a decree was not a decree because it was signed by the District Registrar who had no competence to sign the same. Filing an incompetent decree, is the same as failing to extract and file a decree and this Mr Mwaluko submitted rendered the appeal incompetent. Secondly, Mr Mwaluko submitted that this appeal was lodged in contravention of section 5(1)(c) of the Appellate Jurisdiction Act 1979 as no Leave to Appeal was sought and obtained. Therefore he concluded the purported appeal is incompetent and should be struck out.

In reply, Mr D'Souza learned counsel for the appellant, said that the provisions of Order 39 would not apply to third appeals such as the present because that order applies only to appeals from original decrees. He added that since no decrees are issued by Primary Courts and District Courts on appeal from Primary Courts, similarly no decree is required to be issued by the High Court after hearing an appeal originating from a Primary Court. The only thing which is

required is a certificate under section 32(2) of the Magistrates Courts Act 1984.

On ground two, Mr D'Souza submitted that there is no need to apply for leave where as in this case there is a requirement to apply for a certificate on a point of law and the same has been issued. This certificate in Mr D'Souza's view includes leave.

We shall first deal with the second ground of the preliminary objection. In this connection, we wish to reiterate what this court stated in a similar case, *Sambeke Notira v. Ngitiri Meng'oru* (1). In that case, somewhat a reverse of the present one, counsel for the respondent had taken a preliminary objection and sought to have the appeal struck out as being incompetent because no point of law had been certified for consideration by this court in terms of section 5(2)(c) of the Appellate Jurisdiction Act. The record showed that the High Court acting under section 11 had granted Leave to Appeal to this court. Counsel for the respondent submitted that such leave was not sufficient to confer jurisdiction on this court on such a matter. He referred to rule 89(2) which specifically provides that in the case of a third appeal, the Record of Appeal shall contain, *inter alia,* the certificate of the High Court that a point of law is involved.

In reply, counsel for the appellant submitted in effect that the Leave to Appeal as granted by the High Court was sufficient to confer jurisdiction on this court, and that it was not necessary to apply specifically for a certificate that a point of law was involved and further that when in this case the High Court granted Leave to Appeal, it also amounted to granting the certificate because, he added, there is no special format for such certificate. This court held as follows:

> The present proceedings arise under Head (c) of Part III of the Magistrates Courts Act 1984. The provision makes it clear that despite the general permission granted under sub-section (1)(c) to appeal with leave, in this particular type of cases leave granted under that sub-section would not do, appeal shall lie only upon a certificate that a point of law is involved.

> It is our firm view that a party seeking a certificate that a point of law is involved must apply specifically for it under section 5(2)(c) of the Act. We do not think that it is necessary for such a party to make two applications, one for Leave to Appeal and then another one for a certificate. Only one application under section 5(2)(c) suffices, and if the High Court certifies a point of law for consideration by the Court of Appeal, that in itself necessarily means that the High Court agrees that the matter should be tested on appeal to the Court of Appeal. It hardly needs emphasizing that when an application is brought under section (2)(c), the High Court should set out clearly that a point or points of law which it certifies for the opinion of the Court of Appeal, and the Court of Appeal should not be made to guess what that point or points are.

As we stated earlier, the present case is the reverse of the *Sambeke* case (1) in that in the present case a certificate that a point of law was involved was issued but not Leave to Appeal. In the above case, this court stated that it is not necessary to make two applications in a situation where a certificate of law is required, because once a certificate has been issued, Leave to Appeal is not necessary as it is deemed to be included in the certificate. The reverse of course is not true, namely, that Leave to Appeal does not include a certificate that a point of law is involved for consideration by this court. Accordingly, we agree with Mr D'Souza and dismiss ground 2 of the preliminary objection.

We now turn to ground 1 of the preliminary objection. Fortunately, there is also a decision of this court on the point. This was in the case of *Robert John Mugo v. Adam Mollel* (2). In that case, a preliminary objection was raised at the first hearing of the appeal, on the ground that the appeal was incompetent as it lacked the decree against which the appeal was instituted as required under rule 89(2). In support of this point, counsel for the respondent, drew the attention of the court to the Record of Appeal which contained a document which according to him could not be construed to be a decree as it was not signed as required by Order 39, rule 35(4) by the judge who adjudicated the case in the High Court where it came as a first appeal from a Subordinate Court. Counsel contended further that since the decree on appeal was

signed by the District Registrar and not by the judge concerned, and since the District Registrar has no power to sign such decree on appeal, either under Order 43 or any other law, the purported decree was invalid and consequently the appeal must be struck out under rule 82 on the ground that some essential step in the proceedings had not been taken. In support of this proposition, he cited the case of *Arusha International Conference Centre v. Damas Augustine Kavishe* (3):

> Although the case cited by Mr Lobulu concerned failure to extract a decree of the court below, we agree that in essence there is no difference between extracting an invalid decree and failure to extract a valid decree. We also agree that a decree on appeal which is not signed by a judge as required by Order 39, rule 35(4) invalidates the purported decree. This is because such signature by a judge is mandatorily required and it authenticates the decree. We do not however think that every omission or irregularity would necessarily invalidate the decree. Therefore for the reasons stated above we are bound to sustain the preliminary objection made by counsel for the respondent.

One can therefore apply the above rule and say with *Mr. Mwaluko* that since also the decree in the present case was not signed by the judge who heard the appeal, the decree lodged with the Record of Appeal is invalid and therefore the appeal should be struck out. Such a result would have been inevitable but for one difficulty, that the present appeal is not from an original decree as Order 39 states. It was a second appeal in the High Court, it having originated from the Primary Court. Order 39 is clearly headed "Appeals from original decrees". We therefore agree with Mr D'Souza that the order and decision in the *Kavishe* case quoted above would not be applicable to a case such as the present. There is also another objection to the use of Order 39 and this is that apart from the limited exception created by section 35 of the Magistrates Courts Act, which allows the use of the Civil Procedure Code to strike out appeals from Primary Courts, that Code is otherwise not applicable when the High Court is dealing with appeals from Primary Courts. In *Julius Petro v. Cosmas Raphael* (4), the High Court of Tanzania stated:

> The Civil Procedure Code 1966 does not apply to the High Court when hearing appeals originating from Primary Courts. It applies in the High Court, Resident Magistrate's Court and District Courts when they exercise original civil jurisdiction and also applies when the High Court hears appeals originating from District Courts or Resident Magistrates Courts.

Although we hasten to add with respect that the above formulation is too wide in view of the exception referred to above. Where then do we go from here? In this connection Mr D'Souza suggested that since under the Primary Courts Civil Procedure Rules G.N. 312/64 there is no requirement for drawing up decrees, similarly there is no requirement for District and High Courts to issue decrees in appeals from Primary Courts. We agree that there is no provision in the Primary Court Civil Procedure Rules for drawing up decrees nor is there one in the Magistrates Courts Act 1984 dealing with appeals from Primary Courts. The nearest provision to the notion of a decree is section 32 of the Magistrates Courts Act which provides:

> 32(2) Where the High Court determines any appeal or revises any proceedings under this part [Part III of the Act] it shall certify its decision or order to the Primary Court in which the proceedings originated through the District Court, and the Primary Court shall thereafter make such orders as are conformable to the decision or order of the High Court, and, if necessary, the records shall be amended in accordance therewith.

Mr D'Souza submitted that all that is required in appeals from Primary Courts, is a certificate of the decision to the Primary Court concerned. Mr D'Souza is right but only if no appeal is preferred to the Court of Appeal against the decision of the High Court. Where however an appeal is lodged, the provisions of rule 89(2) of the Court of Appeal Rules come into play. This rule provides:

> (2) For the purposes of any appeal from the High Court in its appellate jurisdiction, the Record of Appeal shall contain documents relating to the proceedings in the trial court corresponding as nearly as may be to those set out in sub-paragraph (1) and shall contain also the following documents relating to the appeal to the first appellate Court:

(i) the order if any giving Leave to Appeal;

(ii) the Memorandum of Appeal;

(iii) the record of proceedings;

(iv) the judgement or order;

(v) the decree or order;

(vi) the Notice of Appeal.

and in the case of a third appeal, shall contain also the corresponding documents in relation to the second appeal and the certificate of the High Court that a point of law is involved.

It is clear from these provisions that a decree is required to be part of the Record of Appeal in an appeal originating from Primary Courts, in other words the High Court must extract a decree from its decision in an appeal from Primary Courts. The next question is who signs this decree? Part III of the Magistrate's Courts Act 1984 does not have such a provision nor the Primary Court Civil Procedure Rules. In the absence of any provision in the relevant statutes or the rules we have to fall back on rule 3 to enable us to formulate a procedure in this regard, since the requirement to draw up decrees in appeals originating from Primary Courts is in the rules themselves.

The requirement that a decree must be signed by the judge who made the decision is rooted in sound reason, namely, that the judge who decided the case or appeal is in the best position to ensure that the decree has been drawn in accordance with the judgement. We think this advantage becomes even more pronounced in a second appeal originating from Primary Courts. Consequently we think that even in second appeals in cases originating from Primary Courts the decree should be signed by the judge. Accordingly in the present case the decree should have been signed by the judge who decided the appeal and not the Registrar and that therefore the decree which is in the record is invalid for that reason.

For these reasons we uphold the first ground of the preliminary objection and say that since the decree which was annexed to the Record of Appeal is invalid, this appeal is incompetent and we order that it be struck out.

For the same reason that this court gave in Civil Appeal Number 2 of 1990, we think that justice demands that the appellant be put in a position whereby he can easily re-institute his appeal in this court should he so wish. With that in view, we hereby direct that the appellant be at liberty to apply to the High Court within twenty one days of receiving this decision for a decree in appeal properly signed by the judge concerned or in case the judge concerned has vacated office for any reason, then such decree shall be signed by his successor. We further direct that the appellant be at liberty to re-institute the appeal in this court within fourteen days from the date of obtaining the decree from the High Court without further payment of Court fees. As the appellant is not in any way to blame for this lapse, we make no order as to costs.

NURU HUSSEIN *v.* ABDUL GHANI ISMAIL HUSSEIN

COURT OF APPEAL OF TANZANIA
AT ARUSHA

(Mfalila, Lubuva and Lugakingira, JJ.A.)

CIVIL APPEAL No. 33 OF 1998

(From the judgment of the High Court of Tanzania at Arusha, Nchalla, J. dated 13 December 1994)

Probate and Administration – Caveat – Nature of proceedings once a caveat is entered – Section 52(b) of the Probate and Administration Act Chapter 445.

Civil Practice and Procedure – Non-joinder of parties – Non-joinder of parties in administration cases – Applicable provision – Amendment of pleadings – Order 1, rule 10 of the Civil Procedure Code 1966.

Court of Appeal – Jurisdiction – Powers of Court to make orders the High Court should have made – Appellate Jurisdiction Act 1979.

One Ismail Hussein died intestate in Nairobi. He left a house on Plot Number 32 Block D Area F Arusha and seven children The appellant who was the brother of the deceased petitioned for grant of letters of administration in the High Court of Tanzania at Arusha in respect of the property of late brother on Plot Number 32 Block D on the ground that he and his brother had equally owned it. The respondent, one of the children of the late Ismail Hussein entered a caveat. At issue were the ownership of the property and the suitability of the appellant for appointment to administer the property. The trial judge found that the claim of the appellant for a share in or part ownership of the suit premises was either not justicfable in the proceedings before him, or alternately premature. This was because none of the other beneficiaries had been joined in the proceedings. He then ordered that the appellant would be a rent paying tenant and appointed the respondent and his elder brother James Ismail as joint administrators of the estate with power to collect rent. He further ordered sale of the house and distribution of proceeds in the event of a dispute among beneficiaries.

Held: (i) The filing of a caveat in a probate or administration proceedings changes the proceedings into an ordinary civil suit, the petitioner becoming the plaintiff and the respondent becomes the defendant and parties must file special pleadings.

(ii) Where there is a non-joinder in an administration suit the court ought to proceed in terms of Order 1, rule 10 by asking the parties to amend the pleadings and all interested parties.

(iii) The trial judge should have struck out the suit once he came to the conclusion that the claim of the appellant was not justifiable or that it was premature.

Appeal allowed

Case referred to:

(1) *Kanakarathanammal v. Logannatha* (1964) 65 GR 1

Statutory provisions referred to:

(i) Probate and Administration Act Chapter 445, section 52(b)

(ii) Civil Procedure Code 1966, Order 1, rule 10, Order 1, rule 9, Order 1, rule 13, Order 1, rule 10(2)

Mr. Lundu, for the Appellant

Respondent, present in Person

JUDGMENT

(Dated 18 May 1999)

LUGAKINGIRA, J.A.: The appellant petitioned the High Court at Arusha for a grant of letters of administration of the estate of his late brother, one Ismail Hussein, who died intestate in Kenya on 15 March 1993, being survived by seven children and a house on Plot Number 32, Block D, Area F in the municipality of Arusha. The respondent, the second of the deceased's children, objected to the petition by entering a caveat. At issue was the ownership of the said property, which the appellant claimed to have owned equally with the deceased, and the appellant's suitability for appointment to administer the estate. At the conclusion of the trial, the trial judge made the following pertinent observations and rulings in his judgment.

> After both parties closed their evidence and when I was reading and interpreting the law, ... I became of the view that the plaintiff's claim for a share in or part of ownership of the suit house was either not justifiable in these proceedings, alternatively the same was premature. I was and am still of this view because ... [w]ith the exception of the defendant, none of ... [the other] beneficiaries was joined in the suit, and none of them ever testified before this court. Under the circumstances it would be very unjust and unprocedural for this court to decide the issue of ownership of the suit house without hearing these other mentioned beneficiaries ... So, it is my finding that the plaintiff's suit on the claim of ownership of

the suit house is bad for non-joinder of necessary parties, the same is therefore legally incompetent.

One would expect this to have concluded the matter, but it did not. The learned judge in fact went ahead and determined that he should continue to reside there as a paying tenant. He went further and appointed the respondent and his elder brother, one Jamal Ismail, joint administrators of the deceased's estate and charged them with collecting rent and applying it to the beneficiaries and heirs of the deceased. He finally ordered the sale of the house and the division of the proceeds between the beneficiaries and heirs in accordance with the applicable law should there arise disagreement over the use of the house and the rent there from. The whole decision aggrieved the appellant, hence this appeal. Mr Lundu, learned advocate, appeared for him while the respondent appeared in person. Earlier, this court stayed execution of the High Court's decree pending hearing of the appeal. The basic issue is whether the judge could proceed and make the decision and orders he made after deciding that the suit (actually part of it) was unjusticfable, premature and otherwise incompetent.

We have carefully pondered the actions of the learned judge and we can say that his problem lay in his perception of the case as consisting of two distinct parts: the application for a grant of letters of administration and the dispute over ownership of the house. This distinction was grounded in error because the house was the very estate that the appellant sought to administer; indeed he would not have petitioned at all had the deceased left no property of any kind. The two features were aspects of the same subject matter although special pleadings had to be lodged subsequent to the respondent's *caveat*. That was only a matter of procedure; it did not give rise to a case within-a-case; it is only a procedure intended to facilitate the investigation of a caveator's objection. Its effect is to enable the entire proceedings, but not just a part, to be dealt with as in a suit and to be concluded as one whole. It is important to emphasize this point as we have lately become aware of instances where two decisions have been rendered, that is, a decision on a supposedly suit within-

a-suit, followed by a decision on the application for letters of administration, sometimes by a different judge. That is wrong and does not accord with the provisions of section 52(b) of the Probate and Administration Ordinance, Chapter 445 which states:

(b) in any case in which there is contention, the proceedings shall take, as nearly as may be the form of a suit in which the petitioner for the grant shall be plaintiff and any person who appears to oppose the proceedings shall be defendant.

Perhaps if the learned judge had realized this, he would have been spared the anxiety of thinking that he was still indebted in the case after finding that there was a fatal non-joinder.

In probate as well as administration cases, more than one heirs and beneficiaries to the estate are frequently involved. Where such a situation obtains, it becomes imprudent, if not fraudulent, to exclude them in the proceedings, for that would make a conclusive decision almost impossible. In other forms of litigation the provisions of Order 1, rule 9 of the Civil Procedure Code, 1966, would apply, i.e. a suit will not be defeated by reason of the misjoinder or non-joinder of the parties, and the court may deal with the matter in controversy so far as regards the rights and interests of the parties actually before it. Similarly, in other forms of litigation the court can take shelter under Order 1, rule 13 which requires objections on the ground of non-joinder to be taken at the earliest possible opportunity or else such objection would be deemed to have been waived. This rule, however, cannot apply where a necessary party to the suit is not before the court for no effective decree can be made in the absence of such party: **Mulla**, Volume II, (14 ed), page 880. In Probate and Administration proceedings, therefore, we think Order 1, rule 10(2) becomes specially relevant. It provides:

The Court may at any stage of the proceedings, either upon or without the application of either party, and on such terms as may appear to the court to be just, order that the name of any party improperly joined, whether as plaintiff or defendant, be struck out and that the name of any person

who ought to have been joined, whether as plaintiff or defendant, or whose presence before the court may be necessary in order to enable the court effectually and completely to adjudicate upon and settle all the questions involved in the suit, be added. [Emphases mine]

Although the provision is seemingly permissive, in practical reality it operates compulsively where non-joinder would render the proceedings a non-starter. In an administration suit the omission of a necessary party is not a technical defect but goes to the substance of the action: **Mulla,** *op. cit.*, page 855. Hence, where a plaintiff filed her suit to recover properties left by her mother claiming to be her exclusive heir and refused to join as parties her brothers who were held to be her co-heirs, their non-joinder was held to be fatal: *Kanakarathanammal v. Logannatha* (1). It is therefore incumbent upon the court of its own motion to order the addition of the co-heir or co-heirs, else its decision would risk being set aside.

In the instant case the trial judge found, and correctly so, that the non-joinder vitiated the propriety of the suit although he erroneously confined his remarks to one aspect of the subject matter. We are of the view that he could not thereafter validly proceed and pronounce on the substance of the application as a whole and we hold his decision and orders to be a nullity. It may be pointed out also that the appellant's exclusion of the heirs actually pervaded the entire proceedings. Even in the initial petition comprised in Form 27 he did not show that the deceased was survived by any relatives. We think, in these circumstances, the learned judge should have made orders for amendments as required under Order 1, rule 10(2) or, after failing to do so, he should have struck out the application for being incompetent.

Accordingly, we allow the appeal, quash the decision and orders appealed from and substitute a judgment striking out the application. We award no costs.

RAMNIK VAGHELLA *v.* MAHENDRA VAGHELLA

COURT OF APPEAL OF TANZANIA AT ARUSHA

(Mfalila, Samatta and Lugakingira, JJ.A.)

CIVIL APPEAL No. 32 OF 1996

(From the decision of the High Court of Tanzania at Arusha, Munuo, J., dated 29 May 1995, in Civil Case No.11 of 1994)

Probate and administration – Will – Validity of a will – Will prepared by a testator alleged to be physically and mentally incapacitated and not able to understand the contents of the will – Whether the will is valid.

Probate and Administration – Will – Validity of a will – Burden of proving the validity of a will – Burden on the party propounding it.

Will – Capacity of testator – Expert evidence on capacity of the testator – Whether evidence is conclusive.

The parties to this appeal were uterine brothers, the appellant being the elder. The appeal arose from a judgment and decree of the High Court at Arusha granting the respondent probate of the will of their late mother who died in November 1992. In February 1993 the respondent petitioned for probate annexing the deceased's will dated 18 November 1992 in which he was named sole beneficiary of property situated in the Arusha Municipality. The appellant challenged the petition alleging, among other things, that the will was invalid as it was made at a time the deceased was so physically and mentally incapacitated that she could not understand the contents thereof. The trial judge found the will valid and granted probate to the respondent. On appeal the issue turned on the validity of the will.

Held: (i) It is settled law that in order for a will to be enforceable it has to be valid, and its validity in turn derives from the capacity of the testator and the circumstances attending its making.

(ii) The burden to prove the validity of a will rests on the party propounding it and this burden is heavier where the testator's capacity is in question;

(iii) The law presumes sanity, and no evidence would be required to prove sanity unless it has been impeached;

(iv) The second will was valid. It was made by a capable person; it was not influenced by any delusions; it was properly executed. The burden cast upon the respondent/plaintiff had therefore been discharged;

Appeal dismissed

Cases referred to:

(1) *Banks v. Good fellow* (1870) LR 5 QB 549

(2) *Smee and others v. Smee and the Corporation of Brighton* (1879) 5 PD 84

(3) *Nkinga Hospital v.Theodeolona Alphaxed* [1992] T.L.R 235

(4) *Sugden v. Lord St. Leonards* (1876) IPD 154

(5) *R.v. German* [1947] 4 DLR 68

(6) *Battan Singh and Others v. Amirchand and others* [1947] AC 161

(7) *Othman Matata v. Grace Matata* [1981] T.L.R 23

Messrs D' Souza and *Sabaya,* for the Appellant

Mr Ngalo, for the Respondent

JUDGMENT

(Dated 18 May 1999)

LUGAKINGIRA, J.A.: The parties to this appeal are uterine brothers, the appellant being the elder, and the appeal arises from a judgment and decree of the High Court at Arusha (Munuo, J.) granting the respondent probate of the will of their late mother, Hirubai Meghji Vagella, who died at Arusha on 21 November 1992. In February 1993 the respondent petitioned for probate annexing the deceased's will dated 18 November 1992 (hereinafter "the second will") in which he was named sole beneficiary to a house on Plot Number 7B, Block

"R", along Jacaranda Street in Arusha municipality. The petition was challenged by the appellant in a *caveat* contending, (a) that earlier on 21 September 1992 the deceased had made another will bequeathing the said property equally between the parties, and, (b) that the second will was invalid as it was made at a time the deceased was so physically and mentally incapacitated that she could not understand the contents thereof. The trial judge found the second will valid and granted probate to the respondent. In this appeal the issue turns on the validity of that will.

The testatrix was aged 73 years at the time of her death and had been taken ill for three months. According to the respondent who was staying with her, she was having stomach problems and was unable to retain food. She died of old age and starvation according to the Death Certificate, Exhibit P1. During her illness she was being attended by Mr Samuel Samson Nkulila, a private medical practitioner and consultant psychiatrist, who testified for the appellant. He stated that she had a heart failure with attendant depression. He saw her on 17 November and, to quote his own words,

> ... the patient was physically and mentally incapacitated. She refused all medication. She was conscious but confused which means she could hear, talk, feel but she refused to take medicine. She shouted. When I prescribed medicine for her she shouted. She was so sick that she could not have worked on any will or other document.

The deceased's refusal to take medicine was a central premise in Mr Nkulila's reasoning. In a report he made to the appellant's counsel after the testatrix's death, and later tendered as Exhibit D1, he said:

> The last time I saw her was about 17 November and also 20 November 1992. Both of these visits she seemed very incapacitated, both physically and mentally; i.e. her judgment was obviously inappropriate as she refused all medication.

We shall turn to the significance of this reasoning later. In cross-examination, however, the doctor conceded that:

> On 17 November 1992 when I visited the patient she recognized me. Some patients may be mentally normal and deliberately refuse medication or treatment. Some very ill and desperate people who think they are about to die refuse medication. If someone refuses medication he would not necessarily be mentally incapacitated.

Indeed, according to the evidence on the respondent's side, the deceased was mentally sound at the time of giving instructions for and executing the will. This came and can also be inferred from the testimony of the respondent who stated that she sent him to bring a lawyer and also that between 15 and 21 November, she was mentally sound and talked normally. There was evidence also from Mr Sudhir Khetia, one of the witnesses to the will, who said in cross-examination:

> The deceased was alert, speaking well ... Nathwani [another witness] helped the deceased hold her hand when she thumb-printed the will – she was weak but alert mentally. I do not know which doctor attended the deceased. The deceased had a sound mind because I saw and talked with her ... The deceased recognized me so she was mentally sound when I found her at her bed.

He added in re-examination:

> I was a witness to the will Exhibit P2. The deceased was alert and mentally sound so she fully understood the contents of the will. The deceased recognized me because she knew my parents and had no problem identifying me. She was in control of her senses and capable of talking and thinking in our presence.

Finally, Mr Frederick Kinabo, the lawyer who was called by the respondent and who draw up both wills, stated that the deceased fully understood the contents of the second will. He conversed with her in Kiswahili in which she was fluent. She instructed him on 17 November when he drew up the will, but as witnesses could not be found, it was signed the following day. He further said:

> The deceased was not too weak to thumb-print the will. I found the deceased on her bed ... she was talking and sitting up on her bed. She was mentally sound because I knew her since 1966. On the 17 November 92 the deceased

> even asked me after a cat my father had given her in 1966, which proves that her mind and memory was sound.

It is in the context of all this evidence that the learned trial judge reached the decision now being impeached. Mr D'Souza who appeared for the appellant (assisted by Mr Sabaya) argued two interconnected grounds: the burden of proving the validity of an impeached will and the importance of expert evidence, while Mr Sabaya raised fraud. It is unnecessary to particularize here the various arguments put forward or the reply thereto by Mr Ngalo who appeared for the respondent, but they will all be considered in the course of the judgment. It is sufficient to say that the overall argument was that the trial judge did not specifically address her mind to the deceased's capacity to make the second will, and the burden and standard of proof in these matters, but approached the whole subject in general and casual terms. Speaking generally, we think the criticism is not entirely unjustified and, it must be said, with due respect to the learned judge, that her judgment is certainly wanting in depth. The task before us, though, goes beyond considerations of form and we have to determine whether, on the whole, the evidence on record justified the decision reached. It will therefore become apparent that we will be proceeding as in a retrial.

Some general observations are appropriate at the outset. It is settled that in order for a will to be legally enforceable it has to be valid, and its validity in turn derives from the capacity of the testator and the circumstances attending its making. A lunatic cannot make a valid will during the subsistence of his insanity and a will obtained by fraud or one improperly executed cannot count for a valid testament. The essentials of testamentary capacity were laid down in *Banks v. Goodfellow* (1) in these terms:

> ... a testator shall understand the nature of the act and its effects; shall understand the extent of the property of which he is disposing; shall be able to comprehend and appreciate the claims to which he ought to give effect; and, with a view to the latter object, that no disorder of the mind shall poison his affections, pervert his sense of right, or prevent the exercise

of his natural faculties – that no insane delusion shall influence his will in disposing of his property and bring about a disposal of it which if the mind had been sound, would not have been made.

In the case before us, the appellant's side have been saying that the deceased did not answer to those tests on account of old age and disease, and as particularly testified to by Mr Nkulila. We shall revert to the argument shortly. Presently, some remarks on the burden and standard of proof. Mr D'Souza argued, and quite rightly, that the burden to prove the validity of a will rests on the party propounding it and this burden is heavier where the testator's capacity is in question. In the case of *Smee and others v. Smee and the Corporation of Brighton* (2) he cited to us, the President of the court directed the jury (at page 91) that:

> ... any one who questions the validity of a will is entitled to put the person who alleges that it was made by a capable testator upon proof that he was of sound mind at the time of its execution. The burden of proof rests upon those who set up the will, and, *a fortiori*, when it has already appeared that there was in some particular undoubtedly unsoundness of mind, that burden is considerably increased.

Again in **Jarman on Wills**, (8 ed), page 51, it is stated:

> In cases of weakness of mind arising from the near approach of death, strong proof is required that the contents of the will were known to the testator, and that it was his spontaneous act.

We are equally in agreement with Mr Ngalo that the law presumes sanity, and no evidence would be required to prove sanity unless it has been impeached. We wish to point out, however, that the deceased's state of mind was questioned in paragraph 7 of the appellant's affidavit in support of the *caveat*; therefore Mr D'Souza's argument was not without basis.

The trial judge considered the testatrix's capacity although she did not expressly address the issues of onus and standard of proof. She referred to Mr Nkulila's evidence and his concession that patients

may deliberately refuse medication even though not mentally incapacitated. She referred to Mr Kinabo's evidence and the deceased's reminiscence on the 1966 feline. She also noted that Mr Nkulila last saw the deceased on 17 and conceded that he could not know her state of health on the next day. Although she did not then proceed to state in express terms that the deceased had the necessary capacity, the finding was necessarily implied. After our own appraisal of the evidence and the law, we are unable to come to a different view. To begin with, we are conscious of the importance of expert opinions in the field of medical issues. In *Nkinga Hospital v. Theodeolina Alphaxad* (3), also cited by Mr D'Souza, this court said:

> On such professional and technical issues, courts should not make assumptions based on nothing but conjecture. Opinions of professional and technical people in the field is invaluable to enable the court to make an informed finding.

We adhere to that view but wish to draw attention to the word "invaluable" in the passage which, in our view, reaffirms the settled position that opinion evidence is by no means conclusive. The opinions of experts are relevant but not binding; the weight to be attached on these opinions would depend on the nature of each case. Moreover, there are many matters of common experience in respect of which persons with no special qualifications are permitted to state what is really a matter of opinion. Such an opinion is no less relevant than the opinion of a trained person. The following passage in the judgement of the Ontario Court of Appeal in the case of *R. v. German* (5), says it all:

> No doubt; the general rule is that it is only persons qualified by some special skill, training, or experience, who can be asked their opinion upon a matter in issue. The rule, however, is not an absolute one. There are a number of matters in respect of which a person of ordinary intelligence may be permitted to give evidence of his opinion ... [e.g.] where a witness has been asked whether a person was sober or not, and has been allowed to state what is after all, a matter of opinion .....

In the instant case there was compelling evidence by non-professionals testifying to the deceased's soundness of mind. She had the mind to send for a lawyer on 17 November. She had a conversation with the lawyer lasting an hour and during which she appears to have been so relaxed that she even recalled a small incident twenty-six years in the past. Then came the signing on the next day. The witnesses to the will were a Mr Suresh Nathwani and Mr Khetia. These are leading members of the Hindu community, to which the deceased belonged, the former being chairman and the latter secretary of the Hindu Union. Mr Khetia who gave evidence was emphatic that the deceased was of sound mind and understood the contents of the will. If we may allude to the phraseology of Cockburn, C.J. in *Sugden v. Lord St. Leopards* (4), it seems to us utterly impossible to suppose that responsible persons such as these would permit themselves voluntarily to subscribe their hands to a will not consciously made. Our minds revolt from arriving at any such conclusion, and we feel bound to reject it. Mr D'Souza argued that it could not be asserted that the deceased understood the will because Mr Kinabo gave it to Mr Nathwani to explain it to her, but Mr Nathwani does not appear to have communicated her reaction and he was not called to testify. We think, with respect, learned counsel misunderstood Mr Kinabo's evidence on that aspect. Our own appreciation of the evidence is that after reading the English-written will, Mr Nathwani talked to the deceased (in Gujerat) apparently to ascertain for himself that she understood it. He did not have to report back unless he was not so satisfied. Mr Kinabo said:

> I gave the English-written will to Mr Nathwani to read and he talked to the deceased perhaps to ascertain the accuracy of the will to make sure the deceased understood her will.

It is logical to conclude that Mr Nathwani's curiosity was satisfied for he proceeded to witness the will and even to assist the deceased to thumbprint it. In view of all these factors and Mr Nkulila's concessions which, above all, left the possibility that the deceased's refusal of medication could have been deliberate, we think there was justification

for a finding that the deceased was of sound mind and a capable person when she gave instructions for and signed the second will.

It is essential to go further in view of the attributes of capacity set out earlier, the reasoning of the psychiatrist and the argument advanced before us. As shown earlier, Mr Nkulila stated in Exhibit D.1 that the deceased "seemed very incapacitated, both physically and mentally; i.e. her judgment was obviously inappropriate as she refused all medication". Now, assuming that the deceased had in fact developed delusions about Mr Nkulila's medication, it did not follow in law that she had lost capacity in all other spheres, in the same way as it does not follow in medicine that a patient who refuses medication is necessarily mentally incapacitated. To be precise, it did not follow that she was also incapable of making a will. In order for delusions to be material in the testamentary context, there must be a connection between the will and the delusions, the poisoning of affections and perversion of the sense of right. In *Smee's* case (2) the President also said (*ibid.*):

> A few years ago it was generally considered that if a man's mind were unsound in some particular, the mind being one and indivisible, his mind was altogether unsound, and therefore that he could not be held capable of performing rationally such an act as the making of a will. A different doctrine subsequently prevailed ... It is this. If the delusions could not reasonably be conceived to have had anything to do with the deceased's power of considering the claims of his relations upon him and the manner in which he should dispose of his property, then the presence of a particular delusion would not incapacitate him from making a will.

In that case, it was not in dispute that the testator was of unsound mind. Additionally, it was possible to link his delusions to the two wills made by him. In the first will he excluded his relatives and left his property to his wife absolutely on account of a delusion that they were beneficiaries to his supposed trust money which he had been robbed by his father; in the second will he again excluded his relatives and gave his property to his wife for life or widowhood, and devised and bequeathed the residue to the Corporation of Brighton

to set up a public library on account of a delusion that he was a son of George IV who in his life had taken such deep interest in the town. The jury had no difficulty in deciding that the testator was of unsound mind when making both wills and the wills were declared invalid.

Similarly in *Battan Singh and others v. Amirchand and others* (6), a disease-stricken Indian resident of Fiji made a will excluding his nephews in India in favour of strangers and stating, "I declare that I have no next of kin nor blood relations in Fiji or elsewhere who are known to me". The Privy Council held that the will was the product of a man so enfeebled by disease as to be without sound mind or memory at the time of execution, and that the disposition of his property under it was the outcome of the delusion touching nephews' existence. Their Lordships stated (at page 170):

> A testator may have a clear apprehension of the meaning of a draft will submitted to him and may approve of it, and yet if he was at the time through infirmity or disease so deficient in memory that he was oblivious of the claims of his relations, and if that forgetfulness was an inducing cause of his choosing strangers to be his legatees, the will is invalid.

The totality of these decisions, to quote again from *Smee's* case (at page 92), is that:

> The capacity required of a testator is, that he should be able rationally to consider the claims of all those who are related to him, and who, according to the ordinary feelings of mankind, are supposed to have some claim to his property as it is to be disposed of after his death.

What was the position in the instant case? Assuming, as we have said, that the deceased had delusions about medication, was the delusion an operating factor when she went about making the second will? Did it poison her mind and render her oblivious of the appellant, her elder son? We are unable to find evidence to that effect and no such evidence was referred to us. On the contrary, it seems that the deceased had the appellant in contemplation when making the will, and deliberately excluded him, for it is apparent that she gave a reason

for that will. According to Mr Kinabo, "The deceased revoked the original will because the defendant [appellant] refused to return her gold and jewellery which she had deposited with the daughter of the defendant". Mr Sabaya suggested that Mr Kinabo must have obtained this information from the respondent. We see no basis for the suggestion. There was no evidence of any discussion about the will between Mr Kinabo and the respondent; on the other hand, there was evidence of an hour's conversation between Mr Kinabo and the deceased, and since Mr Kinabo had drawn up the earlier will and had it in his custody, the reason for its revocation must have been the inevitable subject of the conversation. We are satisfied that the deceased was under no delusions either with regard to her property or in relation to her children when making the second will; and considering all we have said we are satisfied that there was sufficient evidence proving to the required standard the deceased's capacity to make the will.

Finally, the trial judge addressed the issue of fraud and did not find it established. She distinguished this case, and correctly in our view, with the case of *Othman Matata v. Grace Matata* (7), a classic case of fraud where the deceased's thumbmark on a deed of transfer was literally robbed as he lay gravely sick and speechless. In the instant case, the deceased had to be assisted to thumbprint the will because she was both weak and illiterate, but she was alert, seated and talking. Even healthy illiterates are assisted in similar manner almost every day in our courts. Mr Sabaya's contribution on this subject was in turn mostly speculative and does not deserve much attention. We found no evidence of a conspiracy between the respondent and Mr Kinabo and we are unable to agree that the fact that the former called the latter on November 17, constituted such evidence. The question of the respondent being present at the signing of the will was not raised before the trial judge, but even if it had, it would certainly have failed in view of the respondent's denial in his testimony. He stated that he left his mother's room after ushering the witnesses in, and we do not think the trial judge would have believed otherwise had she been invited to consider the matter. We are satisfied on the whole that the execution of the will was proper.

In the final analysis we agree with the trial judge that the second will was valid. It was made by a capable person; it was not influenced by any delusions; it was properly executed. The burden cast upon the respondent/plaintiff had therefore been discharged.

ASIA ALLY *v.* REPUBLIC

HIGH COURT OF TANZANIA AT DAR ES SALAAM

(Bubeshi, J)

CRIMINAL REVISION No. 6 OF 1999

(From the decision of the District Court of Morogoro at Morogoro in Criminal Case No. 66 of 1999)

Criminal Practice and Procedure – Plea – Change of plea – Accused pleaded guilty and then requests to change plea – Whether the court may reject the request.

The applicant was brought before the District Court Magistrate and charged and facts of the charge were read to her and she pleaded guilty. The Court adjourned proceedings for two days; when she was brought to Court after the two days for sentence, she expressly requested the court to change her plea to that of not guilty. The Court did not allow and proceeded to sentence her.

Held: The trial court erred to proceed to sentence the applicant in view of her clear intention to change her plea.

Conviction quashed

Cases referred to:

(1) *Kamundi v. Republic* [1973] EA 540

(2) *Wanjini v. Republic* [1975] EA 5

Statutory provision referred to:

(i) Civil Procedure Act 1985, sections 374, 373

Mr. Kamugisha, for the republic

RULING

(Delivered 21 May 1999)

BUBESHI, J.: The respondent appeared in Court on 8 February 1999, where after the charge was read over to her she stated. "It is true" and a plea of guilty recorded. The Public Prosecutor read out the facts and the respondent is recorded to have agreed to the facts as narrated. The trial court then convicted the respondent accordingly. She was allowed to mitigate and the matter adjourned for sentencing.

On 10 February 1999, the respondent stated that she was changing her plea to one of "not guilty". The trial court, after hearing the public prosecutor, was not impressed and proceeded to sentence the respondent.

Mr Kamugisha, learned State Attorney appeared before the court in terms of section 374 of the Civil Procedure Act 1985. He was of the view that the trial court erred in law when it proceeded to sentence the respondent after she had indicated her change of plea.

I have carefully examined this case and I am inclined to agree with what Mr Kamugisha has stated. The current position is that a Court has power to alter a plea at any time before sentence is passed. This was stated by the Court of Appeal in the case of *Kamundi v. Republic* (1) a decision also followed in the case of *Wanjiru v. Republic* (2).

It follows therefore that the trial court erred to have proceeded to sentence the respondent in view of her clear intentions to change her plea.

In the premises, in exercise of powers conferred upon me by section 373 of the Civil Procedure Act 1985, I quash the proceedings and set aside conviction and sentence and order for a retrial of the respondent.

TANZANIA PHARMACEUTICAL INDUSTRIES LIMITED *v.* DR. EPHRAIM NJAU (NUMBER 2)

COURT OF APPEAL OF TANZANIA AT ARUSHA

(Mfalila, Samatta and Lugakingira, JJ.A.)

CIVIL APPEAL No. 6 OF 1998

(From the decision of the High Court of Tanzania at Arusha, Munuo, J., dated 23 August 1996, in Civil Case No.3 of 1993)

Labour Law – Appointment in subsidiary companies – Subsidiary company only recommends appointment but actual appointment is made by the Holding Corporation – Whether contract of employment was made with the subsidiary company.

Labour Law – Holding Corporation which is the appointing authority transfers an employee from its one subsidiary company to another – Whether transfer is implicit – Whether transfer constituted breach of contract of employment.

Labour Law – Damages arising out of termination of contract of employment – Whether payable by a subsidiary company with which employee worked.

The respondent, Mr Ephraim Njau, successfully sued the appellant company in the High Court at Arusha. Before the High Court, it was contended by Mr Njau that the appellant company's Board of Directors appointed him the company's general manager with effect from 3 October 1983. That he worked in this capacity until 30 November 1992 when the National Chemical Industries Limited, the holding corporation of the

appellant company purported to transfer him to Keko Pharmaceutical Industries Limited, another subsidiary company of the said holding corporation. Mr Njau challenged the purported transfer and removal from his present employment labeling it unlawful and that it constituted breach of contract between him and the appellant company. On this account he claimed for special and general damages. The appellant company denied all Mr Njau's claims against the company. The trial court found in favour of Mr Njau. On appeal;

Held: (i) The respondent in this case was appointed and employed by the holding corporation, namely, NCI. The contract of service as is evidenced by the letters of appointment and confirmation were between the respondent and NCI not the appellant;

(ii) The respondent sued a party, the appellant company, which had no contractual relationship with him;

(iii) In the absence of an undertaking not to transfer a particular employee (and this undertaking would be very rare indeed) a transfer order can never ever constitute a breach of contract of employment. The respondent's transfer to Keko Pharmaceutical Industries was lawfully made and, therefore, could not constitute a breach of contract of employment.

Appeal allowed.

Cases referred to:

(1) *Southern Highland Tobacco Ltd v.David Mcqueen* [1960] EA 490

(2) *Board of Internal Trade v. Yonah Mapenzi* [1998] T.L.R 306

Mr. Lobulu, for the Appellant

Mr. Ngalo, for the Respondent

JUDGMENT

(Dated 21 May 1999)

MFALILA, J.A.: The respondent, Mr Ephraim Njau, successfully sued the appellant Company, Tanzania Pharmaceutical Industries Limited in the High Court of Tanzania at Arusha for the following reliefs:

(a) TZS. 43 732 800 representing salary, fringe benefits and other emoluments from the 30 November 1992 till retirement.

(b) TZS. 176 000 being payment for annual leave for 8 years.

(c) General damages for breach of contract of service.

(d) Payment of pension.

(e) Interest at 25% per annum on the decretal amount from the date of suit till payment in full.

(f) Costs.

(g) Any other relief which this Honourable Court may deem fit to grant.

In his plaint which he filed in the High Court, the respondent, alleged, and it is these allegations which were the basis of his claim that on or about 3 October 1983, he was appointed by the appellant company's Board of Directors to be the General Manager of the appellant which appointment he duly accepted. That he worked in this capacity until 30 November 1992 when he received a letter from the National Chemical Industries Limited, purporting to transfer him in the same position to Keko Pharmaceutical Industries Limited. He went on to allege that this purported transfer and removal from his present employment was unlawful and constituted a breach of the contract of employment between him and the appellant and that in consequence of such breach he suffered loss and damage enumerated above. It was on this account that he claimed for special and general damages.

In its Written Statement of Defence, the appellant company denied the existence of any contract of employment between it and the respondent adding that at all material times, the respondent worked for the National Chemical Industries which posted him to it as General Manager. In the circumstances, there being no privity of contract between it and the respondent, there could not be any breach of contract between them. It added that the act of transferring the respondent to another company could not be regarded as unlawful and in any case the respondent had consented to the transfer in writing, he was therefore estopped from alleging otherwise.

It is obvious from these accusations and counter accusations that the respondent's case was rooted or anchored on the allegation that there was a contract of employment between him and the appellant company and that the respondent's purported transfer to another company by a stranger to this contract of employment i.e. the National Chemical Industries was a breach of this contract and therefore unlawful as it sought to remove the respondent from his present position as employee of the appellant company.

At the beginning of the trial, the following issues were drawn up and agreed upon:

1. Was the plaintiff (present respondent) appointed General Manager by the National Chemical Industries hereinafter referred to as NCI or by defendant?
2. Did the plaintiff work for NCI or for the defendant?
3. Was the plaintiff's transfer to Keko Pharmaceutical Industries unlawful as alleged in the plaint?
4. Did the plaintiff have a contract of employment with the defendant and if so did the defendant breach the contract?
5. Were the plaintiff's services with the defendant terminated with plaintiff's consent?
6. What damage if any did the plaintiff suffer, and if so did the plaintiff mitigate his damages?
7. To what reliefs are the parties entitled?

In support of his claim, the respondent told the trial court the story of his career, which without any doubt is an illustrious one. He said that he is a Chemist/Pharmacist registered with the Pharmaceutical Society in England. He studied pharmacy in England at the University of Sunderland and later took a Master of Science degree in pharmacy at Auston University, Birmingham, and the same University awarded him a Ph.D. degree in Medicinal Chemistry in 1975. With these qualifications, he returned to Tanzania in 1975 and was posted to

Muhimbili University College of Health Sciences as a lecturer and head of the School of Pharmacy. He added that in 1978 he switched from teaching to an industrial career with the multi national Chemical and Pharmaceutical Company CIBA-GEIGY where he was appointed as a Research and Development Chemist and posted to their major factory in Basel Switzerland. In 1979 he returned to Tanzania where he was employed by the appellant company as Chief Chemist rising through the ranks until he became General Manager in 1983. He worked in this position until 1993 when he was transferred to Keko Pharmaceutical Company – the genesis of this claim. Apart from being a member of the pharmaceutical professional bodies both in England and Tanzania, the respondent said, he is also a member of other international bodies in the pharmaceutical field. We think that by any standards, the respondent was a successful manager at the appellant's factory in Arusha. He told the trial court that within a space of ten years or so, he had transformed the appellant company into a vibrant going concern manufacturing 18 different products such as capsules, tablets, syrup, injectables etc., with an annual turnover of TZS. 765 million up from TZS. 18 million in 1980. On the physical side, the company was able to invest over TZS. 140 million of profits in blocks of flats for workers at Arusha and the factory building was expanded. All these achievements, the respondent said, were appreciated by the appellant's Board of Directors which gave him a commendation. The respondent added that in the light of these great successes, it was a sort of anticlimax to receive a letter Exhibit P5 transferring him to Keko Pharmaceutical Industries in Dar es Salaam. This letter stated in part:

RE: INTER-COMPANY TRANSFER

In an effort to improve efficiency in the management of the two Pharmaceutical Companies in the NCI Group, and after consultations with the relevant parties, formal approval by the Board of Directors in their meeting held on 24 November 1992 and subsequent detailed discussion (*sic*) held in our offices on 25 November 1992, it has been decided to transfer you to Keko Pharmaceutical Industries in the same position of General Manager w.e.f. 1 January 1993.

It is our sincere hope that the change in environment will bring about the desired improvement in the management efficiency in the two companies. We shall give you all the support and assistance you will need and feel free to consult us when the need arises.

This letter was written by the Managing Director of National Chemical Industries. The respondent said that after receiving this letter, he sought and obtained audience with the Chairman of the Board. He did not say the Chairman of which Board, but it can be gathered from the answers that the audience was with the Chairman of the appellant company who told him that his Board had nothing to do with the transfer and referred him to National Chemical Industries (NCI) the body which effected the transfer. Following this audience, the respondent said, he wrote a letter Exhibit P6 addressed to the Managing Director, National Chemical Industries (NCI). The letter said:

RE: INTER-COMPANY TRANSFER

I am in receipt of your letter NCI/OP/8/B/92 of 30 November 1992 transferring me to Keko Pharmaceutical Industries in the same position of General Manager. I accept this new assignment and I shall report for duty as directed.

However following our discussions at your office, I pointed out that I am due to retire from my present employment in the next 24 months. This raises a number of issues which I wish to request you to take at the next TPI Board for the Board's consideration and ruling:

(i) Due to the brevity of time I have for the new assignment, it is technically not feasible for me to relocate my family to Dar es Salaam during this period. As such I would like to request in the meantime to retain the company house I have in Arusha.

(ii) The time available for this new assignment is going to be very brief, taking into account the fact that I shall need time to settle down in a new environment.

(iii) In view of the foregoing I wish to beg the indulgence of the esteemed PTI Board to consider it to be within public interest that I go for early retirement.

The respondent continued with his evidence and told the trial Court:

> KPI (Keko Pharmaceutical Industries) did not appoint me their General Manager and I never applied for the post. Vide Exbt. P8 my appointment as General Manager Keko Pharmaceutical Industries was revoked.
>
> I considered my removal from defendant company unlawful. My contract of employment was between me and the defendant company who paid all my emoluments. The purported transfer was therefore a breach of contract as that was to force me to take on a new employer without my volition.

The letter Exhibit P8 which the respondent refers in this passage was addressed to him by Keko Pharmaceutical Industries. It stated as follows:

> **RE: YOUR TRANSFER TO KPI**
>
> It is regrettable to note that you have not reported for duty since you were transferred to this company more than four months ago. Furthermore, you have not informed us of your whereabouts or the reason of your failure to report for duty to-date.
>
> In view of the foregoing, the company's Board of Directors has directed me to inform you that the position of KPI General Manager is no longer open for you. The post is now going to be offered to another candidate.

This letter is dated 20 April 1993. On his claim for damages the respondent told the trial court:

> I am claiming salary arrears up to the age of 55 years because I have not found a job commensurate with the position I was occupying at the defendant company, I am not disabled but I have not been able to locate a job commensurate to the position I was removed from. I will continue looking for a job but the chances are very narrow indeed.

Regarding his removal from office as the appellant's General Manager, the respondent, told the trial court:

> I committed myself to retire within two years under duress which means I would have been retired last year. After talking to Mr Pareseoi about my transfer, I was under the impression that he wanted to effect the transfer at any cost so I suggested an early retirement which he said the boardof the defendant would decide on my retirement. So, I opted to retire after 2 years rather than be transferred to Keko Pharmaceutical Industries which I never wanted to work for. The NIC (*sic*) pushed me to offer the early retirement within 2 years. When a cat is (*sic*) to a corner, it has to respond so I had to offer an early retirement which would have been more favourable to me than to proceed to Keko Pharmaceutical Industries. The defendant's Chairman did not hear me on the transfer issue at all. The NIC (*sic*) pushed me on the transfer and it is the NIC (*sic*) which initiated the transfer, not the boardof my employer the defendant. The defendant Board was my employer not then NCI who was not my employer. I was to report to the defendant's Board, not to the NCI. I did not challenge the authority of NCI in transferring me to Keko Pharmaceuticals. I would to protest (*sic*) to NCI because that was the authority which was purporting to transfer me to Keko Pharmaceutical Industries. I accepted the transfer but refused to report because I was consulting my lawyer. I had to buy time to sue the defendant after the defendant Chairman Professor Kongola advised me to proceed on transfer because the defendant's Board had resolved that I be transferred and the Keko Pharmaceuticals Industries had resolved to appoint me as General Manager. That was resolved within 24 hours so I decided to solve the problem by legal action. Vide Exhibit P7 I requested that the issue of the transfer in dispute be tabled before the defendant's Board but the NCI refused. NCI did not employ me but they purported to transfer me. My terms of service with the defendant stipulate that I am entitled to a pension per this letter Exhibit P4 – Item 6 Scopo Regulations are applicable. Item 6 on Exhibit P4 relates to pensions under the Scopo Regulations which is why I am claiming pension. The defendant as my employer would calculate the pension I am entitled to under the Scopo Regulations.

> Under Paragraph 7(2) of the amended plaint I listed the benefits I lost when I was removed from employment. The benefits are not listed in their letters of employment.

This was the totality of the evidence in support of the respondent's case that he was unlawfully removed from employment and that in consequence he suffered the damage which he listed in the plaint.

Like the plaintiff, the defence also called only one witness in the person of Mr Michael Ole Pareseoi the Managing Director of NCI and Chairman of the Board of Directors of the defendant company during the relevant period. He told the trial court that among the responsibilities of NCI, was to oversee the staffing of the subsidiary companies and that it was in fulfilling this responsibility that NCI appointed and confirmed in his post the respondent as General Manager of the appellant company. That it was in the same capacity that NCI effected inter-company transfers between the appellant company and the Keko Pharmaceutical Industries at the end of 1992. To this end, Mr Pareseoi told the trial court:

> In 1992 we evaluated the Keko Pharmaceuticals and Tanzania Pharmaceutical Industries. It was decided to swap the General Managers of the two companies. I then transferred the plaintiff to Keko Pharmaceutical Industries so that the Keko General Manager would go to be General Manager of the defendant company. That was in order to improve the performance of (*sic*) efficiency of the two companies. I signed the transfer letter P5 as Managing Director of NCI. The transfer was to improve the management of the two companies. The plaintiff accepted the transfer vide his letter Exhibit P6 of 18 December 1992.

On fringe benefits, Mr Pareseoi said that these are paid from the profits of the company, hence they are not part of the contract of service as they would not be due if no sufficient profits were generated. They are therefore transient, cannot be claimed.

On retirement benefits, he said that these are paid to the employee by the Parastatal Pensions Fund (PPF) at the end of service due to retirement or termination. That Exhibit P4 contains the terms of

the contract of service. Paragraph 6 of Exhibit P4 relates to Scopo Regulations which also applied to the respondent as General Manager. That the Keko Pharmaceutical Industries were ready to receive the respondent as General Manager, but since he did not follow up the transfer, the post was filled by somebody else.

On the question of removing from or terminating the respondent's employment, Mr Paresesi denied to have terminated the respondent's employment or removing him from his post as General Manager. Rather, he said, he used his authority which he had and which the respondent did not question to make inter-company transfers against which the respondent never protested apart from asking to be allowed to retain the company house at Arusha and for an early retirement.

On the relationship between NCI and its subsidiaries, he said that these including the appellant company were supposed to pay management fees to the parent company NCI. That being a subsidiary company did not mean it could get free services from the parent company, but he added, it was because of this relationship that it was required to pay only if it had resources. This laxity could not have been exercised if there was not in existence this relationship.

On this evidence, learned counsel on both sides made their final submissions. Mr Ngalo learned counsel appeared for the plaintiff while Mr Lobulu learned counsel appeared for the defendant. Mr Ngalo addressed the court on three points. First, who appointed the plaintiff to the post of General Manager and for whom did he work? On this point, Mr Ngalo submitted that on the evidence, the plaintiff was clearly appointed by the defendant company. He added that the plaintiff was offered the post by the defendant company following their advertisement and that nowhere is it indicated that the NCI Board was called upon to ratify this appointment. He submitted further that NCI could have resolved to employ the plaintiff and then post him to TPI or KPI, but they did not do this. Therefore on the basis of the plaintiff's evidence as well as on the documentary Exhibits P1 – P4, Mr Ngalo concluded, the plaintiff was clearly employed by the defendant company.

The second point was on the lawfulness of the plaintiff's transfer from the defendant company to Keko Pharmaceutical Industries. Mr Ngalo submitted that the plaintiff's purported transfer to Keko Pharmaceutical Industries was wrong, unlawful and unprocedural because none of the three companies NCI, TPI and KPI had the competence to effect such transfer. NCI could not do this because they were not the plaintiff's employers. In any event, there was no resolution by its Board of Directors to transfer the plaintiff. TPI could not do this because they had no authority to post its employee to another company, and KPI could not do so because they never employed the plaintiff, who was an employee of another company. In any case he added, there was no stipulation in any of the letters of appointment written to the plaintiff that the plaintiff would work for another company or that he was subject to transfer. According to Mr Ngalo, the defendant company clearly abdicated its responsibility when it allowed the Managing Director of another company NCI to write a letter of appointment to its employee, the plaintiff.

The third point was on damages and pension rights due to the respondent following the breach of contract of employment by his employers, the appellant company. On this point, Mr Ngalo told the trial court that damages follow a breach of contract and that in this case the plaintiff had proved that his services were terminated prematurely and that therefore he was entitled to damages as claimed. He cited the decision in *Southern Highland Tobacco v. David Mcqueen* (1) in which an employee was awarded his full salary and emoluments for the entire period of his contract. With regard to pension rights, Mr Ngalo submitted that these are clearly shown at paragraph 35G of the Scopo Regulations.

On his part, Mr Lobulu submitted that the evidence which was led, clearly shows that the plaintiff was employed by the NCI because he applied to them for the job and it is NCI who issued the letters of appointment and confirmation. In matters of travel and leave, NCI processed them. It is for these reasons that it was NCI, not the defendant company, which transferred the plaintiff to KPI, the transfer which

was accepted by the plaintiff. With regard to *the Southern Highland Tobacco* case, Mr Lobulu submitted that case was not relevant because unlike in that case, the present case is dealing with a person who was not terminated but was transferred to Keko, accepted the transfer in writing and later went to Court to claim damages.

In her judgement, the learned trial judge found that the plaintiff was appointed General Manager by the defendant company because all the documents Exhibits P3 and P4 state clearly that the plaintiff was employed by the defendant company, in that except for their letter heads, nowhere in these documents of employment is there a mention of the National Chemical Industries Ltd. That therefore the plaintiff was employed by and worked for the defendant company. That since the contract of service of the plaintiff was between him and the defendant company, the plaintiff's transfer to Keko Pharmaceutical Industries by NCI was ill-founded because it was neither initiated nor effected by his employers and that there was no provision for transfers in the employment letters Exhibits P2 to P4.

She held further that there was a contract of employment between the plaintiff and the defendant company which contract was breached by the defendant company as employer by conniving at the transfer while aware that the plaintiff had never been employed by Keko Pharmaceutical Industries, and that the termination of the plaintiff's employment was contrary to paragraph 5 of the contract of employment to the effect that termination of appointment will require three months notice on either side or one month's salary *in lieu* of notice.

Lastly, the learned judge held that the services of the plaintiff were terminated without his consent. Accordingly, she gave judgment for the plaintiff. With regard to damages, the judge found that the plaintiff lost the job of General Manager along with salaries, fringe benefits and allowances he would have earned for eight years remaining before retirement at the age of 55 and that therefore he was entitled to TZS. 43 732 800 being salary and fringe benefits which he would have earned from 30 November 1992 for eight years, that the plaintiff was also entitled to his pension under the Parastatal Pensions Fund

for the eight years he contributed to the Fund. There was also an order to pay interest at 10% on the decretal amount from the date of judgment to the date of settlement.

The appellant company was aggrieved by this decision and it lodged this appeal. A ten point Memorandum of Appeal was filed on its behalf, but in our view, all these grounds deal basically with four main issues: First, with whom did the respondent have a contract of service, was it the National Chemical Industries, or the appellant company? Second, was the respondent's transfer from the appellant company to Keko Pharmaceutical Industries lawful and valid? Third, was there a breach of the contract of service? Fourth, is the respondent entitled to any damages? We shall dispose of this appeal by addressing ourselves to these four points.

1. With whom did the respondent have a contact of service, was it with the National Chemical Industries or the appellant company?

This point refers to ground one of the Memorandum of Appeal. On this point Mr Lobulu learned counsel for the appellant company, submitted that while the decision to engage the respondent was made by the appellant's Board of Directors as the Minutes of the 16th Meeting of that body show, the actual engagement of the respondent was made by National Chemical Industries. That the Minutes of the 16th Board Meeting of the appellant indicate that engagement and control of Senior Staff in the subsidiary companies was vested in the Holding Company i.e. NCI. That is why, Mr Lobulu contended, the letter of appointment Exhibit P3 was also copied to senior officers of NCI.

On the other hand Mr Ngalo submitting for the respondent stated that the respondent's employment was sanctioned by the Board of Directors of the appellant company which was the lawful and proper authority.

We think the position in the present case is analogous but in reverse to that which obtained in *Board of Internal Trade v. Yonah Mapenzi* (2). In that case, the respondent was engaged by the appellant

as an Accountant and was then posted or seconded to one of the companies in the Group, namely, Tanga Regional Trading Company Limited. Later, the appellant Board dismissed the respondent from employment for misconduct, whereupon the respondent sued the appellant Board for wrongful dismissal. One of the defences raised by the appellant Board, though belatedly at the appeal stage, was that it was wrongly sued because it was not the respondent's employer, that the respondent should have sued the Tanga RTC which was his actual employer. This court rejected that contention on two grounds, namely, first that the matter was admitted in the pleadings and secondly that the evidence on record does not support the appellant's contention. To this end, this court stated:

> In ground one, the appellant complained that the learned trial judge erred in law and in fact in holding that the respondent was an employee of the appellant Board and/or that the respondent was on secondment to the Tanga Regional Trading Company Ltd.

We are satisfied that this complaint has no substance. In the plaint the respondent stated in paragraph 5 as follows:

> That the plaintiff (present respondent) was at all material times the employee of the defendant (appellant) as the Chief Accountant to the Tanga Regional Trading Company. A copy of his letter of appointment is annexed hereto as Annexure "A", and the plaintiff craves leave to refer to it as part of the plaint.

In its own Written Statement of Defence, the appellant Board admitted in paragraph 5, the truthfulness and correctness of the above claim by the respondent, accordingly this was not made an issue and the case proceeded on that basis. In their respective evidence, both the General Manager of RTC, Mr Jacob Bushiri (DW1) and Sylvanus Hyera (DW3) (from the Board) confirmed this position that Senior Personnel in the Group Companies are appointed by the boardand then posted to the Group Companies. The Chief Accountant is one of such officers.

Regarding the relationship between the Boardof Internal Trade and the Group Companies on the control and disciplining of staff posted to the Group Companies, this court had the following to say:

> It is true that the appellant Board was the respondent's employer, but this does not necessarily mean that it was his disciplinary authority or even the only one. According to the evidence, the appellant Board is the controlling and unifying authority for all Regional Trading Companies. To ensure the effectiveness of its controlling and unifying role, all Senior Personnel for all Regional Trading Companies were appointed by the appellant Board and then after consultations with the relevant Management Boards of the Trading Companies, posted them to the Trading Company concerned. Thus from that stage, the employee came under the control of the company to which he was posted and according to Mr Hyera (DW3), it was the duty of the Regional Trading Companies to interdict and take disciplinary measures against employees posted or seconded to them and that this is what happened in this case.

The effect of this judgement is that Holding Companies or Corporations remain employers of staff posted to Group Companies or Corporations. In the present case, the whole exercise of the respondent's employment as General Manager started with a resolution of the 16th Meeting of the Board of Directors of the appellant company. At this meeting it was:

1. **RESOLVED** that Mr E Njau the present quality Control Manager be and is hereby appointed to the post of General Manager counter part with effect from 4 October 1983 with a probationary period of six months.

2. **ADVISED** that the candidate should be informed by NCI about his weakness and be advised to improve on his public relations with his colleagues and subordinates and avoid cliques and groups.

3. **RESOLVED** that the General Manager counterpart should be sent on training in order to be exposed to managerial skills.

These resolutions and advice were passed at a meeting of the appellant Board on 4 October 1983, and from this point in time, the following sequence of events took place. On 12 November 1983 (more than a month after the 16th Board Meeting of the appellant), a letter of appointment was written to the respondent by NCI. The letter Exhibit P2 was in the following terms:

> **RE: LETTER OF APPOINTMENT**
>
> Resulting from the deliberations of the 16th Board Meeting held on 4 October 1983, I am pleased to inform you that it has been decided to appoint you to the position of General Manager Counter-part of the Tanzania Pharmaceutical Industries, a subsidiary of this Corporation with effect from 1 November 1983.
>
> Your terms and conditions of services will be as follows:
>
> 1. Your initial salary will be TZS. 4 945 per month (fixed) in the MSU 10 scale of TZS. 59 240 per annum.
>
> 2. As General Manager counter-part, you will be in probation for a period of six months after which subject to your work and conduct being found satisfactory, you will be confirmed in your position.
>
> 3. All other terms and conditions remain as before and as amended by Scopo from time to time.
>
> I take this opportunity to offer you my sincere congratulations for having been selected to take up a key position in the company. I do hope that you will keep this honour to the best of your ability and zeal.
>
> Yours sincerely,
>
> NATIONAL CHEMICAL INDUSTRIES

The respondent then signed at the bottom of the letter his acceptance of the terms and conditions in the above letter. The contract of employment between the respondent and NCI was thus complete. NCI had made the offer and the respondent had accepted it. Less than two months later NCI wrote another letter of appointment to the respondent to

the substantive post of General Manager. This letter Exhibit P3 is dated 6 January 1984:

RE: LETTER OF APPOINTMENT

Further to my letter Ref. Number NCI/1 June 1983 of 12 November 1983, I am pleased to inform you that it has been decided to appoint you to the position of General Manager of the Tanzania Pharmaceutical Industries a subsidiary of the Corporation with effect from 1 January 1984.

Your terms and conditions of service will be as follows:

1. Your initial salary will be TZS. 5 065 per month MSU 11 scale of TZS. 60 780 per annum.
2. You will be on probation for a period of six months after which subject to your work conduct being found satisfactory you will be confirmed in your position.
3. All other terms and conditions of service remain as before and as amended from time to time.
4. If you accept the above terms and conditions, please sign the enclosed copy of this letter as an indication of your acceptance.

I take this opportunity to offer you my sincere congratulations for having been appointed to the top-most position in the company. I do hope that you will keep this honour to the best of your ability and zeal.

Yours sincerely

NATIONAL CHEMICAL INDUSTRIES

As requested, the respondent signed the letter indicating that he accepted the offer of appointment and the terms and conditions attached to it.

It appears that the respondent successfully completed his probationary period, because on 3 September 1984 NCI wrote him a letter confirming him in his post. This is Exhibit P4:

RE: LETTER OF CONFIRMATION

Further to my letter Ref. Number NCI/1/b/84 and your satisfactory work performance, I am pleased to inform you that it has been decided to confirm

you in your position as General Manager for the Tanzania Pharmaceutical Industries Ltd. with effect from 1 July 1984.

Your terms and conditions of service will be as follows:

1. Your initial salary will be TZS. 5 065 per month (fixed) in the MSU 11 Scale of TZS. 60 780 per annum.
2. This confirmation is subject to your satisfying the conditions of leadership as outlined in the Arusha Declaration.
3. You and your family (wife and children) will be entitled to free medical treatment.
4. You will be entitled to 28 days earned leave per annum.
5. Termination of appointment will require three months notice on either side or one month's salary *in lieu* of notice.
6. All other terms and conditions of service will be in accordance with Scopo directives and the Corporation Code of Regulations as amended from time to time.

I take this opportunity to offer you my sincere congratulations for having been confirmed to the top-most position in the company. I do hope that you will keep this honour to the best of your ability and zeal.

Yours sincerely,

NATIONAL CHEMICAL INDUSTRIES

Although the respondent did not sign this letter indicating his acceptance of the confirmation and the terms and conditions attached, he did not dispute it or that he received it.

All these letters show clearly who between the appellant company and NCI wielded real power over the respondent's employment. The Board of the appellant company at its 16th Meeting on 4 October 1983 purported to appoint the respondent to the post of General Manager with effect from 4 October 1983 i.e. the day of the resolution, but in its letter of appointment Exhibit P2, NCI changed the effective date to 1 November 1983 and set down the terms and conditions of

employment. The letter made it clear that the respondent was being appointed General Manager counter-part of the appellant company a subsidiary of NCI.

Yet again in its letter Exhibit P3 NCI appointed the respondent substantive General Manager of the appellant company apparently without reference to the appellant company's Board. Similarly, the respondent's confirmation in his position of General Manager was done without reference to the Board of the appellant company and NCI set down the terms and conditions of this appointment in their letter Exhibit P4 Paragraph 6 of this letter tells it all as to who is the real appointing and employing authority. It states that all other terms and conditions of service will be in accordance with the Scopo directives and the Corporation Code of Regulations as amended from time to time. From this scenario, it is clear that the Board of the appellant company could only recommend to the appointing authority, the Holding Corporation NCI, which then actually appointed the respondent and as it were posted him to the appellant company as its General Manager.

The role of the appellant company ended with recommending the candidate. After this, all the subsequent steps i.e. appointment and confirmation of the candidate were out of its hands. These were done by NCI without reference to the appellant company. If Mr Ngalo's submission that the appellant's Board of Directors was the only lawful and proper authority to appoint the respondent, and that NCI was incompetent to do so is correct, then the conclusion that the respondent's confirmation which was made by NCI without reference to the appellant was incompetent becomes inescapable. If this is so, then the obvious further conclusion is that the respondent had never been confirmed in his position as General Manager with all the ugly consequence. It is for this reason that we think with respect that the finding of the trial judge on issue one is surprising. Perhaps this is so because she made this finding without analyzing the evidence and the contents of the letters in Exhibits P2-P4. This is what she said in connection with this issue:

> The reply to issue one has to be affirmative because although the headed paper used for correspondence is that of National Chemical Industries Ltd., the resolution of the defendant's company's Board Members on the appointment of the plaintiff Exhibits P3 and P4 and the confirmation letter Exhibit P4 state clearly that the plaintiff was employed by the defendant as a General Manager. In the said employment documents there is no mention of the National Chemical Industries Ltd. save for their letter heads.

The underlined sentences show the factual errors in which the trial judge fell, for the two letters say nothing of the sort. But the more serious factual error was the judge's assumption that the confirmation in Exhibit P4 was made by the appellant when in fact it was made by NCI without consulting the appellant. The respondent also fell into the same error but on his part perhaps deliberately. He told the trial court:

> Exhibits P2 to P4 have letter heads reading "National Chemical Industries" but I was not appointed by NCI. I was appointed by the defendant's Board. The General Manager of NCI was the Chairman of the defendant so he used the letter heads of NCI, his office. I was never employed by NCI.

We do not know with what seriousness the respondent uttered these words, because the contents of these letters are very clear, namely, that the respondent was being appointed General Manager of one of the subsidiaries of NCI. If the respondent is denying that he was appointed by NCI but by the Board of the appellant at its 16th Meeting, then as we have already stated, he must also say that his confirmation which was made by NCI without reference to the appellant company is illegitimate: It was therefore not just the use of NCI letter heads but that NCI had the authority and legitimacy to do what it did as a Holding Company.

Accordingly, we are satisfied for the above reasons that like the respondent in the case of the Board of Internal Trade referred to earlier in this judgement, the respondent in this case was on the evidence, also appointed and employed by the Holding Company,

namely, NCI. The contract of service as is evidenced by the letters of appointment and confirmation were between the respondent and NCI not the appellant company.

We now turn our attention to the second and third points or issues apparent from the Memorandum of Appeal namely whether the respondent's transfer to Keko Pharmaceutical Industries was unlawful in that it constituted a breach of the contract of service. This is in relation to grounds two and three of the Memorandum of Appeal. In paragraph six of the plaint, the respondent stated that the purported transfer and removal of the plaintiff from his present employment was unlawful and constituted a breach of the contract of employment between the plaintiff and the defendant.

The appellant denied this in its Written Statement of Defence stating:

> The contents of paragraph 5 and 6 of the amended plaint are denied in so far as they allege unlawful transfer and removal of the plaintiff from the defendant's factory. The defendant states that it is not in breach of any contract of employment with the plaintiff and puts the plaintiff to strict proof.
>
> The defendant further states that the services of the plaintiff had been dispensed with the consent of the plaintiff who had accepted the appointment of General Manager of KPI.

In this connection, Mr Ngalo submitted that since the only competent authority to appoint the respondent was the appellant company, then NCI had no authority to transfer the respondent from the appellant company, and that therefore the purported transfer of the respondent by NCI was unlawful and incompetent for being a breach of the respondent's contract of service with the appellant. The learned judge agreed with him and stated:

> With regards issue four, the answer is positive in that the plaintiff had a contract of employment with the defendant as a General Manager which agreement the defendant breached by conniving to the transfer in dispute well knowing that the plaintiff had never been employed by Keko Pharmaceutical Industries Ltd. As per the minutes, Exhibit P1, the defendant employed the plaintiff as their General Manager. There is no provision for transfer in the employment letters Exhibits P2-P4. To control executive abuse of power, the terms of appointment and services as per Exhibits P2 to P4 should have been adhered to particularly Exhibit P4 which states:
>
> Termination of appointment will require three months notice on either side or one month's salary *in lieu* of notice.

We would like to state even in passing that all the letters P2 to P4 referred to by the trial judge as constituting the contract of employment between the respondent and the appellant company have nothing to do with the appellant company. They were not even copied to the appellant company. They are communications between NCI and the respondent in which NCI set down the terms and conditions of employment of the respondent. Exhibit P1 only contained a resolution by the appellant to employ the respondent, it is therefore not clear how this can be regarded as a letter of appointment. The respondent could not sue on that resolution. He could only sue on the letters of appointment Exhibit P2-P4 which are between him and NCI. The trial judge said there is no provision for transfers in Exhibts P2-P4. This is surprising, the power and right to transfer an employee is implicit in the act of employment, in any case, many other things were not put in Exhibits P2 to P4 such as payment of fringe benefits, did the respondent refuse to accept them simply because they were not stated in the letters? However, we have already held that NCI was the appointing and employing authority of the respondent in its capacity as a Holding Corporation for both TPI and KPI. It was NCI which ordered the respondent's transfer to one of its subsidiaries. If this constituted a breach of contract, then that was between it and the respondent. The appellant company cannot be held accountable for the sins of its Holding Company.

The next question then is whether the respondent's transfer to Keko Pharmaceutical Industries constituted a breach of contract of employment. NCI's Managing Director, Michael ole Pareseoi, (DW1) gave detailed reasons why NCI ordered this transfer. These were

set out at the beginning of this judgement. These reasons were neatly summarized in the letter of transfer Exhibit P5 that:

> In an effort to improve efficiency in the management of the two Pharmaceutical companies in the NCI Group, and after consultations ...

So, the main object was to improve efficiency in the management of the two pharmaceutical companies, bearing in mind that the respondent had proved highly successful in managing the appellant company. The NCI was entitled as employer to utilize the respondent's high calibre managerial skills to upgrade the performance of its other establishment at KPI. We do not see how this move can be regarded as a breach of contract of employment. In any event, the respondent accepted the order of transfer in his letter Exhibit P6 in which he stated categorically that he accepted the new assignment and that he would report for duty as directed. This was a clear commitment on his part. Following this transfer to KPI and its acceptance by the respondent, the Board of Directors of KPI sat and resolved to accept the appointment of the respondent by way of transfer from Tanzania Pharmaceutical Industries. It was therefore a matter of surprise to us to note the following statement by the respondent in his evidence:

> KPI (Keko Pharmaceutical Industries) did not appoint me their General Manager, and I never applied for the post.

It is revealing that in the same paragraph, the respondent stated that later his appointment as KPI's General Manager was revoked vide letter Exhibit P8. If, as he stated, he had never been appointed KPI General Manager, what was Exhibit P8 revoking? Be that as it may, the respondent never reported at KPI to take up his new assignment. When at the end of six months the respondent had not reported, the KPI management on the directions of the Board of Directors, revoked his appointment, telling him in their letter Exhibit P8 that the post of General Manager at KPI was no longer available to him. At this stage the respondent went to Court to claim damages for breach of contract telling the trial court:

> I considered my removal from defendant company unlawful. My contract of employment was between me and the defendant company who paid all my emoluments. The purported transfer was therefore a breach of contract as that was to force me to take on a new employer without my volition.

The question is, was the respondent removed from the defendant company? The letter Exhibit P5 told him clearly that he was being transferred to Keko Pharmaceutical Industries in the same position of General Manager. He accepted the transfer and undertook to proceed to his new station. But contrary to this undertaking, he refused to go and report at his new duty station. This refusal and change of heart must have been due to the legal advice which he said he sought before deciding whether to proceed to take up his new assignment. He rejected the advice of his employer NCI to report at his new duty station and tackle all his problems real and perceived from there. He said that he had accepted the transfer out of duress. But in our view, unless stated that it is a free transfer i.e. it is open to the employee to proceed or not, every transfer is compulsory and therefore under duress. We have held that NCI were entitled to effect transfers which they considered to be in the best interests of the companies in their groupage In the absence of an undertaking not to transfer a particular employee (and this undertaking would be very rare indeed) a transfer order can never ever constitute a breach of contract of employment. If the respondent acted in this way following the legal advice which he said he had been seeking, then it is a pity that such a brilliant scientist and administrator as the respondent, should have had his career ended in this way.

To summarise then the position is this: The respondent sued a party, the appellant company, which had no contractual relationship with him, he should have sued the company (NCI) which appointed him and with which he had signed a contract of employment. On this basis alone the suit against the appellant company had to fail. If there was any breach of contract, then the person to pay damages, must be the person who breached the contract. The appellant company if given the choice, could not have agreed to release the respondent

to another company. It cannot therefore be made liable in damages for someone else's action. But even if the NCI had been sued, the same evidence would have been led and as we have already stated, the respondent's transfer to KPI was lawfully made and therefore could not constitute a breach of contract of employment. The respondent refused to proceed on transfer as he had earlier undertaken to do, he cannot turn round and claim damages for his own acts of insubordination.

For these reasons, we allow the appeal and set aside the judgement and orders of the High Court. We also make an order for costs in favour of the appellant both in this court and in the court below.

BLASS MICHAEL *v.* SAIDI SELEMANI

HIGH COURT OF TANZANIA AT ARUSHA

(Msoffe, J)

CIVIL REVISION No. 1 OF 1999

(From the ruling of the District Court of Arusha at Arusha, A.A. Shakale, D.M. in Civil Case No. 7 of 1998)

Civil Practice and Procedure – Revisional powers of the High Court under section 79(1) of the Civil Procedure Code 1966 – Application raising matters proper in an appeal – When an application for revision should be made.

In a case between the parties, the learned District Magistrate entered a judgment in default of filing a Written Statement of Defence. The defendant then filed a miscellaneous civil application to set aside the judgment. The advocate for the decree holder then filed a "notice of objection" arguing that the application was misconceived and, in the alternative, that the application was out of time. The District Court overruled

the preliminary objection. The respondent's advocate then filed an application for revision in the High Court raising the same grounds as those he raised in the District Court.

Held: (i) The provisions of section 79(1) of the Civil Procedure Code can be invoked only where the issue is one of jurisdiction, that is, the irregular or non-exercise of jurisdiction, or the illegal assumption of it. The provisions have nothing to do with conclusions of law or fact.

(ii) In this case there was nothing to suggest that there was an irregular exercise or non-exercise of jurisdiction or the illegal assumption of it. The District Magistrate was properly vested with the necessary jurisdiction to deal with the matter before her.

(iii) The High Court will not exercise its revisional powers under the section merely because a Lower Court misapplied the law.

(iv) In the instant case the order by the Subordinate Court was interlocutory and there was no basis for saying that it was "a case decided".

Application dismissed.

Case referred to:

(1) *Matemba v. Yamulinga* [1968] EA 643

Statutory provision referred to:

(I) Civil Procedure Code, 1966, section 79(1), Order VIII, rule 14(1)

Mr. Makange, for the Applicant

Mr. Mughwai ,for the Respondent

RULING

(Dated 25 May 1999)

MSOFFE, J.: This is an application filed under the provisions of section 79(1) of the Civil Procedure Code 1966. The application is supported by an affidavit sworn by Mr Makange learned advocate

for the applicant. While it is not too clear to me why the affidavit was sworn in by Mr Makange and not the applicant himself, I will content myself at this stage, to say that basically the application seeks:

> That the Ruling/Order passed by Honourable District Magistrate, AA Shakale dated 11 December 1998 vide Arusha District Court at Arusha Miscellaneous Civil Application Number 1 relating to Arusha District Court at Arusha Civil Case Number 7 of 1998 be quashed and set aside on grounds relating to an assertedly *ex parte* decree for a matter which no Written Statement of Defence was ever filed and the application having been filed out of time.

There is no serious dispute that on 2 September 1998 "a judgment in default of filing a Written Statement of Defence" was passed against the respondent. It was passed under the provisions of Order VIII, rule 14(1) of the Civil Procedure Code 1966 as amended by the relevant provisions of G.N. 422/94. In an attempt at setting aside the said judgment, the respondent filed an application to that effect. Mr Makange thereafter filed a notice of objection to the application. Again it is not too clear here why Mr Makange chose to file notice of objection instead of a counter affidavit as normal practice would have demanded in the circumstances. Indeed no provision of law was cited to show the law upon which the Notice was grounded. Anyhow, in the Notice the District Court was asked to dismiss the application on the following grounds:

1. That the application to set aside an asserted *ex parte* decree is wholly misconceived at law in that judgment so entered in favour of the respondent herein was in default of filing a Written Statement of Defence by the applicant herein having been duly served.

2. That alternatively and without prejudice to the foregoing, the assertedly *ex parte* decree sought to be set aside, having been entered on second day of September, 1998 the present application, under the law in currency is hopelessly time barred.

The learned District Magistrate considered the preliminary objection and overruled Mr Makange. Hence this application which, as earlier stated, seeks to have the Ruling of the District Court revised.

Messrs. Makange and Alute Mughwai have appeared for the applicant and the respondent respectively. In a sense, the submission made by learned counsel are a repetition of what was earlier stated before the District Court. It will therefore serve no useful purpose in repeating everything that was said there at. It will only suffice to say that, in brief, Mr Makange has consistently reiterated and emphasized the position stated in the above grounds that are the basis of this application. Likewise Mr Mughwai has reiterated the position he maintained at the District Court.

In an application for revision the High Court's power to interfere is limited to the three cases mentioned in section 79(1) of the Civil Procedure Code 1966. The sub-section reads as follows:

> 79(1) The High Court may call for the record of any case which has been decided by any court subordinate to the High Court and in which no appeal lies thereto, and if such subordinate court appears:
>
> (a) to have exercised jurisdiction not vested in it by law; or
>
> (b) to have failed to exercise a jurisdiction so vested; or
>
> (c) to have acted in the exercise of its jurisdiction illegally or with material irregularity,
>
> (d) The High Court may make such order in the case as it thinks fit.

It will be noticed at once that the above section can be invoked only where the issue involved is one of jurisdiction, i.e. the irregular or non-exercise of the same, or the illegal assumption of it. It has nothing to do with conclusions of law or fact. In the instant case, there is nothing serious to suggest that there was an irregular exercise or non-exercise of jurisdiction or the illegal assumption of the same. Indeed, there is no serious dispute that the District Magistrate was

properly vested with the necessary jurisdiction to deal with the matter before her. What appears to be at stake, in the eyes of Mr Makange, really, is the allegation that in the process, she arrived at wrong conclusions of law. That may be a fine point to make and/or argue. However, so long as the issue here is not whether or not there was an irregular or non-exercise of jurisdiction or the illegal assumption of the same, Mr Makange's arguments, which certainly appear to be attractive, will have no legs to stand on. In the words of Mustafa, J. (as he then was) *in Matemba v. Yamulinga* (1) at page 645:

> ... it is settled that where a Court has jurisdiction to determine a question and it determines that question, it cannot be said that it has acted illegally or with material irregularity because it has come to an erroneous decision on a question of fact or even of law .... A High Court will not interfere under this section merely because a Lower Court allowed an application which was barred by limitation.

In the instant case, the learned District Magistrate acted within her jurisdiction in dealing with the matter before her. If in the process, she came to a wrong decision on points of law or fact that would be no basis for an order of revision. Indeed, if I may add, the points raised by Mr Makange are ones that could have best been properly raised and argued in an appeal. But since this is not an appeal it will be futile and/or useless to deal with them here on account of the legal position I have stated above on when exactly the power of revision could be exercised by this court.

Yet, I think, it will be useful to mention one other point. Section 79(1) can only be invoked in "... any case which has been decided by any Court subordinate ..." [emphasis supplied]. This presupposes that it can be invoked only where the rights and or obligations of the parties have been adjudicated or decided upon by the Subordinate Court. In the instant case, the application is the result of an interlocutory order. While it is debatable whether an interlocutory order is "a case decided" the truth still remains that the application, the subject of this application is still pending before the District Court – and hence

there would be no basis for saying that there was a "case decided" to warrant the exercise of this court's power of revision. For the above reasons the application is dismissed with costs.

EFRAIM LUTAMBI v. REPUBLIC

COURT OF APPEAL OF TANZANIA
AT MBEYA

(Ramadhani, Samatta and Lugakingira, JJ.A.)

CRIMINAL APPEAL No. 30 OF 1998

(From the judgment of the High Court of Tanzania at Iringa, Kyando, J., dated 27 February 1995, in Criminal Sessions Case No. 43 of 1993)

Criminal Practice and Procedure – Preliminary hearing – Section 192(3) of the Criminal Procedure Act 1985 – Contents of Memorandum of Matters agreed not read over and explained to accused – Effect thereof – Section 192(3) of the Criminal Procedure Act 1985.

Criminal Practice and Procedure – Preliminary hearing – Contents of Memorandum of Matters agreed – Cautioned and extra-judicial statements made and admitted by accused must be incorporated – Section 192(3) of the Criminal Procedure Act 1985.

The appellant was convicted of murder by the High Court and sentenced to suffer death. The conviction was based on two pieces of evidence. The first piece was the contents of a Memorandum of Matters which he was said to have admitted under section 192(2) of the Criminal Procedure Act, 1985. There was nothing in the record which indicated that the contents of the memorandum were read and explained to him. The second piece of evidence was a cautioned statement which the appellant was said to have made to a police officer. That statement was not incorporated into the Memorandum, and the said police officer did not give evidence at the trial. On

appeal to the Court of Appeal counsel for the appellant challenged the conviction on the ground that there had been non compliance with the provisions of section 192(3) of the Criminal Procedure Act.

Held: (i) There was nothing on the record of the case from which it can be irresistibly be inferred that the Memorandum of Undisputed Matters was read over and explained to the appellant before the appellant and counsel were asked to append their signatures to the Memorandum;

(ii) The contents of cautioned statements were not incorporated in the Memorandum of Undisputed Matters and had to be provided in the ordinary manner; As no such proof took place, the statements must be excluded.

Appeal allowed and retrial ordered

Case referred to:

(1) *Mt. 7479 Sgt. Benjamin Holela v. Republic* [1992] T.L.R 121

Statutory provisions referred to:

(i) Criminal Procedure Act 1985, sections 192(3) and 192

(ii) Tanzania Evidence Act, sections 34B(2)(c), (d) and (e)

Mr. Mkumba, for the Appellant

Mr. Sengwaji, for the Respondent

JUDGMENT

(Dated 10 June 1999)

SAMATTA, J.A.: This is an appeal from a judgment of the High Court (Kyando, J.) sitting at Iringa in its criminal jurisdiction. The court convicted the appellant, Efraim Lutambi, of the murder of Lodina d/o Kisangaika (the deceased) on 26 November 1991, at Kundwe Village in Mufindi District, and sentenced him to death.

The trial in this case was unusually short. There was only one witness on each side, a police investigator, D/Cpl. Mpenzwa (PW1), and the appellant. As required by the provisions of section 192 of

the Criminal Procedure Act, 1985 ("the Act"), the court conducted a preliminary hearing. Mr. Shio, Senior State Attorney, outlined the following facts of the case against the appellant:

> On 26 November 1991 at Nundwe in Mufindi District the accused killed Lodina d/o Kisangaika. The accused confessed to the killing. He stated that he nacked her with a hoe and bill hook. He believed that the family of the deceased had killed his child through witchcraft. The cause of death was brain damage. The accused made statements to the police and JP.

The appellant's response to that outline of facts was:

> All the facts are true but I did not intend to kill her.

The learned judge (Kyando, J) then prepared a memorandum of the undisputed matters. It reads as follows:

> Matters not in Dispute:
>
> 1. The accused killed the woman Lodina d/o Kisangaika on 26 November 1991.
> 2. He used a hoe and bill-hook to inflict the fatal blows.
> 3. Cause of death was brain damage.
> 4. Accused believed that the family of the deceased had killed his child through witchcraft.
> 5. Accused made statements to the police and JP.
> 6. Contents of the autopsy report.

The appellant as well as both counsel appended their signatures to the Memorandum. Soon after this had been done, Mr. Shio tendered the postmortem report, extra-judicial and cautioned statements. The documents were put in and marked Exhibits P1, P2 and P3 respectively. This was followed by an order by the court that the trial would commence on a date to be fixed by the District Registrar. The record of the case does not contain any statement by the court showing that the contents of the Memorandum were read over and explained to the appellant as required by subsection (3) of section 192 of the Act.

The evidence of D/Cpl. Mpenzwa was as follows: on 30 November 1991, following a report of murder which had been received at the Mafinga Police Station, he visited Nundwe Village. He was accompanied by one Dr. Mung'ong'o. In a bush in the village he saw a dead body which was identified as that of the deceased. The body had fresh wounds, on the head and neck. Lying next to it was a blood-stained billhook. The Village Chairman handed over to him a hoe which was alleged to have been used in killing the deceased. Dr. Mung'ong'o performed a postmortem on the dead body on the spot. When the policeman returned to the police station, he discovered that the appellant had made a cautioned statement (Exhibit P3) to one Insp. Paul Leonard. Later the witness escorted the appellant to a Justice of the Peace before whom he (the appellant) made Exhibit P2.

On behalf of the appellant, Mr. Mkumba, Learned advocate, has impeached the decision of the learned trial judge on the following grounds:

1. [T]he learned trial judge erred in law and fact in basing the conviction of the appellant on the matters not in dispute at the Preliminary Hearing when the provisions of section 192(3) of the Criminal Procedure Act were not complied with.

2. [T]he exhibits P2 and P3 (i.e. the extra-judicial statement and cautioned statement respectively) were admitted in evidence contrary to procedure as provided in section 34B(2)(c), (d) and (e) of the Tanzania Evidence Act as well as section 192(3) of the CPA much to the prejudice of the appellant.

3. [T]he appellant should have been convicted of manslaughter in the circumstances of this case.

The learned advocate argued the first and second grounds of appeal together. We shall also deal with those grounds in the same way. The learned advocate submitted that, since there is nowhere on the record of the case where it is indicated that the Memorandum of Undisputed Matters was read over and explained to the appellant, the inescapable inference is that the requirements of the mandatory

provisions of section 192(3) of the Act were not complied with. That being so, the learned advocate went on to submit, the result of the non-compliance is that no fact or document agreed or admitted in the Memorandum could be deemed duly proved under the provisions of subsection (4) of the section. The cornerstone of the latter part of the learned advocate's argument was *Mt. 7479 Sgt. Benjamin Holela v. Republic* (1), a case in which it was held by this court, among other things, that, firstly, subsection (3) of the section imposes a mandatory duty that the contents of the memorandum must be read and explained to the accused, and, secondly, where the requirements of subsection (3) of the section were not complied with, the provisions of subsection (4) of the section cannot apply. With regard to Exhibits P2 and P3, Mr. Mkumbe contended that when those documents were tendered by the Senior State Attorney the preliminary hearing had already been concluded and, therefore, at that stage they could properly be tendered before the court only by those who recorded them, namely, the Justice of the Peace and Inspector Leonard. The learned advocate concluded his submission on the point by contending that, PW.1 having not been the recorder of those statements, his evidence relating to them was hearsay, making the statements inadmissible in evidence unless the provisions of section 34B(2)(c), (d) and (e) of the Evidence Act, 1967, were brought into play, a step which was not taken.

We have given the most earnest consideration to counsel's rival arguments, and in the end we are of the opinion that Mr. Mkumbe's argument that the decision in *Holela's* case (1) governs this case is incontrovertible. Contrary to Mr. Sengwaji's submission, there is nothing on the record of the case from which it can be irresistibly inferred that the Memorandum of Undisputed Matters was read over and explained to the appellant. Before the accused and counsel are asked to append their signatures to a Memorandum of Undisputed Matters the contents of the document should be read over and explained to the accused.

This is important because, as was pointed out in *Holela's* case, it is the accused himself who must agree that he admits or does not

dispute the listed matters. Unlike in *Holela's* case (1) there was another serious irregularity in relation to the provisions of section 192 of the Act. While there was a reference in the Memorandum to the making of the cautioned and extra-judicial statements by the appellant, those documents were not incorporated into the Memorandum, with the result that while the making of those statements was, subject to the mandatory requirements of subsection (3) of section 192 of the Act, to be deemed, under subsection (4) of the section, to have been duly proved, the contents of the statements required to be proved in the ordinary manner. Since no such proof took place, we agree with Mr. Mkumbe that the two statements must be excluded from the case. Once that is done, it cannot be disputed that the appellant having introduced a defence of self-defence in his evidence, the remaining evidence cannot constitute a basis for holding that the appellant was criminally responsible for the deceased's death. The finding of the learned trial judge that the appellant's acts were unlawful cannot, therefore, be sustained. That opinion makes it unnecessary to consider the merits or otherwise of the third ground of appeal.

Before we consider what orders to make in this case, we wish to observe that the provisions of section 192 of the Act are very useful in the administration of criminal justice. They were intended by the legislature not only to reduce the costs of criminal trials in the country, but also to ensure that those trials are, without prejudice to the parties, conducted expeditiously. If the provisions are strictly complied with, there should occur no problems which this court had to deal with in *Holela's* case (1) or those we have had to deal with in the instant case. Any exhibits, including cautioned and extra-judicial statements, which are not in dispute should have them referred to and given exhibit numbers in the Memorandum of Undisputed Matters. The contents of the memorandum, including the exhibited statements, if any, should be read over and explained to the accused (in a language he understands), and the fact that has been done should be reflected on the record.

We have held that serious procedural irregularities occurred at the beginning of the hearing of this case. What order or orders, then,

should be made in the case? We have anxiously and carefully considered that question, and, in the upshot, we are of the settled opinion that, notwithstanding the fact that the appellant has been in custody for a very long period in connection with the charge he faced, the nature of the case compels us to order a retrial.

For the foregoing reasons, we allow the appeal, quash the conviction for murder and set aside the sentence of death. We order that the appellant be re-tried as expeditiously as possible by another judge and a new set of assessors

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OSWALD ABUBAKARI MANGULA v. REPUBLIC

COURT OF APPEAL OF TANZANIA
AT MBEYA

(Ramadhani, Samatta and Lugakingira JJ.A.)

CRIMINAL APPEAL No. 153 OF 1993

(From the ruling of the High Court of Tanzania at Mbeya, Mwipopo, J, dated 7 October 1993)

Criminal Practice and Procedure – Restitution – Restitution of property in revisional proceedings – Section 353(3) of the Criminal Procedure Act 1985.

Criminal Practice and Procedure – Charges – Charge not disclosing any offence – Whether proper to put charge to the accused – Section 129 of the Criminal Procedure Act 1985.

Criminal Practice and Procedure – Revision – Power of Court to revise irregular proceedings – Section 4(2) of the Appellate Jurisdiction Act 1979.

The appellant was the father of one Modestus Oswald who had been employed by the Roman Catholic Church at Uwembe in Njombe District. It was alleged that between

September 1989 and 3 November 1989 Modestus stole money and other property from the mission. He used part of the stolen money to buy items of property which he handed to the appellant. When the accused was arrested police searched his premises and found the items. His defence was that he was well to - do and had bought the said property with his own money. The District Court acquitted him and ordered that the property be returned to him. Upon receiving a complaint from the mission the High Court revised the order of the District Court restoring the property to appellant and ordered that the property, instead, be returned to the mission. The appellant was dissatisfied with the restitution order and appealed.

Held: (i) It is a salutary rule that no charge should be put to an accused person before the magistrate is satisfied, *inter alia*, that it discloses an offence known in law.

(ii) Since the charge sheet disclosed no offence known in law the learned judge of the High Court should have declared the proceedings a nullity.

(iii) The proceedings in the District Court were a nullity.

Appeal allowed

Statutory provisions referred to:

(i) Appellate Jurisdiction Act 1979, section 4(2)

(ii) Criminal Procedure Act 1985, section 353(3), section 129

(iii) Penal Code, section 311(1)

Mr. Mbago State Attorney, for the Respondent

JUDGMENT

(Dated 10 June 1999)

SAMATTA, J.A.: This is an appeal from an order for restitution of property, made against the appellant, Oswald Abubakari Mangula, by the High Court (Mwipopo, J.) under section 353(3) of the Criminal Procedure Act 1985, in exercise of its Revisional Jurisdiction. The appellant had been acquitted by the District Court of Njombe of a

charge of receiving stolen property, contrary to section 311(1) of the Penal Code, hereinafter referred to as "the Code", and an order for restitution made in his favour.

In view of the conclusion we have arrived at on the legality or otherwise of the trial in the District Court, we do not find it necessary to state the background to the appeal in detail. As already indicated, the charge which was laid at the appellant's door was that of receiving stolen property, contrary to section 311(1) of the Code. It was alleged in the particulars of offence that the appellant:

> ... between 1 September 1989 and 3 November 1989, at Mtwango Minor Settlement within the District of Njombe in Iringa Region knowingly and without right did receive the following:
>
> | | | | |
> |---|---|---|---|
> | 1. | 160 corrugated iron sheets Gauge 28 x 3 @ 1565 | - | 250 400 |
> | 2. | 40 Bags of cement valued at | - | 36 000 |
> | 3. | 81 Timbers of 2" x 6", 2" x 4" and 4" x 8" valued @ 55 | - | 4 550 |
> | 4. | 20 Kgs. of roofing nails valued | | 3 400 |
> | | Total | | 294 000 |
>
> From Modestus Oswald knowing the same to have been obtained from money stolen at Uwemba mission by the said Modestus Oswald Mangula. [emphasis supplied]

The case for the prosecution at the trial was essentially this: the appellant's son, Modestus Oswald (Modestus), used to work as a housekeeper at the Roman Catholic mission at Uwemba, in Njombe District. Between the dates mentioned in the particulars of offence the young man stole about TZS. 1 600 000 the property of the mission. He then disappeared from the mission; he was still at large when the trial took place. He used part of the money to buy the items of

property listed in the charge, which he handed over to the appellant. That property was later seized by the police when they searched the appellant's premises on 6 November 1989. The appellant's defence was simple: he had acquired the property by using his own money and not the money his son had allegedly stolen. He said he was a successful farmer, owning, among other properties, a thirty – acre farm, fourty head of cattle and a garden. The appellant also asserted that he was a traditional healer. During the trial, on 24 May 1990, to be more specific, one of the prosecution witnesses, Brother Otto, produced before the court as exhibits one parcel of ball pens, one stamp pad and six porcelain plates as being some of the property which the appellant was found in possession of and which Modestus had stolen from the mission when he stole the money. The learned trial District Magistrate found the charge not proved and, therefore, acquitted the appellant. He said, among other things:

> ... there is no dispute that the accused in this case was on the 6 November 1989 searched and found with items listed on the charge sheet tendered as exhibit PB. However there is no evidence of any kind which proves that those items were given to him by Modestus as alleged on the charge sheet. Also there is no evidence ... adduced to prove that those items were stolen property. With reference to the three receipts tendered as exhibits PA, PBI and PBII, the items have been proved to have been bought by the accused from different [shops]. At the same time the explanation regarding how the accused managed to raise the funds he used to purchase those items has not been rebutted by the prosecution and the same is reasonable and credible.

Later, the learned trial District Magistrate made an order in the following terms:

> All exhibits collected from the residence of the accused and produced in Court as P/exhibit are to be returned to the accused forthwith.

Following a complaint by one Father Thieme Biechale against the District Court's decision acquitting the appellant, the High Court called for the file and later, after examining it, directed that revisional

proceedings be conducted, which direction was carried out. Concluding his ruling in the revision, Mwipopo, J, said:

> I am satisfied that despite the dubious acquittal of the accused ... the prosecution's case and proposition during the trial that all the exhibits seized from the accused's premises or the premises of his collaborators or of Modestus Mangula his son were proceeds of crime emanating from the stolen goods or money of the Uwemba Roman Catholic mission (*sic*). I therefore quash the order of the District magistrate restituting the property produced in Court and order that under [section]353(3) of the Civil Procedure Act all these properties produced by the prosecution in this case be returned to Father Thiemo Biechele or Uwemba Roman Catholic mission for their permanent and undisturbed ownership and use as a meager restitution of their stolen properties and money.

It is that decision which the appellant has appealed against to this court. He has advanced two grounds why the decision on restitution should be reversed. At the hearing of the appeal he appeared in person. The respondent Republic was represented by Mr Mbago, Senior State Attorney. The appellant said very little in addition to what is contained in his Memorandum of Appeal.

We have found it necessary, in exercise of this court's Revisional Jurisdiction under section 4(2) of the Appellate Jurisdiction Act, 1979 (the Act), as amended by the Appellate Jurisdiction (Amendment) Act, 1993, to examine the propriety of the charge which was preferred against the appellant in this case. As will be recalled, in that charge the appellant was accused of receiving "without right" various items of property knowing the same to have been purchased by use of the money which had been stolen. We entertain no doubt whatsoever that that charge was misconceived in law. It disclosed no offence known in law. Property can be the subject matter of a charge preferred under section 311(1) of the Code only if it was "feloniously stolen, taken, extorted, obtained or disposed of." Since the property listed on the "charge sheet" in the instant case was not the property which Modestus stole, the provisions of section 311(1) of the Code could not in law be brought into play in respect of it. The fact that the

money which was used to purchase it was stolen money did not make that property unlawfully acquired in terms of the subsection. No contravention of the subsection takes place if the subject matter of the charge was not property "feloniously stolen, taken, extorted, obtained or disposed of.

In the eye of the law there was no charge preferred against the appellant in this case. That being so, when the purported charge was presented, the learned trial District Magistrate should have formed that opinion and proceeded to make an order in accordance with section 129 of the Criminal Procedure Act, 1985, which reads:

> 129. Where the magistrate is of opinion that any complaint or formal charge made or presented under section 128 does not disclose any offence, the magistrate shall make an order refusing to admit such complaint or formal charge and shall record his reasons for such order.

We wish to remind the magistracy that it is a salutary rule that no charge should be put to an accused person before the magistrate is satisfied, *inter alia*, that it discloses an offence known in law. It is intolerable that a person should be subjected to the rigours of a trial based on a charge which in law is no charge. It should always be remembered that the provisions of section 129 of the Criminal Procedure Code are mandatory.

The charge laid at the appellant's door having disclosed no offence known to law, all the proceedings conducted in the District Court on the basis thereof were a nullity. Since you cannot put something on nothing, the learned judge of the High Court should have so held and proceeded accordingly. Since he did not do so, it falls upon us to do it. Exercising the Revisional Jurisdiction conferred upon this court by section 4(2) of the Act, we declare the purported proceedings conducted in the District Court a nullity.

Having so declared the purported proceedings in the District Court, we are constrained to allow the appeal. Accordingly, for reasons we have given, though they are very different from those relied upon by the appellant, we quash the order for restitution made by the High Court, which, very fairly, Mr Mbago, at the close of his submission, declined to support. We order that the items of property listed in the purported charge, namely, 160 corrugated iron sheets, 40 bags of cement, 81 timbers and 20 kgs of roofing nails be returned to the appellant. Since the articles tendered before the trial court on 24 May 1990, should not have been tendered and when they were tendered should not have been admitted in evidence, as they had absolutely nothing to do with the "charge", we say no more about them.

TWAHA ELIAS MWANDUNGU *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA
AT MBEYA

(Ramadhani, Samatta and Lugakingira, JJ.A.)

CRIMINAL APPEAL No. 80 OF 1995

(From the Judgment of the High Court of Tanzania at Mbeya, Mwaikasu, J., dated 31 August 1993, in Criminal Sessions Case No. 50 of 1993)

Evidence – Presumption of existence of fact - Whether person found in possession of property of murdered person at the time of the murder may be presumed to have taken part in his murder – Section 122 of the Evidence Act 1967.

Evidence – Lies – When lies by an accused person can be considered in determining his guilt.

The appellant was convicted of murder in the High Court. During the fateful night the appellant asked the deceased to accompany him for a drink. The following day the naked body of the deceased was discovered within the same village. It had several injuries on it. A day later the clothes the deceased was wearing were found in the appellant's room and a pair of black rubber shoes among other articles. In his appeal

against conviction the appellant challenged the credibility of witnesses including the post-moterm report.

Held: The Court was entitled to draw an inference that the appellant committed the murder or took part in its commission from the fact that he was found in possession of property to have been in possession of the murdered person at the time of the murder and failed to give an explanation which could reasonably be accepted.

Appeal dismissed

Cases referred to:

(1) *R v. Bakari Abdallah* (1949) 16 E.A.C.A 84

(2) *Andrea Obonyo and Others v. R.* [1962] EA 542

(3) *Ngunjiri s/o Mugi v. R.* [1962] EA 542

(4) *Rex v. Yego* (1937) 4 E.A.C.A 25

(5) *John Albert Mgumba v. R* Criminal Appeal Number 153 of 1987 (unreported)

Statutory provisions referred to:

(i) Evidence Act 1967, section 122

Mr Mkumbe, for the Appellant

Mr Mbago, for the Republic

JUDGMENT

(Dated 10 June 1999)

SAMATTA, J.A.: The principal issues raised in this appeal are: (1) whether it was proved beyond reasonable doubt that Yusufu Abdi Zakaria (the deceased) lost his life at the hands of another person, and (2) if the answer to the first issue is in the affirmative, whether the appellant was the author of the death. The appeal is from a decision of the High Court (Mwaikasu, J) convicting the appellant of the murder of the deceased and sentencing him to death.

It was not in dispute at the trial that the deceased is dead. Both the appellant and the deceased were residents of Ikombwe village in the sub-district of Mbarali. It was the evidence of the deceased's mother, Nosensia William (PW1), that on the evening of 11 July 1992, the appellant, whom she had known for many years, visited her home at Mkombwe and asked the deceased to accompany him to go and have a drink. The deceased declined the invitation, giving the excuse that he had no money, but following the appellant's insistence, he agreed. At his request, his mother gave him TZS. 100. The two young men then left. That was the last time PW1 saw the deceased alive. When until the following morning he had not returned, the witness reported the matter to the local authorities. At about 3:00pm that day information reached her that there was a dead body lying at a place called Majiweni in the village. When she reached there she found a naked dead body which she recognized as that of her son, the deceased. The body was lying in a farm irrigation canal, fairly close to the appellant's residence. There were several injuries on it, and the abdomen, she observed, was distended. The body was conveyed to her home where on the same day one Mr Mahungururo performed a postmortem on it. PW1 told the trial court that about a month before his death the deceased had been given by one Jason Chapile (PW6), as his remuneration for the work of harvesting paddy in the latter's farm, a shirt with black and white spots, a pair of long trousers in whitish and purple colours and a pair of black rubber shoes. Following the request made by PW1, on 13 July 1992, the house of one Address Mbagaye (PW3), in which the appellant used to rent a room, was placed under guard by Sungusungu. A day later, the appellant's padlocked room was opened by the appellant himself and searched, in the presence of PW.1 and some of the local leaders, by PC. Joseph (PW8). A shirt with black and white spots, a whitish and purple pair of long trousers and a pair of black rubber shoes, among other articles, were found in the room. The clothes, according to PW8, were "wettish". PW1 identified the three articles as the very articles which PW6 had given the deceased about a month before and which the deceased had worn on 11 July 1992. She claimed to have identified the shirt

by a black thread which had been sewn on its lapel, and the pair of long trousers by a similar mark inside part of the waist. The witness asserted that the black thread marks on the clothes had been put in her presence by one of her daughters, Sikitu, at the deceased's request. PW6 corroborated PW1's evidence regarding his giving three items of property to the deceased. Testifying specifically on the shirt, he said: "I cut a cloth and tailored it for him". The witness, surprisingly, was not recalled to identify the three articles, which were tendered before the court after he had testified.

In the house of PW3 used to live another tenant, one Julius Alimasi (PW4). He had his own room. Testifying on the events which he said took place at the premises on the night of 11 July 1992, the witness said:

> ... while I was inside in my room, the accused came and knocked [at] my door. I was then asleep, but I cannot tell the time only that by then it was time for Sungusungu guard duty which normally started at about 10:00pm. When the accused knocked [at] the door I opened it for him. He then asked me for plastic basin which we use for washing clothes. I saw him carrying clothes. When I asked him what was [the] plastic basin was for he told me that he wanted to wash clothes as he was to travel with them but he did not tell me where. He told me that he had obtained such clothes from his elder brother but he did not mention the name of his elder brother. When I was giving him [the] plastic basin I had lit my torch downwards. I was able to see properly the shirt and a pair of black chines rubber shoes. The shirt was a draft type. I gave the accused the plastic basin. I noted such clothes to have been stained with blood. I therefore reported the matter to the ten cell leader the following day, following the accused's accusation before the ten cell leader that I had stolen his three bedsheets and cash TZS. 12 000.

Giving his testimony, Cpl. Mathias (PW7) said, *inter alia*: "The accused claimed that such clothes found with him and claimed to have belonged to the deceased were his, alleging that he had bought [them] from different persons but he could not show such persons or shops".

Mr Muhungururo gave evidence at the trial. As that evidence is, in our opinion, particularly crucial to the determination of the first issue in this appeal, we propose, even at the risk of making this judgment unduly long, to quote the operative part of it *in extensor*. This is what the witness said in examination-in-chief:

> ... I carried out [the] postmortem examination at the home of the deceased. I found the body of the deceased with bruises on the back of his body and on the back of his neck. There was also a stab wound on the right side of the chest, on mid-axilla line which penetrated and pierced the middle lobe of the deceased's lungs; there was another stab wound on the right side of the deceased's neck which cut the throat. The primary cause of death was *pneumothorax* (i.e. accumulation of air in the lungs) and also *haemothorax* which means accumulation of blood in the lungs; and asphyxia, meaning want of air. The body of the deceased had been thrown into water. The accumulation of air into the deceased's lungs was due to injury to the lungs. Though the deceased was thrown into the water and I have also reported in my postmortem examination (*sic*) as "drowning" that however did not contribute to the death of the deceased as he did not swallow any water, and therefore it means that he was thrown there while already dead. I therefore used the term "drowning" simply because the body of the deceased was found into the water. Had the deceased died while in the water, he would have swallowed the water and the lungs would have been extended and contain some water, which condition I did not find. I pray to tender [the] postmortem examination report as an exhibit.

Cross-examined by the appellant's counsel, Mr Mkumbe, who has also represented the appellant in the appeal, the doctor said:

> I entered the term "drowning" in my report as one of the possible causes of the death of the deceased. However, after full examination drowning came to be excluded after a full examination the causes "heamothorax and asphyxia" had to be added by me in hand after noting that the same had been omitted by the typist. I came to provide [those] omitted causes after I had received the summons. I received the summons on or about 11 August 1995. I did note [the] omission when I signed the report. I came to discover such omission as I looked at a special document which I had

> to use when carrying out [the] postmortem examination. I keep [the] special document in the file relating to the postmortem examination report. I did not open the chest cavity. I was able to examine the condition of the lungs through the stab wound that pierced the lungs. That I did in the presence of Cpl. Mathias. The other persons simply help to identify the body of the deceased. It is not true that I did not carry out [the] postmortem examination.

There was no re-examination of the witness and neither the learned trial judge nor the assessors asked him any questions.

The appellant gave evidence but called no witness. He denied not only killing the deceased but also knowing him. He emphatically denied to have visited PW1's home on the fateful day or meeting the deceased. Both PW1 and PW4, according to the appellant, had lied against him in the witness-box – PW1 because, in his capacity as a militiaman, one day in the past he had arrested her in connection with local liquor, and PW4 because he (the appellant) had accused him to a leader of ten cells of stealing his TZS. 12 000. Testifying on the exhibited shirt and pair of long trousers, the appellant said he was the owner thereof. He went on to say:

> The clothes ... were not sent to our (*sic*) room on 11-12 July 1992. They had been inside [the] room. I had [the] clothes inside [the] room from 6 July 1992. I bought them from one Gervas who is a Kinga by tribe who owns a shop at Rujewa. It is not true that I did not tell PW7 as from whom I had bought [the] clothes.

Gervas, according to the appellant, had since passed away. As regards the pair of black rubber shoes, he said he bought it on 2 July 1992. He denied that when the clothes were seized by PW8 they were wet or wettish.

As indicated at the beginning of this judgment, the principal issues in this appeal, the deceased's death being not in dispute, are, first, whether it was proved beyond reasonable doubt that the deceased lost his life at the hands of another person, and, secondly, whether, if the answer to the first issue is in the affirmative, the appellant

was that other person. There can be no dispute that if the deceased was killed, whoever did that evil act had malice aforethought. At this stage, therefore, we ask ourselves whether the learned trial judge was right to find, as he did, that the deceased was killed.

On behalf of the appellant, Mr Mkumbe, learned advocate, strenuously urged to hold, contrary to what the learned trial judge held, that there was no sufficient evidence to prove that the deceased was killed. He contended that the following factors existed in this case and they had the effect of weakening the prosecution case, as far as the alleged killing was concerned: (1) Mr Mahungururo wrote down in report that the cause of the deceased's death was drowning; (2) the testimony of PW.1 to the effect that the deceased's abdomen was distended suggests that the deceased had drowned and not killed; (3) the fact that the deceased's body was found naked in the canal suggests that the deceased was taking a bath when he drowned; (4) Mr Mahungururo's evidence regarding the cause of death was unreliable because he changed his opinion on the crucial point; (5) the doctor did not open the chest cavity, thus denying himself the opportunity to detect the condition in which the lungs were. While not accepting that the learned trial judge erred in excluding drowning as the cause of death, Mr Mbago, Senior State Attorney, declined to support the appellant's conviction and conceded to the rest of Mr Mkumbe's arguments. There can be no rational controversy, in our opinion, over the fact that in preparing his postmortem report in this case Mr Mahungururo did not exercise that degree of care which is expected from a professional man, but we are unable to uphold Mr Mkumbe's contention that it is possible that the deceased was not killed. In our view, in determining what happened to the deceased on the fateful day it is necessary to have regard to the totality of the evidence laid before the trial court.

When that is done, we think it is not possible to entertain reasonable doubt over the fact that the deceased lost his life at the hands of another person. It was common ground in this case that the deceased's body was found to have two severe stab wounds, one which penetrated

up to the lungs, which were perforated, and the other which pierced the trachea. Plainly, such injuries could not have been a result of the deceased drowning. In our opinion, one need not be a medical expert to confidently express that opinion. Like the learned trial judge, we accept the doctor's explanation as to how he came to use the word "drowning" in the postmortem report and why drowning as a cause of the deceased's death had to be excluded. With due respect, we see no merit in Mr Mkumbe's criticism of the learned trial judge's finding that the deceased was killed. But before we part with this aspect of the case, we wish to observe, in the interests of justice, that it cannot be stressed too strongly that it is of earthshaking importance that those who carry out postmortems and prepare reports thereon do so with great care and skill.

Was it proved beyond reasonable doubt at the trial that the appellant is the author of the deceased's death? To that question we now turn our attention. In a lucid submission Mr Mkumbe subjected the evidence of PW1 to two principal criticisms and invited us to hold that the learned trial judge strayed into an error in treating the evidence of the witness as reliable. First, the learned advocate contended that the evidence of the witness to the effect that on 11 July 1992, the appellant visited her home was false because, as to put it, the witness' testimony regarding where her son and the appellant reportedly went to have a drink flew in the face of the evidence of PW7, who told the trial court that he questioned one Tolo Mujovangwa, the owner of the pombe shop where the two young men were said to have been seen, but Tolo denied to have seen the men there. With respect, we find ourselves unpersuaded by the learned advocate's criticism. Even assuming that the evidence of the two witnesses on the point did not constitute hearsay, it must be correct to say, as we do, that what PW1 said could not possibly be said to be in conflict with PW7's evidence. This is what PW1 told the trial court on the point: "I was told by the late Kalinga alias Mama Stella that she had been together with the deceased while taking liquor at the home of the said Tolo Mujovangwa. They did not go to the pombe shop on that day because

it was a feast for our Branch Chairman" (the emphasis is supplied). Plainly, this passage does not lend any colour to Mr Mkumbe's submission. Going by the passage, the information was that the two young men did not visit Tolo's pombe shopage. We nevertheless agree with the learned advocate that there was no evidence before the trial court which could serve as a peg, so to speak, upon which to hang the finding that on the fateful day the appellant and the deceased visited a pombe shopage Secondly, the learned advocate submitted that the identification of the shirt, pair of long trousers and pair of shoes by PW1 as the property of the deceased having not been preceeded by the witness giving descriptions of special features on the articles, not much weight could be attached to the evidence. In re-evaluating the evidence of PW1 it is important, in our opinion, to have regard to the evidence of PW4, one of the witnesses whose demeanour highly impressed the learned trial judge. We find it very significant in this case that on the night of 11 July 1992, the day the deceased was robbed of his natural life, PW4 saw the appellant in possession of three articles identical with those the deceased had in possession on the day and which PW1 identified as the deceased's property. It is perfectly true that the appellant had lodged a complaint of theft against the witness (PW4) to a leader of ten cells before he reported the strange behaviour of the appellant on the fateful night. Mr Mkumbe submitted that the witness was not a reliable one. While we are prepared, bearing in mind the misunderstanding between the witness and the appellant, to accept that the evidence of the witness had to be approached with some caution, we are unable to accede to Mr Mkumbe's contention. The witness' assertion that the appellant told him that he wanted to wash the shirt and pair of long trousers finds support in the evidence of PW1 who told the trial court that the clothes were wet when seized by the police, and also in the evidence of PW8, who testified to the effect that the clothes "appeared wettish". Like the learned trial judge, we accept the evidence of PW4, including his assertion that the appellant told him on the night of 11 July 1992, that he had been given the shirt and pairs of long trousers and shoes by his (the appellant's) brother.

The learned trial judge was highly impressed by PW1. This is what he said about her: "... this witness has already demonstrated as a truthful and intelligent witness who has been very consistent in her testimony". We find no warrant to fault that assessment. It will be recalled that in the course of his testimony the appellant asserted that PW1 had given false evidence against him and that she had done so because he once arrested her for a crime connected with local liquor. It is not insignificant, in our opinion, that that reason was not put to the witness although she was cross-examined at a great length. It seems more probable than not that the explanation is an afterthought. Like the learned trial judge, we find no credible explanation why the witness should have been so wicked as to implicate the appellant in the murder of her son. Consequently, we can see no basis for faulting great reliance placed on the witness' testimony by the learned trial judge. If PW1's evidence is accepted, we must find, as did the learned trial judge that the appellant lied in denying to have visited the witness' home and leaving with the deceased. Of course, we recognize that a conviction cannot be based on the accused person's lies, but if material, such lies may be taken into account in determining whether the alleged guilt of the accused has been proved.

For the reasons we have endavoured to give, we are of the settled opinion that the evidence laid in the scale against the appellant proved beyond reasonable doubt that the deceased was murdered and that some hours after the crime had been committed the appellant was found in possession of the clothes and pair of shoes the deceased had been wearing at the time of the murder. In our opinion, this is a proper case in which to invoke the presumption created by section 122 of the Evidence Act 1967 (the Act), which reads:

> 122. The Court may infer the existence of any fact which it thinks likely to have happened, regard being had to the common course of natural events, human conduct and public and private business, in their relation to the facts of the particular case.

The presumption under this section embodies, *inter alia*, the well known doctrine of recent possession which is to the effect that a man who is in possession of stolen goods soon after the theft is either the thief or has received the goods knowing them to be stolen, unless he can account for his possession by at least giving an explanation which may reasonably be true. The presumption can extend to any charge however penal: See *R v. Bakari Abdallah* (1). But in case of murder (or manslaughter) receiving must be out of question before conviction can be based on the presumption: See *Andrea Obonyo and others v. R.* (2). Under the section the court is entitled if it appears reasonable in all the circumstances of the case to draw an inference that an accused person committed a murder or took part in its commission from the fact that he is found in possession of property that was in possession of the murdered person at the time of the murder and fails to give an explanation which can reasonably be accepted: See *Ngunjiri s/o Mugi* (3); *Rex v. Yego* (4); *John Albert Mgumba v. The Republic* (5). The appellant in the instant case having failed to account for his possession of the property which was in possession of the deceased at the time he was murdered, and bearing in mind several factors, including the fact that the appellant was found in possession of the property a very short period after the murder of the deceased, and also the fact that, as far as the evidence on record goes, the deceased was last seen alive in the company of the appellant, we feel entitled to invoke the presumption under section 122 of the Act and hold, as did the learned trial judge, that the appellant was the person who murdered the deceased. We entertain no doubt that that inference can legitimately be drawn from the proved facts.

Mr Mkumbe has, in our opinion, ably said everything which could properly be said on behalf of the appellant in this case, but, for the foregoing reasons, we can see no merit in the appeal, which we accordingly dismiss.

ABUALY ALIBHAI AZIZI v. BHATIA BROTHERS LTD

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Nyalali, C.J., Mfalila, Lubuva, Samatta and Lugakingira, JJ.A.)

MISC. CIVIL APPEAL No. 1 OF 1999

(In the matter of Miscellaneous Civil Appeal No. 1 of 1999, and in the matter of a conflict of decisions in the Court of Appeal in Civil Appeal No. 15 of 1988 and in Civil Appeal No. 19 of 1995, and in the matter of the full bench of the court)

Court of Appeal – Full bench – An ordinary Court referring a matter of law for decision of the same Court sitting as full bench of five justices – Basis therefore.

Contract – Sanctity of contract – English principle of sanctity of contract not excluded in the Law of Contract Ordinance Chapter 433 – Part of the law of contract of this country.

Contract law – Interpretation of expression "shall not be operative" under the Land Regulations 1948 and 1960 – Section 2(2) of the Law of Contract Ordinance Chapter 433.

Land law - Land Regulations, 1948 and 1960 – Interpretation of expression "shall not be operative" under the Land Regulations 1948 and 1960 – Section 2(2) of the Law of Contract Ordinance Chapter 433.

Statute – Interpretation of statute – Meaning of the expression "shall not be operative" – Land Regulations 1948 and 1968 and section 2(2) of the Law of Contract Ordinance Chapter 433.

A bench of three justices of the Court of Appeal of Tanzania sitting as an ordinary court under article 122(1) of the Constitution referred a matter of law for decision by the full bench of five justices of the same court under article 118(1) of the Constitution. The matter referred to the full bench related specifically to a conflict between the decision of the Court of Appeal in the case of *Nitin Coffee Estates Ltd and 4 others v. United Engineering Works Ltd and another* (2) and the decision of the same court in the case of *George Shambwe v. National Printing Co. Ltd.* (3). The full bench of the Court of Appeal considered various decisions in which the expression "shall not be operative" in Regulation 3 of the Land Regulations, 1948 was interpreted and ascertained the correct interpretation in light of the provisions of section 2(2) of the Law of Contract Ordinance, Chapter 433.

Held: (i) The Full Bench of the Court of Appeal has no greater powers than a division of the court, but if it is to be contended that there are grounds, upon which the court could act, for departing from a previous decision of the court, it is obviously desirable that the matter should, if practicable, be considered by a bench of five judges;

(ii) In ascertaining the correct interpretation of the expression "shall not be operative" in regulation 3 of the Land Regulations, 1948 and 1960 the court should be guided by two underlying principles:

(a) that a Right of Occupancy is something in the nature of a lease and a holder of a Right of Occupancy occupies the position of a sort of lessee *vis-a-vis* the superior landlord; therefore a disposition of a right of occupancy is necessarily a tripartite transaction involving not only the holder of the right of occupancy and the purchaser or donee, but also involving the superior landlord;

(b) that the principle of sanctity of contract is consistently reluctant to admit excuses for non-performance where there is no incapacity, no fraud (actual or constructive) or misrepresentation, and no principle of public policy prohibiting enforcement.

(iii) In view of the provisions of sub-section (2) of section 2 of the Law of Contract Ordinance the expression "shall not be operative" as used under regulation 3 of the Land Regulations 1948 and 1960 does not mean "void" or another meaning to the same effect;

(iv) Decisions of cases made before the enactment of the Law of Contract Ordinance and which held to the effect that non-compliance with statutory requirements of consent or writing rendered a contract void, were correct according to law applicable then, but ceased to be precedents on the matter after 1960;

(v) Decisions which were made after enactment of the Law of Contract Ordinance and which were to the same effect as if the provisions of sub-section (2) of section 2 did not exist, were made *per incuriam*;

(vi) *Nitin's* case is bad in law since it undermines the sanctity of contract and *George Shambwe's* case is only partly sound because it does not safeguard the interests of the paramount landlord;

(vii) A contract for disposition of land which otherwise is proper but for the lack of required consent, is inoperative, that is unenforceable to the extent that such enforcement is prejudicial to the interest of the paramount landlord;

(viii) Where enforcement of a contract for disposition of land is not prejudicial to the paramount landlord a party who has performed his or her part of the bargain may be assisted by the court to enforce the contract against the defaulting party;

(ix) Where consent is sought and is refused the contract becomes wholly unenforceable, thought valid, and any expenses incurred by the parties may be recovered by legal action, if necessary;

Order accordingly.

Cases referred to:

(1) *PHR Poole v. R* [1960] EA 62

(2) *Nitin Coffee Estates Ltd and 4 others v. United Engineering Works Ltd and another* [1988] T.L.R. 203

(3) *George Shambwe v. National Printing Co. Ltd.* [1995] T.L.R 262

(4) *Mohamedbhai Khanbhai and Bros v. Mtoo Binti Tafakari bin Salum &Others* (1955) 22 E.A.C.A 84

(5) *Alexander Gray Patterson and another v. Bandrudin Mohamed Saleh Kanji and another* (1956) 23 E.A.C.A 106

(6) *Motibhai Manji v. Khurshid Begum* [1957] EA 101

(7) *TH Patel v. R. Lawrenson and another* [1957] EA 249

(8) *Fazal Kasam (Mills) Ltd. v. Abdul Nagji Kassam and Shubanu Bai Gulamhussein* [1960] EA 1042

(9) *Mlay v. Phoneas* [1968] EA 563

(10) *Syveni Mushunga v. Theonestina Rwekanika* [1974] LRT 30

(11) *Chandrakant Vinubhai Patel v. Frank Lionel Marealle and another* [1984] T.L.R 31

(12) *Methusela Paul Nyagwaswa v. Christopher Mbote Nyirabu* [1985] T.L.R 103

(13) *Wayani Longoi and Another v. Israel Solomon Kivuyo* [1988] T.L.R 263

(14) *Peter Karanti and 48 others v. Attorney-General and 3 others,* Civil Appeal Number 3 of 1988 (unreported)

(15) *J.M. Kasuka v. George Humba,* Civil Appeal Number 35 of 1990 (not yet reported)

(16) *Mohamed Hussein Alladitta v. Abdalla bin Salim and others* (1955)

(17) *Mohamedbhai Khanbhai & Bros. v. Mtoo Binti Tafakari and Mboni* [1953] T.L.R 433

(18) *Jivraj v. Devraj* [1908] EA 263

Statutory provisions referred to:

(i) Law of Contract Ordinance Chapter 433, section 2(2)

(ii) Constitution Article 118(1), article 122(1)

(iii) Land Regulations 1960, regulations 3(1) to (3) and 3(3)(c)

(iv) Land Regulations 1948, regulation 3

(v) Law of Property and Conveyancing Ordinance 1923, section 11

Mr. Mustapha Chandoo, for the Appellant

Mr. Jadeja, for the Respodnent

Professor GM Fimbo, as *Amicus Curie*

RULING

(Dated 18 June 1999)

NYALALI, C.J.: By Order dated 30 November 1998, a bench of three justices of the Court of Appeal sitting as an ordinary court under article 122(1) of the Constitution of the United Republic of Tanzania, referred a matter of law for decision by the same court sitting as a Full Bench of five justices under article 118(1) of the same Constitution. The matter arose in Civil Appeal Number 42 of 1995 between Abualy Alibhai Azizi, appellant, and Bhatia Brothers Ltd., respondent. That order stated:

> After discussions between the Bench and the representatives of the parties, it is directed that the matter of the legal effect of lack of consent to a sale of registered land be referred for decision by the Full Bench, as there are conflicting decisions by the court on the issue, and that pending such decision by the Full Bench, the case is stayed and will be fixed for continuation of hearing after such decision. *Amicus Curiae* to be appointed.

Obviously the court followed this procedure in the light of what is stated in the case of *PHR. Poole v. R* (1), that is:

> A full Court of Appeal has no greater powers than a division of the court, but if it is to be contended that there are grounds, upon which the court could act, for departing from a previous decision of the court, it is obviously desirable that the matter should, if practicable, be considered by a bench of five judges.

The parties in the proceedings before this Full Bench are the same as the parties in Civil Appeal Number 42 of 1995. As in that appeal currently pending in the court, the appellant is represented in these proceedings by Mr Mustafa Chandoo, learned advocate. The respondent, who is not represented by counsel in the pending appeal, is represented before us by Mr Jadeja, learned advocate. Pursuant to the terms of the court order which initiated these proceedings, Professor Fimbo, learned advocate, was appointed by the court to be *Amicus Curiae*.

We must at this stage express our profound appreciation for the industrious research made by all advocates in general, and by Mr Jadeja and Professor Fimbo in particular. As it will presently be apparent, this extensive research has had a direct impact on the quality of our decision.

The matter referred to us relates specifically to a conflict between the decision of this court in the case of *Nitin Coffee Estates Ltd. and 4 others v. United Engineering Works Ltd. and another* (2) and the decision of the same Court in the most recent case of *George Shambwe v. National Printing Co. Ltd.* (3), (dissenting opinions). Basically the conflict concerns the interpretation and application of statutory provisions requiring a contract for the sale of land to be approved or consented to by a specified public authority.

Professor Fimbo's research has revealed a long history of these provisions. This history includes article 6 of the British Mandate for East Africa, Regulation 2 of the Land Regulations, 1926; Regulation 2 of the Land Regulations 1931; Regulation 3 of the Land Regulations 1948 and Regulation 3 of the Land Regulations, 1960.

As to precedents, the research by both Professor Fimbo and Mr Jadeja similarly reveals a long history of judicial decisions on the status of a contract of sale which lacks the requisite consent. These precedents include the following cases in their chronological order: *Mohamedbhai Khanbhai and Bros v. Mtoo Binti Tafakari bin Salum and others* (4); *Alexander Gray Patterson and another v. Bandrudin Mohamed Saleh Kanji and another* (5); *Motibhai Manji v. Khurshid Begum* (6); *TH Patel v. R. Lawrenson and another* (7); *Fazal Kassam (Mills) Ltd. v. Abdul Nagji Kassam and Shubanu Bai Gulamhussein* (8); *Mlay v. Phoneas* (9); *Syveni Mushunga v. Theonestina Rwekanika* (10); *Chadrankat Vinubhai Patel v. Frank Lionel Marealle and another* (11); *Methusela Paul Nyagwaswa v. Christopher Mbote Nyirabu* (12); *Nitin Coffee Estates Ltd. and 4 others v. United Engineering Works Ltd. and another* (13); *Wayai Longoi ans another v. Israel Solomon Kivuyo* (14); *Peter Karanti & 48 Others v. Attorney-*

General and 3 others, (15); *JM Kasuka v. George Humba,* (16) *and George Shambwe v. National Printing Co. Ltd.,* (3).

The relevant statutory provisions which are pertinent to Civil Appeal Number 42 of 1995 currently pending before three justices of this court, and which is the origin of these proceedings before us are contained in Regulation 3(1) to (3) of the Land Regulations 1960. These state as follows:

> 3(1) A disposition of a right of occupancy shall not be operative unless it is in writing and unless and until it is approved by the Governor.
>
> (2) In this regulation "disposition" means:
>
> (a) A conveyance or assignment other than by way of mortgage, or a gift, settlement, deed of partition, assent, vesting declaration, or a sale in execution of an order of Court;
>
> (b) A mortgage other than:
>
> (i) an equitable mortgage by deposit of title deeds; or
>
> (ii) a Mortgage which by law is only effectual if registered in the Register of Documents or the Land Register;
>
> (c) a deed or agreement or declaration of trust binding any party thereto to make any such disposition as aforesaid, including a deed or agreement entitling a party thereto to require any such disposition to be made;
>
> (d) a decree of foreclosure of a mortgage.

The arguments for the appellant, which have been very ably put by Mr Chandoo, learned advocate, are to the effect that non-compliance with the provisions of regulation 3 of the Land Regulations 1960 does not render such contract to be void. Mr Chandoo cited the provisions of sub-section (2) of section (2) of the Law of Contract Ordinance, Chapter 433 of the Revised Laws in support of that position. That sub-section (2) states:

> (2) Notwithstanding the provisions of paragraph (g) or (j) of sub-section (1) of this section, where any written law in force in Tanganyika on the date when this Ordinance comes into operation provides that an agreement (howsoever described), of the kind specified therein, shall not be enforceable by action unless or until certain requirements specified therein are complied with, or certain consents are obtained, no such agreement shall be void by reason only that it is not enforceable by action under the provisions of that law for want of compliance with any such requirement or the obtaining of any such consent.

The provisions of paragraphs (g) and (j) referred to under sub-section (2) state as follows:

> (g) an agreement not enforceable by law is said to be void;
>
> (j) a contract which ceases to be enforceable by law becomes void when it ceases to be enforceable.

It is Mr Chandoo's contention in effect that the words, "... shall not be operative" contained in sub-regulation (1) of regulation (3) cannot be construed to mean "shall be void", because such a construction would be contrary to the express provisions of sub-section (2) of section 2 of the Law of Contract Ordinance. It is part of Mr Chandoo's contention that the cases decided prior to 1960 are relevant only to that period, but not thereafter. According to him, a transaction falling within the scope of regulation 3 is valid notwithstanding the failure to comply with the requirements of sub-sections (1) to (3).

To that extent, Mr Jadeja and Professor Fimbo concur with Mr Chandoo. Mr Jadeja and Professor Fimbo however part company with Mr Chandoo in submitting to the effect that such contract, though valid, is inoperative by virtue of sub-regulation (1) of regulation 3.

We have closely examined and considered the more than ample precedents cited to us by counsel. These precedents appear to fall into three broad categories. The first category consists of cases in which the judicial decision is to the effect that a transaction, which does not fulfill the requisite conditions as void in totality. Such cases include the case of *Motibhai Manji v. Khurshid Begum* (6), wherein it was stated, "In our view, it is quite clear that the Governor's consent to the agreement has never been obtained for an each occasion

there was a substantial misdescription of its subject matter and also a failure to submit for the Governor's consideration the agreement as a whole. We think that the learned trial judge correctly held that the agreement was prohibited by law and was therefore void *ab initio*. That being so, nothing done subsequently could convert it into an enforceable contract. Similarly in the case of *Fazal Kassam (Mills) Ltd. v. Abdul Nagji Kassam and Shubanu Bal Gulamhussein* (8) wherein it was stated, "... The alleged agreement that the first defendant should not mortgage his right of occupancy to the plaintiff company was void *ab initio* for want of writing and for want of the Governor's consent, and this court has no power to order specific performances of that agreement. In my opinion it would make no difference if fraud was proved against the first defendant. The plaintiff company must be assumed to have known the law".

Undoubtedly, these cases were decided before the Law of Contract Ordinance, hence sub-section (2) of section 2 therein, had not come into being in this country. The position however was essentially reaffirmed in subsequent decisions, including the case of *Chadrakant Vinubhai Patel v. Frank Lionel Marealie and another* (11) where it was stated, "... We are of the view that the agreement is void and since the trial judge has based his decision entirely on a void agreement, his judgement is vitiated as it is based on a fundamental flaw". A similar position is to be found in the case of *Methuselah Paul Nyagwaswa v. Christopher Mbote Nyirabu* (12), where it was stated, "... I am of the view that the sale by Patrick to the appellant of the land in Mbezi was void and ineffectual as it took place without the approval of the village council ..." These cases of course do not purport to interpret the specific expressions used in regulations 3(1) to (3) of the Land Regulations 1960. To that extent, they are not very helpful to us apart from being part of the framework within which we must make our decision.

The second category of cases are those in which it was decided to the effect that a transaction which does not comply with the requisite conditions is inoperative only as to change of title, otherwise, it is

operative. Such cases include the case of *Mlay v. Phoneas* (9) wherein it was stated, "... In my opinion a distinction must be drawn between those terms of the agreement which concern the disposition and those which are collateral to it so that while the former may be inoperative, the later remain operative and can be enforced in the event of the Commissioner failing or refusing to give consent, of course, if the Commissioner merely fails to give consent it may be that a new agreement can be drawn up and resubmitted to him". This case gives an indication of the meaning that may be attached to the word 'inoperative' used in regulation (3). By using the expression that, "the latter remain operative and can be enforced" a clear indication of the meaning of the opposite, that is the meaning of "inoperative" may be surmised as being "unenforceable".

The second case in this category is the case of *Alexander Gray Patterson and another v. Bandrudin Mohamed Saleh Kanji and another* (16) wherein it was stated, "I do not think the respondent can get assistance from the variation in the wording of the 1926 and 1948 Regulations.... How far the present regulation nullifies a dealing which is not subsequently approved may be a matter of argument. Such a transaction may still be valid for some purposes e.g. if there are collateral undertakings. But at least it is clear that without approval no dealing can operate to effect a sale or mortgage or to create a charge or a sublease". This case is significant in its pronouncement to the effect that a transaction which does not comply with the requisite conditions is not totally devoid of legal effect but, "may still be valid for some purposes, e.g. if there are collateral undertakings".

The position that a transaction which does not comply with the statutory conditions is not necessarily devoid of any legal effect had of course been stated the year before in the case of *Mohamed Hussein Alladitta v. Abdalla Bin Salim and others* (16) wherein it was stated, "The question whether the agreement is wholly inoperative, or operative to the limited extent suggested, must, we think depend on, whether its terms are severable, so as to create an independent and absolute preliminary obligation to convey, which is conditional

on the Governor's consent. We are effectively made, though it seems unlikely that it would be specifically enforced and it is difficult to see what damages could be proved on its breach; but however that may be we think this is not such an agreement. There is no express undertaking to do either of the things contended for. At best a duty to do them may be implied. There is no separate or severable consideration for the promises which are said to be severable ..." The significance of the decision in this case lies of course in the pronouncement to the effect that an agreement which does not comply with the statutory conditions may be partly inoperative and partly operative depending on the nature of the agreement.

The fourth case in this second category of cases is *Mushunga v. Rwekanika* (10) wherein it was stated "I think regulation 3 of the Land Regulations 1948 may be abused by unscrupulous sellers. I think regulation 3 is applicable only to situation where the President's consent has been sought and refused. A contract of sale is not contemplated by Regulation 3. This regulation refers to dispositions which are defined ... to mean conveyances or assignments. A contract of sale is neither of these ..."

The decision in this case was of course *per incuriam* to the extent that it excluded contracts from the scope of regulation 3, as correctly pointed out by this court in the *Nitin Coffee Estate* case. However, the significance of this case in the history of judicial decisions relevant to the matter before us is the pronouncement therein that "... I think regulation 3 is applicable only to situations where the President's consent has been sought and refused ... the lack of consent is only a defence to an action for specific performance or damages, but cannot be a reason for."

The other case in this category is the recent case of *George Shambwe v. National Printing Company Ltd.*, (3) wherein it was stated *inter alia*:

> .... With respect, we are unable to accept Mr Semgalawe's argument that there was no binding agreement because the Commissioner for Lands had not sanctioned the sale transaction. We agree with Mr Semgalawe's statement that under the Land Regulations, 1948, the sale agreement was inoperative, as the correct position of the law on this point.
>
> However, though that is the position of the law on this point, we wish to make it clear that Mr Semgalawe, learned counsel is not, with respect, correct in his assertion that because the approval of the Commissioner was not forthcoming there was therefore no agreement for sale between the appellant and the respondent. ... The learned trial judge correctly in our view took the view that the appellant, the vendor was in breach of the agreement even though the approval of the Commissioner had not been obtained ...
>
> As found by the learned trial judge, it was at the stage when the appellant was required to execute the sale agreement that he refused to sign the document. With this refusal to sign, nothing further could be done in executing the agreement. As a result, the approval of the Commissioner could not be obtained. For that reason, we agree with the learned trial judge that the appellant was in breach of the sale agreement reached between him and the respondent, the buyer. Having breached the agreement in these circumstances, the appellant cannot validly resort to regulation 3(1) of the Lands Regulations, 1948 in defence.
>
> As the relief sought at the trial was a declaratory judgement that the agreement was inoperative and as there was no counterclaim filed by the respondent for specific performance or damages the learned trial judge correctly made no further orders. The respondent having spent sums of money towards the redemption of the mortgage and other liabilities of the appellant, the matter is left open for further processing and execution of the documents in order to effect the transfer in terms of the law!

This decision was subsequently confirmed in a majority opinion in Civil Application Number 58 of 1995 between the same parties. In a dissenting opinion, Ramadhani, J.A. , stated, *inter alia*, "As I have said, I would have no difficulty to refuse this application for review if *Nitin* had been distinguished or even departed from as being bad law". Since neither was done, and in fact *Nitin* was not even mentioned

in the judgement, despite the fact that it was cited of the court, then the decision was *per incuriam*".

The significance of the decision in *George Shambwe's* case both in the appeal and in the application for review, is the statement to the effect that the contract of sale was binding between the parties, notwithstanding the lack of the requisite consent. The decision however is unclear as to its effect upon the Commissioner for Lands. If the decision meant that the binding contract between the parties obliged the Commissioner to consent to the disposition, then, for the reasons apparent hereinafter, such a decision would be wrong.

The third and last category of cases is that in which it was decided to the effect that a transaction which does not comply with the statutory conditions is inoperative and unenforceable. Such cases include the case of *Mohamedbhai Khanbhai and Bros v. Mtoo Binti Tafakari Omari and Mboni* (17) wherein it was stated, "In my judgment the plaintiff cannot succeed in the absence of the Governor's approval to the transaction ... section 11 of the Law of Property and Conveyancing Ordinance, 1923 provides that such a disposition 'shall not be operative unless it is in writing and unless and until it is approved by the Governor.' .... The plaintiffs have not fulfilled the condition precedent to their right to enforce the conveyance and in the absence of the performance of the condition, apart from any other consideration, the court is powerless to give effect to the transaction". The significance of this decision lies in the clarity in which it explains the helplessness of the court in providing relief to an aggrieved party. It is clear according to this case that an inoperative transaction is wholly unenforceable.

The second case under this category is *TH Patel v. R. Lawrenson and another* (7), wherein it was stated that "I am satisfied the whole agreement is inoperative because of a lack of approval and that being so this court is precluded from enforcing any part of the agreement. It is wrong to suppose that any position in which the appellant finds himself could be rendered by an order for specific performance up to the stage of the first respondent executing a transfer of the right

of occupancy to see whether or not approval could now be obtained. That in effect, would be for this court to defy the law by ordering dealing without approval in pursuance of an agreement which itself is inoperative. The significance of this case is that it is the strongest voice against the enforcement of any part and any stage of a transaction which does not comply with the statutory conditions.

The third case within this category is, the famous case of *Nitin Coffee Estate and 4 others v. United Engineering Works Ltd. and another* (2), wherein it was stated *inter alia*, that:

> In my view an oral agreement of the type sued on to sell land held under a right of occupancy is inoperative and of no effect. There is a long line of authority to that effect.
>
> Mr Marando for the respondents submitted that there is some confusion on this matter in the High Court. He referred to a High Court decision in *Sylveni Mushunga v. Theonestina Rwekanika* (10). Mfalila, J. in that case purported to distinguish it from *Pattrerson v. Kanji* (5). Mfalila, J. stated:
>
> I think that Regulation 3 of the Land Regulations 1948 may be abused by unscrupulous sellers. I think that Regulation 3 is applicable to only situations where the President's consent has been sought and refused... A contract of sale is not contemplated by Regulation 3. This Regulation refers to dispositions which are defined ... to mean conveyances or assignments. A contract of sale is neither of these.
>
> Obviously Mfalila, J. had overlooked Regulation 3(3)(c) where such a contract is a disposition. With respect, that decision of Mfalila, J. was wrong.
>
> Out of courtesy for Mfalila, J. and other judges of his way of thinking perhaps some subsidiary observations may be in order. A Right of Occupancy is something in the nature of a lease and a holder of a right of occupancy occupies the position of a sort of lessee *vis-à-vis* the superior landlord. A right of occupancy is for a term, and is held under certain conditions. One of the conditions is that no disposition of the said right can be made without

> the consent of the superior landlord. There is now no freehold tenure in Tanzania. All land is vested in the Republic. So land held under a right of occupancy is not a freely disposable or marketable commodity like a motor car. Its disposal is subject to the consent of the superior or paramount landlord as provided for under the relevant Land Regulations.

This case is famous not only because it was the basis of the dissenting opinion of Ramadhani, J.A. , in *George Shambwe's* case, but also because it states the principle underlying Regulation 3.

The last case in this category is the case of *Wayani Longo and another v. Israel Solomon Kivuyo* (13), wherein it was stated that, "the view that an agreement to sell a right of occupancy, which agreement has received no consent under the Regulation is inoperative, and hence unenforceable at law, was re-affirmed by this court in more recent cases of *Patel v. Marealie and another*, (11) and *Nitin Coffee Estate Ltd and Four Others v. United Engineering Works Ltd and another*, (2). It therefore follows that the judgement of the High Court based as it was wholly on an agreement which was inoperative at law, cannot be sustained and it must be set aside.

It must be clear by now that the decisions of the courts both in this country and in East Africa on the matter before us has not been consistent, contrary to what appears to be asserted in *Nitin's* case. As we have attempted to demonstrate, three positions can be discerned from the numerous precedents. If our decision is going to depart from any of these positions, it cannot be construed to be violative of the rule laid down in the case of *Jivraj v. Devraj* (18), wherein it was stated that "There is a principle of law, however, that where a Court has interpreted the law in a certain manner particularly an interpretation which affects property rights, and that interpretation has been acted upon for a considerable time, then that interpretation should not be departed from unless it is clearly wrong and gives rise to injustice".

In ascertaining what we consider to be the correct interpretation of the expression, "shall not be operative" in Regulation 3 of the

Land Regulations 1948 and 1960, we are going to be guided by two underlying principles. The first principle is explained in *Nitin's* case, that is, "a Right of Occupancy is something in the nature of a lease and a holder of a Right of Occupancy occupies the position of a sort of lessee *vis-à-vis* the superior landlord". The collorary of this principle is that a transaction for the disposition of a right of occupancy is necessarily a tripartite transaction involving not only the holder of the right of occupancy and the purchaser or donee, but also involving the superior landlord. The second principle concerns the law of contract and originates from the English Common Law. That principle is the principle of *Sanctity of Contract* as stated in **Chitty's Law of Contracts,** Volume I, (24 ed), at page 5 thus:

> A concomitant of the doctrine of freedom of contract is that of sanctity of contracts; and it is still a cardinal principle of English law because it suits the needs of a commercial community
>
> English law is consistently reluctant to admit excuses for non-performance where there is no incapacity, no fraud (actual or constructive) or misrepresentation, and no principle of public policy prohibiting enforcement.

It is our considered opinion that since there is nothing in the Law of Contract Ordinance, Chapter 433, which excludes this principle, there can be no doubt that it is part of the law of contract of this country, by virtue of the provisions of sub-section (2) of section 2 of the Judicature and Application of Laws Ordinance Chapter 453 of the Revised Laws.

Thus guided by these two principles and the provisions of sub-section (2) of section 2 of the Law of Contract Ordinance, we are satisfied that the expression, "shall not be operative" as used under regulation 3 of the Land Regulations 1948 and 1960, does not mean 'void' or another meaning to the same effect. We are satisfied that this must be the correct interpretation in view of the provisions of sub-section (2) of section 2 of the Law of Contract Ordinance. We note that the decisions of cases made before the enactment of the Law of Contract Ordinance and which held to the effect that non-

compliance with the statutory requirement of consent or writing rendered a contract void, were correct according to law applicable then, but ceased to be precedents on the matter after 1960. As to the decisions which were made thereafter and which were to the same effect as if the provisions of sub-section (2) above mentioned did not exist, there is no doubt in our minds that such decisions were made *per incuriam.*

We have asked ourselves if the expression "shall not be operative" does not entail invalidity, what then does it mean. Logically, it means at least that the contract in question is valid. According to Mr Chandoo, such valid contract has all the attributes of a valid contract. That submission is consistent with the doctrine or principle of sanctity of contract. We note however, and Mr Chandoo is likely to agree with us, that the principle of sanctity of contract is qualified by certain factors, including that of public policy as stated in the paragraph we have cited from **Chitty's Law of Contracts**. The factor of public policy in contracts for the disposition of a right of occupancy is consistent with the second principle guiding us, and which concerns the relationship between the holder of a right of occupancy and the paramount landlord as explained in *Nitin's* case. It is our considered opinion that a contract falling within the scope of Regulation 3 has all the attributes of a valid contract, except those, of which performance before the requisite consent is sought and obtained, is prejudicial to the interests of the paramount landlord. Such are, for example, terms of which performance has the effect of replacing the holder of a right of occupancy with another person without the consent of the paramount landlord. Such terms, though valid, are unenforceable on the grounds of public policy which protects the interests of the paramount landlord. In our considered opinion, this unenforceability of a valid contract is what is meant by the expression "shall not be inoperative" under Regulation 3.

The corollary of what we have stated is that a contract for the disposition of land, which otherwise is proper but for the lack of

required consent, is inoperative, that is, unenforceable to the extent that such enforcement is prejudicial to the interests of the paramount landlord. However, where such enforcement is not thus prejudicial, a party who has performed his or her part of the bargain may be assisted by the court to enforce the contract against the defaulting party. So a party who defaults to submit a written contract for consent or refusal by the specified authority may be compelled to do so if the other party has performed his or her part of the bargain. Of course where such consent is sought and is refused, the contract becomes wholly unenforceable, though valid, and any expenses incurred by the parties may be recovered by legal action, if necessary.

In conclusion, we are now in the position to say that of all the precedents cited to us, those falling within the second category are closer, though not completely in accord with the correct position which we have endeavoured to explain. This means *Nitin's* case is bad in law since it undermines the sanctity of contract; and *George Shambwe's* case is only partly sound because it does not safeguard the interests of the paramount landlord. We consequently direct that the ordinary bench of this court before whom Civil Appeal Number 42 of 1996 is currently pending, be informed accordingly, so that the hearing of the appeal may resume. We so order.

Since it undermines the sanctity of contract; and *George Shambwe's* case is only partly sound because it does not safeguard the interests of the paramount landlord. We consequently direct that the ordinary bench of this court before whom Civil Appeal Number 42 of 1996 is currently pending, be informed accordingly, so that the hearing of the appeal may resume. We so order.

TUICO-OTTU UNION AND ANOTHER *v.* NBC (1997) LTD AND TWO OTHERS

HIGH COURT OF TANZANIA AT DAR ES SALAAM

(Mapigano, J)

MISC. CIVIL CAUSE No. 11 OF 1999

Administrative Law – Prerogative orders – Interim relief – Application for interim relief pending intended appeal against refusal of application for leave to apply for Judicial Review – Whether the High Court may entertain such an application for interim relief.

The High Court refused to grant leave to apply for prerogative orders. The applicants then filed a Chamber Summons seeking an order for interim relief pending hearing of an appeal which they intended to prefer to the Court of Appeal against the High Court's decision refusing leave to apply for prerogative orders. The issue was whether, having refused such leave, the High Court had jurisdiction to grant the interim relief.

Held: Once the High Court refuses an application for leave to apply for prerogative orders the matter is thereby thrown out of the court and the court becomes *functus officio* with no jurisdiction to grant any form of interim relief in the matter.

Application struck out

Cases referred to:

(1) *M. v. Home Office and another* [1993] 3 All ER 537

(2) *Vidyadhar G. Chavda v. Director of Immigration Services and Two others* [1995] T.L.R 125

Statutory provisions referred to:

(i) Judicature and Application of Laws Ordinance, Chapter 453

Dr. Wambali/Professor Shivji for the applicants

Mr. Mujulizi for the first and second respondent

Mr. Ngwembe for the third respondent

RULING

(Delivered 25 June 1999)

MAPIGANO, J: The preliminary point of law which has been taken by the Attorney General in opposition to the applicants' Chamber Summons is an interesting one. In the Chamber Summons the applicants seek an order for interim relief pending the hearing of an appeal which they intend to prefer to the Court of Appeal against this court's refusal to grant leave to them to apply for prerogative orders. The Attorney General contends that having refused such leave this court is *functus officio* and has, therefore, no jurisdiction to grant any form of interim relief.

To start with, I will say a few words about some collateral matters which have cropped up during counsel's arguments. First, Professor Shivji, counsel for the Applicants, is right in saying that the source of the jurisdiction of this court to entertain applications for prerogative orders is the Judicature and Application of Laws Ordinance, Chapter 453, which imports into Tanzania the substance of the Common Law, doctrines of equity and statutes of general Application in force in England on the reception date, i.e. 22 July 1920. He is also right in saying that in regard to procedure such applications are not governed by the provisions of the Civil Procedure Code or the Government Proceedings Act.

Secondly, there is no written law which specifically confers power on this court to grant interim injunctions pending appeal to the Court of Appeal, and where the court has granted such reliefs it has done so by invoking its inherent jurisdiction.

Thirdly, this court has consistently held that it has also inherent jurisdiction to grant injunctive relief pending the hearing of an application

for leave to move for Judicial Review and pending the disposal of the substantive application.

The question now before me is whether this court has also jurisdiction to grant interim reliefs pending appeal to the Court of Appeal where leave to move for Judicial Review has been withheld. The Attorney General, as already mentioned, asserts that the court does not possess such jurisdiction. It is said by Mr Kamba, on his behalf, that where the court has refused such leave it becomes *functus officio* and has no jurisdiction to grant any form of interim relief. Reliance is placed upon the Supreme Court Practice (1993), paragraph 53/1-14/24, which was cited with approval by the House of Lords in the case of *M v. Home Office and another* (1) at 565; and on the comment made by the learned authors of **Mulla on the Indian Code of Civil Procedure** (14 ed) page 2136 paragraph 3. Reference has also been made to the decision of Samatta, JK, as he then was, in the case of *Vidyadhar G. Chavda v. The Director of Immigration Services and Two others* (2). I should however point out, with respect to Mr Kamba, that the issue before the learned judge in that case was whether this court has power to grant an interlocutory injunction before hearing an application for leave to apply for a prerogative order. It is true that at one point in the course of his ruling the judge happened to quote the paragraph in the SCP, (1993). But I think there is no one except the judge himself who knows for certain whether he subscribed to the view that the court has also the power to grant interim reliefs pending appeal to the Court of Appeal once it has refused leave to move for Judicial Review.

On his part Professor Shivji takes the opposite view. It is his contention that the court is not *functus officio* and that in appropriate circumstances the court can properly resort to its inherent jurisdiction and grant interim reliefs even where it has refused leave to apply for the orders. He has cited several authorities to support his proposition.

Professor Shivji submits that in so far as the grant of interim reliefs is concerned there is no distinction in principle between an

application for leave to move for Judicial Review and an appeal against a refusal of such leave. In each case, the says, the purpose is to preserve the *status quo* in order to ensure that if the application for the orders is granted, or if the appeal succeeds, the applicant or the appellant, as the case may be, does not obtain a mere barren success.

It should be realized that all the cases cited by Professor Shivji were civil proceedings. It seems to me that there is no judicial pronouncement on the point raised by the Attorney General in Tanzania and that, therefore, the present case is one of first impression. I have given the matter sufficient consideration and I have preferred to go with what the SCP (1993) says, namely, that if a judge at first instance has refused leave to move to Judicial Review, he is *functus officio* and has no jurisdiction to grant any form of interim relief.

I have taken the view that when a judge in the High Court refuses leave to apply for prerogative orders, he thereby throws the matter out of the court. It is true that the matter can be taken to the Court of Appeal. But where an applicant goes to the Court of Appeal, he is, as the SCP (1993) says, renewing the application for leave to move for Judicial Review, and I need not add that that court is vested with jurisdiction to deal with the matter.

In the event, I have to sustain the Attorney General's objection and strike out the Chamber Summons. It is so ordered. I have to confess that it has not been easy to come to that decision in complete certitude. Indeed, more often than not, that is what happens chen a Court is faced with a difficult case of first impression.

MOHAMED HATIBU *v.* SALIMA MSWAHILI

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Makame, Samatta and Lugakingira, JJ.A.)

CIVIL APPLICATION No. 38 OF 1998

(From the Judgment and Decree of the High Court of Tanzania at Dar es Salaam, K.yando, J, dated 13 October 1995 in (PC) Civil Appeal No. 90 of 1994)

Civil Practice and Procedure – Extension of Time – Extension of time to serve appeal on a respondent – No person available to receive service for the respondent – Whether extension of time may be granted.

Advocate – Right of Audience – Advocate claiming right to appear for relatives of a deceased respondent where nobody has been appointed administrator of the said deceased's estate – Whether the advocate has the right to appear – Rules 98 of the Tanzania Court of Appeal Rules 1979.

Civil Practice and Procedure – Service – Waiver of Service – Waiver of service of Record of Appeal where there is nobody to accept service for the respondent.

The applicant was unsuccessful in the High Court in a dispute over a house which was being administered by the respondent. The respondent died just before judgment in the District Court was delivered. After the High Court judgment, the applicant filed Civil Appeal Number 16 of 1998 in the Court of Appeal on 5 March 1998. Then he filed Civil Application Number 12 of 1998 seeking waiver of service of the Record of Appeal as no administrator of the respondent's estate had been appointed and made a party to the proceedings. When the application came up for hearing, counsel for the Applicant informed a Single Judge that ownership of the suit property was being contested by some alleged buyers. So the application was adjourned so that the alleged buyers could appear.

When the application came for hearing before another Single Judge on 2 July 1998, an advocate, one Mkondya, appeared and informed the court that he was prepared to accept service on behalf of the relatives of the deceased or the buyers. The application was then refused and counsel for the Applicant was told to make a formal application for enlargement of time. This was done. When the new application came before a Single Judge, Mr Mkondya claimed to represent a relative of the deceased, one Asha Juma Hamisi, who had never been appointed administrator of the deceased's estate and so had not been made a party to the proceedings as per rule 98 of the rules. Asha wanted to avoid any involvement in the proceedings. The single judge adjourned the application for decision by the full court under rule 55, and in the meantime enlarged the time, so that the court could deal with the matter as Reference Number 12 of 1998. Before the court, Mr Mkondya still claimed to represent the deceased's relatives and buyers.

Held: (i) In view of the unchanged position, Mr Mkondya's representations or appearance were of no relevance except, perhaps, as an *amicus curiae.*

(ii) Since there was nobody to be identified as a legal representative but Asha who dissociated herself from these proceedings, and as there was no other person to be served on the respondent's side, the court was unable to grant an extension for that purpose.

(iii) Since the applicant had properly proceeded in applying for waiver of service in the earlier application, it was quite clear that, but for Mr Mkondya's appearance, the first Single Judge would have granted the application for waiver.

(iv) The rules are silent as to whether the applicant should have made a fresh application for waiver before coming up with a reference,

Application for waiver was granted

Statutory provision referred to:

Court of Appeal Rules, rules 55 and 98

Mr. Rutabingwa, for the Applicant

Mr. Mkondya, (purportedly) for the Respondent

RULING

(Dated 01 July 1999)

LUGAKINGIRA, J.A.: This application came before us pursuant to orders by Ramadhani, J.A The applicant was the unsuccessful appellant before the High Court at Dar es Salaam in (PC) Civil Appeal Number 90 of 1994 in which judgement was delivered on 13 October 1995. At stake is a house on Plot Number 13, Block 'E', Wasaa Street, Magomeni, Dar es Salaam which was being administered by the respondent. The appeal was heard *ex parte* because the respondent died just before judgment in the District Court, and nobody appeared as the deceased's legal representative.

Subsequent to the High Court judgment, the applicant lodged a Notice of Appeal to this court and instituted Civil Appeal Number 16 of 1998 on 5 March 1998. He then immediately applied in Civil Application Number 12 of 1998 for waiver of service of the Record of Appeal.

At the hearing of the application before a single judge on 27 May 1998, learned counsel for the Applicant, Mr Rutabingwa, informed the judge (Kisanga, J.A.) that the ownership of the suit property was being contested by some alleged buyers, whereupon the judge adjourned the hearing and directed the appearance of the contestants for verification. When the application came on for hearing on 2 July 1998, Mr Humphrey Mkondya, an advocate, appeared and informed the judge that he was prepared to accept service of the Record of Appeal on behalf of the relatives of the deceased respondent or the buyers of the suit house. In view of this development, the learned judge refused the application for waiver of service and directed Mr Rutabingwa to make a formal application for enlargement of time to serve the Record of Appeal upon Mr Mkondya.

Mr Rutabingwa proceeded as directed and filed Civil Application Number 38 of 1998 which came up for hearing before Ramadhani, J.A. At the hearing it transpired that the deceased's relative whom

Mr Mkondya claimed to represent, one Asha Juma Hamisi, had never been appointed to administer the deceased's estate; had not, therefore, been made a party to the proceedings in accordance with rule 98 of the Court of Appeal Rules; but, the judge observed, "from the arguments of Mr Mkondya, Asha wants to avoid any involvement in these proceedings". He therefore remarked:

> Asha has no *locus standi* and I hesitate to say whether Mr Mkondya, as the advocate of Asha, is properly before this court unless he is taken to be *amicus curiae*.

In short, there was still nobody upon whom to serve the Record of Appeal; consequently, there was no question of whether to extend the time for doing so. But the judge was of the view that to dismiss the application would have worked injustice on the applicant as that would have meant the end of the road, when it was clear that the applicant had properly applied for waiver of service in the first place. He realized, however, that he had no jurisdiction to revisit the decision by Kisanga, J.A He therefore desisted from taking a decision on the application and adjourned it for determination by the full court citing rule 55, and invoked also rule 3(2)(b), a provision that can be called in aid for better meeting the ends of justice. In doing so, he stated thus:

> The matter before the full court is to determine this application, that is, extension of time within which to serve a copy of the Record of Appeal and a copy of the Memorandum of Appeal on Asha. If the full court overrules me, then that is the end of the matter. However, should the full court uphold me, then the matter before them would be a reference from the decision in Civil Application Number 12 of 1998. In that respect, I *suo motu* enlarge the time within which to seek reference, so that the same should not be taken to be out of time.

It is these orders that gave rise to the matter now before us, and the question is whether to grant the application for extension of time to serve a copy of the Record of Appeal to the respondent's side or whether to grant waiver of service as originally sought.

At the hearing of this matter, the position on the respondent's side had not changed. Mr Mkondya was again in attendance but nobody had been made a party to the proceedings in place of the deceased. Mr Rutabingwa pointed out this state of affairs and prayed, in the circumstances, for waiver of service. Mr Mkondya still claimed to represent the deceased's relatives and the purchasers of the suit house and said that no one had applied to administer the deceased's estate because they lived in the bush, and Asha in particular was over 65 years of age and unable to travel.

In view of the unchanged position, we see no relevance of Mr Mkondya's representations or his appearance except, perhaps, as *amicus curiae*. To-date nobody can be identified as the deceased's legal representative but Asha who was expected to apply for letters of administration and to be made a party in place of the respondent is understood to have dissociated herself from these proceedings altogether. We therefore find ourselves in the same situation as Ramadhani, J.A. and in the absence of any person to be served on the respondent's side, we are similarly unable to grant an extension of time for that purpose. In other words, the first limb of the question posed above is answered in the negative.

On the other hand, it is correct to say that the applicant had proceeded properly when he applied for waiver of service in the first place. According to rule 77(i) the court may on an *ex parte* application direct that service not be effected on any person who took no part in the proceedings in the High Court. In the instant case, no person took part in the proceedings in the High Court on the respondent's side. There is no doubt in our minds that but for Mr Mkondya's appearance and representations, Kisanga, J.A. would have granted the application for waiver of service. The rules are silent as to whether the applicant should have made a fresh application for waiver before coming up with a reference, but we think it would be onerous on him if the rules were so to provide. Since, as just stated, the previous application would most likely have been allowed, it is equitable and proper to regard this reference as having come from the decision in Civil Application

Number 12 of 1998. The provisions of rule 3(2)(a), and even paragraph (b) cited by Ramadhani, J.A., accommodates this position.

Accordingly, we allow the application and waive the requirement for service of the Record of Appeal and the Memorandum of Appeal on the respondent's side. The applicant may proceed with other steps necessary for the realization of the appeal.

SAIDI OMARI KOMBO *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM

(Mfalila, Lubuva and Samatta, JJ.A.)

CRIMINAL APPEAL No. 37 OF 1998

(Appeal from the decision of the Resident Magistrate's Court of Morogoro at Morogoro, Chilonji, PRM, Extended Jurisdiction, dated 25 April 1997, in Criminal Case No.39 of 1997).

Criminal Practice and Procedure – Conviction – Conviction on a plea of guilty – Appellant convicted on own plea of guilty of manslaughter while the facts narrated revealed accidental killing – Whether the appellant was properly convicted.

Criminal Practice and Procedure – Sentencing – Sentence for manslaughter – Appellant sentenced to seven years' imprisonment – Whether the sentence is proper.

The appellant was charged before the court of the Resident Magistrate at Morogoro (Resident Magistrate Extended Jurisdiction) with manslaughter contrary to section 195 of the Penal Code, Chapter 16. The charge and facts alleged that the appellant went to Mishungi Village to visit his relative, the deceased being his nephew while carrying his shotgun which was loaded, intended to use it against monkeys invading

his farm. On his way back, he slipped and the gun went off fatally wounding the deceased who died later in hospital. When the charge was read over the accused pleaded guilty hence the trial Resident Magistrate convicted and sentenced him to seven years imprisonment. The appellant appealed against his sentence.

Held: (i) The facts in support of the charge that were narrated in court they revealed accidental killing.

(ii) The sentence of seven years was out of all proportion to the circumstances of which the deceased's death occurred. Conviction quashed and sentence of seven years set aside.

Appeal allowed

Statutory provisions referred to:

(i) Penal Code Chapter 16, section 195

Ms. Munisi, for the Republic

REASONS FOR JUDGMENT

(Dated 5 July 1999)

MFALILA, J.A.: At the end of the hearing of this appeal on 3 December 1998, we allowed the appeal quashed the conviction for manslaughter and set aside the sentence of seven years imprisonment. We ordered the appellant's immediate release from detention. We reserved our full reasons which we now proceed to give.

In the Resident Magistrate's Court at Morogoro presided over by a Principal Resident Magistrate with Extended Jurisdiction, the appellant, Saidi Omari Kombo was charged with manslaughter contrary to section 195 of the Penal Code. The charge alleged that on the 25 October 1995, at Mishungi Village, the appellant unlawfully killed the deceased Yonari Song'unda. When the charge was read to him, the appellant is recorded to have replied:

It is true I killed the deceased.

Thereupon, a plea of guilty was entered. The prosecutor then narrated the facts to the effect that on the day in question, the appellant went to Mishungi Village to visit the deceased and other relatives. The deceased was his nephew. On this visit the appellant was carrying a shortgun which he intended to use against monkeys invading his farm. As he was leaving the deceased's homestead, the appellant slipped when he stepped on a maize cob and in the course of the efforts to regain his balance, the gun fell from his hands and it went off fatally wounding his nephew who died later in hospital. On these facts, the court convicted the appellant for manslaughter as charged and after hearing him in mitigation, sentenced him to seven years imprisonment.

The appellant appealed against this sentence complaining that the sentence was too severe in the circumstances of the case which the trial magistrate failed to take into account, such as the time he spent in custody and his old age. But it is the second ground which attracted our attention. Although the appeal was lodged against the sentence only, this ground touched on the correctness of the conviction, namely that the trial magistrate failed to give sufficient weight to the fact that the incident was purely accidental but gave undue weight to the fact that the gun was loaded. Certainly the sentence of seven years was out of all proportion to the circumstances in which the deceased's death occurred. The appellant should have been sentenced to a term resulting in his immediate release. However, after hearing the appellant on the sentence, we decided to consider more closely the complaint in the second ground that the incident leading to the death of the deceased, was purely accidental. If this is so, then, no offence was committed. When the charge was read to him, the appellant simply replied "it is true I killed him". This reply admitted only the "*actus reus*", the act of causing death, it did not admit the *"mens rea"* i.e. that the death of the deceased was caused with a guilty mind to make the killing unlawful. Indeed when the facts in support of the charge were narrated in court, they revealed accidental killing. Miss Munisi who advocated for the Republic was of the same view and therefore declined to support the appellant's conviction. In the

circumstances we used the Revisional Jurisdiction of this court and quashed the appellant's conviction, set aside the sentence of seven years and ordered his immediate release from prison unless he was otherwise lawfully held.

ABDALAHAMANI MPONZI *v.* DAUDI MLWILO

COURT OF APPEAL OF TANZANIA AT MBEYA

(Ramadhani, Samatta and Lugakingira, JJ.A.)

CIVIL REVISION No. 1 OF 1997

(From the decision of the High Court of Tanzania at Mbeya, Mwipopo, J., dated 11 October 1993)

Civil practice and procedure – Natural justice – Leave co-defendant not given opportunity to cross examine witnesses and to defend himself against the suit – A denial of justice.

Civil practice and procedure – Appeals – Leave to appeal to the Court of Appeal – Leave granted by the High Court outside prescribed period – Rule 43 (a) of the Tanzania Court of Appeal Rules 1979.

Court of Appeal – Revisional powers – Serious irregularities in the three courts below – Section 4(3) of the Appellate Jurisdiction Act 1979 as amended by Appellate Jurisdiction (Amendment) Act 1993.

The appellant had successfully sued the respondent and six others in the Rujewa Primary Court. One of the six was Stephen Mkomole who was deaf. The defendants, being aggrieved, lodged an appeal against that decision in the District Court. Having realized that they were out of time the defendants filed an application for extension of time but there was no affidavit filed in support of the application. When the matter came up on 7 August 1992 the present respondent asked that the matter be heard *de*

novo because of what he termed confusion and irregularities in the case file. The respondent objected saying he was not responsible for the confusion. Instead of ruling on whether or not to start the case *de novo* the District Magistrate considered the merits of the application for Leave to Appeal out of time but then proceeded to dismiss the purported appeal. The respondent was aggrieved by that decision but did not act in time so he filed an application in the High Court seeking leave to lodge an appeal out of time. In his affidavit the respondent asked the High Court to exercise its revisional powers to revise the ruling of the District Court and restore the appeal which he described as having overwhelming chances of success if heard on merit. When the matter came up for hearing the learned judge decided to hear it *ex parte* on the ground that the present respondent was not in a position to argue the legal issues involved. Then without making any reference to the application for Leave to Appeal out of time Mwipopo, J., relying on the Regulation of Land Tenure (Established Villages) Act 1992 held that the matter fell under the exclusive jurisdiction of the Customary Land Tribunal established under the Customary Leasehold (Enfranchisement) Act, 1968 and quashed the decisions of the courts below ordering that the applicant and co-defendants revert to their *status quo* prior to the suit. The application for Leave to Appeal out of time is yet to be heard

The appellant was aggrieved by the revisional order of the learned judge and gave the necessary Notice of Appeal and lodged an application for Leave to Appeal

Held: (i) Where one of the defendants is deaf, as was Stephen Mkomole, the Primary Court was under a duty to secure the services of a person who was capable of communicating with him; the failure to do that denied him the opportunity to cross examine the plaintiff and his witnesses and to defend himself against the suit and there was, therefore, a denial of justice.

(ii) The application before the learned judge was for Leave to Appeal out of time and not for revision.

(iii) The learned judge should have given the respondent an opportunity to be heard on the second application for Leave to Appeal instead of hearing the application *ex parte*.

Decisions of the lower courts quashed

Statutory provisions referred to:

(i) Tanzania Court of Appeal Rules 1979, rule 43(a)

(ii) Appellate Jurisdiction Act 1979, section 4(3)

(iii) Land tenure (Established Villages) Act 1992

(iv) Customary Leaseholds (Enfranchisement) Act 1968

Mr Maira, for the Appellant

Mr Mbise, for the Respondent

REVISIONAL ORDER

(Dated 06 July 1999)

SAMATTA, J.A.: On 4 June 1999, having heard arguments from counsel, Mr Maira, for the appellant, and Mr Mbise, for the respondent, we made an order striking out the appeal in this case on the ground that it was incompetent in law, the same having been lodged before this court with leave purportedly granted by the High Court outside the period of fourteen days prescribed by rule 43(a) of the Tanzania Court of Appeal Rules1979. Since we were of the opinion that the record of the purported appeal *prima facie* revealed serious irregularities in the three courts below, we decided, in the interests of justice, to invoke our Revisional Jurisdiction under section 4(3) of the Appellate Jurisdiction Act,1979, ("the Act") as amended by the Appellate Jurisdiction (Amendment) Act 1993, and examine the record of the proceedings conducted in the High Court for the purpose of satisfying ourselves as to the legality, correctness or propriety of the decisions made thereon.

The background to the matter may, we think, be stated as follows. The appellant, Abdalahamani Mponzi, successfully sued the respondent, Daudi Mlwilo, and six others in the Primary Court of Rujewa in Mbeya District. One of the defendants, Stephen Mkomole, was a deaf person. The defendants were aggrieved by the court's decision.

They lodged an appeal against it in the District Court of Mbeya. But having realized that they were late to lodge the appeal, they filed an application for Leave to Appeal out of time. The application was not supported by an affidavit. The purported application came up for hearing on 7 August 1992. On that date the applicant (the present respondent) made the following prayer to the court: "Because there had been a confusion in the case file; irregularities done (*sic*). I pray [that] this case start *de novo*". The respondent responded to that prayer; he said: "I should not allow the case start *de novo* as the confusion was not done by me". Two weeks later the learned District Magistrate delivered his ruling. Instead of dealing with the odd prayer for "the case to start *de novo*", he considered the merits of the application for Leave to Appeal out of time. At the end of his ruling, however, he made an order "dismissing" the purported appeal. The respondent was aggrieved by that decision but he did not act with enough speed. The time for lodging an appeal having expired, on 2 February 1993, he lodged an application (Miscellaneous Civil Application Number 8 of 1993) in the High Court seeking leave to lodge an appeal out of time. In the supporting affidavit, containing twenty paragraphs, he gave reasons for the delay. In the last paragraph, however, he purported to introduce a prayer he did not include in the Chamber Summons. The paragraph read as follows: "That I pray this Honourable Court [exercise] its revisional power [to] review the Ruling of the District Court and restore my appeal for hearing as it has overwhelming chances of success if heard on merits". The High Court (Mwipopo, J) treated the application as one for revision and not one for leave for extension of time within which to lodge an appeal. The learned judge heard the application, and on 11 October 1993, delivered his ruling. Relying on certain provisions of the Regulation of Land Tenure (Established Villages) Act, 1992, he held that the trial court had no jurisdiction to entertain the suit, the same falling under the exclusive jurisdiction of the Customary Land Tribunal established or deemed to be established under the Customary Leaseholds (Enfranchisement) Act 1968. Having so held, the learned judge quashed the decision of the Primary Court as well as that of the District Court and ordered that the applicant

and his co-defendants, some of whom by this time had been imprisoned for contempt of court, "revert to their *status quo* prior to [the] suit". In his ruling the learned judge made no reference whatsoever to the application for Leave to Appeal out of time. That application is yet to be heard.

The appellant was aggrieved by the learned judge's revisional order. He gave the required Notice of Appeal and lodged an application for Leave to Appeal. The application was fixed for hearing on 18 May 1995. The respondent, who was not served with the notice of hearing, was not present in court on that day. The learned judge nevertheless heard the application, *ex parte*. In his ruling, he gave a reason why he had decided to do so. Right at the beginning of the ruling, he said:

> Since the legal issues involved would hardly be technically argued by the present respondent I allowed the application to be heard in his absence.

The application was *granted*. Having obtained the leave sought, the appellant lodged the appeal which on 4 June 1999, we struck out.

We entertain no doubt that the proceedings in the High Court were not conducted in accordance with the law. There are two reasons why we hold that opinion. First, the learned judge was not entitled in law to convert the application for Leave to Appeal into one for revision. Secondly, the learned judge strayed into a serious error in deciding, as he did, that, because the application before him involved technicalities, which the respondent could not understand, he could in law hear the application *ex parte*. If there is one principle better settled and more revered than any other in the administration of justice it is that no one should be condemned unheard. The fact that a litigant is a layman and therefore likely not to be conversant with technical legal issues before the court has never been regarded by the courts in this country as constituting a warrant in law for depriving the litigant his right to be heard. That right is so fundamental that deprivation of it makes the proceedings concerned incurably defective.

Two serious irregularities occurred in the Primary Court. First, the court did not give the third defendant, Stephen Mkomole, opportunity to cross-examine the plaintiff and his witnesses. Secondly, the defendant was not given opportunity to testify on his own behalf. The fact that the defendant was a deaf person did not justify those omissions. Efforts ought to have made to secure the services of a person who was capable of communicating with the defendant. That defendant was in law as much entitled to defend himself as the other defendants were. The District Court, on its part, purported to dismiss an appeal which in law was not yet filed before the court. By so doing, it left the application for Leave to Appeal out of time undetermined. This, in our opinion, was a serious error, tool. The learned judge should have discovered all those three errors and made appropriate orders.

Bearing in mind the nature of the serious errors we have pointed out, we are of the settled opinion that the decisions of the High Court and of the two courts below cannot be left to stand. In the interests of justice, they must be quashed. Accordingly, exercising our Revisional Jurisdiction under section 4(2) of the Act as amended, we quash those decisions and any consequential orders. The appellant is at liberty in law to institute fresh proceedings, if he so wishes, before a competent forum.

TANZANIA ELECTRIC SUPPLY COMPANY (TANESCO) *v.* INDEPENDENT POWER TANZANIA LTD (IPTL) AND TWO OTHERS

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Samatta, J.A.)

CONSOLIDATED CIVIL APPLICATION No. 19 AND No. 27 OF 1999

(From the Ruling and Order of the High Court of Tanzania at Dar es Salaam, Msumi, J.K., dated 5 March 1999 in Miscellaneous Civil Application No. 61 of 1999)

Civil Practice and Procedure – Execution – Stay of execution of High Court order – Power of Court of Appeal – Rule 9(2)(b) of the Court of Appeal Rules 1979.

Civil Practice and Procedure – Jurisdiction – Jurisdiction of the court – Whether parties may, by agreement, confer jurisdiction on a court.

Civil Practice and Procedure – Discretion – Exercise of discretion – Principles underlying exercise of such discretion – Order XL11, rule 2, sections 68(e) and 95 of the Civil Procedure Code 1966 and section 2(2) of the Judicature and Application of Laws Ordinance.

Civil Practice and Procedure – Orders – Preservatory measures – Whether may be made in the absence of a suit.

Civil Practice and Procedure – Balance of convenience – Guiding principles.

Civil Practice and Procedure – Preservatory measures – Whether judgment for monetary payments is a preservatory measure.

The respondent entered into a Power Purchase Agreement (PPA) with one of the applicants, Tanzania Electric Supply Company Ltd. (TANESCO), whereby the respondent was to sell to TANESCO electric power generated by the respondent at the respondent's Tegeta Plant in Dar es Salaam. Initially, the agreed purchase price

was to be USD 4.2 million. Less than a month later, the parties signed an Implementation Agreement (IA) wherein the Government of Tanzania guaranteed, *inter alia*, performance of the payment obligations of TANESCO to the respondent. A day later, the parties signed Addendum number 1 of the PPA in which they agreed that before commencement of operations at the Plant, the Reference Tariff would be "adjusted uPW.ards or downwards depending on the effect changes that will have taken place in any or all of the underlying assumptions stated in the PPA." Using loans amounting to USD 105.0 million provided by Mechmar and USD 45.0 million secured from two Malaysian Banks by Mechmar and VIPEM (the owners of the respondent company), the respondent told TANESCO that the total cost of the plant without Gas Conversion Equipment would be USD. 150.0 million, on the basis of which the respondent would charge TANESCO monthly payments of USD 3.623 million as capacity payments. TANESCO disputed that figure. On or about April 9 1998, TANESCO issued a Notice of Default under the PPA alleging that the respondent had defaulted on its obligations to supply and install slow speed diesel generating sets. The respondent rejected the Notice. The applicants refused to honour the suggested Initial Operation Date of 31 August 1998. On 25 November 1998, TANESCO filed a request for arbitration against the respondent before the International Centre for Settlement of Investment Disputes as agreed under the PPA. Faced with threats from their creditors and lenders, five days later, the respondent filed before the High Court Misc. Civil Application Number 61 of 1998 in which they sought the following reliefs:

(1) a declaration and order that the Initial Operations Date for the power plant be deemed to have occurred on 31 August and 15 September, respectively;

(2) an order requiring TANESCO "to pay in accordance with the provisions of the PPA interim monthly capacity payment of USD. 3.623 million to the applicants with effect from 15 September 1998 until when the tariff dispute between the respondent and the applicants will have been finally and conclusively resolved;"

(3) an order directing TANESCO to pay Energy Charges based on the provisions of the PPA;

(4) an order directing TANESCO, the Permanent Secretary Ministry of Energy and Minerals, and the Permanent Secretary Ministry of

Finance to discharge their respective obligations stipulated in the PPA and IA in consequences of the orders granted under paragraphs 1, 2 and 3 of the Chamber Summons;

(5) a "Declaratory Order" issued against TANESCO and the Permanent Secretary Ministry of Energy and Minerals "restraining them from employing delaying tactics through frivolous and inequitable interpretations of the terms of the PPA", the IA and the Generation Licence;

(6) an order that "the Interim Mandatory Orders shall subsist until when the tariff dispute is resolved and that upon resolution of the dispute recalculations shall be made from 15 September 1998 till the date when the dispute is resolved using the awarded tariff rates and in case the result will be the applicants were overpaid during the interim period such over payment shall be recovered from future capacity payments due to the applicants and vice versa";

(7) that costs of the application be borne by the respondents; and

(8) any other additional interim reliefs that the court may deem just and equitable to grant.

The application in the High Court was brought under Order XLII, rule 2 and sections 68(e) and 95 of the Civil Procedure Code and section 2(2) of the Judicature and Application of Laws Ordinance. The applicants (then respondents) petitioned for stay of the proceedings under section 6 of the Arbitration Ordinance. The respondent/applicants opposed the petitions, arguing that they were bad in law because the petitioners had taken steps after they asked for an adjournment which had been refused. The learned Judge Kiongozi found the argument valid in law. On 3 March 1999, he granted all the reliefs sought in the Chamber Summons except the fifth relief.

The Applicant filed two applications which were consolidated, for stay of the enforcement of the order of the High Court pending the determination of appeals from the said order the applicant intended to lodge to the Court of Appeal.

Held: (i) Rules 1 and 2 of Order XLII relate to applications for review of judgments and they have nothing to do with applications for "interim relief".

(ii) Sections 68 and 69 of the Civil Procedure Code, which cover Supplemental Proceedings, can only be invoked where there is a suit before the court. Section 68 does no more than summarise the general powers of courts in regard to interlocutory proceedings, the details of which are contained in the First Schedule of the Code. Those sections do not confer upon the court the power to enter a monetary judgment in favour of an applicant. Applications made under the section are intended to assist the applicant in the prosecution of his case, whether before or after final judgment, or to enable the court to protect the subject-matter of the primary proceeding before the rights of the parties are finally determined.

(iii) The right conferred by section 69 of the Code upon a person who has not instituted a suit to apply for what in effect is a monetary judgment is an exception to the general rule that a claim for a monetary judgment must be made by way of suit; but in this case the respondent company's application in the High Court could not be made under section 68(e) of the Code.

(iv) Section 95 of the Code does not confer any jurisdiction on the High Court or courts subordinate thereto. What it was intended to do, and does, is to save inherent powers of those courts. The section is no doubt a powerful provision, but it is not a panacea for all ills in the administration of justice in civil cases. The power granted by this section is intended to supplement the other provisions of the Code and not to evade or ignore them or to invent a new procedure according to individual sentiment. So section 95 of the Code, *prima facie,* constituted no authority for the High Court to entertain the respondent company's application.

(v) *Prima facie* the High Court had no jurisdiction to entertain the respondent company's application for a monetary judgment.

(vi) The Civil Procedure Code cannot be said to be exhaustive. It is legitimate, therefore, to apply, under section 2(2) of the Judicature and Application of Laws Ordinance, relevant rules of Common Law and statutes of general application in force in England on the twenty-second day of July, 1920, where the Code is silent. So the High Court has jurisdiction in a proper case to grant an "interim injunction order" pending institution of a suit or in circumstances not covered by Order XXXVII of the Code. But decisions on this point do not hold that a relief in the form of monetary judgment can be granted where there is no suit or before a suit is determined.

(vii) Under the Common Law a court has no power to give a judgment to an applicant who has not instituted a suit. *Prima facie,* the reliefs which the High Court purported to grant the respondent company in this case were not "preservatory measures" because the Court's Order required TANESCO to make payments to the respondent company. A decision of a Court of Law cannot be a preservatory order by merely tying that label to it.

(viii) In Tanzania it is now well settled that the principal factors a court should consider whether or not to grant a stay of execution are the following:

(a) Whether the appeal has, *prima facie,* a likelihood of success.

(b) Whether its refusal is likely to cause substantial and irreparable injury to the applicant.

(c) Balance of convenience.

(ix) There can be no doubt, on the evidence, that whoever would lose in that application stood to suffer substantial loss and irreparable injury. With regard to the balance of convenience, it should be observed that the scales on justice, in the opinion of the court, were slightly tilted towards the applicants. The applicants' intended appeals had prospects of success and so both justice and common sense called for the granting of the two applications for stay of execution.

Order accordingly.

Cases referred to:

(1) *Linotype – Hell v. Baker,* [1993] 1 W.L.R. 321

(2) *Winchester Cigarette Machinery Ltd, v. Payne (Number 2),* The Times, 15 December 1993

(3) *Camdex v. Bank of Zambia,* [1997] 1 All ER 728

(4) *Tanzania Cotton Marketing Board v. Coget Cotton Company SA* Miscellaneous Civil Cause Number 52 of 1996 (unreported)

(5) *Nicholas Mere Lekule v. Independent Power and Another,* Misc.Civil Cause Number 117 of 1996 (unreported)

(6) *Copee Lavalin SANV v. Ken Ren Chemicals and Fertilizers Ltd.* (in liq.) [1994] 2 All ER 449

(7) *Charrington v. Simons and Co. Ltd;* [1970]1 All ER 730

(8) *Rex v. Wilkes* (1770) 4 Burr. 2257

(9) *Povey v. Povey* [1971] 2 W.L.R. 381

(10) *Tanganyika Game Fishing and Photographic Ltd. v. The Director of Wildlife and another*, Misc. Civil Cause Number 42 of 1998, (unreported)

(11) *Metropolitan Tunnel and Public Works Ltd. v. London Electric Railway Co.* [1926] Ch 371

(12) *Resort Condominium International Inc. v. Bolwell and another* 118 ALR 655

(13) *Farquharson v. Morgan* [1894] 1 QB 552

(14) *Essex County Council v. Essex Incorporated Congressional Church Union* [1963] 2 W.L.R. 802

(15) *Allalkha v. Agakhan,* [1969] EA 613

(16) *Royal Bank of Scotland Ltd. v. Citrusdal Investments Ltd.*, [1971] 1 W.L.R. 1469

Statutory provisions referred to:

(i) Arbitration Ordinance Chapter 15, section 6

(ii) Civil Procedure Code 1966, Order XLII, rule 2, sections 68(e), 95, 68 and 69, Order XXXVII, rule 1(b), Part VI

(iii) Convention, article 26

(iv) Court of Appeal Rules 1979, rules 9(2)(b) and 76(1)

(v) Judicature and Application of Laws Ordinance, section 2(2)

Mr. Mkono, Dr. Kapinga, Dr. Mwaikusa and *Mr. Mwidunda,* for the Applicants

Dr. Tenga and *Miss Hawa Bayona,* for the Respondent

RULING

(Dated 08 July 1999)

SAMATTA, J.A.: I have before me two applications, which have been consolidated, brought under rule 9(2)(b) of the Tanzania Court of Appeal Rules1979 (hereinafter referred to as "the rules"), for stay of the enforcement of the order made by the High Court (Msumi, J.K.) in Misc. Civil Application Number 61 of 1998, pending the determination of appeals from the said order the applicants intend to lodge before this court, notices (under rule 76(1) of the rules) of which have already been lodged. Counsel for all the parties have made their submissions in writing.

The salient facts which constitute the background to the applications can, I think, be stated as shortly as is consistent with intelligibility. The respondent company, Independent Power Tanzania Ltd., a limited liability company registered under the Companies Ordinance, is a joint venture company between Mechmar Corporation Bhd. of Malaysia (MECHMAR) and VIP Engineering and Marketing Limited (VIPEM) established for the purpose of building, owning and operating a 100 MW Power Plant at Tegeta in Dar es Salaam. On 26 May 1995, the company entered into a Power Purchase Agreement (the PPA) with one of the applicants, Tanzania Electric Supply Company, hereinafter referred to by its acronym, TANESCO, whereby the former agreed to sell and make available to the latter company, which agreed to purchase from and after the commercial operation date, electric power generated at the Tegeta plant. Initially, it was agreed between the parties that the monthly reference tariff of purchase price would be USD 4.2 million. On 8 June 1995, the parties signed an Implementation Agreement (the IA) wherein the Government of Tanzania guaranteed, *inter alia*, performance of the payments obligations of TANESCO to the respondent company. A day later, the parties signed Addendum Number 1 of the PPA in which they agreed that before the commencement of operations at the plant the Reference Tariff would be "adjusted

upwards or downwards depending on the effect of changes that will have taken place on any or all of the underlying assumptions stated in the [PPA]". Utilising the loans amounting to USD 105 million secured from two Malaysian banks and USD 45.0 million provided by MECHMAR and VIPEM, the respondent company caused the design and construction of the power plant at Tegeta. Following that step, it submitted to TANESCO documents which, it asserted, demonstrated that the total capital cost of the project without gas conversion equipment amounted to USD 150.0 million. The company informed TANESCO that, on the basis of that capital cost, the monthly capacity payments would be USD 3.623 million. TANESCO was not prepared to accept that figure. On or about 9 April 1998, it issued a Notice of Default under the PPA alleging that the respondent company had defaulted on its obligations to supply and install slow speed diesel generating sets. The respondent company rejected the Notice. Discussions between the parties could not resolve the dispute. The applicants refused to honour the suggested Initial Operation Date (IOD) of 31 August 1998. On 25 November TANESCO filed a request for arbitration against the respondent company before the International Centre for the Settlement of Investment Disputes (the ICSID) under the relevant provisions of the PPA. Faced with threats from its lenders and creditors to hold it in default, five days later the respondent company filed before the High Court Misc. Civil Application Number 61 of 1998 in which it sought the following reliefs:

(1) a declaration and order that the Initial Operations Date for the Tegeta power plant be deemed to have occurred on August 31, 1998, and 15 September 1998, respectively;

(2) an order requiring TANESCO "to pay in accordance with the provisions of the Power Purchase Agreement interim monthly capacity payments of USD 3.623 million to the Applicants with effect from 15 September 1998, until when the tariff dispute between the Applicant and the respondents shall be finally and conclusively resolved";

(3) an order directing TANESCO to pay Energy Charges based on the provisions of the PPA;

(4) an order directing TANESCO, the Permanent Secretary of the Ministry of Energy and Minerals, and the Permanent Secretary of the Ministry of Finance to discharge their respective obligations stipulated in the PPA and the IA in consequences of the orders granted under paragraphs 1, 2 and 3 of the Chamber Summons;

(5) a "Declaratory Order" issued against TANESCO and the Permanent Secretary of the Ministry of Energy and Minerals "restraining them from employing delaying tactics through frivolous and unequitable interpretations of the terms of the Power Purchase Agreement, the Implementation Agreement and the Generation Licence";

(6) an order that "the Interim Mandatory Orders shall subsist until when the tariff dispute is resolved and that upon resolution of the dispute recalculations shall be made from 15 September 1998, till the date when the dispute is resolved using the awarded tariff rates and in case the result will be that the Applicants were overpaid during the interim period such over payments shall be recovered from future monthly capacity payments due to the Applicants and vice versa";

(7) the costs of the application be borne by the respondents; and

(8) any other additional interm reliefs that the court may deem just and equitable to grant.

This application was brought under Order XLII, rule 2 and sections 68(e) and 95 of the Civil Procedure Code (hereinafter referred to as "the Code") and section 2(2) of the Judicature and Application of Laws Ordinance (the Ordinance). Following a short ruling on an application for adjournment, which was dismissed, the applicants (the then respondents) filed petitions praying for stay of the proceedings under section 6 of the Arbitration Ordinance, Chapter 15. That section reads:

> 6. Where any party to a submission to which this Part applies, or any person claiming under him, commences any legal proceedings against any other party to the submission or of any person claiming under him in respect of any matter agreed to be referred, any party to such legal proceedings may, at any time after appearance, and before filing a written statement, or taking any other step in the proceedings, apply to the court to stay the proceedings; and the court, if satisfied that there is no sufficient reason why the matter should not be referred in accordance with the submission, and that the applicant was, at the time when the proceedings were commenced, and still remains, ready and willing to do all things necessary to the proper conduct of the arbitration, may make an order staying the proceedings.

The respondent company opposed the petitions, arguing that they were bad in law because the applicants could not have the court's powers under the provisions of s. 6 of the Arbitration Ordinance exercised in their favour when, by applying for adjournment so that they could file applications for stay of execution, they had taken steps in the proceedings. The learned Jaji Kiongozi found this argument valid in law. On 3 March 1999, after the parties' counsel had filed their written submissions, he gave his ruling on the merits of the application. He granted all reliefs sought except the fifth relief, to wit, an order restraining TANESCO and the Permanent Secretary of the Ministry of Energy and Minerals from "employing tactics through frivolous and unequitable interpretations of the terms of the Power Purchase Agreement, the Implementation Agreement and the Generating Licence". It is this decision which the applicants intend to appeal against before this court. It is common ground that the respondent company filed no suit in the High Court in respect of the dispute between it and the applicants.

On behalf of TANESCO, Mr Mkono, learned advocate, who has been assisted by Mr Kapinga and Mr Mwaikusa, has submitted, among other things, the following: first, neither under Order XXXVII, rule 1(b) of the code, which permits a party to a suit to seek from the court conservatory measures, nor under any provision of other laws is a litigant before a court in this country entitled in law to be granted a "final judgement" before the dispute before the court is determined. According to the learned advocate, the proceedings instituted before the High Court in this case were not preservatory proceedings. By

instituting those proceedings the respondent company purported to avoid instituting substantive proceedings. Secondly, having consented to the arbitration before the ICSID, the respondent company, in terms of article 26 of the Convention establishing the Centre, forfeited its right to seek a relief or reliefs in another forum. Thirdly, relying on *Linotype – Hell Ltd. v. Baker* (1), *Winchester Cigarette Machinery Ltd. v. Payne (Number 2),* (2), *Camdex v. Bank of Zambia* (3) and *Tanzania Cotton Marketing Board v. Coget Cotton Marketing Board v. Coget Cotton Company SS,* (4), the balance of convenience in this case swings in TANESCO's favour because, as asserted in the supporting affidavit of Mr John Killar Madaha, the Deputy Managing Director (Corporate Services) of TANESCO, if the order made by the learned JudgeKiongozi is enforced, as prayed, by the end of May TANESCO will be running a deficit of TZS. 6.09 billion, with the result that an extraordinary economic harm would befall upon the country because the power company would be rendered financially incapable of generating electricity and therefore of buying electricity even that produced by the respondent company. Granting a stay of execution in *Lino-type Hell Ltd's case* (1), Staughton, LJ, said, *inter alia*:

> It seems to me that if a defendant can say that without a stay of execution he will be ruined and that he has an appeal which has some prospect of success that is a legitimate ground for granting a stay of execution.

Mr Mkono has strenuously urged me to hold that the balance of advantage lies in "not visiting upon the population of Tanzania grave and severe hardship which would inevitably follow if the order of Msumi, JK is now enforced".

Mr Mwidunda, counsel for the Applicants in Civil Application Number 27 of 1999, has essentially made submissions similar to those made by Mr Mkono. Submitting on the kind of harm that would allegedly be inflicted on the country if the applications for stay of execution are not granted, the learned State Attorney drew my attention to what Mr Madaha deposed in his affidavit on the point, and then said: "if the payment of the amounts by TANESCO to the respondent

as ordered by the High Court Order is not stayed, the effects on TANESCO and as well as the overall electricity industry in Tanzania will be irreparably disastrous. All the industrial and economic sectors production will stop and public and social services including hospitals will be paralysed ... The exact magnitude of loss to be suffered is incalculable as it will affect each and every person in Tanzania including the respondent as there will be no production and transmission of electricity". The learned State Attorney has drawn my attention to the following passage in Ralph Gibson, LJ's judgment in *Winchester Cigarette Machinery's* case (2):

> In recent cases it has been said that the practice of the court has moved on from the principle that the only ground for a stay was the reasonable probability that damages and costs would not be repaid if the appeal succeeded. Those cases held that the approach of the court now was a matter of common sense and balance of advantage.

Mr Tenga, learned advocate, who has been assisted by Miss Hawa Bayona, has, on behalf of the respondent company, strenuously opposed the applications, which he has described as "a mere device to abuse the due process of the law". Relying on the judgement of Kaji, J, in *Nicholas Mere Lekule v. (1) Independent Power (T) Ltd. (2) The Attorney General,* (5) and the decision of this court (Lubuva, J.A.) in Civil Application Number 70 of 1996 between the same parties (UR), the learned advocate has contended that in this country a court can, without a pending suit, entertain an application for a mandatory injunction or a similar relief. According to the learned advocate, the order which the learned Judge Kiongozi made in the respondent's favour is an interim or conservatory relief and not, as has been described by the applicants' counsel, a final interlocutory judgement. Mr Tenga also submitted, on this aspect of the case, that the Common Law confers on a Court of Law jurisdiction to grant an interim mandatory injunction. The learned advocate cited *Copee Lavalin S ANV v. Ken Ren Chemicals and Fertilizers Ltd.* (in liq.) (6) in support of that submission. According to Mr Tenga, the intended appeals have no prospects of success.

On the issue of balance of convenience, Mr Tenga has submitted that it is impossible to reconcile the assertion that if the learned Judge Kiongozi's order is not stayed, TANESCO would suffer irreparable loss which cannot be atoned by way of monetary compensation, with the fact that the PPA and the IA between the parties are valid and binding upon them. The learned advocate has further submitted that the continual wasting of the available electricity of the respondent company when, it is in any case bound to be paid for whether or not it is used, either by way of an enhanced monthly capacity tariff or higher total capacity payments is what could lead to irreparable loss. According to the learned advocate, if no interim monthly capacity payments are made, the respondent company will fail to meet its bank interest and debt repayments, which may cause the lenders taking over the power plant at Tegeta, a step which will render arbitration nugatory. Concluding his submission on this point, Mr Tenga drew my attention to the following observation in the judgment of Buckley, J. in *Charrington v. Simons and Co. Ltd.* (7), at page 730:

> A plaintiff should not, of course be deprived of relief to which he is justly entitled merely because it will be disadvantageous to the defendant.

Mr Tenga has urged me to hold that common sense calls for the dismissal of the applications now before me because, as he put it, the learned Judge Kiongozi merely ordered the parties to perform according to the agreements they had entered into until the final arbitration award. Drawing my attention to the "fact" that the capital costs have arisen from USD 150.0 million to USD 171.0 million as at 30 June 1999, and they will continue to build up until adequate interim capacity payments are made, the learned advocate urged me to find that "it will actually be saving the Applicants and indeed the whole country from further unnecessary costs by refusing to grant the Stay of Execution than by granting it because if there is delay in starting to make the interim payments there will be an inevitable increase in the Tariff, the increase that will mean paying for power that was not used".

Submitting specifically on the application of the two Permanent Secretaries and the Attorney General, Mr Tenga has contended that that application should be summarily dismissed because, as he has put it, having indicated to the High Court that they did not object to guaranteeing the interim payments that are due to the respondent from TANESCO, those applicants have no cause for appeal.

Before I proceed to deal with the merits or otherwise of the rival arguments I have summarized above, I wish to make two observations. First, there were other arguments addressed to me in the two applications, but, for reasons which, I hope, will be apparent in this ruling, I do not find it necessary to deal with them. Secondly, no less than 50 authorities have been cited in argument in the applications. Although I have examined all of them, in this ruling I will make specific reference to only some of them. With those two observations made, I proceed now to consider the merits or otherwise of the applications.

It cannot be doubted that the power to order a stay of execution which is conferred upon this court by rule 9(2)(b) of the rules is a discretionary power. A discretion must be exercised according to common sense and according to justice. As was observed over two hundred years ago by Lord Mansfield in *Rex v. Wilkes* (8) (cited by Sir Jocelyn, P, in *Povey v. Povey* (9) at page 387):

> Discretion, when applied to a court of justice means sound discretion guided by law. It must be governed by rule, not by humour: it must not be arbitrary and fanciful; but legal and regular.

In this country, it is now well established, I think, that the following are the principal factors a court should consider whether or not to grant a stay of execution:

(1) Whether the appeal has, *prima facie*, a likelihood of success.

(2) Whether its refusal is likely to cause substantial and irreparable injury to the applicant.

(3) Balance of convenience.

The first question I ask myself and which I shall endeavour to answer is whether the provisions of law upon which the respondent company purported to base its application before the High Court, read together or individually, *prima facie* conferred jurisdiction on the court to entertain that application. As will be recalled, those provisions were Order XLII, rule 2 and sections 68(e) and 95 of the code, and section 2(2) of the ordinance. I will start with Order XLII, rule 2.

Order XLII, rule 2.

This rule must be read together with rule 1 of the same Order. The two rules read as follows:

> 1(1) Any person considering himself aggrieved:
>
> (a) by a decree or order from which an appeal is allowed, but from which no appeal has been preferred;
>
> (b) by a decree or order from which no appeal is allowed,
>
> and who, from the discovery of new and important matter or evidence which, after the exercise of due diligence, was not within his knowledge or could not be produced by him at the time when the decree was passed or order made, or on account of some mistake or error apparent on the face of the record, or for any other sufficient reason, desires to obtain a review of the decree passed or order made against him, may apply for a review of judgment to the court which passed the decree or made the order.
>
> (2) A party who is not appealing from a decree or order may apply for a review of judgment notwithstanding the pendency of an appeal by some other party except where the ground of such appeal is common to the applicant and the appellant, or when being respondent, he can present to the Appellate Court the case on which he applies for the review.
>
> 2. An application for review of a decree or order of a court, other than the discovery of such new and important matter or evidence as is referred in rule 1 or the existence of a clerical or arithmetical mistake or error apparent on the face of the decree, shall be made only to the magistrate who passed the decree or made the order sought to be reviewed: but any such application may if the magistrate who passed the decree or made the order has ordered notice to issue under rule 4, sub-rule (2), proviso (a), be disposed of by his successor.

Plainly, these two rules were utterly irrelevant to the application. Relating to applications for review of judgments, as they do, those rules have nothing to do with applications for "interim reliefs". Having said that, I turn now to a consideration of the next provision – Section 68(e).

Section 68(e)

For reasons which should be clear shortly, I propose to quote not only the whole of that section, but also the section immediately following it, namely, section 69. Those sections read:

> 68. In order to prevent the ends of justice from being defeated the court may, subject to any rules in that behalf:
>
> (a) issue a warrant to arrest the defendant and bring him before the court to show cause why he should not give security for his appearance, and if he fails to comply with any order for security commit him as a civil prisoner;
>
> (b) direct the defendant to furnish security to produce any property belonging to him and to place the same at the disposal of the court or order the attachment of any property;
>
> (c) grant a temporary injunction and in case of disobedience commit the person guilty thereof as a civil prisoner and order that his property be attached and sold;
>
> (d) appoint a receiver of any property and enforce the performance of his duties by attaching and selling his property;
>
> (e) make such other interlocutory orders as may appear to the court to be just and convenient.

69(1) Where in any suit in which an arrest or attachment has been effected or a temporary injunction granted under the last preceeding section:

(a) it appears to the court that such arrest, attachment or injunction was applied for on insufficient grounds, or

(b) the suit of the plaintiff fails and it appears to the court that there was no reasonable or probable ground for instituting the same,

The defendant may apply to the court, and the court may, upon such application, award against the plaintiff by its order such amount, not exceeding two thousand shillings, as it deems a reasonable compensation to the defendant for the expense of injury caused to him.

(2) An order determining any such application shall bar any suit for compensation in respect of such arrest attachment or injunction. [The emphasis is supplied].

These two sections fall under Part VI of the Code, which is headed Supplemental Proceedings. The word "supplemental" is defined in **Black's Law Dictionary**, abridged (6 ed), at page 1003, as "that which is added to a thing or act to complete it". In my opinion, the heading suggests that the powers conferred upon the court by the two sections can be invoked only where there is a suit before it. Section 68 does no more than summarise the general powers of courts in regard to interlocutory proceedings, the details of which are set out in the First Schedule to the Code. I am unable to read anything in that section as conferring upon the court the power to enter a monetary judgment in favour of an applicant. Applications made under the section are intended to assist the applicant in the prosecution of his case, whether before or after final judgment, or to enable the court to protect the subject-matter of the primary proceeding before the rights of the parties are finally determined. It should be distinctly understood that the right conferred by section 69 upon a person who has not instituted a suit to apply for what in effect is a monetary judgment is an exception to the general rule that a claim for monetary judgment must be made by way of a suit. I have sufficiently demonstrated,

I hope, that *prima facie* the respondent company's application in the High Court could not in law be made under section 68(c) of the Code. I proceed, therefore, to a consideration of the application of section 95.

Section 95

The section provides:

95. Nothing in this Code shall be deemed to limit or otherwise affect the inherent power of the court to make such orders as may be necessary for the ends of justice or to prevent abuse of the process of the court.

As I understand it, this section does not confer any jurisdiction on the High Court or courts subordinate thereto. What it was intended to do and does, is to save inherent powers of those courts. The section is undoubtedly a very useful provision, but it is not a panacea for all ills in the administration of justice in civil cases. Commenting on section 151 of the Indian Code of Civil Procedure which is in *pari material* with that section, the learned authors of **The Law of Civil Procedure**, (6 ed)., observe, at page 324, as follows:

The power is intended to supplement the other provisions of the Code and not to evade or ignore them or to invent a new procedure according to individual sentiment.

Prima facie, section 95 constituted no authority for the High Court to entertain the respondent company's application. That opinion brings me face to face with the question whether, *prima facie*, section 2(2) of the ordinance confers jurisdiction on courts to entertain the kind of application which the respondent company filed before the High Court.

Section 2(2) of the ordinance

The sub-section reads as follows:

(2) Subject to the provisions of this Ordinance, the jurisdiction of the High Court shall be exercised in conformity with the written laws

which are in force in Tanganyika on the date on which this Ordinance comes into operation (including laws applied by this Ordinance) or which may hereafter be applied or enacted, and, subject thereto and so far as the same shall not extend or apply, shall be exercised in conformity with the substance of the Common Law, the doctrines of equity and the statutes of general application in force in England on the twenty-second day of July, 1920, and with the powers vested in and according to the procedure and practice observed by and before courts of Justice and Justices of the Peace in England according to their respective jurisdictions and authorities at that date, save in so far as the said Common Law doctrines of equity and statutes of general application and the said powers, procedure and practice may at any time before the date on which this Ordinance comes into operation, have been modified, amended or replaced by other provision *in lieu* thereof by or under the authority of any Order of Her Majesty in Council, or by any Proclamation issued, or any Ordinance or Ordinances passed in and for Tanganyika, or may hereafter be modified, amended or replaced by other provision any such Ordinance or Ordinances or any Act or Acts of the Parliament of Tanganyika.

Provided always that the said Common Law, doctrines of equity and statutes of general application shall be in force in Tanganyika only so far as the circumstances of Tanganyika and its inhabitants permit, and subject to such qualifications as local circumstances may render necessary.

The Code (the Civil Procedure Code) cannot be said to be exhaustive. It would be unrealistic to expect the legislature to contemplate all possible circumstances which may arise in litigation. It is legitimate, therefore, to apply, under the above quoted sub-section of the ordinance, relevant rules of Common Law and general statutes of application in force in England on the twenty-second of July, 1920, where the Code is silent. Applying that power, in *Nicholas Mere Lekule's* case (5) Kaji, J., held that the High Court has jurisdiction in a proper case to grant an "interim injunction order" pending institution of a suit. About two years later, in *Tanganyika Game Fishing and Photograpic*

Ltd. v. The Director of Wildlife, The Attorney General and Muanauta and Company (T) Ltd., (10), Katiti, J, invoked the power under the sub-section and held that the court has the inherent power to grant a temporary injunction order in circumstances not covered by Order XXXVII of the Code. The provisions of that Order confer jurisdiction on the court before which a suit has been instituted to grant a temporary injunction, to order interim sale and to make an order for the detention, preservation or inspection of any property which is the subject-matter of the suit, or as to which any question may arise therein. I have no doubt that both cases were rightly decided, but I do not think that those decisions are helpful to the respondent company in the present proceedings. I hold that view because neither Kaji, J, nor Katiti, J, held that a relief in the form of monetary judgment can be granted where there is no suit or before a suit is determined.

As will be recalled, on the issue of jurisdiction Mr Tenga also relied on *Cope-Lavalin's* case (6). With respect, I am unable to see how that case supports the proportion that in England a court can enter what in effect is a monetary judgment where there is no suit before the court. In that case the House of Lords held that a court has jurisdiction to grant an interim relief in form of security for costs to a party to an international arbitration. According to their Lordships, that jurisdiction is inherent or created by section 12(6) of the Arbitration Act, 1950, as amended, which reads:

The High Court shall have, for the purpose of and in relation to a reference, the same power of making orders in respect of – (a) security for costs... (c) the giving of evidence by affidavit (d) examination on oath of any witness before an officer of the High Court or any other person, and the issue of a commission or request for the examination of a witness out of the jurisdiction; (e) the preservation, interim custody or sale of any goods which are the subject matter of the reference; (f) securing the amount in dispute in the reference; (g) the detention, preservation or inspection of any property or thing which is the subject of the reference or as to which any question may arise therein, and authorizing for any of the purposes aforesaid any persons to enter upon or into any land or building in the

> possession of any party to the reference or authorizing any samples to be taken or any observation to be made or experiment to be tried which may be necessary or expedient for the purpose of obtaining full information or evidence; and (h) interim injunctions or the appointment of a receiver, as it has for the purpose of and in relation to an action or matter in the High Court: Provided that nothing in this subsection shall be taken to prejudice any power which may be versed in an arbitrator or umpire of making orders with respect to any of the matters aforesaid.

In this country, there is no statutory provision which is similar to this provision which cannot be applied here (in Tanganyika) as it was enacted after 22 July 1920, assuming that it is a statute of general application. Be that as it may, the jurisdiction referred to in *Coppe – Lavalin's* case (6) is not that of granting interim reliefs kin the form of monetary judgments. Similarly, I can find nothing in the decisions or observations made in *Metropolitan Tunnel and Public Works Limited v. London Electric Railway Company* (11); *Resort Condominjums International Inc. v. Bolwell and another* (12); and *Tanganyika Game Fishing's* case (12) which can be said to support Mr Tenga's submission. The last case, as will be recalled, dealt with the issue, among others, whether a temporary injunction can be granted in circumstances not governed by Order XXXVII of the code. There was no issue in the case whether a monetary judgment can be entered in favour of a party who has not filed a suit. In a useful passage, if I may so describe it, the learned authors of **Halsbury's Laws of England,** (3 ed), Volume 22, paragraph 1613, at page 752 list situations in which the English law authorizes the giving of judgments and making of orders. The passage reads:

> Apart from orders determining questions as to procedure, a judgment or order may be given or made at the trial or hearing of an action, or on the hearing of an appeal, or, in the case of actions commenced by writ, as a result of (1) the consent of the parties or (2) admissions by either party, or (3) default of appearance by a defendant, or (4) default of delivery of a defence, or (5) certain procedural defaults, or (6) in certain cases, an application by the plaintiff for summary judgment when he can satisfy the court that he is clearly entitled to the relief claimed, or (7) acceptance of a payment into court, or (8) after trial of an issue. [emphasis supplied].

It leaps to the eye that under the Common Law a court has no power to give a judgment in favour of an applicant who has not instituted a suit. I agree with Mr Mkono that *prima facie* the reliefs which the High Court purported to grant the respondent company were not "preservatory measures" as the court's order required TANESCO to make payments to the respondent company. A decision of a Court of Law cannot be a preservatory order by merely tying that label to it.

Before I part with the issue of jurisdiction, I must deal, as briefly as possible, with Mr Tenga's last two arguments on the matter. The first of those arguments was that, the parties having agreed before the learned Jaji Kiongozi that preliminary points which were capable of disposing of the whole of the respondent company's application be considered first, the jurisdiction of the court to entertain the application became, as a result, a non issue. In his response to this argument Mr Mkono disputed the existence of that agreement. I am prepared to assume that the parties did reach that agreement. Having made that assumption, I must say at once that the agreement is, *prima facie*, incapable of advancing the respondent company's case. It is a trite principle of law that parties cannot by agreement or otherwise confer jurisdiction upon a court: See *Farquharson v. Morgan* (13); *Essex County Council v. Essex Incorporated Congregational Chuch Union* (14); *Allarakha v. Agakhan* (15) at page 617 and *Royal Bank of Scotland Ltd. v. Citrusdal Investments Ltd.* (16) at page 1472. The parties' agreement in the case now before me could not, therefore, create new jurisdiction in the High Court. The second argument was that the application of the Permanent Secretaries and the Attorney General should be summarily dismissed because, as Mr Tenga put it, having indicated that they did not object to guaranteeing the monthly interim payments that are due to the respondent company from TANESCO, those applicants have no cause for appeal. There is, I think, a simple answer to this contention. By making that statement the three applicants

were not admitting that the amounts of payments demanded by the respondent company were the amounts TANESCO owed. The *quanta* of those payments were very much in dispute between the parties. This was evident in the spirited opposition those applicants, like TANESCO, attempted to put up against the respondent company's claims. I fear I cannot put any weight on Mr Tenga's argument.

In spite of the wealth of ingenuity spent by Mr Tenga on the issue of jurisdiction, it is my settled opinion that, *prima facie*, the High Court had no jurisdiction to entertain the respondent company's application for a relief in the form of monetary judgement.

I shall now deal, very briefly, with the remaining two factors I am required to consider in the two applications. There can be no doubt, upon the evidence laid before me, that whichever side loses in the applications now before me the opposite side is likely to sustain a substantial and irreparable loss. It is conceivable that lesser payments may not have on TANESCO the devastating effect described by Mr Madaha in his affidavit. Any substantial adjustments made in that company's favour after arbitration would surely not prevent that damage. With regard to the question of balance of convenience, I wish to observe that the scales of justice appear to me to be slightly titled in the applicants' favour, bearing in mind what is deposed in the opposing affidavits.

Before I part with these applications, I desire to express my indebtedness to counsel for all the parties for their lucid and interesting arguments.

For the reasons I have given, I am satisfied that, as ably contended by Mr Mkono and Mr Mwidunda, the applicants' intended appeals have prospects of success and that both justice and common sense call for the granting of the two applications for stay of execution. I grant those applications as prayed with costs.

PEOPLES' BANK OF ZANZIBAR *v.* SULEMAN HAJI SULEMAN

HIGH COURT OF ZANZIBAR
AT VUGA

(Lawan Wada, J)

CIVIL APPEAL No. 17 OF 1999

(From the Judgment of Regional Magistrate delivered on 1 March 1999 in Civil No. 35 of 1998)

Civil Practice and Procedure – Framing of issues– Issue not pleaded – Whether the court has power to decide a case on an issue not pleaded.

Civil Practice and Procedure – Framing of Issues – Issue not argued – Court decides case on an issue not argued – Whether it is proper.

Civil Practice and Procedure – Framing of Issues – Power of Court to frame additional issue – Duty of the court to inform the parties.

The appellant advanced a loan of TZS. 250 000 to one Usman Hamza Ameir and the loan was secured on the property of the respondent's house. During the trial parties agreed to argue the case on only one issue. But the trial court, in the absence of the parties and without informing them later on added another issue and proceeded to decide the case on the additional issue. It decided the case in favour of the respondent and also prohibited the appellant from auctioning the respondent's property to recover the loan.

Held: (i) The court has power to amend or frame additional issues under Order XVI, rule 5(1) of Civil Procedure Decree Chapter 8.

(ii) The court should not have framed any additional issue so as to make for either party a case which he had no intention of making for himself.

(iii) If need be, a proper thing for the court to do at any stage before judgment is to re-open the case and the counsel on each side be given a reasonable opportunity to lead evidence or address the court on the additional issue before the court gives judgment.

Appeal allowed.

Statutory provisions referred to:

(i) Civil Procedure Decree Chapter 8 Laws of Zanzibar ,Order XVI, rule 5(1)

Mr. Mahadhi Juma, for the Appellant

Mr. Uhuru, for the Respondent

JUDGMENT

(Dated 14 July 1999)

LAWAN WADA, J.: This is an appeal against the judgement of Regional Magistrate delivered on 1 March 1999 in a Civil Case Number 35 of 1998. The dispute is over the immovable property of the respondent Suleiman Haji Suleiman. The appellant was the second defendant at the trial court and had advanced a loan of TZS. 250 000 to one Usman Hamza Ameir (First defendant) and the loan was secured on the property of the respondent i.e. House Number 152. Based on the evidence adduced at the trial court, the court gave judgement in favour of the respondent and also prohibited the appellant from auctioning the respondent property.

The first defendant/appellant dissatisfied with the judgement has appealed to this court and is represented by Mr Mahadhi Juma advocate, while the plaintiff/respondent is represented by Mr Uhuru advocate. Mr Mahadhi counsel for the appellant filed five grounds of appeal as follows:

(1) The trial court erred in law by basing its decision on the issue which was neither pleaded nor argued before it.

(2) The trial court erred in law and ought to have held that there was a valid loan agreement between the first and second defendants.

(3) The trial court erred in law and fact and ought to have held that the suit premises was provided by the respondent as security for the loan advanced to the first defendant.

(4) The trial court erred in law and ought to have ordered a sale of the suit premises.

(5) The trial court erred in law and ought to have awarded against the respondent.

In determining this appeal I decided to deal with the first ground only because the second ground was based on the additional issue framed by the court which is also the subject matter of the first ground so they are to be treated jointly together. The third ground is that the trial court erred in law and fact and ought to have held that the suit premises was provided by the respondent as the security for the loan advanced to the first defendant. On this ground there is no dispute from the record of the trial court. The learned RM in his typed record at page 13 said "That there is no dispute that the plaintiff provided his house (suit premise) as a security for the loan advanced to the first defendant..."

Arguing the first ground the learned counsel for the appellant submitted that the trial court erred in law by basing its decision on issue which was neither pleaded nor argued before it, because at page 13 of the typed record, the RM raised the issue of whether there was any loan contract between the second defendant and the first defendant and this was not pleaded or argued before the courts and it was based on the finding on this new issue that the court gave its decision.

The learned counsel of the appellant further submitted that even though the trial court has the power to frame a new issue at any stage of the trial before judgement, but once this is done the court must give the parties chance to address it on the newly framed issue and in this case, this was not done by the trial court and so he submitted that such failure is a great omission which can render the decision of the trial court to be quashed on appeal.

In his reply Mr Uhuru advocate for the respondent submitted that no new issue was framed by the trial court, the trial court gave its judgement on the issue agreed by the parties at page 5 of the type record.

The issue for determination in this appeal is, did the trial court frame additional issue or not and if so does it have power to do so.

It is true as rightly pointed out by the respondent counsel that the parties agreed on only one issue and it is at page 5 of the typed record; that is "whether the plaintiff provided his suit premises as the security for the loan advanced to the first defendant or not". So it is obvious that the parties both the appellant and the respondent when at the trial court conducted their case on the basis of the issue they agreed at the beginning of their trial. From the record of the trial court the learned RM agreed that the respondent gave his house as a security for the loan advanced to the first defendant, but doubted whether there was any contractual relationship between the first defendant and the appellant and this is at page 13 of the typed record where the learned RM says "There is no dispute that the plaintiff provided his house (suit premises) as a security for loan; what is doubtful is whether the first defendant really obtained or contracted with the second defendant for obtaining such a loan (over draft)".

The issue of contractual relationship between the first defendant and the appellant is an issue not agreed by the parties at the beginning of the trial, it was raised by the court after closure of trial as pointed out by the appellant counsel. But however as a court, it has the power at any time before judgement to amend or frame additional issue under the provision of Order XVI, rule 5(1) of Civil Procedure Decree Chapter 8 laws of Zanzibar, which says:

> The court may at any time before passing a decree amend the issue or frame additional issue on such terms as it think fit, and all such amendment or additional issue as may be necessary for determining the matters in controversy between the parties shall be so made or framed.

However it is entirely contrary to the usual practice that the court should after the close of the trial and in the absence of either party to raise an entirely fresh issue based upon the examination of certain documents tendered on the request or order of the court, and without summoning the parties again, the court proceeded and determined

the issue and gave judgement based on that issue. The general principle is that a court should not frame any additional issue so as to make for either party a case which he had no intention of making for himself.

In a situations where a court amends an issue or raises fresh issue or where it considers a matter before it can only be decided on technical point which has not been addressed by the counsel the proper thing for the court to do at any stage before judgement is to re-open the case and give the counsel on each side a reasonable opportunity to lead evidence or address the court on the issue before the court gives its judgement and failure to do that can amount to miscarriage of justice.

Therefore based on this view. I hereby allowed this appeal and ordered that the case be retried before another Regional Magistrate.

SOSTHENES FUMBUKA *v.* REPUBLIC

HIGH COURT OF TANZANIA
AT TABORA

(Masanche, J.)

CRIMINAL APPEAL No. 5 OF 1998

Criminal Law – Cognate offences – Appellant charged with but acquitted of the offence of soliciting the commission of an offence c/s 390 of the Penal Code – Appellant convicted of contempt of court instead – Whether proper.

Criminal Law – Contempt of Court – Person convicted of Contempt of Court for an act not committed in the face of the court – Whether conviction proper – Section 114 the Penal Code.

An area around Sibiti River was declared as reserved for grazing and should not be built or cultivated on. Two persons had attempted to cultivate there and were taken to

the District Court, convicted and fined, and the court declared that the area shall not be cultivated on. A meeting was then convened at which the appellant and another person were said to have uttered that people could cultivate in the area. And subsequently some people went to cultivate there. The appellant, and the other person were then charged with inciting the commission of an offence. The other person was convicted as charged by the District Court while the appellant was convicted of the *"lesser offence"* of Contempt of Court.

Held: (i) The trial court magistrate was wrong to say that Contempt of Court is a lesser offence to the offence of inciting to commit an offence and, in any case, the two are not cognate offences;

(ii) Contempt of Court offences are offences that arise while a judicial proceeding is pending; they are offences committed in the face of the court;

(iii) Since there was no evidence of incitement to commit an offence and the trial court magistrate held the meeting in question not to have incited the mob, both the appellant and the other person who did not appeal ought to have been acquitted; accordingly, although the other person did not appeal, the High Court invoked its revisional powers under section 31 of the Magistrates' Court Act 1984 and ordered his release from prison.

Convictions quashed

Statutory provisions referred to:

(i) Penal Code, section 390, section 114, section 114(1)(d)

(ii) Magistatrates Court Act 1984, section 31

Mr Masalu, for the Appellant

Mr Mwampoma, for the Respondent

JUDGMENT

(Dated 21 July 1999)

MASANCHE, J.: The appellant, Sosthenes Fumbuka, was charged with contempt of court contrary to section 114(1)(d) of the Penal Code, after being acquitted of the offence of soliciting the commission

of an offence contrary to section390 of the Penal Code. In other words the Magistrate (Mr Mlawa, SDM) substituted the offence of Contempt of Court for the offence of soliciting the commission of an offence.

The Magistrate wrote a very very long judgment, unnecessarily so. The appellant and another (not appealing), who was convicted as charged under section 390 were, after conviction sentenced to different types of sentences. In sentencing them, the District Magistrate said and I quote:

> The offence of soliciting or inciting to commit an offence is a serious one. It attracts for a deterrent sentence to be imposed upon the accused. The accused number 1 though a first offender, he is given by this court a sentence of twelve (12) months imprisonment without an option of fine. Accused number 1 Boniface Linjachi to serve twelve (12) months imprisonment, whereas the second accused who has been found guilty of a lesser offence is sentenced by this court to a fine of TZS. 50 000 or three months imprisonment in default of payment of a fine. Right of appeal has been explained to the accused persons.

The understanding I have here is that the present appellant Sosthenen Fumbuka who was the second accused at the trial, a Ward Secretary, had been sentenced to a fine of TZS. 50 000 imprisonment or 3 months jail in default. The record shows that he has paid the fine. The other accused Boniface Linjachi, who was the Ward Executive was sentenced to 12 months imprisonment, without an option of fine. He is, in other words, languishing in jail. And it is the one now out, the second accused at the trial, who appeals. The appellant here before me is represented by Mr Masalu, learned advocate and the Republic is represented by Mr Mwampoma – the learned State Attorney. [Both counsel did not support the appellant's conviction].

The facts of this case were simple and straight forward, although the Magistrate has written a long and rumbling judgment.

An area around a river, the Sibiti River, was declared an area that no one should build or cultivate on. It was decided that the areas should remain a grazing area.

Some two persons had attempted to challenge this move, and they had attempted to cultivate in that area, but they ended up in trouble. They were sent to court and fined. It is while the matter had reached the court that it is said the court announced that the area should not be touched.

On 16 November 1996, a meeting was convened. At that meeting the appellant was the Chairman. The first accused also attended and there it is said the two persons uttered, at the meeting that people could cultivate in the area. And, indeed some people who came to testify in court went to cultivate the area. These people told the court that they went to cultivate because these two people had told them to do so. And so, the police thought it was better to charge the two persons.

Up to that point, those facts alone are sufficient to dispose of the appeal: The meeting that the learned Magistrate addressed his mind to, was held by him not to have incited the mob, hence he acquitted the appellant. And that would have been the end of the matter. Convicting the same person of the offence of contempt of court was improper on these grounds:

(1) Both these offences are misdemeanours. You cannot substitute a misdemeanour for a misdemeanour. Which one then is the lesser offence of the two? The Magistrate is wrong to say that the offence of Contempt of Court is a lesser offence to the offence of inciting.

(2) Even assuming, for the sake of argument, that one was lesser than the other. These offences are not cognate – are not connected to each other.

(3) Contempt of court offences are summary procedure offences. Section 114(1)(a) of the Penal Code that the Magistrate talks of, deals with situations which arise "while a judicial proceeding is pending". It does not deal with events which took place long time ago. The offences of Contempt of Court under section 114 of the Penal Code are offences that are punished *brevi manu*. The offence must be committed in "the face of the court".

I, therefore, do agree with both Counsel that the appellant was unjustifiably convicted. His conviction is therefore quashed. The fine imposed on him that he paid out should be refunded to him.

The same goes to the first accused in the trial, Boniface Linjachi, who was convicted of soliciting or inciting the commission of the offence. The evidence on record showed nothing more than that he attended the meeting and possibly addressed. It is difficult to say that the address had the tone of incitement. There is not that evidence. To incite is to "stir up". There is no evidence of that nature. He too, I think, ought to have been acquitted of the offence. Although this person has not appealed, I invoke my revisional powers under section 31 of the Magistrates Courts Act 1984 and order for his immediate release from jail, unless there is something else lawful which is keeping him in jail.

IMKE HELLA CAMPBELL-SMITH *v.* DOUGLAS WILLIAM CAMPBELL-SMITH

HIGH COURT OF ZANZIBAR
AT VUGA

(Garba Tumaka, D/C.J.)

MISC. CIVIL APPLICATION No. 84 OF 1999

Civil practice and procedure – Judgment – Foreign judgment – Regard given to a foreign judgment on a matter adjudicated upon between the same parties – Section 8 of the Civil Procedure Decree Chapter 8.

Civil practice and procedure – Judgment – Foreign judgment – Presumption that a foreign judgment was made by a Court of competent jurisdiction – Section 9 of the Civil Procedure Decree Chapter 8.

The applicant, a German national, married the respondent in 1994 and they lived in Germany with their son, born in December 1996. Divorce proceedings were instituted in a district family Court in Germany. The respondent then left Germany and, contrary to their visitation agreement, took the child with him to Zanzibar. The applicant then applied to the same district family Court in Germany for full custody of the child and was granted. She then made this application to the High Court of Zanzibar for enforcement of the order of custody.

Held: (i) Pursuant to section 8 of the Civil Procedure Decree Chapter 8, this court treats the decision of the German Court as conclusive regarding the matter adjudicated upon between the parties.

(ii) Pursuant to section 9 of the Civil Procedure Decree, this court is compelled to presume, upon the certified copies of the German Court decisions produced in court, that the decisions were made by a court of competent jurisdiction;

(iii) Section 38(1) of the Decree empowers this court to enforce the order for custody delivered by the German Court; the order is consonant with our own case law according to which the welfare of the child is given the greatest importance in custody proceedings, and would grant custody of a child of tender years to the mother unless there are strong reasons against that.

Application allowed

Case referred to:

(1) *Ramesh Rajput v. Mrs. Sunanda Rajput* [1988] T.L.R. 96

Statutory provisions referred to:

(i) Civil Procedure Decree, Chapter 8, sections 8, 9, 38(1), 35 and Orders XVII, rule 3 and XXIV, rules 7 and 8

RULING

(Delivered0 6 August 1999)

GARBA TUMAKA, D/C.J.: This is an *ex-parte* application made under sections 9, 35, 38(1)(e) and Orders XVIII, rule 3 and XXIV, rules 7 and 8 of the Civil Procedure Decree Chapter 8; praying for:

(1) This court's enforcement of the custody order made in the Republic of Germany, in the District family Court of Worms, by Judge Decker on the 9 June 1999.

(2) The Costs of this application to be borne by the respondent.

(3) Any other relief the court may deem fit just and equitable.

The application was supported by a (16) Sixteen paragraph affidavit deposed to by the applicant and counsel relied on all the paragraphs.

The application was brought under certificate of urgency and made *ex parte*.

The affidavit, in summary is to the effect that:

(i) The applicant, who is a German citizen, is married to the respondent, a British national and they were married in 1994.

(ii) They (applicant and respondent) lived together as husband and wife in Germany from 1994 to 1999 with their son Alexander, who was born in December, 1996.

(iii) That on the 6 May 1996, divorce proceedings were initiated in Worms family Court in Germany whereat both parties were represented by their counsel.

(iv) That the respondent, in violation of their visitation agreement, left the country with their child.

(v) The applicant then made an application to the Worms family Court requesting for the full custody of their child, in the presence of their two counsel, which order was granted, a copy of which is attached to this affidavit.

(vi) Upon discovering that her husband, the respondent had brought the child to Zanzibar, she had come to have him returned to her as ordered by the court.

Going through the provisions of section 8 of the Civil Procedure Decree, Chapter 8, I am compelled to treat as conclusive, a foreign judgment as to any matter thereby directly adjudicated upon, between

the same parties save where they fall within the exceptions listed in paragraph (a) – (f).

This court is further compelled by section 9 of the same Decree, to presume, upon production of any document purporting to be a certified copy of a foreign judgment (Annexures A1 and A2 in the instant case) that such judgment was produced by a court of competent jurisdiction, unless the contrary appears on the records (and none so appears in this case).

Importantly, this court believes that the applicant has satisfied the procedural requirement requisite for his application to succeed i.e. by fulfilling the provisions of Orders XVIII and XXIV of the enabling law, the Civil Procedure Decree Chapter 8, as regards notice and format of application.

Section 38(1) of this Decree empowers this court to enforce the custody order of Judge Decker of the district family Court of Worms delivered on the 19 June 1999, which judgment is in itself consonant with our case law as embodied in the decision of the Court of Appeal of Tanzania in the case of *Ramesh Rajput v. Mrs. Sunanda Rajput* (1) at 97, where it was *inter alia* held that:

(i) The most important factor in a custody proceeding is the welfare of the child.

(ii) An infant of two (2) should be with the mother unless there are very strong reasons to the contrary, and

(iii) There is a rebuttable presumption that an infant below the age of 7 years should be with the mother.

To me, enforcement of judgement basically translates to causing the decisions of a judicial tribunal to take effect or to compel obedience to it.

Consequently, upon consideration of the applicants submissions and perusal of annexures AI and A2, I am of the firm opinions that this application succeeds.

AZIM SULEIMAN PREMJI *v.* ATTORNEY GENERAL AND ANOTHER

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Mfalila, Lubuva and Samatta, JJ.A.)

CIVIL APPEAL No. 63 OF 1998

(From the decision of the High Court of Tanzania at Tabora, Masanche, J., dated 11 June 1998, in Miscellaneous Civil Cause No. 3 of 1995)

Elections – Votes of registered voters who did not vote – Pro-rata apportionment of.

Elections – Free and fair elections – Chaos during elections – Whether elections can be said to be free and fair.

Elections – Nullification of – Racist statements – Whether sufficient to nullify elections – Section 108(2)(a) Elections Act 1985.

The appellant was one of the contestants in the Kigoma Urban parliamentary constituency seat in the 1995 General Elections which was contested by twelve political parties. It was won by the second respondent. The appellant, aggrieved by the election results filed a petition challenging the results in the High Court against the first and the second respondent, Dr Aman Walid Kaborou, who was the winner, on grounds of non compliance with the requirements of Elections Act on the part of the returning officer and illegal campaigns and statements by the second respondent aimed at exploiting racial differences. While the trial judge found that there were some election irregularities he held that they did not affect the result of the election. He also held that the election was free and fair, and dismissed the petition with costs. The appellant dissatisfied with this decision appealed to the Court of Appeal.

Held: (i) The correct approach in apportioning the estimated votes of registered voters who did not vote because of irregularities is to make a *pro rata* apportionment of the estimated votes between the contesting candidates. If the outcome of such exercise eliminates or considerably reduces the margin of victory the court may hold that election result is affected;

(ii) Irrespective of whoever causes chaos during elections the acts causing chaos and confusion renders the election not free and fair;

(iii) Once it is proved to the satisfaction of the court that statements were made with intent to exploit racial differences during campaign meetings that is sufficient ground for declaring the election void.

Appeal allowed

Cases referred to:

(1) *Sylvester K.Masinde v. Pius Msekwa and Another*, [1999] T.L.R. 42

(2) *Gilliard Joseph Mlaseko and Two Others v. Corona Faida Busongo and another*, Civil Appeal Number 57 of 1996 (unreported)

(3) *Peter Msekalile v. Leonard Newe Derefa* Civil Appeal Number 32 of 1997 (unreported)

(4) *Attorney General and Two Others v. Dr Aman Walid Kaborou*, [1996] T.L.R 156

Statutory provisions referred to:

(i) Election Act 1985 section 108(2)(a), section 35(f)(1), section 4791), section 80(1), section 108(1)(b) and 108(1)(a)

Mr Mbezi, for the Appellant

Mrs Sumari, for the first Respondent

Mr Mwengela, for the second Respondent

JUDGMENT

(Dated 13 August 1999)

LUBUVA, J.A.: This appeal arises from the General Elections held in the country on 29 October 1995. The appellant, Azim Suleiman Premji, contested the Kigoma Urban parliamentary constituency seat sponsored by Chama cha Mapinduzi political party, commonly known by its acronym CCM. The election being held under multipartism, a

total of twelve political parties sponsored candidates to contest the seat. The second respondent, Mr Aman Walid Kabourou, was among the candidates. He was sponsored by the political party, Chama cha Demokrasia na Maendeleo commonly known by its acronym CHADEMA. At the close of the poll, the second respondent was declared to be elected as the Member of Parliament for Kigoma Urban constituency. The appellant was aggrieved by the election result. Consequently, an election petition was filed in the High Court at Tabora Registry against the Attorney-General and Mr Aman Walid Kabourou who, at the trial were respectively referred to as the first and second respondents. The petition was based on thirteen grounds. When the trial commenced, eleven issues were drawn. From the grounds of the petition, it is apparent that the essence of the challenge against the second respondent's declared election victory was based on two aspects. First, non-compliance with the requirements of the law under the Elections Act, 1985 on the part of the Returning Officer. That is, inadequate provision of electoral material to some of the polling stations. Second, illegal campaign and statements by the second respondent aimed at exploiting racial differences.

After what appears to us as a careful and detailed analysis of the evidence presented at the trial for both sides, the learned trial judge answered issues 1, 2, 3, 4, 5, 6, 7 and 11 in the affirmative but went further to hold that that did not affect the result of the election in Kigoma Urban Constituency. It was further held that the election was free and fair. In the final result, the petition was dismissed with costs. The appellant was dissatisfied with the decision of the High Court (Masanche, J.) and hence, this appeal.

In this appeal the appellant was represented by Mr Mbezi, learned counsel who had also appeared for the appellant in the High Court at the hearing of the petition. On the other hand, Mrs. Sumari, learned Senior State Attorney, like she had done at the trial in the High Court, appeared for the first respondent, the Attorney-General. The second respondent was advocated for by Mr Mwengela, learned counsel. The Memorandum of Appeal filed contained eleven grounds of appeal.

However, in the course of hearing the appeal, Mr Mbezi, learned counsel for the appellant abandoned grounds 7 and 8 first and at a later stage, he also abandoned ground 10. In this appeal, we propose to deal with the rest of the grounds of appeal seriatim.

We propose to deal first with ground one which reads as follows:

> That the learned trial judge erred in fact in holding that there was no shortage of ballot papers at the Mwanga Kaskazini G., Zahanati Gungu A, Ofisi ya Kata Gungu D and E and that the election results were not affected by reason thereof.

In this ground, we need not labour much on the complaint regarding the discrepancy and shortage of ballot papers. It is apparent that the area and scope of contention is a narrow one. On one hand, Mr Mbezi strongly criticized the learned trial judge in addressing the issue of the shortage of ballot papers so casually that the effect and consequence of the failure by some people to vote as a result of the shortage of ballot papers was not considered. It was his submission that there was sufficient credible evidence to prove the fact that there was shortage of ballot papers at the polling stations indicated in ground one. That, as a result of the shortage, Mr Mbezi stated, a number of people who were supposed to vote at these stations did not vote. He referred to the evidence of Kessi Saidi (PW23), Felix Mwakasele (PW22), Hadija Sungura Kukonga (PW18) and Omari Selemani (PW15). From these stations, Mr Mbezi estimated a total of about 590 to 600 people did not vote. On the other hand, Mrs. Sumari, learned Senior State Attorney for the first respondent, the Attorney-General, strongly submitted that there was no problem of shortage of ballot papers because the Assistant Returning Officer Mrs Zamda Kanyogoto (RW2) acting on the instructions of the Returning Officer, Badru Bushaku (RW1) had visited the polling stations in respect of which reports of shortage of voting materials had been received. To these stations, she (RW2) supplied extra ballot papers. With the problem of shortage of ballot papers solved at the stations, Mrs. Sumari urged, voting continued in the normal manner in which case, the question of the shortage of ballot papers no longer persisted.

We agree with Mrs. Sumari that the issue whether there was shortage of voting material is a question of fact which depends on the credibility of witnesses. In this case, Mr Mbezi has referred to the evidence of witnesses PW23, PW2, PW18 and PW15 among others which, according to him, indicate that there was shortage of ballot papers at the respective polling stations. The evidence also shows that until the time the polling papers got exhausted, there were still a number of voters waiting. These voters, according to the evidence, did not vote. In support of Mrs. Sumari's submission, the court was referred to the evidence of Badru Bushaku (RW1) the Returning Officer and the Assistant Returning Officer Mrs Zamda Kanyogoto (RW2). The evidence of these witnesses regarding the actual number of ballot papers, Mr Mbezi submitted, was unreliable, therefore not much weight should be attached to their evidence. In elaboration Mr Mbezi, contended, the figures given by the Returning Officer (RW1) regarding the ballot papers had discrepancies which were not considered by the learned trial judge. For instance, in accepting the evidence of RW2, the learned judge simply stated that RW2 impressed him as a truthful witness who had solved the problem at Mwanga. What is the discrepancy? From the record, both RW1 and RW2, the Returning Officer and the Assistant Returning Officer respectively, categorically stated that for each polling station, 300 ballot papers were distributed. For the Kigoma Urban Constituency, there was a total of 137 polling stations. That would mean a total of 41,100 ballot papers for the whole constituency. In that case, in mathematical terms, for the constituency of Kigoma Urban where there were 37,738 registered voters, there was a surplus of 3,362 ballot papers. But this is not supported by the evidence of the Returning Officer, Badru Bushaku (RW1), who categorically stated in his evidence, at page 271 line 28 of the record, that he received 40,800 ballot papers for the President and 40,800 for the Members of Parliament. If that was so, then with 40,800 ballot papers, it means he did not have enough papers to go round for the requirement of all the 137 polling stations. In such circumstances, it seems likely that both the Returning Officer and the Assistant Returning Officer cannot be correct on this point. One

or the other, is either telling the truth or not. With respect, we agree with Mr Mbezi that the learned trial judge did not address his mind on the discrepancy pertaining to the evidence of RW.1 and RW.2 as regards the number of ballot papers.

From this analysis, we agree that the Assistant Returning Officer (RW2) responded by complying with the instructions of RW1 to supply extra ballot papers to the stations where complaint had been raised. The crux of the complaint however, was that before the extra ballot papers were supplied, some people had left the voting stations without voting. This with respect, the learned trial judge did not consider. So, as the shortage of the ballot papers was an admitted fact by RW1 and RW2 whose evidence was heavily relied by the trial judge, the finding that there was no shortage of ballot papers is incompatible with the evidence. It seems the learned judge having been satisfied that RW2 had solved the problem he did not bother to consider the existence of the problem prior to the arrival of RW2 at the polling stations and its effect. Had the learned judge addressed this aspect, we think he would have come to the conclusion that there was shortage of ballot papers. In the event, we are satisfied that on a proper evaluation and analysis of the evidence an affirmative answer to the first part of issue one would be properly founded.

The next question that falls for consideration is whether the discrepancy and shortage of voting material did affect the result of the election. Apparently, in an attempt to address this issue Mrs. Sumari took the view that even if it is accepted that there was shortage of voting material, this would not affect the result of the election. In her view, the end result would still be same because each of the candidates would be affected by such number of people who did not vote due to the inadequacy of voting material. If we understood her correctly, it was her submission that if the estimated number of votes which were not cast during the polling day are apportioned on a *pro rata* basis between all the contesting candidates, the second respondent would still remain the winner. We agree with her in restating the correct legal principle under the multiparty political system regarding the

pro rata apportionment of the estimated votes of the registered voters who did not vote. In *Sylvester K. Kasinde v. Pius Msekwa and Attorney-General*, (1) we expressed the view that the rule applied in the cases that were decided before the introduction of multiparty political system of adjusting votes in favour of the losing candidate is no longer good law under the multiparty electoral system where more than two candidates contest the election. In part, the court stated:

> We think the correct approach under the multiparty system is to make a pro rata apportionment of the estimated votes between the contesting candidates. If the outcome of such exercise eliminates or considerably reduces the margin of victory, the court may, in our view, hold that election result is affected.

Applying this principle to the instant case where, as already observed, the estimated number of people who did not vote was about 600, still we think the margin of victory by the second respondent would not be reduced so considerably as to affect the result of the election. There is yet another equally important reason. The estimated number of people who did not vote as a result of the inadequacy of voting materials is, in our considered opinion, too unreliable to justify the nullification of the election. It is, as indicated before, based on the evidence of the Returning Officer (RW1) and the Assistant Returning Officer (RW2) which does not give an accurate estimate of the number of people who did not vote. Nonetheless, we are satisfied that such an irregularity as found by the trial judge, did not affect the result of the election. We are respectfully in agreement with the learned trial judge on this finding. However, we do not agree with his reasoning that the irregularities did not affect the result of the election because allowance had to be made for the anxiety of the people in the first multiparty election. With respect, it hardly needs to be emphasized that the election process being a very serious and important matter in any democratic society, any irregularity pertaining to it must at all times be deprecated. In this case, as the short supply of voting materials did not affect the result of the election the complaint in ground one is dismissed.

In ground 2, the appellant complained that the learned trial judge erred in not holding that the result of the election was affected by changing the list of voters assigned to named polling stations. In the petition, one of the complaints raised was that the provisions of the Elections Act, 1985 was not complied with in that on the election day, the list of voters assigned to a number of polling stations was changed without notice. As a result of this, it was claimed, many voters were confused, they did not know at which polling station to cast their votes. Because of the ensuing confusion, and failure of people to vote, the result of the election was affected. At the trial the learned judge came to the conclusion that the change of the list of voters having been effected after due notice was given, did not affect the result of the election.

For the appellant Mr Mbezi, learned counsel strongly contended that no sufficient notice had been given to the voters regarding the change of polling stations. As a result, Mr Mbezi insisted, many voters were confused not knowing at which polling stations they were supposed to vote. Because of this, he went on in his submission, many voters were unable to vote. This, he concluded, affected the result of the election.

Mrs Sumari, learned Senior state attorney for the Attorney-General, the first respondent, conceded that it was true that the notice about the change of polling stations was given two days before the polling day. She further stated that apart from the notice the voters were directed where to go to vote in which case, she argued, there was no cause for confusion. The change of polling stations did not affect the result of the election, she concluded.

It is common ground that the notice regarding the change of polling stations was given two days before the election day. This was done by the Returning Officer, Badru Bashaku (RW1). The appellant's complaint is that the notice was not only not enough, it was also in contravention of the Elections Act, 1985. Because of the short notice, Mr Mbezi contended, many people did not have the chance of seeing the notice. Consequently, he further stated, some of the voters got confused

not knowing where to go to vote. We agree with Mr Mbezi that the notice regarding the change of polling stations at Mwanga "A" to Community Centre "G" (Mwanga) was given two days before the election day. This is contrary to the mandatory requirement of 8 days under section 47(1) of the Elections Act 1985. The crucial issue here is whether the non-compliance with this provision of the law affected the result of the election. We do not think so. This is so, because first, as the evidence of the Returning Officer (RW1) shows, though at short notice, the voters were informed through the notice board where to go to vote. Secondly, RW1 stationed a person at the earlier designated polling station to direct the voters to which polling station they were supposed to go to vote. For these reasons, like the learned trial judge, we are satisfied that the change of polling stations did not cause many people not to vote. What is more, on the evidence, it was not shown that as a result of the change of polling stations, a specified and identified number of voters did not vote. As it is, it was not shown how many people were involved and to what extent as to affect the result of the election. We find no merit in this ground, it is dismissed.

We will next deal with ground 3. The complaint in this ground was that it was erroneous on the part of the learned trial judge in holding that voters at Katubuka "D" polling station with Registration Certificate Numbers 101 – 1200 had voted and that the results of the election was not affected by the absence of the voters' register. At the trial, this was issue number five (5) which the learned trial judge answered in the negative. Mr Mbezi vehemently contended that as a result of the missing register of voters at Katubuka "D" polling station, many voters estimated at about 200 were prevented from voting. This, he said, was a serious act of non-compliance. What was involved here was the misplacement of the voters' register. From the evidence of the Returning Officer (RW1) and the Assistant Returning Officer (RW2), it is clear that when the polling station at Katumbuka "D" was opened the voters register could not be traced due to misplacement. In order to ascertain the names of the registered

voters, Form 1 was used. As voting went on at a rather slow pace, later in the day, when RW2 came to the polling station, the register was traced and thereafter, voting continued in the normal manner. In the circumstances, we do not accept Mr Mbezi's claim that the delay caused in voting as a result of the misplacement of the register was such as to affect the result of the election. After all, it has not been shown on the evidence how many voters did not vote as a result of the register being misplaced. This ground also fails.

We shall next deal with ground 4. Essentially, the appellant in this ground is dissatisfied with the learned trial judge's holding that the Returning Officer was justified in refusing to resolve the disputed votes at the stage of adding up votes. In support of this ground, Mr Mbezi submitted that the Returning Officer (RW1) having been informed that there were 325 disputed votes, had a mandatory legal obligation to determine the validity of the disputed votes as required under section 35(f)(1) of the Elections Act, 1985. This was a serious act of non-compliance which affected the result of the election, Mr Mbezi emphasized. He added that 300 votes out of 325 disputed votes were, as reported by the appellant's agents in favour of the appellant. It was therefore necessary to determine the validity of these votes in order to establish how these votes affected the appellant's position particularly having regard to the winning margin of 273 votes, Mr Mbezi contended. Responding to these submissions, Mrs. Sumari submitted that the Returning Officer was justified in refusing to resolve the undisputed votes because the procedure for disputing votes was not followed. According to Mrs. Sumari, after the exercise of counting votes was completed at the polling stations, Form C.5 should have been filled. In this case, she said, it was not done. Alternatively, Mrs. Sumari took the view that in the circumstances of this case, the non-compliance did not affect the result of the election.

We agree with Mr Mbezi that under the provisions of section 35(f)(1) of the Elections Act, 1985 it is a mandatory statutory requirement for the Returning Officer to determine the validity of disputed votes before embarking on the addition exercise. In this case, it is not

disputed that the Returning Officer (RW1) when requested to do so refused on the following grounds: First that it would take too long to embark on the exercise, second, Forms RF.2 were not seen on the boxes containing the disputed votes and thirdly, that the Returning Officer does not deal with disputed votes. This, it must be pointed out was obviously a misconception of the law regarding the responsibility of the Returning Officer in resolving disputed votes. The law, as already indicated earlier is unambiguously clear. As correctly submitted by Mr Mbezi, the learned trial judge erred in holding that the Returning Officer was justified in refusing to resolve the disputed votes. With this non-compliance, the question arises whether it affected the result of the election. In the case of *Gilliard Joseph Mlaseko and two others v Corona Faida Busongo and another*, (2) a somewhat similar situation arose. Among other matters, it was contended that the Returning Officer had failed to determine the validity of disputed votes as required under section 35(f)(1). In that case where the number of disputed votes was known and ascertainable i.e. 141, this court held that though the Returning Officer did not resolve the disputed votes which was an act of non-compliance, nonetheless, the non-compliance did not affect the result of the election. The reason was that whatever was done with the 141 disputed votes, it would not affect the position of the winning candidate. In the case before us, unlike the situation in *Gilliard Joseph Mlaseko,* (2) it was not established how many disputed votes were involved in order to determine if they would affect the result of the election. Even if we accept Mr Mbezi's estimate of 325 disputed votes as a correct working figure, still, on the application of the *pro rata* principle in *Msekwa's case* (*supra*) to all the 12 candidates who contested the seat, the second respondent would still be the winner. For this reason which is different from that held by the trial judge, the complaint in ground 4 fails, it is dismissed.

We now turn to ground 5. In this ground the appellant had complained that the learned trial judge erred in law in not directing himself to the incompleteness of the vote adding up exercise and the effect of the Returning Officer's compilation of Exhibit page 2 in the absence

of the candidates and their agents. At the hearing of this appeal, Mr Mbezi had started his submission in support of ground 5, Mrs Sumari raised objection against the inclusion of this ground at this stage on appeal. The reason she said was that the issue in this ground was not an issue at the trial in the High Court. We overruled the objection and allowed Mr Mbezi to make his submission on ground 5. In his submission Mr Mbezi stated that the complaint in this ground is closely linked with the issue raised in ground 4. He added that since as shown in ground 4, the Returning Officer (RW1) had refused to resolve the disputed votes as required under section 35F(1) and 80(1) of the Elections Act, 1985, it was clear that the exercise of adding up the votes had not been completed. Furthermore, Mr Mbezi went on, in spite of the incomplete adding up exercise, Exhibit P2 was compiled by the Returning Officer (RW1) in the absence of the candidates and their agents. This, Mr Mbezi urged, was a non-compliance on the part of the Returning Officer which the trial judge did not address. With an incomplete adding up exercise in which 14 ballot boxes were not accounted for, Mr Mbezi charged that the result of the election was affected. For the first respondent, Mrs Sumari did not say much on this ground which she said had no merit. She repeated her argument that as the matter was not an issue at the trial, it was not proper to raise it on appeal. The reason she said was that raising the issue at the appeal stage denied the respondents the opportunity of furnishing an appropriate response. Otherwise, she conceded that the Exhibit P2 was tendered and accepted at the trial without objection.

We agree with Mrs Sumari, learned Senior State Attorney that it is settled principle that generally matters that were not in issue before the trial High Court should not be raised on appeal. The rationale behind this principle is that if that was allowed, the Court of Appeal would, by so doing be engaging in matters which are appropriate for the trial court. However, the situation in this case is different. As correctly conceded by Mrs. Sumari, when Exhibit P2 was introduced at the trial, it was accepted without objection being raised by the respondents who, incidentally, were represented by Mrs. Sumari and

Mr Boaz. The learned counsel for the respondent had the opportunity of cross examining the Returning Officer on this Exhibit P2. It was therefore part of good evidence before the trial court. What is more, from our perusal of the record, we note that in the course of the trial, Mr Mbezi had raised the matter. For these reasons we do not agree with Mrs Sumari that the matter would prejudice the respondents if it is raised at the appeal stage.

We will now briefly address on the merits of this ground. As already observed, we have made a finding to the effect that there is sufficient evidence on record in support of the complaint in ground 4, that the Returning Officer refused to resolve the issue of the disputed votes. As a result, sections 35F(1) and 80(1) of the Elections Act, 1985 were not complied with. Mr Mbezi contended that such non-compliance affected the result of the election. We do not think that the incomplete adding up exercise of the votes which according to the evidence on record centred on the disputed votes affected the final result of the election. It has amply been demonstrated that the estimated number of the disputed votes was 325. This figure, if it is added on a *pro rata* basis to the votes of each of the twelve (12) contesting candidates, the end result would still be the same. As for the Exhibit P2 which was extracted from the RF.2 forms, we are also in agreement with Mr Mbezi that the Returning Officer (RW1) compiled it in the absence of the candidates and their agents. However, we do not agree with Mr Mbezi that the result of the election was affected by the fact that Exhibit P2 was prepared by the Returning Officer (RW1) in the absence of the candidates and their agents. Exhibit P2 being an extract of the RF.2 Forms, its compilation in the absence of the candidates and their agents could perhaps be such a non-compliance that could well affect the result of the election if there was cogent proof that it was incorrect. Such evidence could hardly be gleaned from the record. In the absence of such evidence, we are of the considered opinion that the non-compliance did not affect the result of the election. With regard to the complaint that the learned judge did not address on the effect of the incomplete

adding up exercise of the votes and the absence of the candidates and their agents, we think the matter has been touched upon in ground 5. After all, at the trial in the High Court, the issue was not framed expressly in these terms. Consequently, the learned trial judge addressed and answered the issues as framed and agreed upon. The issue which seems to have a close bearing to this was issue number six which is the subject matter of ground 1 of this appeal. In that way, and in fairness to the learned trial judge, we think it is an unjustified criticism against him for not having answered an issue in terms that were not before him. Otherwise, as already demonstrated, we think the learned judge addressed the issue pertaining to the adding up exercise of the votes. As a matter of fact, having found that the incompletion of the adding up exercise did not affect the result of the election, it is our view that even if the learned trial judge had addressed the issue expressly in the terms set out in this ground, still we think he would have come to the same conclusion. That is, that the result of the election would not be affected. We find this ground unfounded. It is dismissed as well.

In ground 6, the appellant complained:

> That having held that on the election day at the polling stations named in paragraph 8 of the petition voters were actually intimidated by organized groups of the second respondent's supporters or agents the learned trial judge erred in not holding that the election was not free and fair and that by reason thereof many voters could not vote for a person of their choice.

Under paragraph 8 of the petition the following polling stations were specified: Gungu Ofisi ya Kata A to F, Mwanga Ofisi ya Kata A to E, Buronge Shule ya Msingi A to E, Zahanati ya Gungu A to C, Buzebazeba Shule ya Msingi A to E, Muminu A to D, Ujiji Mahakamani A and B and Buhando Businde. Mr Mbezi, learned counsel strongly criticized the learned trial judge in not holding that the election was not free and fair. He advanced the following reasons: Firstly, there was wide spread chaos and lawlessness at Mwanga, Gungu Zahanati, Buzebazeba and Buronge polling stations. Secondly, as a result of the ensuing chaos and break down of law and order, many people did not vote.

Thirdly, because of the confusion and panic the logical conclusion was that the environment was not conducive to a free and fair election. He referred to the evidence of the appellant (PW.1) which shows that a group of people was moving from one polling station to another armed with either sticks, knives or pangas shouting and booing against the appellant. According to Mr Mbezi, the evidence of PW.1 shows that chaos, terror and fear reigned at Buhanda Businde, Buronge Primary School, Gungu Dispensary (*Zahanati*), Gungu kata, Mwanga Kata and Munimu polling stations. He added that the evidence of PW1, the appellant, was supported by PW2, PW4, PW7, PW20, PW27 and PW32. On this evidence, Mr Mbezi went on to submit, widespread chaos, intimidation and threat at these polling stations had been sufficiently proved. It was therefore erroneous on the part of the trial judge not to make a finding that the chaos at the polling stations did not cause many voters not to vote. On this evidence, Mr Mbezi stressed, the learned judge should have gone further to find that the election was not free and fair.

In reply Mr Mwengela forcefully submitted that the election was free and fair. Giving reasons he said, first, the evidence of the petitioner's witnesses such as PW13, PW18 and PW.16 proved that there was general chaos and not intimidation. Second, that no threat or intimidation was used to force any of the voters to vote for the second respondent or any particular candidate. Third, that chaos was caused by a group of hooligans who were not in any way connected with the second respondent. Fourthly, the evidence of Salum Abdalla (PW13) who defected from CHADEMA to CCM is not to be relied upon because he had an interest to serve i.e. to give evidence favourable to his colleague CCM candidate, the petitioner at the trial, that is, the appellant. In such circumstances, Mr Mwengela concluded, so long as the voters were not forced to vote in favour of or against a particular candidate, the trial judge was justified in his finding that the election was free and fair.

We have given anxious consideration to these submissions. It is apparent that from his submission, Mr Mwengela concedes that the evidence adduced at the trial established the existence of chaos at

the polling stations named in paragraph 8 of the petition. What is seriously contended is that there was intimidation and that if there was any, it had nothing to do with the second respondent. At the trial, in part, the Seventh Issue read:

> Whether on the election day, at the polling stations named in paragraph 8 of the petition, registered voters were assaulted, threatened and or intimidated by agents of the second respondent to scare them from voting....

In answer to this issue, the learned trial judge stated:

> I do not want to labour much on this issue. It is true that such youths were there and did what the petitioner said they did. The ultimate issue arising there will be whether the election was so affected as to enable this court to say that the elections be declared null and void ... I agree with that issue just to the extent that organized groups were there to intimidate people. I do not, however, go further to say that it caused many voters not to vote for a person of their choice.

The appellant strongly contends that the trial judge should have held that the assault, threats and intimidation scared the registered voters from voting and that as a result, the election was not free and fair. In order to satisfy ourselves of the propriety of the trial judge's finding on threat, assault, intimidation and chaos, we shall step into the shoes of the trial judge to briefly analyse, evaluate and assess the evidence on record. According to the appellant, Azim Suleiman Premji, (PW1) on the voting day, 19 October 1995, as the voting exercise was going on, he visited the various polling stations mentioned in paragraph 8 of the petition.

As to what he witnessed in these polling stations he stated:

> I had gone to Gungu Dispensary. When I arrived there I saw a lot of chaos. The boys were holding stones, sticks. They were threatening people. When I arrived they booed at me ... I arrived there at 10:00am I had been there at 7:00am. Then I came again the second time. The situation was bad ... There was no order at all. The boys belonged to the second respondent. They were wearing T-Shirts shouting doctor, doctor. The T-Shirts had the picture of Mr Kabourou and the symbol of CHADEMA Party at the back ... I had to run away. I proceeded to Buronge Primary School polling Station ... There were a lot of boys. They were shouting, Mwizi, Ponjoro, doctor, doctor, doctor. At Gungu polling station, I found the same story ... at Mwanga Community Centre, as a result of the chaos done by agents of the second respondent the police had to use tear gas... All people dispersed. They fled – all including my agents ...

The fact that on the polling day, there was a state of chaos with youths pushing others while shouting Doctor, Doctor, "mchagueni msomi Mr Kabourou ambaye atawasaidia" is also supported by Edward Mathias (PW2), the Officer In-charge of the Field Force Unit at Kigoma. In his evidence, he stated that at about 2:00pm. he visited again the polling station at Gungu; Ofisi ya Kata and the Community Centre – Mwanga where he found the youths still causing a lot of chaos. Describing the state of affairs PW2 said:

> It was all chaotic. I went around. I shouted to those who were creating havoc to stop it... Then they started to throw stones at us. They were throwing the stones to the voters and ourselves. It was this time when I gave orders. It was too much. I gave orders ... It was not easy to separate voters and rioters. So all got affected with tear gas. Yes we threw tear gas bombs to those who were creating havoc...

So, as regards chaos and the prevailing atmosphere at these polling stations on the polling day, we agree with the learned trial judge that the evidence of PW2, a police officer incharge of the Field Force Unit at Kigoma vividly gave a clear picture of the circumstances leading to the use of tear gas. What is more, the evidence of PW1 and PW2 is amply supported by many other independent witnesses that the group was threatening by sharpening of pangas (PW7), threat to cut the breasts of women (PW20 and PW13), throwing of stones (PW23), assault (PW25) and breaking of motor vehicle windscreen (PW26). We do not agree with Mr Mwengela that as PW13, was a defector from CHADEMA to CCM his evidence was unreliable. His (PW13) evidence was amply supported by the other independent witnesses including PW2. If the appellant's case was based entirely on the

evidence of PW13 a defector, the situation would be different. Therefore taking into account the evidence as a whole, we are of the considered opinion that there was sufficient evidence upon which the learned judge arrived at the conclusion that at the time of voting there was wide spread chaos as a result of which tear gas was used.

With chaos reigning at the specified polling stations and tear gas used, was the election free and fair? The learned trial judge was of the settled view that in spite of the chaos and tear gas, the election was free and fair. Mr Mwengela maintained that the voters were still free to choose candidates of their choice because inside the polling booths there was no chaos and that the voters were not forced to vote for a particular candidate.

We agree that there was no physical force involved inside the polling booths. From the evidence, the chaotic group of youths was moving around the polling stations up to the door way leading to the polling booths. It is not disputed that the polling booths were not far from the surrounding areas where the trouble making youths were milling around shouting. Voting was taking place in such an environment characterized by sharpening pangas, threats of cutting breasts of women, throwing of stones and shouts of "doctor, doctor" "mchagueni msomi Mr Kabourou" "msipigie kura Azim Premji, Ponjoro". With such incitement, heckling, pushing of women and old men who had come to vote, and the resulting use of tear gas it is our view that the prevailing condition at the time was hardly condusive to a free and fair election. Under such a frenzic atmosphere and panic near the polling booths it is most unlikely that a voter under such circumstances would cast his vote freely without any restraint of fear for a candidate of his choice. To our minds it would not make any difference if the second respondent did not have anything to do with the youths creating chaos as Mr Mwengela urged us to accept. It is elementary that for a free and fair election, the pre-requisite condition is that the environment under which the election takes place should be such that the voters are assured of their security physically and mentally free to make a choice of their own candidate. The absence of such an environment

as a result of chaos and break down of law and order could well have been caused by a default on the part of state agencies or the second respondent. Which ever may be the case, the end result is the same i.e. the voters being deprived of their basic constitutional right to a free and fair election. Thus, even if, as urged by Mr Mwengela it is accepted that the second respondent did not have anything to do with the group of youths causing chaos, it would not make any difference. The voters at the various polling stations visited by the riotous youths were subjected to an environment in which they could not exercise their right to vote freely and fairly. It would be absurd in the extreme to hold as Mr Mwengela contended, that though the election was characterized by widespread acts of hooliganism and chaos, such an election should still be regarded as free and fair because the second respondent was not a party to the chaos. We say it would be absurd to hold so because what is important is the effect upon the voters. We think the linkage with the second respondent would be relevant in a situation involving, say, a complaint based on corrupt practices. In that case, as a matter of principle, it would be necessary to establish that the corrupt practices or acts complained of were connected or linked to the respondent. For it is quite possible for third parties to perpetrate acts of corrupt practices without the knowledge of the respondent. In that case, there would be no basis upon which to hold against the respondent. In this case, the situation is different irrespective of whoever caused the chaos, the acts causing chaos and confusion rendered the election not free and fair.

The fundamental and constitutional importance of the two pre-requisites in a democratic election viz to be free and fair was underscored by this court in the first Premji case *supra*. The Court emphasized:

> Second, taking into account the principle which underlines the Constitution and the Elections Act, 1985 that elections shall be free and fair, we are of the considered opinion that an election which is generally unfree and unfair is not an election at all as envisaged by the Constitution and the Elections Act, and generally anything which renders the election unfree or, and unfair is in law valid ground for nullification of such purported election.

Because of such basic importance attached to these constitutional requirements, it hardly needs to be emphasized that all times during elections, state and other agencies involved including political parties are duty bound to ensure that peace and tranquility is maintained to the maximum standard. Hooliganism and any acts causing chaos that result in the denial of a free and fair election should be condemned. They do not serve the interests of the voters in the constituency or the nation as a whole. Accordingly, we allow the complaint in this ground.

We now revert to ground 9. The complaint in this ground is that having held that the statements made by the second respondent during his election campaigns were in fact racial and capable of raising incitement and riot among the voters in Kigoma, the learned trial judge erred in failing to address himself to and answer in the affirmative issue number 11. The essence of issue number 11 was whether the second respondent made the statements with intent to exploit racial differences. The learned trial judge answered the issue in the affirmative stating:

> I would therefore answer the issue of speeches by saying this, that, indeed ... defamatory, but the defamation ...

In support of this ground Mr Mbezi stated that the issue to be addressed in this ground is whether the statements were aimed at exploiting racial differences. For his part, he was firmly of the view that the statements, which, it is common knowledge are not disputed by the second respondent sparked of nothing but racialism in character. From the record, Mr Mbezi stated that the second respondent's defence in the trial court was that in the various statements during the campaign, he was merely expounding the policy of CHADEMA, without singling out any particular candidate. This, Mr Mbezi countered, is not correct because, according to him, if the aim was to expound the policy of his political party, CHADEMA, this could neutrally be stated in general terms without any reference to the appellant's racial groupage. Mr Mbezi referred to extracts of various statements which were tendered at the trial including Exhibits P5, at Kigoma Railway Station on 19

October 1995. In this statement, Mr Mbezi referred to the following portions:

> Demokrasi inapokuwa demokrasi kweli kweli maana yake ni kuweza *kumprotect* au kuweza kulinda hata mtu moja hata kama ni kichaa ana mawazo yake muyaheshimu ... linda hawa Wahindi kuliko raia wengine wowote. [emphasis supplied]

In another portion of the speech, it is further stated:

> Lakini inapobidi biashara maana yake ni mtaji mzuri na Wahindi peke yao wanaruhusiwa kuingia benki na kuchukua overdraft na mapesa mengi wakati wewe Mwafrika hupewi chochote. [emphasis supplied]

On the same day, at Gungu, the second respondent is recorded at page 547 of the record in part as saying:

> ... si mtu mwingine ni Ponjoro Azim Premji ... Azim ana hela kuwadanganya mama zetu na dada zetu wamesaga miguu hapa kwenda Kigoma usiku na mchana, Mhindi, Ponjoro hela atatoa wapi, hela zetu sisi Wa-Tanzania.

At Mshilampamba on 5 October 1995, part of another speech reads:

> Sisi siyo akina Premji Bwana; Hawajui ni nani anayeishi hapa na ni nani aliyepatwa na maafa...

Yet in another part of the speech the second respondent continues:

> Sasa ni mtu gani wa vamia atakayempa kura yake Azim Premji anayeahidi eti (kwa sauti ya Kihindi) ukichagua mimi mbunge mimi nitahakikisha kuwa kila sehemu inapata zamu yake ya umeme ...

On 5 May 1995, the second respondent made another statement at kwa noti. He said among others:

> Nauliza Serikali ya Tanzania kwa nini Wahindi hawakwenda Vijiji vya Ujamaa, na kwa nini ninyi mnakuwa na kazi mbili tu biashara mmewaachia Wahindi na tangu tumepata Uhuru mpaka Nyerere anajiuzulu Ameir Jamal na Alnoor Kassam ndiyo pekee Mawaziri wa Viwanda na Biashara kwa nini?

In yet another speech at Lubengele, on 12 October 1995, the second respondent said:

Wao mabwana miraba minne wanatembea ndani ya magari ya milioni arobaini, lakini wanakuja kukusanya kodi kwako wewe unayeuza mtaji wa elfu tatu...

Then the speech is concluded:

Atakayempigia kura Azim Premji Mungu amfanye nini? (Amlaani) ... kwa sababu hatutakii mema...

On the basis of these statements, Mr Mbezi charged, it should be inferred that the second respondent intended to incite racial differences between the Asian community and the Africans. Otherwise Mr Mbezi went on, it was neither necessary nor relevant to make references in the statements to the Indian Community as a whole and not specifically to Azim Premji as an individual. Taking into account the statements in their context, Mr Mbezi was of the settled view that the second respondent had contravened section 108(1)(a) of the Elections Act, 1985. Furthermore, Mr Mbezi submitted, the learned trial judge erred in law in applying section 108(1)(b) instead of section 108(1)(a). As a result, Mr Mbezi contended, the trial judge left the issue (number 11) on whether the statements were intended to exploit racial differences unanswered.

For the second respondent, Mr Mwengela conceded that the second respondent made these statements. His strong point was that the statements were not meant to exploit racial differences in any way. That in the speeches, reference was made to Premji as a political rival and not on a racial basis. On this Mr Mwengela was supported by Mrs. Sumari learned Senior State Attorney for the Attorney General. The speeches were made during the election campaign and so, Mr Mwengela further maintained, the aim of the second respondent's speeches was to expound the policy of the political party, CHADEMA. He added that parts of the second respondent's statements were in response to the appellant's speeches made at earlier campaign meeting. Finally, Mr Mwengela said that the speeches by the second respondent were capable of exciting racial differences.

Upon a close fresh re-evaluation of the evidence, we are satisfied, like the trial judge that the extracted statements by the second respondent were racial in character. We think, these statements when read within the whole context, were aimed at exploiting the racial differences between the appellant and the second respondent. It is common ground that the appellant is a Tanzanian of Asian origin and the second respondent, is a Tanzanian of African origin. Mr Mwengela's contention that the statements were not aimed at exploiting racial differences, that they were aimed at the second respondent's exposition of the party (CHADEMA) policy is attractive. However, we are, with respect not convinced. It is common knowledge that if, as urged by Mr Mwengela that was the purpose of the statements, it was hardly necessary for the second respondent to make such scarilous and derogatory references covering the Asian community. It would suffice if reference was made to Azim Premji as an individual candidate without evoking the racial stigma. As can be seen from the extracts of the speeches, it is apparent that the speeches were couched in such pejorative terms as "akina Premji", "Ponjoro", "Mhindi", "Wahindi kuliko raia wengine" etc. are used. From the totality of the evidence the statements are such that when they are taken and considered within the context of the election campaign, the logical conclusion is that they were made with the intention to exploit the racial differences by evoking the sympathies of the African community against the appellant. Mr Mwengela had advanced the argument that the second respondent was responding to the speeches that the appellant had made during the previous campaign meetings. We find this submission interesting but we cannot accept it. Statements which incite racial differences are in contravention of section 108(1)(a) of the Elections Act, 1985. In that section, we can hardly glean any proviso under which retaliatory speeches of this nature are allowed. On the whole therefore, we are satisfied that the learned judge erred in failing to make a finding that the speeches were aimed at exploiting racial differences.

However, in dealing further with the matter it is apparent that the learned trial judge got mixed up in the application of

sections 108(2)(a) and 108(2)(b) of the Elections Act, 1985. As a result, he went to great lengths addressing an issue which was not before the court, it was not raised in the pleadings. It seems to us that by applying section 108(1)(b) instead of section 108(1)(a) the trial judge addressed the issue whether the non-compliance affected the result of the section. This, with respect, was an error on the part of the learned judge. The issue falling for consideration was whether ground for declaring the election void had been established in terms of section 108(2)(a). Section 108 of the Elections Act, 1985 provides:

> 108(1) ...
>
> (2) The Election of a candidate as a member of parliament shall be declared void if any of the following grounds are proved to the satisfaction of the court and on no other ground, namely:
>
> (a) that, during the election campaign statements were made by the candidate, or on his behalf and with his knowledge and consent or approval, with intent to exploit tribal, racial or religious issues or differences pertinent to the ... are not of the same sex, with intent to exploit such difference;
>
> (b) non-compliance with the provisions of this Act relating to election if it appears that the election was not conducted in accordance with the principles laid down in such provisions and that such non-compliance affected the result of the election;[emphasis supplied]

Directing his mind to these provisions of the Act, the learned trial judge expressed his finding as follows:

> After considerable thought, I have come to the conclusion that all the extracts I have pointed out, spoken by Mr Kabourou, were defamatory of Azim Premji. They were racial and they were capable of raising incitement and riot among the voters of Kigoma...

Then the learned trial judge extensively analysed decisions of this court in *Peter Msekalile v. Leonard Newe Delefa*, (3) and *1. The Attorney-General, 2. Radio Tanzania Dar es Salaam, 3. Azim Suleiman Premji v. Dr Aman Walid Kabourou*, (4). In his conclusion, the learned trial judge said:

> I therefore answer the issue of speeches by saying this that, indeed they were defamatory, but the defamation is not inexcusable or indefensible. It therefore cannot avoid the election.

In this finding, we are respectfully in agreement with Mr Mbezi that the learned trial judge misapplied the law. Consequently, he made an erroneous finding with an affirmative answer to the question pertaining to defamation which was not raised in the pleadings. The final result was that the relevant issue whether the statements were intended to exploit racial differences was left unanswered. With respect, and as already observed, this was clearly wrong. In the process, the learned judge fell into the trap of his own making as it were, expending considerable amount of time analyzing cases on defamation which were irrelevant to this case. In the event, he came to an erroneous finding and conclusion. We need not say more on defamation and related cases.

On our part, upon a close and fresh re-evaluation of the evidence pertaining to the statements of the second respondent as extracted, and a proper construction and application of section 108(2)(a), we are satisfied that sufficient credible evidence had been adduced to prove to the satisfaction of the court that the statements by the second respondent, Mr Aman Walid Kabourou were made with the intention to exploit racial differences pertinent to the election. This, it is common ground, was in contravention to section 108(2)(a) of the Elections Act, 1985. It hardly needs to be emphasized that unlike section 108(2)(b), section 108(2)(a) is absolute. Once it is proved to the satisfaction of the court that in fact statements were made with intent to exploit racial differences during the campaign meetings, that is sufficient ground for declaring the election void. The rationale behind this provision is not far to seek. That is, it was a deliberate provision aimed at dealing with racialism in the country which, left unchecked, would have far reaching consequences on the national unity. In this case, once it was proved that such racial statements were made, it was, as already observed erroneous for the trial judge

to go further in enquiring whether the result of the election was affected. The law does not provide to that effect. As for the intention to exploit racial differences, this, it is elementary can be inferred from the nature of the statements and the surrounding circumstances in which they were made. Here, the statements were made during the campaign meetings, so in our opinion the inference is that they were made with the intention of exploiting racial differences in order to win votes. We think, with respect, that if the learned trial judge had correctly addressed on the applicable section of the law and the issue before him, he would have come to this conclusion. Therefore we find merit in ground 9.

Ground ten pertains to defamation. It was abandoned in the course of hearing the appeal. As for ground eleven, the complaint was that the learned trial judge erred in not holding that the non-compliances did not affect the result of the election. However, it may well be observed at this juncture that it was superfluous to include this as a ground as it is consequential upon the other relevant grounds. Be that as it may, we have already held that the non-compliances did not affect the result of the election.

Consequently, for the foregoing reasons the complaints in grounds one, two, three, four and five are dismissed. Grounds seven, eight and ten which were abandoned are as well dismissed. The complaints in grounds 6 and 9 are allowed. In the event, as grounds 6 and 9 are, as a matter of law sufficient grounds for voiding an election, the end result is that we allow the appeal and declare the Kigoma Urban Constituency Parliamentary Election null and void. We also make an order for costs in favour of the appellant both in this court and the court below.

BUNDA DISTRICT COUNCIL *v.* VIRIAN TANZANIA LTD.

HIGH COURT OF TANZANIA AT MWANZA

(Nsekela, J.)

CIVIL CASE No. 21 OF 1997

Civil Practice and Procedure – Leave to defend a summary suit – Oral application to file a supplementary affidavit made by an advocate recently instructed – Order XXXV, rule 3 and Order XII, rule 2 of the Civil Procedure Code and sections 68(e) and 95 of the Civil Procedure Code.

Civil practice and procedure – Inherent jurisdiction – Statute containing specific provision under which the court may be moved to take a particular action – Inherent powers of the court should not be invoked for such action.

The plaintiff filed a summary suit under Order XXXV of the Civil Procedure Code for the payment of money. The defendant filed a chamber application under Order XXXV, rule 3 of the Code seeking, *inter alia,* leave to defend the suit. The application was supported by an affidavit of the applicant's first advocate. The plaintiff's advocate filed a counter-affidavit opposing the application for leave. When the application was called on for hearing, an advocate of the applicant who had recently been instructed prayed for time to file a supplementary affidavit. The plaintiff's advocate strongly opposed the prayer and prayed for the case to be heard.

Held: (i) Inherent jurisdiction must be exercised subject to the rule that if the Code does contain specific provisions which will meet the necessities of the case in question, such provisions should be followed and the inherent jurisdiction should not be invoked; it is only when there is no clear provision in the Civil Procedure Code that inherent jurisdiction can be invoked.

(ii) Since in this case there was a specific provision governing the making of applications before the High Court, the inherent powers of the court could not be exercised under section 95 of the Code.

(iii) The oral application, seeking to take a step for the purpose of assisting the applicant in the prosecution of his case before judgment, was properly made under section 68(e) of the Code; and as the applicant's advocate had taken over the conduct of the case from another advocate, there was no reason to deny the applicant legal representation in prosecuting his case.

The applicant's advocate was directed to file a formal application within seven days.

Order accordingly

Statutory provisions referred to:

(i) Civil Procedure Code, sections 68(e) and 95, Order XXXV, rule 3 and Order XII, rule 2, Order XXXV

(ii) Indian Code of Civil Procedure, section 151

(iii) Interpretation and General Clauses Act Number 30 of 1972

(iv) Local Government (District Authorities) Act Number 7 of 1982

Mr. Matata, for the Plaintiff/Respondent

Mr. Galati, for the Defendant/Applicant

RULING

(Delivered 25 August 1999)

NSEKELA, J.: The plaintiff, Bunda District Council, a local authority established under the Local Government (District Authorities) Act Number 7 of 1982 instituted a summary suit Number 21 of 1997 against the defendant, Virian Tanzania Ltd. Claiming, *inter alia,* judgment and decree for payment of TZS. 18 165 000. The suit was instituted under Order XXXV of the Civil Procedure Code. The defendant (now applicant) has filed a chamber application under Order XXXV, rule 3 and Order XLII. Rule 2 of the Civil Procedure Code seeking, *inter alia*, the following order:

Leave to defend suit be granted as there are triable issues in the main suit.

The application is supported by an affidavit sworn by one Baraka Makowe, learned advocate for the applicant. The supporting affidavit in part reads as hereunder:

2.. That the respondent has filed a summary suit against the applicant of which no defence can be filed without leave to this Honourable Court;

3.. That there are triable issues that merit the hearing of the suit inter-partes, namely:

(i) Whether on agent can collect cotton cess vide a by-law that has not been consented to by the Minister for Local Government.

(ii) Whether an agent is liable on non – collecting levy/cess that is a result of retrospective applicability of a subsidiary legislation.

On his part, Mr. Matata learned advocate for the respondent has filed a counter-affidavit which in part reads:

3. That the respondent denies the contents of paragraph 3(1) of the affidavit and avers that the by-law have been consented to by the Minister for Local Government and published as G.N. 294 of 1996.

4. That as regards to the contents of paragraph 3(ii) of the affidavit the respondent avers that the aforesaid by-law came into operation on the 1 January 1996 by virtue of clause 2 of G.N. 294/96 read together with section 7 of the Interpretation and General Clauses Act 30/72.

5. That in our view the applicant have no plausible defence to the claim in the main suit.

On 9 March 1999 this application came before me for hearing. The applicant was represented by Mr. Galati, learned advocate whereas Mr. Matata, learned advocate, represented the respondent. Mr. Galati, who apparently had been recently instructed to handle the matter for the applicant, prayed for more time, in order to file a supplementary affidavit. Mr. Matata however strongly objected this course of action and implored the court to proceed on hearing the application. In

reply, Mr. Galati submitted that this court has inherent powers under sections 95 and 68(e) of the CPC to grant any order in the interests of justice. This matter has caused me some anxiety. The first application by the applicant was due for hearing on 9 March 1999 but did not take off because apparently the applicant had in between instructed another advocate, Mr. Galati who then made an oral application to file a supplementary affidavit citing sections 68(e) and 95 of the Civil Procedure Code as his authorities for so doing. I reproduce them hereunder:

> 68. In order to prevent the ends of justice from being defeated the court may, subject to any rules in that behalf:
>
> (e) make such other interlocutory Orders as may appear to the court to be just and convenient.
>
> 95. Nothing in this code shall be deemed to limit or otherwise affect the inherent power of the court to make such orders as may be necessary for the ends of justice or to prevent abuse of the process of the court.

Starting with section 95 of the Civil Procedure Code I can do no better than quote from **Mulla's Code of Civil Procedure** (13 ed) at page 577 where the learned author in a commentary of section 151 of the Indian Code of Civil Procedure, which is in *pari meteria* with our section 95 above, had this to say:

> Inherent jurisdiction must be exercised subject to the rule that if the Code does contain specific provisions which would meet the necessities of the case in question such provisions should be followed and the inherent jurisdiction should not be involved. It is only when there is no clear provision in the Civil Procedure Code that inherent jurisdiction can be invoked.

And in **Sarkar's Law of Civil Procedure** (8 ed) the learned authors have this to say on page 484:

> The inherent power being very wide and incapable of detention its limits should be carefully guarded. The power is intended to supplement the other provisions of the Code and not to evade them or to invent a new procedure according to individual sentiment.

The question that arises is, does the Civil Procedure Code have any provision governing the making of applications before the court? I think the answer is, yes and this is Order XLIII, rule 2 of the Civil Procedure Code which is in the following terms:

> Every application to the court made under this Code shall, unless otherwise provided, be made by a Chamber Summons supported by affidavit:
>
> Provided that the court may where it considers fit to do so, entertain an application made orally, or where all the parties to a suit consent to the order applied for being made, by a memorandum in writing signed by all the parties or their advocates, or in such other mode as may be appropriate having regard to all the circumstances under which the application is made.

Under the circumstances, since there is a specific provision governing the making of applications before this court, the inherent powers of the court cannot be exercised under section 95 of the Civil Procedure Code as contended by Mr. Galati. This takes me to section 68(e) of the Civil Procedure Code. It is common knowledge that in Civil Case Number 21 of 1997 the applicant has filed an application for leave to defend the suit. The current learned advocate for the Applicant, Mr. Galati has made an oral application to file a supplementary affidavit probably to perfect the existing one. According to **Jowitt's Dictionary of English Law** (2 ed) at page 999 an interlocutory proceeding :

> is incidental to the principal object of the action, namely, the judgment. This interlocutory applications in an action include all steps taken for the purpose of assisting either party in the prosecution of his case, whether before or after final judgment; or of protecting or otherwise dealing with the subject matter of the action before the rights of the parties are finally determined; or executing the judgment when obtained. Such are applications for time to take a step e.g. to deliver a pleading, for discovery, for an interim injunction, for appointment of a receiver, for obtaining a garnishee order, etc.

In the instant oral application what Mr. Galati is seeking to do is to take a step for the purpose of assisting the applicant in the prosecution of his case before judgment. It is my considered view that the learned advocate is on firm ground in moving the court to invoke section 68(e) of the Civil Procedure Code. Reverting to Order XLIII, rule 2 of the Civil Procedure Code, the proviso to this rule allows oral applications to be made. I have taken into consideration the fact that now Mr. Galati has taken over the conduct of the matter on behalf of the applicant and that the applicant should not be denied legal representation in prosecuting his case. In the result, I do hereby order that Mr. Galati make a formal application to that effect within seven (7) days hereof and the case be mentioned before the District Registrar within fourteen (14) days thereafter with a view to fixing a hearing date. It is so ordered.

BAMPRASS STAR SERVICE STATION LTD. *v.* MRS. FATUMA MWALE

HIGH COURT OF TANZANIA
AT ARUSHA

(Rutakangwa, J)

CIVIL APPEAL No. 27 OF 1993

(Appeal from the Arusha Resident Magistrate's Court, in Civil Case No. 126 of 1993)

Tort – Tortious liability of a retailer – Whether instances of such liability are limited.

Tort – Negligence – Instead of supplying battery acid appellant supplied JIK and gratuitously topped up the battery with JIK – Battery damaged – Whether appellant tortuously liable.

Tort – Vicarious liability – Servants of appellant acted negligently during the course of employment – Appellant vicariously liable.

Tort – Damages – Special damages in tort – Special damages must be specifically pleaded and strictly proved.

Damages – Special damages – Special damages must be specifically pleaded and strictly proved.

The respondent, a business woman who used to hire her motor vehicle to various tour operators, drove the motor vehicle to the appellant's service station and ordered, among other things, car battery acid for topping up her battery. Instead of supplying her with battery acid the servants of the appellant supplied a liquid detergent known as JIK and gratuitously undertook to top up the battery. The topping up the battery with JIK instead of battery acid damaged the battery. Since the battery was damaged from 13 August 1993 to 13 October 1993 the motor vehicle was grounded and so the respondent could not do business using the vehicle. The appellant had made promises to replace the damaged battery but did not fulfil such promises. Because the appellant had failed to replace the battery the respondent decided to replace the battery herself. She filed a suit in the court of the Resident Magistrate alleging negligence on the part of the appellant and claimed both special and general damages. The trial court found for the respondent and awarded special damages amounting to TZS. 2 238 660 plus costs but did not award general damages because the same were not particularized and proved. Aggrieved by the decision of the trial court the appellant appealed to the High Court. The Appellate Court considered, among other things, on which branch of law, whether tort or contract, the cause action was based and whether damages were properly awarded.

Held: (i) On the facts established in this case it was not necessary for the respondent to rely on contract in order to show cause of action because the duty allegedly breached by the appellant through its servants arose out of a liability independent of the personal obligations under any contract;

(ii) Negligence as a tort is the breach of a legal duty to take care which results in damage to the plaintiff; and how wide the scope of the duty of care in negligence is to be laid by the courts depending ultimately upon the courts' assessment of the demands of society for protection from the carelessness of others;

(iii) The appellant had a duty of care imposed by the principle of proximity on the appellant company while rendering service to the respondent to supply the right type of battery acid;

(iv) Although the appellant was not bound to top up respondent's battery with battery acid, since he undertook to do so he was bound to perform the service or render it diligently and with due care as not to injure the respondent by putting the right acid;

(v) The respondent's claim was rightly based on the tort of negligence and the appellant company is vicariously liable in the negligent acts of its servants in the course of their employment;

(vi) With regard to general damages the plaintiff need only aver that such damage has been suffered and the quantum to be awarded is for the court to decide;

(vii) The trial court was wrong in not awarding general damages;

(viii) It is trite law that special damages being "exceptional in their character" and which may consist of "off-pocket expenses and loss of earnings incurred down to the date of trial" must not only be claimed specifically but also "strictly proved";

(ix) The respondent is entitle to a total of TZS. 278 660 as special damages.

Appeal partly allowed and partly dismissed

Cases referred to:

(1) *Jackson v. Mayfair Window Cleaning Co. Ltd. and another* [1952] 1 All ER 215

(2) *Jarvis v. Moy, Davies, Smith, van Dervell and Co.* [1936] 1 KB 405

(3) *Okale v. R.* [1965] EA 555 (CA)

(4) *The Medical Officer in charge, Mkinga Hospital v. Theodolina Alphaxed,* Civil Appeal Number 49 of 1992 (unreported)

(5) *Donoghue v. Stevenson* [1932] AC 562

(6) *Hedley Byrne and Co. Ltd. v. Heller and Partners Ltd.* [1964] AC 465

(7) *Skelton v. London and North Western Railway Co.* (1867) LR 2 CP 631

(8) *B.A. Minga v. Mwananchi Total Service Station Shinyanga and Total (T) Ltd.* [1972] HCD n. 241

(9) *The Susquehanna* [1926] AC 655

(10) *Prehn v. Royal Bank of Liverpool* (1870) LRS EX. 92

(11) *British Transport Commission v. Gourley* [1956] AC 185

(12) *The C.M.C. Ltd v. Moshi/Arusha Occupational Health Services* [1990] T.L.R 96

(13) *British Westinghouse Co. v. Underground Railway* [1912] AC 673

(14) *Liesbosch Dredger v. Edison S.S.* [1933] AC 499

(15) *Strong Bruks Aktie Bolag v. Ahutchison* [1905] AC 515

(16) *The Greta Holme* [1897] AC 596

(17) *The Mapresa* [1907] AC 241

(18) *Macrae J. Swindels* [1954] 1 W.L.R. 597; [1954] 2 All ER 260

Statutory provision referred to:

(i) Law of Evidence Act, 1967

Mr. D'Souza, for the Appellant

Mr. Ojare, for the Respondent

JUDGMENT

(Delivered 26 August 1999)

RUTAKANGWA, J.: This is an appeal from the decree passed in the judgment of the Arusha Resident Magistrate's Court in Civil Case Number 126 of 1993. In that suit the appellant, M/S Bamprass Star Service Station Ltd was the defendant while the respondent Mrs. Fatuma Mwale was the plaintiff. The plaintiff to a greater extent, carried the day in the trial court. The claim of the respondent was based on the tort of negligence. The trial court awarded the plaintiff special damages

to the tune of TZS. 2 238 660 plus costs, but her claim for general damages was disallowed. The plaintiff was wholly satisfied with that decision. The defendant was not, and hence this appeal.

Mr D'Souza, learned counsel for the appellant has preferred to preface his well researched written submission in this appeal with this assertion:

"[T]his case looks simple but it is not". Amplifying this statement, he goes on to say:

> ... On analysis it raises several issues on law of evidence, burden and standard of proof, liability of a retailer of goods, liability of a retailer of goods in negligence, assessment of damages in contract and/or tort, mitigation of damages, illegal contraction and trading, etc.

In his equally illustrative written submission in reply to Mr D'Souza's, Mr Ojare learned counsel for the respondent, appear to downplay the above pointed out complexities in the appeal. He begins his response stating:

> ... we have at the outset to state that contrary to what is stated by learned counsel for the appellant in his written submission; the various issues presented by this appeal are straight forward, and the major problem afflicting learned counsel for the appellant is the application of the law to the facts of the case based on this appeal.

All this makes some of the issues in this appeal, in my humble opinion, to be very intriguing, if not thought-provoking, though not insurmountable.

I, of course understand that all this would have been strictly unnecessary but for ground number 2 of the Memorandum of Appeal. The appellant is complaining therein that:

> The trial court erred in law in treating the case as one for negligence and it ought to have found that no cause of action in negligence was proved on the facts.

The respondent however is of a different view. I may as well point out at this juncture that I will have to deal with this taxing legal

issue without the benefit of having the opinion of the trial court on it. This is because it has been raised for the first time at this appellate stage. Counsel for the appellant can be excused because he never handled the case at the trial stage. The same applies to counsel for the respondent.

In order, therefore, to meet the competing demands of both counsel, before embarking on the facts (both admitted and at issue) I have found also be the opposite preface this judgement with the instructive, holding of Barry, J. in the case of *Jackson v. Mavrair Window Cleaning Co. Ltd. and another* (1) on the distinction between liability based on tort and on contract.

I find his observations therein to have a compelling bearing on the ultimate decision of this appeal.

Barry, J. had this to say:

> ... As has often been pointed out there is a considerable 'no man's land' of doubted ground between contract and tort and some causes of action may properly be pleaded either as torts or as breaches of contracts. I have to look at the true substance of this action and to decide on which side of the line it falls. The test to be applied was clearly and shortly formulated by AL Smith, LJ in *Turner v. Stallibrass* ([1898] I QB 58) as follows:
>
> > The rule of law on the subject, as I understand it, is that, if in order to make out a cause of action it is not necessary for the plaintiff to rely on a contract, the cause of action is founded on torts; but on the other hand, if in order successfully to maintain his action, it is necessary for him to rely upon and prove a contract, the action is one founded upon contract.

... the test enunciated by AL Smith, LJ is, I think, one of quite general application. It was re-stated in equally clear terms by Greer, L.J. in *Jarvis v. Moy, Davies, Smith, van Dervell and Co.* (2):

> The distinction in the modern view, for this purpose between contract and tort may be put thus: where the breach of duty alleged arises out of a liability independently of the personal obligation undertaken by contract,

it is tort, and it may be tort even though there may happen to be a contract between the parties, if the duty in fact arises independently of that contract. Breach of contract occurs where that which if complained of is a breach of duty arising out of the obligations undertaken by the contract" at page 217.

On the basis of this firm legal foundation, it is now safe to look at the facts of the case and merits or otherwise of this appeal.

From the undisputed evidence on record, the respondent is a business woman engaged in transport and mining activities.

She owns or by the time of the trial of the suit, she owned two motor vehicles which she used to hire out to tour operators, such as King'ori Tours, Kakakuona Tours, and Jeff Tours and Safaris Ltd. One such vehicle was a Toyota Land Cruiser, with an open roof with Registration Number ARN 434.

It is not in dispute also, that on 23 July 1993, the respondent bought one N 40 Exide battery for the said motor vehicle from the Nairobi Cycle Mart Ltd. for. Kenyan KShs. 4 800 . The cash sale receipt for the same was tendered and accepted in evidence as Exhibit P1. It is equally undisputed that prior to 13 August 1993 the respondent was not only a regular customer of the appellant company, but a very esteemed one. The appellant company is, of course, a limited liability company engaged in the business of selling petroleum and allied products at Mianzini area of the Arusha Municipality. It is a service entity. It is managed by one Mahesh Barned.

According to the undisputed evidence of the said Mahesh, who testified as DW.3 on behalf of the appellant company, some of the products they offer for sale at their filling station is petrol, diesel, engine oil, kerosene, grease, battery water (both distilled and acid) etc. It is also admitted that on 13 August 1993, the respondent drove her motor vehicle, Registration Number ARN 434, (hereinafter to be referred to as the vehicle, where necessary) to be fuelled with diesel. It is also not in dispute that she ordered the vehicle to be fuelled with 20 litres of diesel which was done. She also requested that engine oil and battery water (acid) be added to the engine and

battery respectively. It is also agreed by both parties that the respondent was attended by the appellant's pump attendant one Abraham Lyimo. The said A. Lyimo who testified on the side of the defence as DW1 told the trial court that as of 1 October 1997 (when he testified) he had been in the employment of the appellant company for six years. So, as of 13 August 1993 he had been an employee of the appellant for two years. The respondent was issued with a cash sale receipt, which was tendered and accepted in evidence as Exhibit P11. That is all as far the outright undisputed facts are concerned, for what happened at the filling station thereafter and on subsequent days is a borne of contention.

The respondent testified as PW1 at the trial. She told the trial court that after DW1 Lyimo had fuelled the vehicle (with 20 litres of diesel) he proceeded to put the engine oil (1 litre) into the engine and thereafter "went inside for battery acid" water. She went on to testify that then the pump attendant came out of the office with a bottle. He then released a battery cap and when he "re-filled, all of a sudden a lot of smoke and awful smell came out of the battery". As they were inside the vehicle they (herself, the driver one Derek and Asha Eawai, now deceased) disembarked to find out what was amiss. According to her, the appellant's other workers also gathered around the vehicle and DW1 (whom she mistakenly referred to as Richard) was also alarmed. Then DW1 looked at the bottle only to find out that it was labeled 'JIK'. The respondent assured the trial court that she too read the label on the bottle and saw the words "JIK".

The respondent further testified that at that juncture, DW.1 returned to the office and when he came out he went to her and uttered the following words:

samahani naona ajenti wetu labda amekosea. Kuna katoni ya maji ya betri na Jik.

In short, DW.1 offered an apology to her explaining that their agent had messed up things for there was a carton of battery water and

another one of Jik. There is, of course, no dispute here that Jik is one of the common brands of liquid detergents.

Immediately thereafter one Asian (who has been identified at the trial as Sagar, the brother of DW.3 who was the over-all incharge at the filling station then), came out of the office poured out all the liquid contents in the vehicle's battery and re-filled it with battery acid. Thereafter her driver tried to start the vehicle, but it would not start. Then the said Sagar pleaded for forgiveness and requested the respondent to see him the following day for the purpose of purchasing a new battery for her. They then jump-started the vehicle and drove it home (because it was a diesel-engine).

According to the respondent the next day she went to see Sagar as agreed the previous day. The said Sagar fuelled her other car (with 10 litres of petrol) and gave her one of the appellant's employees to accompany her-comb the town (of Arusha) for another battery. The respondent was in the company of one Tony Kombo (PW2). This employee was DW2 Richard John Makungu, the supervisor at the said filling station. This DW2 bore out the respondent on this in his testimony and further added that the said Sagar did give them a cheque for the purpose of purchasing another battery for the respondent. It is the evidence of both PW1, PW2 and DW2 that the mission was unsuccessful. The failure was a result of the non-availability of a battery identical to the one which was allegedly damaged the previous day, that is a types N 100 (although DW2 testified that they came across such a battery of YUASA type which the respondent rejected as she was insisting on Oxide type made in Nairobi).

When they failed to get the battery she wanted, they returned to Sagar and reported accordingly. It was the plaintiff's (respondent) case that Sagar (whom she referred to as the 'Asian' in her evidence) "committed himself to procure the battery from Nairobi" and promised to deliver it the following day.

When the respondent called on him the next day, he begged her to excuse him as he was yet to order it. From then on she kept going

to the appellant's offices but each time she would get "empty promises". When nothing good came out of those promises she decided to purchase it on her own for KShs 4 950. This was on 13 October 1993.

Because her vehicle was grounded between 13 August 1993 and 13 October 1993 for lack of a battery, the respondent told the trial court that she suffered economic injury/loss. As already indicated in this judgement, the respondent testified that she used to hire the vehicle to various tour operators. It is her claim that she "would get between TZS. 35 000 – 50 000 a day" (although in para 8 of her plaint she averred that her daily loss of income was TZS. 35 000). The respondent called PW.3 Jennifer Zavaria to back her up on this.

PW3, by 1993, was a tour operator. She was one of the Directors of the earlier mentioned Jeff Tours and Safaris Ltd., which closed its business in 1994. PW3 told the trial court, and this was not challenged by any evidence, that they used to hire motor vehicles from various individuals to conduct their tour operations of ferrying tourists to the "National parks and exotic spots". One of these people was the respondent, from whom they used to hire her Toyota Land Cruiser (the vehicle). This witness told the trial court that sometime they wanted the vehicle to ferry their guests to Lake Natroni. They, however, could not get it as the respondent told her that it had no battery. PW3 was specific that on this single occasion they wanted to hire the vehicle for seven (7) clear days. It is again, the undisputed evidence of PW3 that the rates paid ranged between TZS. 35 000 – 40 000 per day.

On this basis the respondent was claiming the reliefs alluded to earlier in this judgement because "the defendant's servant was negligent".

The appellant called four witnesses in its defence, at the trial. The fourth witness was Burhan S. Patwa. This witness (DW4) identified himself as the General Manager of A – Z and also a businessman owning and managing a hardware shop selling also bolts and nuts as well as batteries. Professing to be neither an expert nor knowledgeable in the chemical composition of battery acid water, distilled water,

or Jik, he all the same ventured to tell the trial court, out of experience, what may cause a battery to malfunction. He named such causes to be "defective alternator (overcharging), cut out, and poor servicing of the battery such as replacement of acid and battery water". The witness further told the trial court on examination in chief that *"if something else is poured in a battery apart from acid and battery water this may lead to malfunctioning of the battery"*. "Over filling of these substances (acid and battery water) may damage a battery ..." he further stated. However, within the same breath, while conceding that he was ignorant of the chemical ingredients of jik, he had the audacity to tell the trial court that jik cannot damage a battery. It is significant to point out here, that inspite of his earlier emphatic assertions, he never told the trial court that jik falls in the classification of "acid and battery water". Under cross-examination, DW4 further admitted that "if foreign things such as sand is put in a battery, may damage it".

The evidence of DW.3 was significantly short and non committal. For him when this saga took place he was on safari and returned in September, 1993. He testified that when he was away, Sagar "took over as in-charge of operations". Upon his return, he was approached by the respondent who went there to collect the battery". When he contacted Sagar, he was assured by him *"that they had already resolved the dispute/issue"* in that Sagar had already given her another battery *in replacement*.

By way of defence to the claim, DW3 added:

> He (my brother) told me that she (plaintiff) had demanded a replacement and that despite the fact that her battery was not defective he (my brother) decided to replace it and took hers and that by doing this we suffered no loss.

DW3 was emphatic that the claim was false as he never deals in jik. That my be true, but that is the bane of the parties to this appeal.

DW1 and DW2 are the most crucial witnesses on the incident which led to these proceedings. As already shown, both are full time

employees of the appellant company and it is an admitted fact that they were on duty at the appellant's filling station on the material day.

There is no dispute on who attended the respondent on that day when she pulled up there to have the vehicle refueled. What is in dispute and indeed the bottom line of the entire claim is what he did or failed to do to the respondent. DW.1 does not dispute fuelling the vehicle with 20 litres of diesel. He does not believe the respondent on her claim that she also ordered one litre of oil and one litre of "battery acid". This is what he says in his evidence in chief:

> ... I know the plaintiff, the person seated in this courtroom. She is our customer. I recall that on 23 August 1993 (*sic*) she came to the station and collected 20 litres of diesel, 1 litre of oil, and battery acid (baridi) 1 litre. I issued her with a receipt.
>
> The following day she came with a complaint 'kwamba maji hayakuwa mazuri kwenye betri yake'. That once put in the battery the motor vehicle did not start. I communicated the complaint to one Richard my immediate boss. The employer was at the material time on safari. Richard communicated the complaint to one Sagar. The owner's brother. I did not know what transpired.

That was all he said under examination in chief, (although it is clear that the actual date was 13 August 1993). As it will be immediately realized this witness, either by design or inadvertently was evasive. By using the word 'collected' it can be interpreted that he did not put the diesel in the fuel tank himself. The same applies to the engine oil and acid water.

However under cross-examination, things became clearer. He admitted that the respondent was a "very good customer" of theirs and "would fuel almost every day". He further bore out the respondent that she used the vehicle for tour operations. Although he categorically stated that he never poured the acid water into the battery but gave the bottle and its contents to the respondent who left with it, he was equally unequivocal. In his evidence that *he knew of no reason why*

the respondent would tell a lie against him or course DW1 was not open on whether or not he poured the engine oil into the engine. My task in this appeal, would therefore, have been too onerous in deciding as to who between him and the respondent was telling the truth, had it not been for his subsequent unsolicited admission of wrong-doing (not in a criminal sense) and the evidence of DW2. Whether DW1's 'conversion' was a result of being conscience – striken or an act of providence is of no moment here. The plain fact is that he totally destroyed his credibility and the appellant's defence and lent impeachable credence to the respondent's claim.

To be fair to him and the appellant I will reproduce this discrediting (on his part) piece of evidence in full. He said:

> I learnt of these proceedings yesterday when I was asked to come and testify.

I do not know that PW.1 was ready to forgive me. I paid a visit to her residence yesterday in the morning. This was after the defendant told me the nature of the claim.

So I went to ask her to forgive me. She told me it was too late. *I went to her because the defendant told me I was the cause.* One would ask for pardon if he/she has made a mistaken/ committed, a wrong. *I even offered to replace her battery. I told her I could sell my belongings to replace the battery.*

This evidence tells its own tale, although he immediately told the trial court (may be, in order to blur its impact, on reflection) that he never sold the respondent the "wrong acid". The temptation to argue that DW1 might have gone to plead with the respondent under duress from his employer, is totally ruled out by his further admission that it was not the defendant who sent him to ask for mercy.

I have already shown above that the evidence of DW2 Richard also made the job of evaluating the credibility of the witnesses easier. I will elaborate. I have touched on the evidence of DW2 on how he was given a cheque by Sagar to accompany the respondent to look for another battery.

DW2 further told the trial court that when they returned to Sagar, the latter gave the respondent their own battery and they took her own battery (the damaged one). This evidence clearly shows that, at least for some time, the appellant had physical possession of the respondent's battery, after 13 August 1993. The evidence of both DW2 and DW3 is remarkably silent on when the same was returned on her if at all. But I am still on what happened at the filling station on 13 August 1993.

Reading the evidence in chief of DW2 one would emerge with an unmistaken impression, if not fully convinced, that he never saw the respondent on 13 August 1993 at all. However, the apparent ingenuity of counsel for plaintiff (Mr Maro) led to what I would conveniently call for this purpose only, the discovery of "the skeleton in the cupboard" of the appellant. Contrary to the allegation of DW1 and DW3, this witness specifically told the trial court that both DW2 and Sagar "were around on the material date". All the same this to me is very trivial compared to his further testimony under cross-examination.

While being further cross-examined by Mr Maro, DW2 told the trial court categorically that he not only never saw DW1 serving the respondent but that he was not around. Then Mr Maro confronted DW2 with Exhibit P11 (the cash sale receipt for the fuel, oil and acid water). Apparently it has his name written thereon overleaf. At first he demurred claiming that he never saw the name when the respondent took it to them on 14 August 1993. He however immediately belied himself when he said:

> ...*It is true that when the acid was placed in the battery and there were signs that the same might not have been the right acid,* my name was written behind page 11 as the person who was going to handle the complaint.

This piece of evidence of DW2 is very significant for two very good reasons. In the first place regardless of whether or not what was put in the vehicle's battery was jik or battery acid it established beyond any doubt that the same was done at the appellant's filling station

and for that matter I now take it as settled that it was done by DW1 in the course of his lawful employment with the appellant. Secondly, it goes to establish, on a balance of probabilities, that something abnormal was occasioned to the respondent's battery on the vehicle as a result of that liquid put into it by DW1. This belief is strengthened by the evidence of DW1 to the effect that he was cause of the whole problem. In the light of this clear evidence, the learned trial Resident Magistrate had no other rational option open to him, apart from accepting the evidence of the respondent on the issue unreservedly as true. Having objectively and dispassionately canvassed all the evidence on record on the issue I concur with him.

It is also my finding of fact that the respondent gave a correct and true version on what transpired at the appellant's filling station on 13 August 1993 when she went there to fuel the vehicle and add engine oil and battery acid (water). I also find it as an established fact that the respondent vehicle's battery which otherwise was functioning properly when she pulled at the appellant's filling station to refuel, among other services she needed there, was damaged totally, when some foreign substance was put into it by DW1.

At the commencement of trial, the following issues were framed:

(1) Whether the substance sold by the defendant to the plaintiff is a jik as alleged.

(2) Whether it is that substance that caused the battery to seize.

(3) Whether the plaintiff suffered damages.

(4) To what reliefs are parties entitled.

These issues were based, as usual, on the pleadings. The issue on whether or not the respondent had a cause of action in tort was not framed as that was not an issue at all before the trial court. The defendant never challenged the claim against them for non disclosure of a cause of action under the law of tort for negligence which was specifically pleaded. So the trial court never ruled on the issue although it has been made an issue here. All the same, the learned trial Resident

Magistrate was satisfied, on the material before him that the plaintiff (respondent) had sufficiently proved her case to the required standard and answered the first three issues affirmatively. He then proceeded to award the respondent all the reliefs she was seeking save general damages. The defendant was aggrieved by the decision and hence this appeal.

The soundness in law and on the facts of the trial court's decision has been roundly attacked in this appeal. As such the three – page Memorandum of Appeal filed by Mr D'Souza contains 10 main grounds of appeal. It is expedient that I commence with the fifth ground of appeal.

Standing alone (that is, without its accompanying elaborations) the fifth ground reads as follows:

> The trial court erred in law in that it did not take into account material factors in its evaluation of the plaintiff's case.

Elaborating on this, both in the Memorandum of Appeal and in his written submission, Mr D'Souza has strenuously argued that had the learned trial Resident Magistrate not dealt with the evidence "in a rather superficial manner", he would have realized that "what took the plaintiff to the petrol station was initial malfunctioning of the car battery". Mr D'Souza based this contention on the failure of the plaintiff to tell the court "what made her decide to top up the battery with battery acid".

In answering this ground of complaint I will first make one point clear. This is that except for those facts or matters which the courts are permitted by the Law of Evidence Act, 1967, to take judicial notice of all issues of fact in a case must be decided on the basis of the legally admissible evidence as tendered by the parties in the course of the trial. Indeed Mr D'Souza, while submitting on ground number 4 of his appeal, quite aptly referred me to the case of *Okale v. R* (3), wherein it was held that "the court's decision must be based on the evidence heard and not upon any theory put up by the court". Of course such theories can even and are often, raised by the parties

to the case or their counsel. I have therefore, scanned the entire evidence on record, (including that of DW4) but I was unable to come across even an iota of a suggestion to bear out Mr D'Souza on this theory which the appellant is raising for the first time in this appeal.

The condition of the battery right up to the moment when the plaintiff drove the vehicle to the appellant's filling station on 13 August 1993 was not an issue at all. That notwithstanding it was not even put to the respondent during cross-examination that the battery was not functioning either at all or properly when she called at the appellant's filling station for re-fuelling. As if that is not frustrating enough for Mr D'Souza's theory, the evidence of the appellant company's own witnesses, militate against the same.

The evidence of both DW2 and DW3 is to the effect that the said battery was functioning properly. The appellant is bound by its evidence, and it cannot be allowed to blow hot and cold at the same time. I accordingly hold that the trial court was perfectly correct in not finding that the respondent's battery was malfunctioning when she went at the appellant's filling station to be supplied with diesel, oil and battery acid. This conclusion then leads to me another aspect of Mr D'Souza's complaints contained in ground of appeal number 5.

The appellant is condemning the learned trial Resident Magistrate for failing to hold that the plaintiff/respondent who is obviously an intelligent woman would not take possession of the alleged bottle marked "Jik' immediately after the alleged incident". The complaint has been well answered by Mr Ojare. In his submission Mr Ojare has, in my considered opinion, correctly pointed out that the conduct (by word and deeds) of the appellant's servants immediately after the incident did not warrant to immediately take possession of the bottle containing the contentious substance. There was, going by the evidence of the respondent, the instant admission by DW1 that the liquid poured into the battery was JIK followed by an immediate apology. This piece of evidence was not seriously challenged on

cross-examination, nor was it in anyway disputed by DW1 in his evidence.

Instead we have the evidence of DW1 that he went to see the respondent, a day before he testified, to once more ask for forgiveness. There is the undisputed evidence that DW3's brother who was the in-charge on that day, immediately offered to replace the damaged battery with a new one I understand that the Defence witnesses said this was on the following day. But for the reasons I have already given, like the trial magistrate, I also hold that this was on 13 August 1993. The respondent was clear on why she could not take possession of the Jik bottle. She said:

> ... I trusted them because first of all we are neighbours and I was their regular customer and besides he was apologetic.

By and large, this has been confirmed by DW1 and DW2.

The complaint that the respondent would not have "forfeited over TZS. 2 million worth of business over some 59 days by casually leaving the vehicle standing instead of just replacing the battery costing some 33 000 with her money and claiming refund from the defendant" has its answer. In her evidence, which has not been challenged by the appellant, the respondent unequivocally stated thus:

> I decided to buy the battery because he had began to be indifferent each time I went to him. *I asked him to give me the money so that I could buy the battery but he insisted on buying it himself.*

The underlined piece of evidence above clearly absolves the respondent of any charge of "casually leaving the vehicle standing" for some 59 days. Had the appellant company been forthright and firm in its desire and decision to replace the battery, this sort of "merry-go-round" and waste of resources could have been minimized or totally avoided.

The evidence of the respondent to the effect that her battery was damaged as soon as DW1 poured the contentious liquid into the battery is categorical. Apart from telling the trial court that once

DW1 poured the substance into the battery, it emitted smoke and foul smell, she went to testify.

> When we went closer, the contents were boiling ... we all saw the bottle; it was a bottle of jik.

The 'boiling' aspect of the contents of the battery was not challenged at all. Of course the apologies of DW1 and his admission that jik had been poured in are strengthening factors. But the evidence of DW2 to the effect:

> [I]t is true that when the acid was placed in the battery and there were signs that the same might not have been the right acid, my name was written behind P11 as the person who was going to handle the complaint.

Bolsters the respondent's claim that the battery was damaged at the appellant's filling station following the act of DW1 adding the contentious fluid in it. If DW2 was going to handle the respondent's complaint, it means that she had been wronged in one way or another. Needing less emphasis now are the subsequent attempts by DW1 to have the respondent forgive him and even shoulder the entire burden, because his employer had told him in no uncertain terms that he was "the cause" of the problem. In the light of all this evidence, it cannot be argued now that the offer by the appellant to buy the respondent another battery was not an admission of liability but a mere attempt to keep a customer. If that was the case then why did it not do so for as the evidence of DW1 shows she is no longer their customer. To me, like the trial magistrate, all these frantic efforts by the appellant company, of offering to buy a new battery, of fuelling the respondents car on 19 August 1993 and releasing DW2 to her on that day to comb the entire town for another battery is not compatible with any other reasonable hypothesis or explanation, other than attempts to placate the respondent in the wrong done to her by its servant.

The contents of Exhibit P3 (the notice of intention to sue) have aroused a debate in this appeal. The most controversial are the contents of paragraphs (c) and (d) of the same. In those paragraphs it is shown that counsel for the respondent was drawing the appellant's attention

to its earlier undertaking to supply a new battery if she handed over the damaged one as well as that the respondent had "on numerous occasions" gone to them with the destroyed battery but they had "stalled and procrastinated". For certain, reading these paragraphs in isolation one would be tempted to believe that the damaged battery had all along been in the exclusive possession of the respondent. The same would appear to contradict the respondent's evidence to the effect that the battery could not be examined by an expert because it was in the possession of the appellant. But for the evidence of DW2 and DW3, I would have so believed. However, the evidence of DW2 and DW3 confirm that of the respondent on the issue to a great extent and leave me entertaining not the slightest doubt that as from 14 August 1993, the said battery was in the possession of the appellant. The evidence of DW2 and DW3 does not show when it was returned to her. Indeed according to DW3 the exchange was a fair deal to them. The doubts which otherwise would have been cast on the evidence of the respondent on the issue, were conveniently erased by the appellant's witnesses.

Again learned counsel for the appellant took issue with the wording of paragraph (c) of the Exhibit P3 wherein the words "and our clients informed you of this fact". It is the submission of Mr D'Souza that the "informing" should be construed as being consistent with the fact that the respondent "went there the next morning" for there was nothing "to inform the defendant if the incident really took place at the petrol station ..." This is indeed a very attractive and persuasive argument. But in this case I will not yield to persuasion but to compulsion. The evidence of DW2 and DW3 compels me to differ with Mr D'Souza on the issue.

The undisputed evidence on record shows that DW3 who is the proprietor of the appellant company was on safari on 13 August 1993. DW3 testified that he was informed of the incident by the respondent after his return sometime in September, 1993. Exhibit P3 was addressed to him as the proprietor (Manager) of the business. Even without DW3 and DW1, the evidence of DW2 is sufficient. In his evidence,

as reproduced above, DW2 shows that the incident took place at the filling station and nowhere beyond its precincts.

In the light of the above I am satisfied that even if the trial Resident Magistrate had examined the evidence of the respondent with a microscope he would, all the same, have arrived at the same conclusion. Her evidence was therefore, rightly accepted as true on the whole, as I shall futher shortly show.

The above conclusion, of necessity, leads me to ground of appeal number four. The trial court is being castigated therein for basing its finding on what caused the alleged damage to the battery on speculations rather than expert evidence. When looked at subjectively this argument appears to be convincing for, indeed, no expert evidence on the issue in the real sense was available to the trial court. Had we to rely on the evidence of the respondent alone I would have found this argument insurmountable. However, there is evidence coming from the appellant's side absolving the learned trial Resident Magistrate.

I have already dealt at great length with the respondent's evidence on the entire incident of 13 August 1993. Having accepted that evidence as true, like the trial court, I find it as a fact that what DW1 actually put into the battery was not battery acid water which was ordered by the respondent but a detergent liquid known as Jik. It is of little or no significance in this case that the respondent never led any evidence to show the "chemical composition" of the said detergent. According to her, once the liquid was poured into the battery the contents inside began to 'boil' exuding bad smell and smoke. Immediately thereafter the battery which until then was working smoothly became defective, such that even pushing the vehicle could not make it charge. Then according to her, Sagar volunteered forthwith to buy her another battery on realizing that her battery had been damaged at their hands. In the circumstances she discharged her legal burden proof to the required standards. If the appellant well knowing that its servants in the course of their duties put a liquid detergent instead of acid water into the battery, though and/or believed that such substance could not damage a battery, then the burden was on it to show that. It failed

to discharge that burden. Instead it called DW2 who glossed over the fact but all the same admitted that what was put in the respondent's battery was not the "right acid", judging by the "signs", as he put it. The only reasonable inference to be drawn here is that the "signs" referred to by DW2 are those mentioned by the respondent in her evidence.

As if that piece of evidence of DW2 was not damaging enough, the appellant went on to call DW4 who testified that among the many things which can damage a vehicle's battery, is "poor servicing" of the same.

Adding liquid detergent or to go by the evidence of DW2 using the wrong type of battery acid is such type of "poor servicing". DW4 went futher and explicitly told the court that "if something else is poured in a battery apart from acid and battery water, this may lead to malfunctioning of the battery". With all this evidence before it the trial court did not need to have recourse to expert testimony to resolve issues number 1 and 2 positively. I have therefore found no immediate relevance to this case of decision of the CAT in *The Medical Officer-in-charge, Mkinga Hospital v. Theodolina Alphaxed* (4), cited to me by Mr D'Souza.

Having found it as a fact that it was the Jik liquid detergent which DW.1 put into the respondent's battery rendering it defective, I am now in a better position to tackle grounds of appeal 1 and 2. In the light of these facts, I now ask myself, was the respondent's claim rightly founded on the tort of negligence or was it supposed to be based on contract? This is the gist of the appellant's complaints in the two grounds of appeal.

I have to revert to where I started. As already shown, "there is a considerable 'no man's land' of doubted ground between contract and tort and some causes of action may properly be pleaded either as tort or as breach of contract".

Mr D'Souza has rightly submitted that the appellant company is not a manufacturer. He says it, is a retailer. On that basis he has

placed much reliance on what is stated at pages 403 – 6 of the book of **Charlesworth on Negligence**, (5 ed) on the duty of a retailer/ wholesaler of goods in contract and tort. The learned author enumerates five instances of tortuous liability of a retailer for injuries/damages suffered by a buyer and none of those appears to square with the facts of the case at hand. But, to me this is hardly surprising for as was stated by Lord Macmillan in *Donoghue v. Stevenson* (5) at page 619, "the categories of negligence are never closed". What we always have to bear in mind, as rightly submitted Mr Ojare, is that negligence as a tort is the breach of a legal duty to take care which results in damage, undesired, of course, by the defendant, to the plaintiff. "How wide the sphere of the duty of care in negligence is to be laid by the courts", so emphatically stated Lord Pearce, "depends ultimately upon the courts' assessment of the demands of society for protection from the carelessness of others" in *Hedley Byrne and Co. Ltd v. Heller and Partners Ltd.* (6), at page 636.

It is trite law that both in contract and in tort a claim is only maintainable in law if there is a breach of duty owed by the defendant to the plaintiff. Under contract the duty arises under the obligations of the contract between the parties, while in torts it is imposed by law. The duty imposed by law arises from the now legendary *principle of proximity*, first enunciated by Lord Atkin in his famous question: "Who is my neighbour?" in *Donoghue v. Stevenson*. Simply put this principle, as expounded and expanded to cater for the demands of society to be protected from the "carelessness of others", provides:

> You must take reasonable care to avoid acts or omissions which you can reasonably foresee would be likely to injure your neighbour, per Lord Devlin in *Hedley Byrne v. Heller & Partners Ltd.* (6), at page 524.

The crucial question which arises now is this: was it necessary on the facts established here, for the respondent to rely on a contract (be it of sale of goods as contended by Mr D'Souza or otherwise) in order to show cause of action in relation to this incident? My considered answer to this question is in the negative. This is primarily because the duty allegedly breached by the appellant through its servants

arose out of a liability independently of the personal obligations under any contract.

It was a duty of care imposed by the principle of proximity on the appellant company while rendering service to the respondent. The appellant had a duty of care to fuel the vehicle with the right type of fuel, (that is diesel instead of gasoline for instance), oil and battery acid. In the case at hand the appellant not only purported to sell battery acid to the respondent, but went further and gratuitously filled the battery with the said acid which happened to be not the right acid (per DW2) and/or no battery acid at all, but a liquid detergent known as JIK (per PW1).

There is no dispute here that the appellant in selling fuel, oil, battery acid, etc. is performing or rendering a service. When DW1 was filing the respondent's battery with battery acid, even though as I believe, he was not bound to do so, he was rendering this service to the respondent in the course of his employment. He was bound to perform it or render it diligently and with due care as not to injure the respondent (in person or her property) by putting the right acid. I think it was stated very lucidly by Lord Devlin in *Hedley Byrne's* case as follows:

> A promise given without consideration to perform a service cannot be enforced as a contract by the promise; but if the service is in fact performed and done negligently, the promises can recover in an action in tort, at page 526.

The learned law Lord went further to cite with approval, what Willes, J. had said in *Skelton v. London and North Western Railway Co.* (7). Willes, J. held:

> Actionable negligence must consist in the breach of some duty ... if a person undertakes to perform a voluntary act, he is liable if he performs it improperly, but not if he neglects to perform it, at page 636.
>
> It was also held in *Jackson v. Mayfair* (opagecit.) that any person who handles or interferes with the property of another owes him a duty not to

> damage the property by his negligence and may be sued in tort irrespective of whether he is also under a contractual liability.

The case at hand is nearly on all fours with the case of *B.A. Minga v. Mwananchi Total Service Station Shinyanga and Total (T) Ltd*, (8). In that case, the plaintiff owned a house. One of the occupants of the house purchased one gallon of what was believed to be pure kerosene from the pump at the petrol station owned by the first defendant. The kerosene was supplied by the second defendant. When later in the evening the kerosene was put in a lamp which was still alight but dim there was an explosion followed by a fire which almost completely destroyed the plaintiff's building. It was subsequently discovered that the kerosene had been adulterated with petrol. The defendants were found liable by this court in negligence on the basis of the principle of proximity.

In the light of the above, I find that the respondent's claim was rightly based on the tort of negligence and I accordingly dismiss grounds of appeal number (1) and (2).

Given what I have held in relation to grounds (1) and (2), I find no merit in ground number (3) for the suit being properly based on tort, the appellant company is vicariously liable in the negligent acts of its servants in the course of their employment.

Grounds of appeal 6 to 10 relate to the issue of damages. I will begin by stating the law on the issue, albeit, briefly. As earlier shown, the respondent had claimed both special and general damages and she won only on special damages. In dismissing her claim in general damages, the learned trial Resident Magistrate said:

> No general damages will be assessed because the same was not particularized and specifically proved.

On this he was wrong. Why?

The law on the issue is now well settled. It is only special damage which must be specifically pleaded and strictly proved. If they are proved they must, as of right be awarded. As far as general damages

are concerned the plaintiff only need to aver that such damage has been suffered and the quantum to be awarded is for the court to decide: see generally, *The Susquehanna* (9). And it was thus graphically put by Martin, B. in *Prehn v. Royal Bank of Liverpool*, (10):

> General damages ... are such as the jury may give when the judge cannot point out any measure by which they are to be assessed, except the opinion and judgement of a reasonable man ... Special damages are given in respect of any consequences reasonably and probably arising from the breach complained of ...

While special damages may consist of "out-of-pocket expenses and loss of earnings incurred down to the date of trial, and is generally capable of substantially exact calculation", general damage is implied by law and may include "compensation for pain and suffering and the like" – vide *British Transport Commission v. Gourley* (11). These principle was upheld by the Court of Appeal of Tanzania in the case of *The CMC Ltd v. Moshi/Arusha Occupational Health Services* (12). But as I said earlier, the respondent never cross appealed. I will rest the matter here.

It is the complaint of the appellant that the trial court erred in law in not holding that the Plaintiff had a duty in law to mitigate damages.

Counsel for the appellant has relied on the leading case of *British Westinghouse Co. v. Underground Railway* (13) at 689. As a principle of law, I am in full in agreement with Mr D'Souza. However, when applied to the established facts in this case, it does not advance the case of his client any further. As rightly pointed out by Mr Ojare, it was the appellant's conduct of undertaking to procure a substitute identical battery from Nairobi personally and its unfulfilled promises which prevented the respondent from purchasing another battery in time. When it became clear that the appellant was not going to honour its promise, the respondent purchased it on 13 October 1993 and filed the suit in December 1993. I accordingly dismissed ground 6 of appeal.

Did the trial court err in not limiting the damages to the replacement cost of the battery on the date of the alleged damage? My answer to this question, which forms the basis of ground 7 of appeal, is in the negative. The respondent had to recover both general and special damages for the inconveniences, loss of earnings (actual and ascertainable) and physical and mental pains she might have suffered etc. The case of *Liesbosch Dredger v. Edison S.S.* (14) cited by Mr Ojare is germane here. Of course the replacement cost of the damaged battery falls in the category of special damages.

It is contended in ground 8 of appeal that the trial court erred in assuming that the vehicle was being used commercially in the absence of any business licence, TLA licence, hire receipts etc. Again the question of user of the vehicle was not an issue at the trial. Whether or not it was a "taxi bubu" as Mr D'Souza is now contending, is a matter which is within the province of the tax man and the relevant licensing authorities.

For our part we shall content ourselves with the unchallenged evidence of the respondent that she used to hire it out to various tour operators. On this she was born out by PW3 whose evidence stands unchallenged. Indeed as pointed out by counsel for the respondent the appellant, instead of coming up with evidence contesting this allegation of fact, brought evidence, through DW1, to support her unreservedly. The trial court cannot, therefore, be faulted in holding as it did.

I think it is more convenient and even logical to deal with ground number 10 of appeal and reserve the decision on the ninth ground (the last one) later. The tenth ground is couched as follows:

> The trial court erred in law in not holding that in fact no special damage was proved save perhaps for one trip of seven days to PW3.

Having gone through the evidence of PW1 and PW3 with an objective mind, I am satisfied that this ground of objection to the trial court's decision is very formidable. It is trite law now that special damages, being "exceptional in their character" must not only be claimed specially,

but also "strictly proved": see *Strong Bruks Aktie Bolag v. Ahutchison* (15), cited by Mr D'Souza, amongst a host others.

It is the contention of Mr D'Souza that in this case the loss emanating from lack of use of the vehicle although pleaded by the respondent was not wholly strictly proved. Mr D'Souza is further contending that the respondent "did not give any evidence on loss of trips except for one seven day trip to PW3 Jennifer Zavara". Even for this trip Mr D'Souza is urging this court to deduct such sums due to failure of the respondent to take steps to mitigate damages, expenses wear and tear, etc. I have already made my ruling on the issue of mitigation of damages.

Mr Ojare has sought to counter the forcefull arguments of Mr D'Souza by relying on *Gourley's* case (*op. cit...*) ... In that case it was also held (Lord Goddard) that "actual loss of earnings which has already accrued at the trial is classed as 'special damage' and will normally be calculated simply by reference to the period of disability and pre-accident rate of earning". I have no quarrel with this statement of the law. It is still valid today as it was forty years ago. And for that reason I will apply it to Jennifer's 7 – day trip which never materialized (for the respondent) for lack of a battery. But that is not the mainstay of Mr D'Souza's attack for the award of the entire TZS. 2 238 660 specifically claimed as special damage. This claim covers an extended period of about 59 days as if the vehicle was being used in tour operation on a full time basis prior to 13 August 1993 and would have been so used thereafter which was not the case. The evidence of both PW1 and PW3 is very clear on this.

PW1 (respondent) told the trial court in unambiguous words that she used to hire the vehicle to various tour operators and that on such occasions she would get between " TZS. 35 000 – 50 000 a day". This shows that, it was a part time or chance business. Special damages cover actual loss of earnings, not imagined ones. Mr Ojare has relied on three English cases to prop up his submission in support of the award. These are *The Greta Holme* (16); *The Marpesa* (17) and *Macrae J. Swindels* (18) or (18). All these cases do not help

him at all. The *Greta Holme* and The *Marpesa* are only relevant to the issue of general damages, which his client was entitled to but was denied and they never appealed. The case of *Macrae* could have been fittingly relevant had the respondent hired another vehicle which she did not.

I accordingly concur with Mr D'Souza that the respondent managed to prove economic loss in respect of the 7 – day trip to Lake Natron. She is therefore entitled to recover special damages for this loss. The issue is to how much she is entitled?

I can glean not from the proceedings but from the judgement of the trial court that the figure TZS. 2 238 660 was arrived at by multiplying TZS. 35 000 times the total number of days between 13 August 1993 and 13 October 1993 plus the actual replacement cost of the battery which was put at TZS. 33 660 . So the trial court settled for the lowest rate of TZS. 35 000 per day. It was perfectly entitled to do that in the circumstances, and I will use that rate. Using the rate of TZS. 35 000 as a base, I would assess specific loss of earnings by the respondent for the 7 – day trip to Lake Natron to be TZS. 245 000. The replacement cost of the battery will be the actual purchase price of the battery which is KShs 4,950 which was found by the trial court to be TZS. 33 660. It goes without saying, therefore, that the respondent is entitled, barring any lawful deductions, to a total of TZS. 278 660 as special damages.

It has been argued in this appeal that the claim of loss of TZS. 35 000 should have taken into account wear and tear, driver's expenses taxes etc. (ninth ground of appeal). For that matter Mr D'Souza has urged this court to deduct at least 50% from the *per diem* loss. I am totally at a loss on how Mr D'Souza arrived at this percentage. The evidence on record is silent on the issue. This is because this was not an issue at all at the trial stage. This not being an issue of law but of fact, needed clear evidence to support it otherwise we shall be leading ourselves into the very trap which Mr D'Souza has already cautioned us to be wary of: not to judge issues of fact on the basis

of speculations and feigned theories, but only on the basis of evidence properly adduced in court.

The appellant did not lead any evidence (nor challenge the respondent's evidence) on this particular issue. It is too late in the day to raise it now. Of course it is not within the province of this court to assess the income tax due from the respondent in this particular business transaction; at least not in proceedings of this nature. I would accordingly dismiss the ninth ground of appeal.

All in all then, this appeal is ultimately partly allowed and partly dismissed, as the respondent's claim was partly successful at the trial stage. For this reason I will order that each party bear its/her own costs in this appeal.

Delivered in court in the presence of Mr D'Souza, counsel for the appellant and Mr Ojare, counsel for the respondent this 26 August 1999 at Arusha.

LUTTER SYMPHORIAN NELSON v. ATTORNEY GENERAL AND IBRAHIM SAID MSABAHA

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM

(Mfalila, Lubuva and Samatta, JJ.A.)

CIVIL APPEAL No. 24 OF 1999

(From the decision of the High Court of Tanzania at Dar es Salaam, Mkwawa, J., dated 6 May 1998, in Miscellaneous Civil Cause No.124 of 1995)

Electoral Law – Elections – Avoidance of Election - Exploiting tribal differences as a ground for avoiding election – Whether such exploitation must affect result of election – Section 108(2)(a) of the Elections Act 1985.

Electoral Law – Elections – Avoidance of election – Corrupt practices as a ground for avoiding election – Nature of evidence required to prove corrupt practices.

Civil Practice and Procedure – Evidence – According due weight to evidence – Trial judge's failure to give reason for disbelieving witnesses – Effect thereof.

The appellant was an unsuccessful candidate in a parliamentary election. He petitioned the High Court to challenge the result of the election. One of the grounds set out in his petition was the exploitation of tribal differences. Several witnesses gave evidence that the second respondent, who was a rival candidate, or his agents, made statements during the campaign with intent to exploit tribal differences relating to the appellant and him. The other ground was bribery. The High Court dismissed the petition. The judge ignored material evidence adduced by the second respondent in relation to the respondent's exploitation of tribal differences. The judge then directed himself to the effect that for the election of the second respondent to be declared void the court must be satisfied that the exploitation of such differences affected the results of the election. The appellant appealed from the decision of the High Court, and matters before the Court of Appeal for consideration were whether the judge had misdirected himself in law; and whether the judge erred in law in ignoring material evidence on the issue of exploitation of tribal differences.

Held: (i) The trial judge erred in law in directing himself that election results cannot be avoided if exploitation of tribal differences did not affect such results; when there is such proof the question of the contravention affecting the result of the election does not arise

(ii) Cogent and clear evidence is required to prove a corrupt practice in an election petition.

Appeal allowed.

Cases referred to:

(1) *Preston-Jones* [1951] 1 All ER 124

(2) *Grace Shipping Inc. and another v. C. F. Sharp and Co. Malaya (pte) Ltd* [1987] L.R.C. (Comm) 550

(3) *Gilliard Joseph Maseko and Two others v. Corona Faida Busongo and another,* Civil Appeal Number 57 of 1996 (unreported)

(4) *Rahim Khan v. Kurshid Ahmed and others* [1975] S.C.R. 643

(5) *Basil P. Mramba and the Attorney General v. Leons S. Ngalai,* Civil Appeal Number 27 of 1987 (unreported)

(6) *Amirali Ismail v. Regina,* 1 T.L.R. 370

(7) *Azim Suleiman Premji v. Attorney General and Dr Aman Walid Kabourou,* [2000] T.L.R. 359

Statutory provisions referred to:

(i) Elections Act 1985 section 108(2(a), section 111(c) and 112

(ii) Constitution, articles 9(g), and (h), 1394) and (5), 20(2)(a)

(iii) Political Parties Act 1992, section (92)

Mr. Magafu, for the Appellant

Mr. Salula, for the first Respondent

Mr. Mselem, for the second Respondent

JUDGMENT

(Dated 06 September 1999)

SAMATTA, J.A.: The appellant, Lutter Symphorian Nelson, and the second respondent, Dr. Ibrahim Said Msabaha, were two of the nine candidates in the Kibaha Constituency for election to the National Assembly in the general election held in this country on 29 October 1995. They were put forward by Chama Cha Demokrasia na Maendeleo, popularly know by its acronym, CHADEMA, and Chama Cha Mapinduzi (CCM), respectively. The Returning Officer declared the second respondent, who polled 17,621 votes, as the winner of the election.

The appellant was declared to have polled 11,915 votes. The rest of the valid votes were shared by the remaining candidates. The appellant was aggrieved by the second respondent's election. He challenged it before the High Court under sections 111(c) and 112 of the Elections Act, 1985 (hereinafter referred to as "the Act"). The petition was dismissed. The appeal now before us is against that decision.

The appellant's grounds of challenge were many; they included the following: (1) delay in opening and premature closure of some of the polling stations; (2) illiterate and blind voters being assisted by CCM zealots in casting their votes; (3) failure to post the appellant's particulars at some of the polling stations; (4) illegal campaign; (5) treating; (6) intimidation; (7) corrupt practices; and (8) campaign exploiting tribal differences. The trial was a protracted one. Twenty seven issues were framed and a total of fifty-two witnesses testified, twenty-one of whom were called by the appellant, who gave evidence on his own behalf. In this appeal only the learned trial Judge's findings in respect of the fifth to eighth grounds of challenge, inclusive, are being contested. Originally, there were two grounds of appeal, namely:

1. The Honourable Judge erred in law and in fact in holding that the appellant has failed to prove his case beyond all reasonable doubt in respect of the allegations relating to tribalism, corrupt practices, treating and intimidation of the electorate.

2. The Honourable Judge erred in law and in fact in holding that the CCM (Chama Cha Mapinduzi) had not planted zealots at Miswe "B", Mbwawa Primary School "A" and "B" and Vikuruti to assist the blind, deafs and illiterates.

The second ground of appeal was abandoned by Mr. Magafu, counsel for the appellant, and marked withdrawn by the court. So, we are left with only one ground of appeal.

We consider it useful to state at this juncture some of the general principles of law which we shall keep in view while considering the merits or otherwise of the appeal. The following are those principles:

(1) The burden is heavy on him who assails an election which has been concluded. He must prove his case beyond reasonable doubt. But as Lord Oaksey observed in *Preston-Jones* (1), at page 133, "... what is a reasonable doubt is always difficult to decide and varies in practice according to the nature of the case". The standard of proof depends upon the seriousness of the allegation made.

(2) Although a trial court cannot be treated as infallible in determining which side is indulging in falsehoods or exaggerations, an Appellate Court will not lightly disturb its findings of fact. It will disturb those findings only if they are clearly unsound, perverse or have been based on grounds which are unsatisfactory by reason of material inconsistencies or inaccuracies. Although a first appeal is a re-hearing, the trial court's findings of fact will be interfered with only if they are wrong.

(3) A finding boldly based on demeanour alone is not satisfactory. In the absence of legal litmus tests to discover the truthfulness or otherwise of oral evidence, the trial court must have regard to the general probabilities and broader aspects of the case as to where the truth lies in the case. Where there is a conflict of evidence or where the evidence of the witnesses is likely to be unreliable, reference to the objective facts and documents, to the witnesses' motive, and to the overall probabilities, can be of very great assistance to the trial court in ascertaining the truth: *see Grace Shipping Inc. and another v. C.F Sharp and Co. Malaya (pte) Ltd (2)*...[1987]?

(4) While it is not right to dismiss outright evidence of partisan witnesses, that evidence must be viewed with great care and caution, scrutiny and circumspection.

(5) Whether or not discrepancies in the evidence of witnesses have the effect of discrediting that evidence would depend upon the nature of the discrepancies, that is to say, whether or not the discrepancies are trifling. As the learned authors of **Sarkar on the Law of Evidence**, (10 ed), Volume I, aptly put it, at page 46:

> Trifling discrepancies should be ignored as they are often a test of truth. Several persons giving their versions of a transaction witnessed by them are naturally liable to disagree on immaterial points. It must be remembered that there are discrepancies of truth as well as falsehood. It is the broad facts of a case and not the little details that are to be considered in the weighing of evidence.

Having stated these principles, we proceed to consider the validity or otherwise of the criticisms which Mr. Magafu has forcefully made against the learned trial Judge's findings, and arguments tenaciously made on behalf of the second respondent by Mr. Mselem in support of those findings. The second ground of appeal, the one which concerned the Attorney General, having been abandoned by Mr. Magafu, Mr. Salula, Principal State Attorney, merely assisted the court on one point of law which we shall later have occasion to consider in the course of this judgment. We propose to deal with the complaints against the learned Judge's findings on the four subject-matters raised in the remaining ground of appeal, namely, treating, intimidation, corrupt practices and tribalism seriatim.

In so far as the issue of treating was concerned, it was the appellant's case at the trial that rice-meals commonly known as "pilau" were served by the second respondent and his agents to members of the public who attended the second respondent's campaign meetings at Mlandizi A and B, Disunyara Village, Mwendapole, Kwa Mfipa, Msanganyi, Mkuza, Bokomonemela, Mengindu, Vikawe, Kongowe, Ruvu Station and Mlandizi Kwa Dosa. The food was served either before or after the rallies. The following witnesses on the appellant's side gave evidence on treating: Rehema Sudi Sadi (PW2), Salum Leja (PW4), Said Zinga (PW6), Rajabu Yusufu Athumani (PW7) and Kinyama Songo Ulaiti (PW19). It was the appellant's case that the message accompanying the "hospitality" was that the consumers should cast their votes for the second respondent. According to the Appellant's testimony a total of about twenty five thousand people ate the *pilau*. The second respondent's defence was total denial that food was served to members of the public. He asserted that only members of his campaign groups,

which included choirs and one traditional dance group, were served with food, the funds for which were supplied by his Party, friends and supporters. He called six witnesses: Ali Nassoro Rufumba (RW.11), Hamisi Ramadhani Chanzi (RW14), Simba Saidi Simba (RW22), Kassumu Ahmad Liyame (RW23), Muharami Mohamed Lubawa (RW25) and Yasini Abdalla Majuto (RW26). Each one of these witnesses supported the second respondent's denials and assertions. In the course of his evidence RW26 said: "I am the one who supervised the distribution and consumption of the meal by the choir groups. Each group had an average of twenty (20) participants. On the average five plates of pilau meal were consumed by each group ... The meals were not eaten in the open. They were always eaten inside the provided buildings. These were invariably CCM's offices. The meals were not meant to be eaten by the public. They were exclusively for choir groups".

The learned trial Judge analysed the evidence of the scales of justice and found himself unable to make a positive finding that, as was alleged by the appellant and his witnesses, the *pilau* was also served to members of the public. He entertained the view that what might have occurred was that pilau was prepared for, and served to the members of the campaign groups but some members of the public invited themselves to the meal. He accordingly found no substance in the complaint against treating. Mr Magafu sought to persuade us to hold that the learned Judge erred in so concluding. While very fairly conceding that the evidence of PW6 was hearsay, he contended that the evidence of PW2 stood unchallenged on the point, and PW6 was unshaken during cross-examination, and, therefore, the learned trial Judge should have preferred the evidence of those two witnesses to that of the second respondent, which, according to counsel, constituted general denials. Mr Magafu concluded his submission on the issue of treating by contending that what occurred at the named rallies constituted treating in law. Mr Mselem, on the other hand, urged us to hold that the learned trial Judge directed himself properly and arrived at a correct conclusion. He submitted that the evidence of the second respondent, RW12, RW13, RW23, RW25 and RW26

established that members of the public were not served with the *pilau*. The learned advocate concluded his argument by submitting that if there were gatecrashers in the places where the pilau was served, the second respondent cannot in law be condemned for that.

We have carefully considered the rival arguments and in the end we are of the opinion that, upon the evidence on the record, it cannot be said that the learned trial Judge was not entitled to find, as he did, that threating was not proved in this case. None of the appellant's witnesses told the trial court that members of the public were invited to go and eat the pilau. In the course of his testimony, PW7 was constrained to admit that no invitation was made at the rally he attended, namely, the Mwendapole rally. In the light of these facts, it seems to us that the version given by the second respondent and his witnesses was more plausible. Since the *onus* of proof in this case lay on the appellant, we have no hesitation in concluding, as did the learned trial Judge, that treating was not proved. As was held by this court in *Gilliard Joseph Maseko and Two others v. Corona Faida Busongo and another* (3), the serving of food to members of election campaign teams is a perfectly lawful thing. We can detect no fault in the learned trial Judge's findings on the complaint against treating.

We proceed to consider whether the learned Judge misdirected himself in holding that intimidation was not proved. The appellant called four witnesses to prove several alleged episodes of intimidation by the second respondent and his agents. The first of those episodes was alleged to have taken place at Mlandizi. It was the evidence of Iddi Saidi Wenge (PW14), a vendor at Mlandizi market, that during the campaign period Ibrahim Ismail Kambanyaka (RW16), a Ward Councillor, came to the market in the company of one Morris Foeks, and told the traders at the market that if they voted for the appellant they would find themselves paying higher fees for their business licences. In his testimony RW.16 denied to have made the alleged "threat". He said that at the market vendors paid a daily fee of TZS. 50 and a monthly fee of TZS. 300. These charges, according to the witness, were levied by the District Council and not CCM. In the

course of his submission Mr. Magafu conceded that the alleged statement by RW16 did not in law constitute intimidation because CCM was entitled, if it found it necessary, to caution the people that a victory for CHADEMA could result in business fees being raised. In view of that concession of which we approve, we say no more on the matter. Another intimidation was alleged to have been made at Visiga Kwa Vipofu. The evidence here was given by one Sijaoni Athumani Mzuzuri (PW12). His testimony was to the effect that on 28 September 1995, on the eve of the polling day, a video film depicting what he called "The Uganda War" was shown to an audience of "almost one hundred persons". He asserted that he was the one operating the video-set. According to the witness' testimony, the film included horrifying scenes of killings, and that a Ward Councilor, one Omari Rashid Nonganonga (RW19), cautioned the audience that if they voted for the opposition parties what they had seen on the film would befall this country. The second respondent brought RW.19 and one Salum Rajabu Muhunzi (RW18) to refute PW12's evidence. Both witnesses said nothing about where they were or what they did on 28 September 1995. Apparently assuming that PW12 meant to talk of the events which occurred on 28 October 1995, they asserted that on the night of that day they were at Ruvu Secondary School attending an election seminar. The evidence of an Assistant Returning Officer, Suleiman Mfaume Bigi (RW21), who claimed to have been the supervisor of the seminar, supported the testimony of the two witnesses. This support moved the learned trial Judge to hold that there was no "powerful evidence to establish the complaint". Mr. Magafu submitted that that finding was not justified. He contended that the evidence of PW12 was reliable and enough to establish the electoral misconduct complained against. Mr. Mselem submitted that the learned trial Judge's finding cannot be faulted, because, as he put it, there was sufficient credible evidence before the court proving that RW18 and RW19 were at the Ruvu Secondary School on the night in question. With respect to Mr. Magafu, we are of the opinion that the rejection by the learned trial Judge of PW12's solitary testimony was justified. First, according to his evidence, the appellant was told that the film was screened on

28 October 1995. This information appears to have come from PW12. That witness was, however, emphatic in his evidence that the "show" took place on 28 September 1995, and not on 28 October 1995. Under cross-examination by Mr. Mselem, who also represented the second respondent at the trial, the witness said, among other things:

> I am telling the truth – election was held on the 29 September 1995. The film was screened on the 28 September 1995. *This was just a night before the election day.* I had operated the video machine. The house of Mhunzi is in the compound where the video was screened. *The video was not shown on the 28 October 1995.* It was in the month of September, 1995. [the emphasis supplied]

Plainly, the witness was confused. As everyone else knows, the general election did not take place in the month of September. Was the witness' confusion confined to dates? We cannot be sure of that. In our settled opinion, the learned trial Judge would not have been justified to accept PW.12's unimpressive testimony. It is not, in our opinion, insignificant that none of the members of the audience, estimated by the witness to be almost a hundred, was called as a witness to support that evidence. Be that as it may, we are decisively of the opinion that, in the absence of evidence proving, or from which it could reasonably be inferred, that a substantial number of votes were obtained as a result of the alleged intimidation, the appellant's complaint must be found to lack merit.

One Dr. Zainabu Gama (RW28), an Assistant Medical Officer employed by Shirika la Elimu, Kibaha, was alleged by Asha Juma (PW18) and Salum Issa Kinyogori (PW21), both of whom are residents of Miswe Village, to have uttered a threat that if the residents of the village voted for the appellant or if that candidate won the election she would refuse to attend them if they came to the hospital for treatment. PW21 told the trial court that one night, a few days before the election day, the village and CCM Chairman, Sahabana Chaurembo, brought Dr. Gama to his (the witness') house. As to what allegedly transpired there we shall permit the witness to take up the story:

> She [Dr. Gama] arrested me. In the process she asked me why I have [defected] from CCM to CHADEMA. She told me as I had been there was no point why I should abandon it. She further told me that we should not be unwise to vote for Lutter who is a Bahaya. She further threatened that people from Miswe village will be denied treatment in her hospital in case Lutter Nelson emerged the winner in the election. She also asked me to inform my co-villagers to attend a meeting on the following morning.

The witness was the Chairman of CHADEMA at the village. Dr. Gama was a Regional and District Executive Committee member of UWT, an organization affiliated to CCM. She was also a member of the Political Committee of that Party at the regional and district level. PW.18 testified to the effect that, in response to an invitation by the Village Chairman, one morning before the polling day she attended a women's meeting. About fifty women attended it. Dr. Gama was the main speaker. As to what Dr. Gama allegedly said, the witness told the trial court as follows:

> She introduced herself to us. Her message to us was briefly to the effect that we should cast our votes for Dr. Msabaha not Lutter Nelson. She ... told us that if we elected Nelson then we should be prepared to face the consequences of being turned away when we go to Kibaha for treatment.

While admitting the holding of the meeting, Dr. Gama emphatically denied to have exhorted those present to vote for the second respondent or to have threatened to refuse them medical treatment if they voted for the appellant or if the candidate emerged the winner in the election. Although she admitted to have told the appellant, who passed by the meeting hall, that the meeting was a "mkole", a Zaramo initiation meeting for women, she asserted that the gathering was a UWT meeting. During the meeting, she told the trial court, she exhorted those present to vote for the second respondent. Analysing the evidence of PW18 and that of Dr Gama, the learned trial Judge said, among other things:

> Taking into consideration RW28's denial in this matter and the way she straightforwardly gave her evidence-in-chief and how unshaken she stood the fiery cross-examination I was left with a lasting impression of sincerity

> of her part. In the result, I cannot say that she was not a credible witness. I am fortified in this view when I bear in mind that PW.18 did not at all impress me as a witness of belief and that PW18's testimony is, as is evident from the record, lonesome. Having this in mind I find it extremely unsafe to believe PW18 and discredit RW28.

He went on to conclude as follows:

> Even assuming in arguement that RW28 had uttered those threats as alleged by Nelson and his witnesses, I am still not persuaded that such remarks or utterances could have any effect or substantial influence on the electorate.

Mr. Magafu forcefully criticized the learned trial Judge's finding that RW28 was a credible witness. He contended that the witness could not correctly be regarded as being a reliable one. He gave two reasons for that contention. First, in examination-in-chief the witness said that the meeting was exclusively for women but during cross-examination she admitted that a man, too, attended the meeting. Secondly, the witness contradicted herself because at one time she said that the meeting was a "mkole", but later she said it was a UWT meeting. Mr. Magafu submitted that the learned trial Judge should have preferred PW18's testimony to that of RW28. Mr. Mselem, on the other hand, urged us to hold that the learned trial Judge was entitled to make the finding Mr. Magafu had attacked. According to the learned advocate, the police, to whom a complaint had been made against the witness, would not have been so insouciant as to ignore the contravention if there was some evidence showing that it had been made. The learned advocate did not, however, disclose in respect of what offence the witness could be arrested. We have given a careful consideration to these arguments and in the upshot we are of the opinion that there is no warrant for disturbing the learned trial Judge's finding. As far as the making of the alleged threat is concerned, we think it was one man's word against another. Neither evidence of PW18 nor that of PW21 was supported directly or indirectly. No reason was given at the trial why no other member of CHADEMA or any of the other opposition parties who attended the meeting could not be called to lend some colour to PW.18's testimony. According to the evidence

of PW.21, the meeting was for women "regardless of their party affiliations". Be that as it may, we do not think Mr. Magafu's criticisms against the evidence of RW28 carry much weight. We hold that opinion mainly for two reasons. First, the delay in disclosing to the trial court that there was one man at the meeting intended exclusively for women did not, in our opinion, constitute a substantial blot on the credibility of the witness. Secondly, at no time during her testimony did the witness say that the meeting was a "mkole". She used that word in connection with what she had told the appellant when the latter had wanted to know whether the meeting was a public one. Mr. Magafu appears to have misunderstood the witness' answers to the questions posed by the learned trial Judge. For these reasons, we are of the opinion that there is no basis for interfering with the learned trial Judge's findings on the intimidation allegedly made by RW28.

Finally, as far as intimidation is concerned, there is the complaint against the rejection by the learned trial Judge of the evidence of PW15, Issa Jumanne Mngombanya, that at the Kwa Dosa campaign meeting threats were made by RW14, RW21 (the Kibaha District Commissioner) and RW27 that those who would not vote for CCM would be dispossessed of their shambas. The evidence was strongly disputed by the defence witnesses and the second respondent. One of the principal common features of their evidence was that the meeting in question did not last long because it started to rain heavily a short period after it had commenced. The learned trial Judge was impressed by the credibility of the defence witnesses. Having given the matter careful consideration, we are unable to agree with Mr. Magafu that, upon the evidence on the record, we are entitled to take a different view from that taken by the learned trial Judge. Having subjected the impugned judgment to close scrutiny, we are unable to say that the learned trial Judge failed to use or palpably misused the advantage he enjoyed, which we lack, of observing the manner and demeanour of the witnesses.

Mr. Magafu strongly urged us to hold that, contrary to the findings made by the learned trial Judge, it was proved beyond reasonable

doubt at the trial that the election in the Kibaha Constituency was not, because of intimidation by the second respondent and his agents, free and fair. For the reasons we have given, we cannot prevail on ourselves to believe that it would be right for us to accede to the learned advocate's arguments. That conclusion brings us face to face with the appellant's complaints against the learned trial Judge's findings on the evidence to the allegations of corrupt practices.

There were not less than seven alleged acts of bribery by the second respondent and some of his agents. We shall start with the evidence of Kinyama Songo Ulaiti (PW19). This witness was a member of the CCM's campaign team in the Kibaha Constituency. Testifying on what allegedly occurred on 26 October 1995, he said:

> ... I was called by the CCM's branch secretary. He is called Saidi Kokota. He gave [me] TZS. 20 000 which he said I should use in luring the voters into casting their ballot in favour of Msabaha. The notes were all in TZS. 500 currency notes denomination. I was instructed to give money only to those with Registration Certificates. I gave each one of these TZS. 500. I gave the money to forty persons. I was not given anything as an inducement. I was to be rewarded later on. I was promised TZS. 2 000. [This money] I was to be paid when Msabaha wins. I know the persons who I have paid ... I approached the individuals in person and I did it secretly.

Cross-examined by counsel for the Attorney General, the witness said, among other things:

> I had given [TZS. 500] to one Mkumbwa. He is blind. I took him to the polling station. I left him sitting outside. I left him with my uncle. He is called Kibwana Suleiman Kiyani. ... I had given him [Mkubwa] the money three days before the election day. [the emphasis supplied]

Mkumbwa gave evidence as PW16. He confirmed receiving 500 from PW19, but his story differed from the latter's story in two respects. First, he said he received the money on the polling day. Secondly, he said it was one Kinyamasigwa who led him to the polling station. The evidence of the two witnesses was disputed by the second respondent's side. According to Said Kokuza (RW17), PW19 had ceased to be a

member of CCM when, on 6 June 1995, he resigned from the Party. The witness produced before the court as an exhibit minutes of a meeting of CCM which were said to demonstrate that fact. Having taken into account the inconsistencies between the evidence of the two witnesses, the learned trial Judge found himself unable to accept the evidence of PW16 and PW19. In his brief attack on that finding, Mr. Magafu submitted that the issue was not who assisted the witness to go to the polling station, but whether PW19 was given TZS. 20 000. Mr. Mselem submitted that, bearing in mind the inconsistencies between their evidence and the "lie" by PW.19 that he was a member of CCM, the learned trial Judge was perfectly entitled to arrive at the conclusion he did. With respect to Mr. Magafu, we are of the opinion that Mr. Mselem's argument is well-founded. Assuming that PW19 did not tell a lie on his membership of CCM, his evidence reminds us of the caution voiced by the Supreme Court of India in *Rahim Khan v. Khurshid Ahmed and others* (4) regarding the acceptance of turncoat testimony in election petitions. Speaking through Krishna Iyer, J., the court said, at page 657:

> We cannot understand how tergiversation can become a virtue. Defection in politics is becoming a pervasive vice and its projection into election cases must be frowned upon by courts. It scandalizes us that a person should be the campaign agent of one candidate during elections and should shift loyalties during the election case to undo the victory he contributed to attain. The price of post-election swiveling must slump. It is naivete to pin faith on such probative circus and it is necessary to discourage such defection in the interests of the purity of the court process. Except in special circumstances which are not present in the present case we decline to dismantle an electoral result by the technique of turncoat testimony.

It will be recalled that it was the evidence of PW.19 that he was a member of the CCM campaign team. In that capacity, he exhorted the voters in the Kibaha Constituency to cast their votes for the second respondent, CCM candidate, and yet, by his own testimony, he tried to persuade the learned trial Judge to declare the second respondent's election void. We can see no special circumstances in

this case justifying the acceptance of the evidence of this swivel-chair witness. On the contrary, the very material inconsistencies between his evidence and that of his fellow player, PW16, dictate, in our settled opinion, the rejection of that evidence. It is very difficult to believe that the two witnesses were talking of the same incident when they were in the witness-box. We find no merit in Mr. Magafu's submission.

That conclusion brings us to the question whether the learned trial Judge was wrong in not finding that a few days before a CCM campaign meeting was held at Mwendapole village the second respondent bribed some villagers there. The appellant adduced evidence from two witnesses on the complaint – Rajabu Ali Ngateka (PW10) and Salum Suleiman Difa (PW11). It was the evidence of the two witnesses that on a Sunday morning the second respondent came to their village and parked his vehicle at a bus stand. Soon thereafter a crowd of men and women gathered there. The second respondent addressed them briefly; he exhorted them to vote for him.

Then he dipped his hand into his trouser pocket and dished out TZS. 30 000 in three currency notes. The crowd scrambled for the money. PW10 grabbed it and threw two of the notes to the crowd. The witness then went to a shop where he changed the note he had retained into TZS. 5 000 notes, one of which he gave to PW11. There were some inconsistencies in the evidence of the witnesses. According to PW10, the second respondent told the women to wait for their turn as the TZS. 30 000 was for men. According to PW11, however, the second respondent also gave women TZS. 20 000. PW11 tried to explain the inconsistency during cross-examination. He said that the women were given the TZS. 20 000 when PW10 had gone to the shop to change the TZS. 10 000 he had retained. The second respondent vehemently disputed having bribed the crowd. He asserted that he could not indulge in bribery when his mobilization groups denounced corruption in their songs and poems. The learned trial Judge was not impressed by the evidence of PW10 and PW11. In is opinion, the disharmony between their evidence left a reasonable doubt as

to whether the alleged bribery took place. Mr. Magafu attacked this view. He contended that the second respondent's evidence on the issue was no more than a general denial. Relying *on Basil P. Mramba and The Hon. The Attorney General v. Leons S. Ngalai,* (5), the learned advocate submitted that a general denial of an electoral irregularity or misconduct cannot suffice. He concluded his submission by arguing that the evidence of PW10 and PW11 was credible and proved the alleged bribery beyond reasonable doubt. Mr. Mselem's response was two fold. First, it was improbable that the second respondent, a man who is highly educated, would have acted in such a reckless manner in broad daylight as described by the two witnesses. Secondly, the unresolvable inconsistencies between the evidence of the witnesses were material and robbed the witnesses' accounts of their persuasiveness. Mr. Mselem concluded his submission by reminding us of the fact that being a very grave charge, corruption ought to be strictly proved.

Whose contention is correct? Mr. Magafu's that bribery by the second respondent was proved? Or is it Mr. Mselem's that there was no such proof. There cannot be doubt that if it is true that the second respondent behaved as alleged by PW10 and PW11 he acted with reckless courage. Like the learned trial Judge, however, we are not satisfied that it was proved that he so behaved. In our opinion, the inconsistency between the evidence of the two witnesses regarding whether or not women were also bribed was not of a trifling character. The belated explanation by PW11 that the bribery occurred when PW10 had gone to the shop flies in the face of the testimony of PW10, which suggested, very strongly, that PW11 accompanied him to the shop. It is not irrelevant to add, we think, that the omission by the appellant to call as a witness at least one of the women who witnessed the alleged bribery gives rise to doubt whether the accounts of PW10 and PW11 were true. We conclude, therefore, that there is no basis for faulting the learned trial Judge's findings on the evidence of PW10 and PW11.

We now turn to a consideration of the appellant's complaint against the learned trial Judge's finding that it was not proved beyond reasonable

doubt that Dr. Lawrence Gama, the then Secretary General of CCM, handed over bribe money to PW2. The witness gave a very interesting story. We propose to tell the greater part of it in her own words. This is what she told the trial court:

> On the 6 October 1995 I and two other CHADEMA members attended a meeting at the CCM Lumumba Office in Dar es Salaam. I was a leader in Tumbi Ward. I was a CHADEMA Secretary. The CCM's Party Secretaries for Dar es Salaam and Coast Regions and a chairman for Visiga Village were also present at the CCM Sub-headquarters at Lumumba in the city. With me there were Mohamed Mkanda and Seif Rashid. We had all pretended to have deserted CHADEMA in favour of CCM. I was a security agent of CHADEMA. We were directed by the CCM leaders in attendance to entice CHADEMA members to vote for Dr. Ibrahim Msabaha. In order to achieve this objective the former Secretary General of CCM, Dr Lawrence Gama, gave me a bribe of TZS. 30 000 and 25 CCM cards. I was directed to offer each person I had enticed a CCM card and TZS. 1 000. The remaining TZS. 5 000 was not for luring CHADEMA *(sic)*. It was given to me as transport allowance.

The witness went on to assert that after leaving the CCM Sub-Headquarters she proceeded to CHADEMA National Headquarters where she reported the alleged incident to the Party's Vice Chairman, one Mr. Brown Ngwilulupi. She said She left the CCM cards and TZS. 25 000 with that leader. It should also be pointed out that, according to the witness' testimony, her companions, Mohamed Mikanda and Seif Rashid, were also given some money for the same purpose by the Secretary General. In rebuttal, the second respondent called one Abbas Shabani Mfikurwa (RW29). In October 1995 the witness was Personal Assistant to the Secretary General of CCM. He told the trial court that on 6 October 1995, he officiated at a ceremony for welcoming to CCM Kibaha defectors from CHADEMA. He had been told they were two hundred defectors but only thirty would attend the ceremony. He obtained thirty CCM cards for the occasion, but in the end only three "defectors" turned up – PW2, Mikanda and one whose name he could not recall. The witness asserted that on that date the Secretary General was at

Songea where he was also involved, as a candidate, in a contest for a parliamentary seat. He went on to tell the trial court that he presented the trio with CCM membership cards and handed over the remaining cards to one Mr. Mhagama, the Coast Region CCM's Secretary, for distribution to those defectors who had not turned up at the ceremony. According to the witness, the three "defectors" had insisted that the ceremony take place in Dar es Salaam and not Kibaha because they feared to be subjected to harassment by the appellant's followers.

The learned trial Judge subjected the evidence of the two witnesses, PW2 and RW29, to a critical analysis. He said:

> The evidence of PW2 is lonesome as the said Brown Ngwilulupi was not called to lend credence to her version. If her story is credible, one wonders why he did not come. PW2 had asserted that Dr. Lawrence Gama was in attendance on that day but the same is borne out in Exhibit R13 [a news report in UHURU issue of 7 October 1995]. Had he been there quite obviously he would have hit the headlines. In the circumstances, of the two RW29 is more credible and worth of belief.

Mr. Magafu made a general attack against the rejection by the learned trial Judge of PW2's evidence. With respect, we agree with Mr. Mselem that the reasons given by the learned Judge for that rejection are incapable of being faulted. In our view, the learned Judge could also have doubted the veracity of the witness' evidence on the additional ground that the unexplained omission by the appellant to call Mohamed Mikanda or Seif Rashid as a witness suggested that the solitary evidence of PW2 was not going to be supported if those persons gave evidence.

The only remaining story of alleged bribery worthy our attention is that given by Faustin Everista (PW5). This witness told the trial court that on the polling day, while he and one Haule and Mohamed were going to a polling station to cast their votes, one Felician Kisutu, a CCM ten cell leader, who was at his house, called them. As to what allegedly happened at the house, we shall tell the story in the witness' own words:

> He (Felician) gave a thousand shillings each and asked us to vote for Dr. Msabaha. He promised us more money if Msabaha was elected. He told us that about [TZS.] 200 000 was available. I cast my vote for Msabaha. I have not been paid the money to date. I had gone in search of the money.

In his analysis of the evidence laid before him the learned trial Judge made no specific reference to the evidence of this witness. Mr. Magafu, not unexpectedly, attacked the omission. He contended that the witness' evidence was capable of belief. Mr. Mselem, on the other hand, submitted that the witness had told palpable lies and therefore his evidence was not worthy of the court's consideration. Since the learned trial Judge does not appear to have evaluated the evidence of the witness, we shall discharge that task. In doing so, we remember, of course, that we have not had the benefit of observing the witness' demanour in the witness-box. As a matter of reason, we think it is unsafe to rely on the witness' evidence. If his story were true, it seems unlikely that counsel for the appellant, an experienced one, would have omitted to call as a witness at least one of the witness' companions (Haule and Mohamed) at the time the bribes were allegedly given. The omission seems to suggest to us that the appellant's side was not sure that if those companions had gone into the witness-box they would have supported PW5's story. We would attach little weight to that story.

Corruption is a grave misconduct, and the allegation of it is a very serious charge. When it is proved in an election petition very serious consequences follow. It must, therefore, be strictly proved. Although the conditions prevailing in this country with regard to elections may not be very similar to those obtaining in India, the observations made by the Supreme Court of that country in *Rahim Khan's case* (4), at page 656, on the dangers of accepting *bare oral* evidence on allegations of corrupt practices are, we think, useful here:

> We must emphasize the danger of believing at its face value oral evidence in an election case without the backing of sure circumstances or indubitable documents. It must be remembered that corrupt practices may perhaps be proved by hiring a dozen witnesses apparently respectable and disinterested ... There is no X-ray whereby the dishonesty of the story can be established and, if the court were gullible enough to gulp such oral versions and invalidate elections, a new menace to our electoral system would have been invented through the judicial apparatus. We regard it as extremely unsafe, in the present climate of kilkennycat election competitions and partisan witnesses wearing robes of veracity, to upturn a hard won electoral victory merely because lip service to a corrupt practice has been rendered by some sanctimonious witnesses. The court must look for serious assurance, undying circumstances or unimpeachable documents to uphold grave charges of corrupt practices which might not merely cancel the election result, but extinguish many a man's public life.

Cogent and clear evidence is required to prove a corrupt practice in an election petition. The evidence adduced by the appellant in the present case being, as we have demonstrated, of a shaky and prevaricating character, we are satisfied that the learned trial Judge was perfectly right to hold, as he did, that no corrupt practice was proved beyond reasonable doubt. We, therefore, see no merit in the appellant's complaint.

Finally, we turn to the appellant's complaint against the learned trial Judge's findings on his (the appellant's) allegations of tribalism. To prove those allegations, the appellant adduced evidence from twelve witnesses. The witnesses were PW2; Collence Wilisoni (PW3); PW4; PW6; PW7; Mohamed Kabondo (PW8); PW10; Ali Chizo (PW13); PW14, Issa Jumanne Magombanya (PW15) and Salum Issa Kinyogori (PW21). Save as for PW21, the essence of these witnesses was that at the CCM campaign rallies they attended in the constituency of Kibaha – PW2 and PW6 at Mkuza, PW3 and PW4 at Kwa Mfipa, PW7, PW8 and PW10 at Mwendapole, PW13 at nearly all the rallies, PW14 at Mlandizi, and PW15 at Vikuruto – the second respondent and his agents (in the presence of the former) exhorted the crowds not to vote for the appellant who they described as a Mhaya, Wakuja (non-indigenous person in the area), TX, or foreigner. They urged the people to vote for the second respondent, their fellow Zaramo or Mzawa (a son of the land). According to the witnesses, the choirs and dancing groups conveyed the same message to the crowds. According

to PW3, at the meeting he attended, one line of one of the songs ran as follows:

... Wazaramo nambari one ... Wahaya hawana bao.

The ten witnesses asserted that the following were the second respondent's principal agents whose speeches contained tribalistic messages: RW14, the CCM's District Chairman; RW16, Ward Councilor; RW21, Ward Executive Secretary; and Morris Foeks, who did not give evidence in this case. PW21 testified to the effect that one night before the polling day RW28 (Dr. Zainab Gama) visited his house and exhorted him not to cast his vote for the appellant, a Mhaya. The evidence of PW13 was to the effect that he was a member of one of CCM's campaign choirs. He produced before the court as an exhibit an audio tape which he asserted contained some of the songs which he had taped at some of the campaign rallies. The thrust of the second respondent campaign, the witness asserted, was to portray the appellant as unfit to be Member of Parliament for Kibaha Constituency on the ground that he was not indigenous to that constituency. The appellant himself essentially testified on the reports he received from his agents and supporters.

In the witness-box the second respondent vehemently denied that he or his agents conducted the campaign rallies on the lines of tribe as alleged by the appellant's witnesses or at all. He called nine witnesses to refute those allegations. Those witnesses were: Alli Nassoro Rufumba (RW11), Athuman Maje (RW12), Deogratia Kishura (RW13), RW14 (Hamisi Ramadhani Chanzi), Msafiri Jackson (RW20), Simba Saidi Simba (RW22). Abdallah Juma Mbonga (RW24) and Muharami Mohamed Lubawa (RW25). Each of these witnesses denied that speeches on tribal lines were made at the campaign meetings they attended. According to them, in the speeches and songs voters were exhorted to cast their votes for the CCM Presidential election candidate and the second respondent. RW11, RW12, RW13, RW14 and the second respondent himself asserted that the subject-matter of tribes was touched upon by the speakers at the CCM campaign rallies only for the purpose of demolishing the baseless utterances which the appellant had been

making at some of his campaign rallies that, (1) although at the CCM nominations, before he had defected to CHADEMA, he had polled the highest number of votes thereby beating the second respondent by far, he was not nominated by that Party as its candidate in the constituency because he was a Mhaya and not a Zaramo, and (2) the second respondent was a Muha. The second respondent told the trial court that he "found it prudent for the inhabitants of Kibaha to know the truth". It was not in dispute at the trial that the second respondent is a Zaramo, and the appellant is a native of West Lake region, who has now settled in the constituency.

On the issue of tribalism the learned trial Judge analysed the evidence of three witnesses only – the appellant, PW13 and RW20. He was silent as to the truthfulness or otherwise of the evidence of PW2, PW3, PW4, PW6, PW7, PW8, PW10, PW14, PW15, RW11, RW12, RW13, RW14, RW22, RW24, RW25 and RW26. We shall quote him *in extenso*. This is what he said:

> There can scarcely be any doubt that Nelson was an exciting witness. He was in the witness box for a relatively long time. It will be recalled that it is common ground that Nelson in the election posters, sample ballot papers and in his speeches at several campaign rallies described himself as a doctor. It later on transpired that the said credential was spurious and Nelson himself has unblushing conceded (*sic*) that his claim in respect of that credential was utter falsity. And I venture to say as a result of this falsehood the court has to approach his evidence with the greatest circumspection. Besides, I could not help but get the feeling that parts of his evidence were assimilations of suspicious and inferences and that there is some likelihood that he was carrying out a vendetta and a jaundiced eye against Dr. Msabaha after being jilted by CCM from the candidature. This being the position Nelson's evidence should be suspect. The reason is that he has *a palpable interest* to serve. At any rate, I think, as already stated Nelson's evidence in respect of this issue was a fusion of suspicions and deductions. I find it difficult to buy the account of PW.13 particularly when it is pitted against that of RW.20 who I find credible. His evidence finds support in the cassette itself. Most of the evidence given show that

during the campaign rallies there was cheering, jubilation and all sorts of applauses. It strains credulity and indeed one wonders why the cassette did not pick a single voice from the crowd, it having been recorded amid a crowd as per PW.13 himself. This raises great doubts which should be resolved in favour of Dr. Msabaha.

Having evaluated the evidence of the three witnesses in that manner, the learned trial Judge concluded his consideration of the issue of tribalism as follows:

> Without prejudice to the foregoing, I wish to further state that on my part it is by no means new or obsolete law that even assuming for argument sake that tribalism was the theme in the campaign rallies, I am far from persuaded that the substantial number of votes were obtained from such utterances bearing in mind the cosmopolitan nature of the constituency. The decision in *Ngwashemi's Case* [(1971) HCD n. 251] is hereby relevant. I am quite unable to hold that such a situation obtained in the Parliamentary election in the Kibaha Constituency. I so find.

Mr Magafu made a strenuous attack against the learned trial Judge's reasoning in these passages. He submitted that the learned trial Judge gravely misdirected himself in analyzing the evidence because he concentrated on the appellant's evidence. According to the learned advocate, the omission by the learned Judge to evaluate and make findings on the evidence of the other witnesses, other than PW13 and RW20, who testified on the issue of tribalism, was a serious misdirection. Mr. Magafu went on to contend that the evidence of PW2 (who, he said, was not challenged during cross-examination on the issue of tribalism), PW3, PW4, PW6, PW7, PW8, PW15 and PW16 was reliable and ought to have been accepted by the learned trial Judge. The learned advocate described the evidence of the second respondent and his agents as mere general denials, and went on to submit, relying on *Basil P. Mramba's case* (3), that those denials were not sufficient in law to constitute a defence. He invited us to hold that it was proved beyond reasonable doubt that the second respondent and his agents made statements during the election campaign with intent to exploit tribal differences relating to the appellant and the

second respondent, and that the agents made those statements with the second respondent's knowledge and consent or approval. Finally, Mr. Magafu submitted that in considering the effect of the tribalistic statements on the result of the election the learned trial Judge misdirected himself in law because, as he put it, once any of the objectionable statements described in section 108(2)(a) of the Act are proved to have been made, the election of the returned candidate must be declared void. According to the learned advocate, the question of the result on the election being affected arises only when the proved complaint is a non-compliance with the provisions of the Act. In his response, Mr. Mselem was ingenuous enough to confess that he was not at ease with the way the learned trial Judge approached his task on the issue of tribalism. He conceded that the learned trial Judge gave no reasons for disbelieving the witnesses other than the appellant, PW13 and RW20, who testified on that issue. The learned advocate nevertheless contended that if he had considered the evidence of those witnesses the learned trial Judge would inevitably have disbelieved it. He reminded us that on the issue of corruption the learned trial Judge found PW2 a liar, and went on to submit that having been so labeled, the witness could not possibly be believed on the issue of tribalism. He pointed out what he regarded as weaknesses on the evidence of the following witnesses of the appellant: PW.3 (disharmony with evidence of PW13), PW4 (he admitted to have sold his Registration Certificate) and PW13 (the audio cassette he produced before the trial court had no sound made by the crowds, a fact which, he said, supported RW20's assertion that it was recorded after the election had been held). Mr Mselem further submitted that if the assertion by the section respondent and his witnesses that the question of tribalism was commented upon by the speakers of their camp merely for the purpose of exposing the falsity of the allegation which the appellant was making that the section respondent's nomination by CCM as a parliamentary candidate was influenced by tribalism was true, then it could not be said that the statements were made with intent to exploit tribal differences. The learned advocate, who conceded that once a contravention of section 108(2)(a) of the Act is proved, nullification of the election must

follow regardless of the result of it, concluded his argument by submitting that no such contravention was proved in the present case.

Mr Salula agreed with the interpretation on section 108(2)(a) of the Act urged by Mr Magafu and Mr Mselem. He invited us to hold that the absence in that paragraph of the test of effect on the result of the election which is provided in paragraph (b) of the subsection demonstrates that Parliament intended not to have that test applied to statements on the lines of religion, race, tribe or sex. He sought to remind us that, for the sake of National Unity, both the Constitution of the United Republic of Tanzania of 1977 (hereinafter referred to as "the Constitution") and the Political Parties Act, 1992 prohibit discrimination.

We have paid due attention to the submissions made by counsel for all the three parties. Having done so, we are left in no doubt that the learned trial judge strayed into some serious errors in his treatment of the evidence laid before him on the issue of tribalism. First, he did not apply his mind to the evidence of seventeen witnesses, including that of PW8, PW14 and PW15. A judgment must convey some indication that the judge or magistrate has applied his mind to the evidence on the record. Though it may be reduced to a minimum, it must show that no material portion of the evidence laid before the court has been ignored. In *Amirali Ismail v. Regina*, (6) Abernethy, J., made some observations on the requirements of judgment. He said:

> A good judgment is clear, systematic and straightforward. Every judgment should state the facts of the case, establishing each fact by reference to the particular evidence by which it is supported; and it should give sufficiently and plainly the reasons which justify the finding. It should state sufficient particulars to enable a Court of Appeal to know what facts are found and how.

Though they were made in a criminal case, we think these observations equally apply to judgments given in non-criminal proceedings. Since, in the present case, the learned trial Judge completely ignored a portion of the material evidence, we shall, unfortunately, embark

upon the task of evaluating that evidence without the advantage of his assessment. Secondly, the learned trial Judge misdirected himself in rejecting the evidence of the appellant partly on the ground that the appellant had "a palpable interest to serve" in the case. The fact that, as the returned candidate, the second respondent had equal, if not greater, purpose of his own to serve in the case, seems to have escaped the attention of the learned trial Judge. Thirdly, as we shall demonstrate later, the learned trial judge erred in law in considering the effect of statements, if proved, made in contravention of section 108(2)(a) of the Act on the result of the election.

Although, unlike the learned trial Judge, we did not enjoy the advantage of observing the manner and demeanour of the witnesses when they were in the witness-box, we are of the settled opinion, having regard to, among other things, the totality of the evidence on the record, the fact that RW26 was recorded by the learned trial Judge to have been evasive at a certain stage of his evidence, and the admission made by RW11 in the course of his evidence, to which we shall shortly revert, that there was no basis for the learned trial Judge not to accept the evidence of PW8, PW14 and PW15. The trio appear to us to have given simple and straightforward stories. They did not embellish those accounts. The evidence of the three witnesses was, among other things, to the effect that at Mwendapole, Mlandizi and Ruvu Kwa Dosa, respectively, the second respondent and his agents made speeches exhorting the people not to vote for the appellant a non – Zaramo, but vote for the second respondent, their fellow tribesman. Of course, the second respondent and his witnesses disputed those assertions, but their case that the question of tribes was raised at the CCM campaign rallies only to refute the story the appellant had been telling the crowds at his campaign rallies as to why CCM had not nominated him as its candidate in the constituency was put only to the appellant, who disputed it. We are at a loss to understand why counsel did knot put that case to PW2, PW3, PW4, PW6, PW7, PW8, PW10, PW14 and PW15. It seems to us not unreasonable to infer from the omission that counsel realized after the appellant's emphatic denial that it would be futile to pursue the

matter. Be that as it may, the evidence of PW8, PW14 and PW15 appears to find some support from the admission made by RW11, the CCM's District Secretary, in his evidence. Under cross-examination by Mr. Swai, for the appellant, the witness said, among other things:

> I concede that there was that tribal difference talk that surrounded the campaign atmosphere.

This admission shows, we think, that, although the witness' heart was with his Party and the second respondent, he did not so lose his head as to avoid telling the trial court that which the second respondent and the rest of his witnesses who testified on the issue of tribalism seemed very reluctant to say. Be that as it may, we think the evidence of PW8, PW14 and PW15 could stand its ground without RW11's admission. To put it differently, we would be prepared to act on the evidence of the trio in the absence of the admission.

It cannot be disputed that the evidence of PW3 (who sold his Registration Certificate), PW6 (a former prisoner), PW7 (one of the witnesses whose evidence on treating was found lacking veracity), PW10 (the witness whose story about a bribe of TZS. 30 000 the learned trial Judge rightly found unconvincing) and PW13 (the witness whose evidence on recorded tape was rightly doubted by the learned trial Judge, and who was imprisoned in 1993 for assaulting a school teacher) required supporting evidence before it could be acted upon. There is such evidence on the record in respect of the evidence of PW3, PW7, and PW10. That evidence is that of PW8. Bearing in mind the compelling nature of the evidence of PW8, PW14 and PW15, the fact that the allegation that in talking about tribes the second respondent and his agents were merely responding to false statement by the appellant regarding his failure to secure a nomination in CCM was not put to any of the appellant's witnesses, and, finally, the admission made by RW11, we are of the opinion that the learned trial Judge should have rejected the second respondent's version regarding the issue of tribalism. Accordingly, we find as a fact that the second respondent and his agents conducted a campaign on tribal lines as asserted by PW3, PW7, PW10, PW14 and PW15. We entertain no doubt that those agents did so with the

knowledge and consent or approval of the second respondent and that both the second respondent and his agents made those statements with intent to exploit differences between the appellant and the second respondent. In what we regard as a half-hearted submission, Mr Mselem contended that there was no proof of such intent. It suffices to say on that argument that, upon the evidence, the only rational conclusion is that the statements were made with that intent. Without any hesitation we reject the learned advocate's contention.

The making, during an election campaign, of statements, by the candidate or his agents with his knowledge and consent or approval, with intent to exploit tribal differences pertinent to the election or relation to any of the candidates is frowned upon by section 108(2)(a) of the Act. The sub-section reads:

> (2) The election of a candidate as a Member of Parliament shall be declared void only on an election petition [if any] of the following grounds is proved to the satisfaction of the High Court and on no other ground, namely:
>
> (b) that during the election campaign, statements were made by the candidate, or on his behalf and with his knowledge and consent or approval, with intent to exploit tribal, racial or religious issues or differences pertinent to the election or relating to any of the candidates, or, where the candidates are not of the same sex, with intent to exploit such difference;
>
> (c) non-compliance with the provisions of this Act relating to election, if it appears that the election was not conducted in accordance with the principles laid down in such provisions and that such non-compliance affected the result of the election; or
>
> (d) that the candidate was at the time of his election, a person not qualified for election as a Member of Parliament". [the emphasis supplied]

It will be recalled that the learned trial Judge held that in accordance with the principle laid down in *Ngwashemi's case supra* he could

not say, assuming that the appellant's complaint was proved, that "the substantial number of votes were obtained from such utterances bearing in mind the cosmopolitan nature of [the] constituency". With great respect, we are satisfied that the learned trial Judge misdirected himself in law in considering the effect of tribalism in the speeches on the result of the election. When, contrary to section 108(2)(a) of the Act, an election campaign is conducted on the lines of tribe, race, religion or sex, the law is jealously qualitative, not clumsily quantitative, in its nullification test. It does not count the number of contraventions, for, one contravention has the same ultimate result as ten contraventions. When there is such proof the question of the contravention affecting the result of the election does not arise. That question arises only if the provision of the subsection which has been contravened is paragraph (b). Contrary to what the learned trial Judge held, *Ngwashemi's* case *(supra)* concerned the contravention of paragraph (b) of the subsection and not paragraph (a). The complaints in that case were: (1) more votes were counted than the number of registered voters; (2) failure to keep the poll open at some of the polling stations; (3) failure to provide screened compartments wherein electors could cast their votes secretly; and (4) a substantial number of voters were denied the opportunity to vote. The decision in that case was plainly irrelevant to this case. In its grate wisdom, Parliament found it necessary to impose an absolute prohibition of the making by an election candidate, or on the candidate's behalf with his knowledge and consent or approval, of statements with intent to exploit tribal, racial, religious or sex differences pertinent to the election or relating to any of the candidates. However big the margin of the victory of the returned candidate may be, if the candidate conducted his campaign, or permitted his agents to campaign, on the lines of any of those pernicious evils, the High Court is bound by the law to invalidate the poll verdict regardless of the effect of the illegal practice on the result of the election: see the very recent decision of this court in *Azim Suleiman Premji v. Attorney General and Dr. Aman Walid Kabourou* (7). The law's aversion to short-cut to power is boundless. We want to say in the clearest terms that it is of first importance

that elections should not only be fairly and properly held but should also be seen to be so conducted. John Adams, a renowned jurist, who, between 1797 and 1801, was President of USA is said to have once remarked:

> Remember, remember, democracy never lasts long. It soon wastes, exhausts and murders itself. There never was a democracy that did knot commit suicide.

The vices prohibited by section 108(2)(a) of the Act are capable of posing a very grave threat to the national cohesion and our young democracy. The spirit underlying the provisions of articles 9(g) and (h), 13(4) and (5), 20(2)(a), and 29(2) of the Constitution, and section 9(2) of the Political Parties Act, 1992, is that discrimination on the basis of tribe, race, religion or sex has no place in this country. It is of earth-shaking importance that those cancerous vices be eradicated from the hearts and minds of the leaders and those who aspire to become leaders. The politics of stoop-to-conquer must be denounced with a loud voice.

Upon a close and fresh re-evaluation of the evidence on the record, we are satisfied beyond reasonable doubt that, contrary to the provisions of section 108(2)(a) of the Act, the second respondent and his agents, with his knowledge and consent or approval, made statements during the election campaign with intent to exploit tribal differences relating to that candidate and the appellant. For the reasons we have given, we cannot in law pause to consider whether those illegal practices affected the result of the election. A campaign on tribal lines having been proved, the electoral purity must claim its victim. Accordingly, we allow the appeal, reverse the decision of the High Court dismissing the election petition, and declare that the election of the second respondent as a Member of Parliament for Kibaha Constituency is void. The second respondent is to pay the costs of the appellant and those of the first respondent, both in this court and the court below.

JOHN LESSA v. ZAMCARGO LTD. AND JONAS MMARI

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Kisanga, Mfalila and Samatta, JJ.A.)

CIVIL APPEAL No. 61 OF 1996

(From the Judgement of the High Court of Tanzania at Dar es Salaam, Kyando, J., dated 2 February 1994, in Civil Case No. 6 of 1993)

Registry – Misconduct – Exchequer receipt issued fraudulentlly – Exchequer receipt with a forged date.

Advocates – Misconduct committed on instructions of advocate – Advocate's misconduct – Advocate's deceit calculated to mislead court to make a wrong finding of fact is an attempt to pervert the course of justice.

The High Court refused to enter judgement against the defendant, believing the deliberate falsehood of his advocate that the Written Statement of Defence was filed within the prescribed time. On appeal to the Court of Appeal, the court was satisfied that the Written Statement of Defence was actually filed after the prescribed time had expired. The court discovered that the exchequer receipt against which the written statement was filed was a forgery committed by the advocate jointly with the High Court registry staff.

Held: (i) What the advocate for the defendant did amounted to misconduct;

(ii) The advocate's misconduct was calculated to pervert the course of justice ruling is set aside.

Appeal allowed

Statutory provisions referred to:

(i) Civil Procedure Code, Order 8, rule 14

Mr. Ndyanabo, for the Respondent

JUDGMENT

(Dated 07 September 1999)

KISANGA, J.A.: This is an appeal against the decision of the High Court (Kyando, J.) refusing to enter judgement for the plaintiff/ appellant after the defendants/respondents had failed to file a Written Statement of Defence within the prescribed time.

Very briefly the facts of the case are as follows: After the appellant had filed the plaint in the High Court, that court ordered that the Written Statement of Defence be filed by 23 February 1993, and the case to be mentioned on 3 March 1993. On this latter date no Written Statement of Defence had been filed, and the court upon application by counsel for the respondent extended the time for filing the Written Statement of Defence to 16 March 1993. The appellant alleged that the respondents failed to comply with the court order and so he applied to have judgement entered in his favour or for an order to proceed *exparte* against the respondents. The application was resisted and the learned judge, upholding the submission that the Written Statement of Defence was filed well within time, dismissed the application. The appellant's application to the High Court (Bubeshi, J.) for Leave to Appeal against the dismissal was refused but was subsequently granted by a Single Judge of this court (Ramadhani, J.A.).

Before us the appellant appeared and argued the appeal in person while the respondents were represented by Mr Ndyanabo who took over from Mr Kisusi who had the conduct of the defence throughout in the High Court and also for some time in this court.

At the hearing of the appeal Mr Ndyanabo was unable to press that the Written Statement of Defence was filed within the prescribed time. We think that he took the right stand for reasons which will be apparent later in this judgement.

Mr Kisusi who, as stated before, conducted the defence before Mr Ndyanabo took over, vigorously maintained that he filed the Written

Statement of Defence on 26 February 1993. According to him that was well within the time fixed by the court i.e. 16 March 1993. However a close examination of the record demonstrates that the alleged date of filing the Written Statement of Defence i.e. 26 February 1993 was clearly a forgery. First, the appellant said on oath that after the court had ordered the filing of a Written Statement of Defence by 16 March 1993 he constantly inquired from the court if that order was complied with but was informed that until 16 March 1993 no Written Statement of Defence had been filed. The question is: If Mr Kisusi had filed the Written Statement of Defence on 26 February 1993 why was a copy of it not served on the appellant? Why was the appellant not shown the alleged Written Statement of Defence when he frequented the court and asked if one had been filed?

Secondly, on 3 March 1993 when the case was mentioned in court, one Mr Lyimo apparently holding brief for Mr Kisusi, counsel for the respondents, asked for extension of time till 16 March 1993 to file a Written Statement of Defence, and the application was duly granted. If Mr Kisusi had already filed the Written Statement of Defence on 26 February 1993 as he claims, why was it necessary on 3 March 1993 to ask for extension of time to file the document? And if that document was on the file, why did the court not see it, in which case it would be superfluous for it to extend time for filing the same document. It is pertinent to note that the said Mr Lyimo has not sworn any affidavit to explain the circumstances in which he came to ask for extension of time to file a Written Statement of Defence in a case where according to Mr Kisusi, one was already filed. Nor did Mr Kisusi himself swear any affidavit to shed some light on the matter. Not only that Mr Kisusi has not filed the affidavit of one George Mjema, his clerk, who allegedly presented the Written Statement of Defence at the registry for filing on 26 February 1993. In these circumstances it is impossible to think that the Written Statement of Defence was filed on 26 February 1993 as Mr Kisusi asserts.

The worst aspect of this matter is what appears on the exchequer receipt against which the Written Statement of Defence was allegedly

filed on 26 February 1993. That receipt is numbered A8/5095002 and it purports to be issued on 26 February 1993. But the inspection of the counterfoils of the relevant receipt book disclosed that the previous two receipts numbers A8/509500 and A8/509501 were both issued on 24 April 1993, this is some two months later. The question is: How could the subsequent receipt number A8/5095002 have been issued before those two on 26 February 1993. The only conclusion to be drawn is that the exchequer receipt number A8/5095002 dated 26 February 1993 was not issued in the ordinary course of business. It must have been issued in a fraudulent attempt to show that the Written Statement of Defence was filed on 26 February 1993 and that this particular exchequer receipt was issued in respect thereof.

The next question which arises is: Who committed this misconduct? It is plain that the member of the registry staff who accepted the Written Statement of Defence and issued the exchequer receipt with a forged date on it was involved. But such a member of the registry staff acting alone could not do it because there would be no motive for doing so as there is nothing to suggest what interest he or she had in the matter, or what advantage he or she stood to gain in so acting. On the other hand it is apparent that the misconduct was committed on the instructions of Mr Kisusi, and the reason for this view is as follows:- For the reasons stated earlier, it is quite apparent that Mr Kisusi failed to file the Written Statement of Defence by 16 March 1993 as ordered by the High Court. As intimated before, Mr Ndyanabo who appeared before us rightly conceded to this when he said that the Written Statement of Defence cannot have been filed on 26 February 1993 as it purports to show, and as was maintained by Mr Kisusi when he was having the conduct of the defence in this case. Thus, following such failure, Mr Kisusi would then appear to have made deliberate effort calculated to mislead the High Court into holding that the Written Statement of Defence was filed within the time fixed by that court and, indeed he succeeded to do so. Mr Kisusi would have every reason to do this because he was trying to make good his default of filing the Written Statement of Defence.

We wish to observe that such misconduct by counsel as appears to have taken place in this case, was most unfortunate, to say the least. This is so not only because the misconduct was calculated to deceive and mislead the court and hence to pervert the course of justice, but also because it was designed to induce others including the court registry staff into committing misconduct. We feel duty bound to strongly discourage such conduct by counsel in the future, especially in this time when there is a growing number of allegations of corruption and other malpractices being made against the legal profession.

With that said, we now conclude this matter by holding that the learned High Court Judge wrongly found that the Written Statement of Defence was filed within the time fixed by the court. On the evidence he should have found that the respondents had failed to file a Written Statement of Defence. Accordingly that Ruling is set aside.

The appellant in his chamber application to the High Court had asked for judgement in default of filing a Written Statement of Defence or for an order that the case proceeds *ex parte* against the respondents. Although the appellant did not say so expressly, it is clear that he was relying on the provisions of Order 8, rule 14 of the Civil Procedure Code. Had the trial judge not been misled, he would have found, that the respondents had failed to present a Written Statement of Defence, in which case he would have proceeded to make the necessary order or direction under the above cited rule following such default. Accordingly the matter is remitted to the High Court with a direction that that court now proceeds to make the necessary order/direction under Order 8, rule 14 of the Civil Procedure Code. The appellant is to have his costs of this appeal.

MAKAME JUNEDI MWINYI *v.* SERIKALI YA MAPINDUZI ZANZIBAR (SMZ)

HIGH COURT OF ZANZIBAR AT VUGA

(Garba Tumaka, D/C.J.)

CRIMINAL APPEAL No. 1 OF 1999

(From the Regional Magistrate's Court at Vuga, in Original Case No.178 of 1999)

Criminal Law –Defilement – Ingredients of the offence – Section 119 of the Penal Decree Chapter 13.

Evidence – Circumstantial evidence – Definition of circumstantial evidence – When circumstantial evidence may support a conviction.

Evidence – Corroborative evidence – When to be applied – Meaning and function of corroborative evidence.

Evidence – Expert evidence – when and how expert evidence is applicable.

The appellant was charged before the Regional Court at Vuga, with defilement of a girl under 14 years contrary to section 125(1) of the Penal Decree Chapter 13. He was convicted and sentenced to serve 30 years in the educational centre. Being dissatisfied with the conviction and sentence the appellant lodged an appeal with this court. The grounds of appeal were, among others, that the Lower Court erred by convicting the appellant based on uncorroborated evidence, that the conviction relied solely on circumstantial evidence and that the expert evidence which the trial court relied on was not conclusive or definite.

Held: (i) There were circumstances that reasonably enabled the trial magistrate to infer the appellant's guilt;

(ii) Corroboration is simply independent evidence which supports or confirms as true the principal evidence; the rule testimonies of PW2 and PW3 served to corroborate the evidence of PW1 the prosecutive;

(iii) The position of the law is that expert evidence is admissible in cases where specialized knowledge is required; and the competence of an expert witness should in all cases be shown before his evidence is properly admissible in this case PW5 is a qualified medical doctor, gynaecologist, sufficiently qualified and experienced to preffer expert opinion.

Appeal dismissed.

Cases referred to:

(1) *Kibazor v. Uganga* (1965) EA 507

(2) *Republic v. Opert, Son of Erui* (1936) 3 E.A.C.A 122

(3) *R v. Konstant Kirimunyo* (1943) 10 E.A.C.A 64

(4) *Sunmonu v. R* (1957) WRNLR. 23

(5) *Gatheru s/o Njagwara v. R* (1954) 21 EACA 384

Statutory provisions referred to:

(i) Penal Decree Chapter 13, section 119, section 125(1)

Mr Haji, for the Appellant

Mr Saleh, for the Respondent

JUDGMENT

(Dated 14 September 1999)

GARBA TUMAKA D/C.J.: The appellant Makame Junedi Mwinyi was charged, before the Regional Court at Vuga, with defilement of girl under 14 years of age contrary to section 125(1) of the Penal Decree Chapter 13.

It was alleged by the prosecution that on the 27 July 1998 at about 4:00am at Kwabaniani Fuoni in Urban West Region Unguja, the accused person defiled Amina Mgeni Mohammed, who was under 14 years of age.

The trial magistrate gave judgement on the second February, 1999 in which he convicted and sentenced the accused to serve 30 years in the educational centre.

Having been dissatisfied with this judgement the appellant lodged an appeal with this court. The appellant was represented before me by Mr K. Haji while State Attorney Said Saleh represented the respondent.

The prosecution's evidence was to the effect that on the 27 July 1998 the appellant at about 4:00am went into the room of PW1 (the complainant) in her parents home PW2 (the mother) and PW3 (the father) and defiled her. Her mother (PW2) had observed that the lamp in the daughter's room was on and peeped in and saw "this accused person who is my brother-in-law trying to hide himself". She then informed her husband and later in the morning enquired from her daughter what went on, who told her it was not the accused first time of coming to her room and that he defiled her every time he came. "I then examined her and observed that she was in a state of a person who had been defiled" she concluded.

The prosecution witnesses went on to testify that subsequent to the appellant being found in PW1 room, he was questioned. PW3, the complainants father and the accused brother, said in his testimony "... I got in that room and at first, I did not see him, I searched the whole room and discovered the accused in the sack (bag). He was hiding under the bed and he was in the bag".

The accused failed to explain to him why he was in the room and why he was hiding under the bed. PW3 then brought in their father in the morning and when questioned, the accused denied having defiled the PW1. "I thereafter took the daughter PW1 to Fuoni police station, then to the hospital" he concluded.

PW 4 detective Cpl. Kondo from Fuoni police station handled the investigation. He took down statements and visited the room in question where he found a mat on a bed and the sack in which the accused hid himself. He interrogated PW.1 who confirmed that the accused defiled her several times before the material date. He took

the girl (PW1) to the hospital and the doctor confirmed that she was in a very bad condition. He then produced her birth certificate to show that PW1 as only 11 years old at the material time.

PW5 Mr Hassan Mohammed Hassan, a gynaecologist from Mnazimmoja hospital, testified that PW1 was brought to him on 27 July 1998 to examine and attend to. It was said that the girl had been defiled and when he examined her, he found that her outer vagina and to some extent the inner part had bruises. She also had blood and some fluids oozing from her vagina. "To my opinion especially from the lost virginity and the bruises Amina had, there was a possibility that she had really been defiled" he concluded.

Under cross-examination by the Accused, PW5 stated that he did not know who might have defiled PW1 and to the courts enquiry he said that the bruises and even the loss of virginity can be caused by any other blunt object and not necessarily by defilement. He then produced his report which was admitted in evidence.

Before this, the prosecutrix, Amina Mgeni Mohammed who is PW2 had given her unsworn testimony wherein she stated that she resides with her parents and usually slept alone in her room she said she knew the accused person who stayed with them, though he had his own hut close to their house. One night, she said, the accused went into her room, put out the lamp, put his finger in her vagina before defiling her. He then gave her TZS. 20 and asked her not to tell anyone about the affair. He prevented her from screaming out in pain by gagging her with a cloth, which she, under cross-examination identified as an old black shirt that used to belong to her father. She said, after the accused her defiled her but before leaving the room, her mother came out of their room and proceeded to the toilet. When the mother returned, her father now came into her room and found the accused hiding under the bed and when asked what he was doing there, he offered no explanation. Her father then went out with the accused. She said the accused had defiled her several times and even though she experienced great pains, she couldn't tell her parents or scream because she was afraid she would be punished. She said he

used to give TZS. 20 every time he defiled her. She also said the accused had his hut close to their house whilst their door was always unlocked during the night. PW1 gave her unsworn testimony after the Magistrate got the impression, upon a *voir dire*, that she was sufficiently intelligent to have her evidence received, though she could not take oath.

The accused person gave evidence in his defence denying the allegation and saying he was in his house at the material time. He said he woke up very early and went out for his business, only to be accosted by his brother and father with defiling PW.1 when he got back to the house at 7.00am., which allegation he denied. He was arrested at 3.00pm. and arraigned before the court the next day. He pleaded not guilty, denied having been found in PW1's room and wondered how PW2 and PW3 could have found him in her room without raising an alarm. Under cross-examination, he said he used to live with PW3 family and never had a quarrel with PW3. His brother, according to him was only framing him up for reasons best known to him.

That in essence, was the substance of the evidence before the Magistrate Court in this case. The Magistrate identified the issues for determination, as (1) whether PW.1 was defiled and (2) if she was defiled by none other than the accused. The issue of her age was not contended.

The Magistrate on the basis of the evidence of PW1 and PW2 her mother, found that PW.1 had been defiled, as further supported, in his view, by this testimony of PW5, the medical doctor. On whether she was defiled by non other than the accused, he also found in the affirmative. He came to the conclusion on the basis of the evidence of PW1, the prosecutrix and her parents PW2 and PW3. He didn't disbelieve PW1 because they knew each other well, used to live together and were close relatives with the accused, nor did he disbelieve PW2 "who discovered the accused person in PW1's room" and PW3 who is the accused person's brother who narrated how he "found the accused person hiding under PW1's bed in the sack".

He found further that there was nothing in PW1, PW2 and PW3 evidence for the court to believe that these witnesses lied so as to "fix the accused person" and was thus satisfied that PW1 was defiled on the material, date and time, and that she was defiled by none other than the accused person. He disbelieved the accused person's denial because he said he saw no element of ill-will in the testimony of the prosecution witnesses.

The appellant filed 5 grounds of Appeal before this court as contained in the annexed Memorandum of Appeal.

The gravemen of these grounds, taken together with the learned counsel's address before this court, appears to me to be:

(1) that the Lower Court erred by convicting on the uncorroborated evidence of prosecution.

(2) Convicting solely on circumstantial evidence.

(3) Reliance on the expert evidence of the medical doctor that was not conclusive or definite.

(4) As a consequence of 1, 2 and 3 aforestated, the standard of proof required for conviction had not been met.

Counsel for the appellant, Mr Ussi, found it expedient to argue it generally and not ground by ground and appropriately so in my view, as some of the grounds are manifestly intertwined.

Learned Counsel began by highlighting the essential ingredient of the offence, which is unlawful carnal knowledge, which as defined by section 119 of the Penal Decree, are epitomized by penetration, which once proved inculpates the accused.

He contended that it was imperative for this to be proved in order to secure conviction and in this case, the prosecution had totally failed in this regard. He further contended that due to the tender age of the prosecutrix, her testimony needed to be corroborated. In view of the gravity of the offence, this flaw was fatal to the prosecution's case.

Mr Ussi also found the testimonies of PW2 (the prosecutrix's mother) and PW3 (the father), incredible and unbelievable. How could a mother have found the appellant in the stated circumstance and simply decide to go and ease herself before returning to report to her husband and why did the father not get the appellant arrested on the spot and taken to the police station, he queried. Conspiracy it must be to do the appellant in, he declared.

On the final point, he DW.elt on the expert evidence of PW5, Mr Hassan, who examined the prosecutrix (PW1). He said PW5 based his report on what he was told by the person who brought her. He quoted from PW5's testimony wherein he stated, "... It was said that the said girl had been defiled ..." PW5, he said, also based his opinion and report on the "lost virginity and bruises" PW.1 had. Mr Ussi queried if lost virginity could only come from defilement. He said sportswomen like long jumpers have been known to lose their virginity. He however took succor in the fact that PW.5 was not categorical about the cause of defilement and had confined himself to "the possibility" of her defilement. The doctors report, he said, was not categorical that there had been defilement and even said there could have been other causes for the loss of virginity, it did not say there had been penetration nor that the fluid found in PW1 vagina was from the appellant. Additionally, the appellant was not examined to see if he had bruises on his organ to show his having penetrated the girl. All these, Mr Ussi argued, were not sufficient to secure a conviction. He cited the case of *Kibazor* v *Uganda* (1) reported in the East African Law Reports, 1965 at page 507, which was also a sexual offence case, where it was held that "the trial judge placed higher reliance on the evidence of the complainant in view of the contradiction of her evidence".

He finally submitted that in view of the fact that the prosecutrix evidence was not corroborated and the doctors report was not categorical, and in view also of the fact that, the appellant and prosecutrix knowing each other could not be a criterion for guilt, the case should have been dismissed at the Lower Court and that the conviction should be quashed.

Mr Said Saleh for the respondent, sought to differentiate between rape and defilement in his opening remark. He however did not dwell much on this. He said going through the memorandum of appearance and the record of proceedings at the Magistrate's Court, PW1, PW2 and PW3 were succinct and clear in their testimonies. From the evidence he said the issue for determination by the Magistrates Court was whether the prosecution had proved its case beyond reasonable doubt or not, and this could be answered by the questions (1) was the girl defiled (2) was it the accused who defiled her? Quoting extensively from the evidence of PW1, he submitted that her testimony was without contradictions. This was supported amply by the evidence of PW2 and PW3. PW5's evidence only served to buttress their positions further. There was no doubt therefore to the fact that PW1 had been defiled. As to who had defiled her, he said PW1's testimony was clear that it was the accused person who went into her room on the material night and defiled her. They (the accused and PW1) are not unknown to each other, as apart from being close relatives, they used to stay together. He cited the case of *Republic v. Opert, Son of Erui* (2) reported in the Digest of East African Criminal Case law, where it was decided "that the complainant a child of tender years made a recent complaint of a sexual offence against her, is merely indicative of consistency of her evidence and does not supply corroboration". The accused, he submitted, had no justification being in PW.1's room under the bed at the material time and offered no good explanation when accosted.

He submitted that the unsworn evidence of PW1 as corroborated by the evidence of PW2, PW3 and PW5 left no doubt and satisfied the Magistrate Court that PW1 was defiled by none other than the accused and registered a conviction against the appellant.

In view of these, he urged the court to uphold the conviction as there was no justification to disturb the conviction which was rightly made, and confirm the 30 years sentence.

I will begin by stating that it is trite law that carnal knowledge must be proved. As aforestated, in accordance with the definition

given in section 119 of the Penal Decree. It is not necessary to prove that the hymen was ruptured ("disvirgined") or that there has been an emission of semen. The slightest penetration of the vagina is sufficient, but there must be penetration. It is the contention of the appellant's counsel that this essential ingredient was not proved as all the evidence adduced by the prosecution amounted to mere circumstantial evidence purporting to support the uncorroborated testimony of the prosecutrix.

What is circumstantial evidence? Simply put, these are circumstances in the form of evidence which enable a court to reasonably infer or conclude the existence or non-existence of a fact in issue or the guilt of an accused person. It is generally in the form of oral evidence. In the instant case, were there circumstances that reasonably enabled the trial magistrate to infer or conclude the appellants guilt? I shall come back to this in due course. Suffice it to say that in order to justify conviction on circumstantial evidence, the inference of guilt, the inculpatory facts must be incompatible with the innocence of the accused.

Mr Ussi, learned counsel for the appellant contended also that the trial court convicted on the uncorroborated testimony of the complainant. Corroboration is simply independent evidence which supports or confirms as true, the principal evidence.

It is my view that the testimonies of PW2 and PW3 support the principal evidence, which is the evidence of PW1. PW2 in her evidence said *inter alia* that she saw "this accused person who is my brother in law trying to hide himself ... I then examined her (PW1) and observed that she was in a state of a person who had been defiled" She concluded.

PW.3 in his evidence, *inter alia* said, "... He was hiding under the bed and he was in the bag ..." and in conclusion said "... I thereafter took the daughter PW1 to Fuoni police station, then to the hospital ..." The rule is that corroborative evidence must implicate the accused person in some material particular in respect of the offence charged. Did the evidence of PW2 and PW3 implicate the accused person in

respect of this charge? I would answer in the affirmative. That PW1 was defiled I believe, was proved beyond reasonable doubt and this is a material particular in respect of this offence.

The disposition of the courts as regards testimonies of complainants in sexual offences is clear. In the case *R. v. Konstant Kirimunyo* (3).

It was said, "whilst there is nothing in the evidence ordinance to require corroboration of the statement of a girl of tender years as to a sexual offence against her, it is the practice to require corroboration of the evidence of a child complaint in the case of sexual offences". This position is amplified by the decision in the case, *Sunmonu v. R.* (4) at page 24. Where it was *inter alia* stated that, courts regard it as unsafe to convict upon the uncorroborated testimony of the complainant only. However "it is not a rule of law that in sexual offences, an accused person should not be convicted on the uncorroborated evidence of a prosecutrix, but the proper direction is that it is not safe to convict on the uncorroborated evidence of a prosecutrix, but the court (jury) may after paying attention to the warning, nevertheless convict if they are satisfied of the truth of her evidence". The testimonies of PW2 and PW3 served to corroborate the evidence of PW1, the prosecutrix, whose testimony as already stated, was unsworn.

It is my view that the fact that the trial magistrate conducted a "*voir dire*" to test the intelligence and understanding of PW1, showed that he had appropriately adverted his mind to the possible "evidential deficiency" of her testimony. Her evidence was very clear and categorical in my view.

> ...That was not the first time for Makame, the accused, to come to my room at night, he oftenly used to come and put out the lamp and defile me....

Under cross-examination by the accused, her response was very un ambitious "you covered my mouth by the old shirt which used to be my father's. You used to give me TZS. 20 everyday you defiled me. The shirt is black in colour". Taken in conjunction with the evidence of PW3, I am of the view that the trial court was correct to reasonably

infer or conclude the existence of a fact in issue, i.e. that PW1 was defiled by the accused; in other words, the guilt of the accused. For purposes of clarity, I would quote the relevant portion of PW3's testimony; at page 5 of the record of proceedings "this accused person is my younger brother and I know him very well. The accused hid himself in the sack (bag) under the bed. The bag was dirty and torn ... this is the very bag in which the accused person was hiding under my daughter's bed (the accused was also shown same").

It was also canvassed by the counsel for the appellant that the trial court relied on the expert evidence of the medical doctor which failed to prove that the prosecution was defiled by no one else but the accused. The position of the law is that expert evidence is an admissible in cases where specialized knowledge is required. The governing rule is that "the competence of an expert witness should in all cases, be shown before his evidence is properly admissible." *Gatheru s/o Njagwara v. R.* (5).

PW.5 here, Mr Hassan, stated that he has over 12 years experience, and is ... "a qualified doctor especially in women problems (gynaecology)." His testimony has been severally referred to and analysed by both counsel and the trial magistrate which can be gleaned from the record of proceedings and hence I am not inclined to dwell on it. Suffice it to say however that, I am in agreement with the trial magistrate that taken together with all other evidence, it points inexorably to a conclusion of guilt of the accused.

Learned counsel also stated in his grounds of appeal that the court failed to consider other circumstantial evidence which could have led the trial court to find that PW.1 could have been defiled between the time she went to school and the time she was sent to the hospital to be examined. I must confess that I did not see, both from the record of proceedings and the learned counsel address, any such circumstance. From the testimony of PW3, after accosting the appellant in PW1's room, he released him, and at about 5.00am, he took his bicycle to go and bring their father. The accused denied defiling PW1 and thereafter PW3 took her to the police station and

then to the hospital. Under cross examination, on page 6 of the record of proceedings, PW3 said "We took PW1 to the hospital in the same morning."

I feel inclined to comment on what I will call the "gang-up" or frame-up theory of the Appellant's Counsel. Nothing was tendered or proved to show that there was any ill will harboured against the appellant. Interestingly, the appellants cross-examination of PW3 conspicuously dwelt on the question of who actually examined PW1 on the allegation of her defilement and absolutely nothing to contradict his alleged presence in PW1 room in a bag under the bed at that hour of the day. The appellant himself under cross-examination confirmed having lived peacefully with PW3 and his family. There was nothing to allude to a subsisting enemity between them.

On a final note, I feel it is worth while going into the case *Kibazo v. Uganda* cited by the appellants counsel, as it seems to form pivot of his argument. In this case, the appellant was convicted of rape, mainly on the evidence of the complainant. There were contradictions in her evidence; the evidence she gave the police and the evidence of the medical assistant who had examined her. In other regards, her evidence was false. She had stated she was a virgin, which turned out to be false from the evidence of the medical assistant who examined her. Similarly, her dress which she wore at the time of her assault which she said was blood stained contained no blood. The appellant whom she claimed to be merely acquainted with turned out not only to be well known to him but had even written him five letters, some of which turned out to be love letters, which she at first denied. The counsel in this case argued and submitted that in view of the discrepancies in the evidence of the complainant as aforestated, the learned Chief Justice erred in ignoring these contradictions and accepting the evidence as he did. Consequently, the court held, *inter alia*, that "the trial judge placed a far greater reliance on the evidence of the complainant than was desirable in view of the contradictions and false hoods in her evidence" and that it was unsafe to allow the conviction to stand and it be quashed.

I would at this point like to observe that in the present case, there was no allegation of the complainant having given evidence which was proved to be false.

In the *Kibazo* case, as in this case, it was a ground of appeal that the trial judge misdirected himself in holding that the medical assistants opinion with regard to the injuries sustained by the complainant could only have been sustained through sex without consent. The medical assistant stated that he found fresh bruises in the complainant's. vagina and that in his opinion, a male organ had penetrated into the vagina. The issue before the court was not only that the complainant had been raped, but that she had been raped by non other than the appellant. The medical assistant had stated on further examination that it was quite possible that the bruises could have been caused by "a fall or by a violent bathing in the river with swift current." In the present case, PW5, Mr Hassan stated that he found some bruises in her vagina and that the vagina had blood and some foul smelling fluids oozing out. In his opinion, the bruises and the lost "virginity" showed a possibility that she had been defiled. Like in the *Kibazo* case, PW5, agreed that "the bruises and even the loss of virginity can be caused by any other blunt object it is not always that it may be caused by defilement."

On this issue of expert evidence, I will like here to make a contradistinction between the two cases, which is fundamental. Whereas in the former case, the medical assistant, who is not a qualified doctor, should not have been allowed to express an opinion without laying a proper foundation of sufficient experience enabling him to speak with authority on the subject. In this case, PW5 is a qualified medical doctor, gynaecologist, sufficiently qualified and experienced to proffer expert **opinion**. This, I am of the view, weigh eminently on the evidential value of his testimony.

Coming back to the question earlier posed, i.e. were there circumstances that reasonably enabled the trial magistrate to infer the appellants guilt? I would in the light of all the foregoing be compelled to answer in the affirmative.

I find that there has been no injustice occasioned by the judgment of the trial court consequently I have no reason to tamper with it and therefore uphold the conviction.

Whilst entirely agreeing with the Magistrate that since this type of offence is becoming prevalent and needs to be curbed in order to protect young and the weak in society, I would want to give a reconsideration to the fact that the appellant is a young person and more importantly a first offender, I am hoping on his reformability.

Accordingly, I hereby set aside the sentence of 30 years and substitute therefore a sentence of 15 years (imprisonment) in the educational centre. Save for the variation of the sentence, this appeal is dismissed.